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Ammianus Marcellinus

A Study of his Historiography and Political Thought



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PREFACE

When I was defending the thesis which was the precursor of this book, Professor Robert Browning, who was my external examiner, remarked to me that scholars were like dogs — if one found an interesting tree, a whole pack rushed up barking to investigate it. In the case of Ammianus one might wish that the pack, which is now larger than it had been, were larger still, since as the major source for the history of the second half of the fourth century A.D., he is sadly underinvestigated. My own particular contribution in this book is a study of certain aspects of his historiography and political ideas, as a part of a wider and (I hope) continuing investigation of the Greek secular historians of the later Roman and early Byzantine period. The book itself lays no claim to be a well-rounded and complete whole. Its subject is rather certain aspects of Ammianus' thought and historiographical procedure upon which I feel that I have something to say.

A debt of gratitude is owed especially to Professor E. A. Thompson of Nottingham University, who was the supervisor of the thesis from which this book sprang and who offered (and has continued to offer) advice and encouragement. Acknowledgements for advice are also due to Professor Robert Browning of Birkbeck College, London, who externally examined the thesis; to Mr. W. R. Chalmers of Nottingham University; and to Dr. W. Liebeschuetz of Leicester University. In the reading of the proofs many of the errors which escaped my own weary eye were caught by the vigilance of Professor Ellenor Swallow and Miss Barbara Galli, both of Carleton University.

The index was composed by Miss Carolyn Hawkins.

For financial assistance I have to thank the office of the Dean of Arts (Division I) of Carleton University for a research grant which considerably eased the task of collecting material necessary for this study; and the Canada Council for a doctoral fellowship which enabled me to spend two years full-time at Nottingham University working on Ammianus.

Ottawa, December 1972

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ABBREVIATIONS

A. & A.	<i>Antike und Abendland.</i>
ABAW	<i>Abhandlungen der bayerischen Akademie der Wiss.</i>
ABull.	<i>The Art Bulletin</i> (of the College Art Assoc. of America).
AClass.	<i>Acta Classica.</i>
AHR	<i>American Historical Review.</i>
AIPhO	<i>Annuaire de l'institut de philologie et d'histoire orientales</i>
AJP	<i>American Journal of Philology.</i>
ASNP	<i>Annali della scuola normale superiore di Pisa.</i>
BAGB	<i>Bulletin de l'association Guillaume Budé.</i>
BCO	<i>Bibliotheca Classica Orientalis.</i>
BIDR	<i>Bollettino dell'istituto di diritto Romano.</i>
BzZ	<i>Byzantinische Zeitschrift.</i>
CB	<i>Classical Bulletin.</i>
CH	<i>Church History.</i>
CIL	<i>Corpus Inscriptionum Latinarum.</i>
CJ	<i>Classical Journal.</i>
C & M.	<i>Classica et Mediaevalia.</i>
CPh	<i>Classical Philology.</i>
CQ	<i>Classical Quarterly.</i>
CR	<i>Classical Review.</i>
CS	<i>Critica storica.</i>
EHR	<i>English Historical Review.</i>
FGH	<i>Die Fragmente der griechischen Historiker</i> , ed. F. Jacoby, 1926-.
FHG	<i>Fragmenta Historicorum Graecorum</i> I-V, 1, ed. C. Müller, V, 2, ed. V. Langlois, Paris 1848-83.
G. & R.	<i>Greece and Rome.</i>
HSCP	<i>Harvard Studies in Classical Philology.</i>
HTbR	<i>Harvard Theological Review.</i>
HZ	<i>Historische Zeitschrift.</i>
ILS	<i>Inscriptiones Latinae Selectae.</i>
JAC	<i>Jahrbuch für Antike und Christentum.</i>
JHI	<i>Journal of the History of Ideas.</i>
JHS	<i>Journal of Hellenic Studies.</i>
JPh	<i>Journal of Philosophy.</i>
JRS	<i>Journal of Roman Studies.</i>

MAAR	<i>Memoirs of the American Academy in Rome.</i>
MGH	<i>Monumenta Germaniae Historica</i> (Auctores Antiquissimi).
Pan. Lat.	<i>XII Panegyrici Latini</i> , ed. R. A. B. Mynors, Oxford 1964.
PAPhS	<i>Proceedings of the American Philosophical Society.</i>
PCPhS	<i>Proceedings of the Cambridge Philological Society.</i>
PG	<i>Migne, Patrologia Graeca.</i>
PL	<i>Migne, Patrologia Latina.</i>
PP	<i>La parola di passato.</i>
RAC	<i>Reallexicon für Antike und Christentum.</i>
RAL	<i>Rendiconti della classe di scienze morali, storiche e filologiche dell'Accademia dei Lincei.</i>
RCCM	<i>Rivista di cultura classica e medioevale.</i>
RD	<i>Revue historique de droit français et étranger.</i>
RE	<i>Pauly-Wissowa, Realencyclopädie der classischen Altertumswissenschaft.</i>
REA	<i>Revue des études anciennes.</i>
REG	<i>Revue des études grecques.</i>
REL	<i>Revue des études latines.</i>
RFIC	<i>Rivista di filologia e di istruzione classica.</i>
RH	<i>Revue historique.</i>
RHLR	<i>Revue d'histoire et de littérature religieuse.</i>
RhM	<i>Rheinisches Museum für Philologie.</i>
RPh	<i>Revue de Philologie.</i>
Sbornik Praci	<i>Sbornik Praci Filosofické Fac., Brněnské Univ.</i>
SCO	<i>Studia classica et orientalia.</i>
Sp.	<i>Rhetores Graeci</i> , 3 vols., ed. L. Spengel, Leipzig 1853-6.
SR	<i>Studi Romani.</i>
TAPA(TAPhA)	<i>Transactions and Proceedings of the American Philological Association.</i>
TLL	<i>Thesaurus Linguae Latinae.</i>
UCP	<i>Univ. of California Publications in Classical Philology.</i>
VDI	<i>Vestník Dávneho Istorii.</i>
YCS	<i>Yale Classical Studies.</i>

INTRODUCTION

Some time before 335 A.D., and probably before 330⁽¹⁾, Ammianus Marcellinus was born in Syria⁽²⁾. He calls himself a gentleman (*ingenuus*, XIX, 8, 6), and although there is no clinching evidence, his attitude both towards certain individuals in his *History* and towards the various social and economic problems of the fourth century strongly suggests that his background was curial⁽³⁾. If his family were of this middle class rank, it was influential, for Ammianus, when still comparatively young, was enrolled in the élite *protectores et domestici*. Service in this corps was attractive to curials who wished to escape their obligations to serve as decurions, since after a period of time it gave, or was supposed to give, immunity from liability to service in the *curia*. A number of constitutions attempted to block this escape route⁽⁴⁾; and even if curials remained undetected for the period of time prescribed by the law⁽⁵⁾, they were always in danger of prosecution with a view to their recall to the *curia*⁽⁶⁾. On a number of occasions Ammianus censures Julian for returning people to their *curia* despite immunity⁽⁷⁾; and the strength of the writer's strictures suggests that he himself was apprehensive of a similar fate.

Ammianus would have received the traditional higher education of the day, which included the practice of declamation, the study of the Greek classics and the learning of at least the famous names and events of history, designed for use as *exempla* in orations, but also to inculcate an

appreciation of the greatness of the past and an admiration for traditional values. All three areas of study made their mark on Ammianus' *History*.

There is no evidence that the historian was a pupil of Libanius. But that he was known to the sophist is quite likely. A letter (*Ep.*, 1063) from Libanius to a certain Marcellinus at Rome congratulates him upon the success of the public reading of his *History*. The parallelism of situation suggests that the recipient of the letter was our historian. The letter is formal, probably merely a token of continuing friendship⁽⁸⁾, and indicates no real closeness. Indeed there are some considerable differences of outlook between the two men. Libanius heartily approves of Julian's measures to force people back into the *curia*⁽⁹⁾; Ammianus is hostile. Libanius is unsympathetic towards Rome and openly hostile to the study of Latin⁽¹⁰⁾; Ammianus read deeply in that language and went to Rome to write his *History* in it. More than one person quite acceptable to Libanius or even praised by him is criticised by Ammianus⁽¹¹⁾.

Some time before 353 A.D. Ammianus joined the army, enrolling immediately, it would seem, in the *protectores et domestici*, a corps of staff officers and a gateway to higher posts, open to proven men from the ranks, but also to civilian gentlemen like himself⁽¹²⁾. Attached to the staff of Ursicinus, the master of the cavalry in the East, he was present at various military actions in the East, possibly at the trial of those who conspired against the Caesar Gallus, certainly at the suppression of the revolt of Silvanus and during the first year of Julian's career in Gaul. Whether Ammianus retired from the army in 359 A.D., when Ursicinus was dismissed (XX, 2), is unclear. But he certainly served in some capacity on Julian's Persian expedition⁽¹³⁾.

When the remnants of the Roman forces struggled back from Persia, Ammianus seems to have left the army. What he did in the subsequent

(1) THOMPSON, Cambridge, 1947, p. 1. What follows is not a full biography, merely a sketch of relevant details. For a fuller treatment see, amongst others, THOMPSON, *op. cit.*, ch. I; ENSSLIN, ch. I; MICHAEL, *Juier*, 1895. Also see the remarks of SYME, Oxford, 1968, p. 5 ff.

(2) The relevant references are in THOMPSON, *op. cit.*, p. 1.

(3) THOMPSON, *op. cit.*, p. 2; ENSSLIN, p. 5-6; CAMUS, p. 25 ff.; PACK, *CPh*, 1953, p. 80-5. The most detailed treatment of Ammianus' curial outlook is in ANDERSON, p. 80-106.

(4) C.Th., VII, 13, 1 (353 A.D.); 21, 1 (352 A.D.); 21, 2 (353 A.D.); XII, 1, 11-13 (325-6 A.D.); 1, 38 (346 A.D.); 1, 88 (382 A.D.). Cf. LIBANIUS, *Or.*, 18, 146.

(5) Five years by a law of 346 A.D. (C.Th., XII, 1, 38).

(6) Libanius was immune, but an attempt was made to recall his son Cimon (NORMAN, p. 223-4).

(7) XXI, 12, 23; XXII, 9, 12; XXV, 4, 21 (cp. XXII, 9, 8). ZOSIMUS, III, 11, 5 confirms that Julian allowed the recall of persons usually considered exempt. See also note 9.

(8) See PACK, *TAPA*, 1951, p. 183.

(9) LIBANIUS, *Or.*, 18, 14-18.

(10) LIBANIUS, *Or.*, I, 214; 2, 44; 11, 129; *Ep.*, 951.

(11) E.g. MASONIUS — LIBANIUS, *Or.*, I, 81 ff., 106; 111 ff.; AMMIANUS, XV, 11, 1-2; XVI, 9, 2; etc. LUPICINUS — LIBANIUS, *Or.*, I, 165 ff.; AMMIANUS, XX, 1, 2; 9, 9. FORNARIUS — AMMIANUS, XXIX, 1, 5; for Libanius see SYME, *Hildesheim*, 1966, p. 159-60. For Hyperechius see ch. 3, p. 81 and n. 28. The two writers also had a different approach towards the use of acronyms (*claudae* (A. D. E. CAMERON, *JRS*, 1964, p. 18, n. 34).

(12) *Index*, II, p. 632 ff.

(13) THOMPSON, *op. cit.*, p. 10 ff.

years is unknown for the most part. Military service had widened his horizons and he continued to travel, to Egypt and Greece at least⁽¹⁴⁾. He was present at Antioch during the terror of the treason trials of 371-2 A.D.; and it has recently been suggested that such an experience of Valens' methods marked Ammianus in much the same way as Domitian is said to have influenced Tacitus, and coloured his account of the administration of Constantius after the fashion of the Tacitean Tiberius⁽¹⁵⁾. However, this hypothesis is unnecessary. Ammianus himself was active during the later part of the reign of Constantius and he was influenced by two men who were hostile to that Emperor, Julian and Ursicinus. Moreover, the fourth century in general was not kind to curials; and many of the attitudes and preoccupations which appear throughout the *History* can be explained by the historian's curial background.

During this period of his life, Ammianus was studying ancient and contemporary works on history, geography and science and, by reading deeply of the Roman classics, he was improving his Latin, which he would probably have learned at school and, if not, have picked up during his army service. Perhaps Camus is right to suggest that the generally grave tone of Latin literature appealed to Ammianus' own severe outlook⁽¹⁶⁾. But whatever the reason, at this period, or before, Ammianus conceived a great admiration both for Rome as the founder and spiritual centre of the Empire, and for the achievements and personal excellence of the Romans of his history books. Therefore some time after 378 A.D.⁽¹⁷⁾ he set out for Rome, to settle in the city and to produce in Latin the history which he conceived and had perhaps already begun to work upon.

If the city of Rome did not disappoint his expectations (XVI, 10, 14-17), its inhabitants did; two long digressions are devoted to their unacceptable behaviour⁽¹⁸⁾. Ammianus was further disenchanted in 383 or 384 A.D. when, it seems, he was ejected from the city along with other

(14) THOMPSON, *op. cit.*, p. 13.

(15) ROSEN, p. 244.

(16) CAMUS, p. 50.

(17) He apparently saw the bones of those slain in one of the battles which preceded Adrianople (XXXI, 7, 16) — unless the statement which he makes there is simply to introduce a Virgilian echo: *at indicant mox usque albescent ossibus campi*. VIRGIL, *Aen.*, 5, 364 ff., *Sepulchra ... ossibus arbor.*

(18) XIV, 6; XXVIII, 4. For a summary of Ammianus' experience in Rome see THOMPSON, *G & R*, 1941-2, p. 130-4.

foreigners. The cause was a famine; but mimes, dancing girls and other entertainers and their attendants were allowed to stay⁽¹⁹⁾.

There is no real evidence for the often accepted theory that Ammianus was a protégé of Symmachus and his circle. From what is known or inferred about the character of both men it seems unlikely that Ammianus would have found Symmachus congenial⁽²⁰⁾. A letter of Symmachus (*Ep.*, 9, 110), said to have been written to Ammianus, almost certainly was not⁽²¹⁾. Praetextatus, a close friend of the Roman aristocrat, is highly praised by the historian⁽²²⁾; but such praise for a man as widely respected as Praetextatus⁽²³⁾ cannot be used as evidence of a close connexion with Symmachus. Other passages in the *History* which are complimentary to friends and acquaintances of Symmachus indicate no particular desire to please the great man⁽²⁴⁾.

Moreover, if Ammianus were closely associated with Symmachus and his circle (if indeed such a circle ever existed)⁽²⁵⁾, some of his omissions are quite surprising. There is no echo of Symmachus' works in the *History*; no trace of Symmachus' concern for the Altar of Victory and other adjuncts of the old religion which were now threatened or condemned⁽²⁶⁾; no mention of Symmachus himself, even where not to do so would have been an open slight upon a friend (e.g. the African campaign of Theodosius the elder, in which Symmachus played a part)⁽²⁷⁾. Some associates of Symmachus, including his father-in-law Orfitus⁽²⁸⁾, are attacked. Hypatius, the only person who is possibly mentioned in the

(19) XIV, 6, 19. THOMPSON, *Cambridge*, 1947, p. 14, following SECK, *Untersuchung*, V, p. 496 and EMMETT, p. 6-7, accepts 383 A.D., the date of the prefecture of Anicius Iulianus, which could account for Ammianus' hostility to the Anicii. PALANQUE, *REA*, 1931, p. 250 ff. argues for 384 A.D., the prefecture of Q. Aurelius Symmachus, and is followed by PACK, *TAPA*, 1953, p. 188-9 and A. D. E. CAMERON, *JRS*, 1964, p. 27.

(20) For an unfavourable characterization of Symmachus see PASCHOUDES, *Historia*, 1945, p. 210.

(21) See A. D. E. CAMERON, *JRS*, 1964, p. 15-18. Suggested by V. S. SOKOLOV, *Ammianus Marcellinus as the Last Representative of Ancient Historiography*, in *VFI*, 4, 1959, p. 46 (in Russian).

(22) XXII, 7, 6; XXVII, 9, 8-10.

(23) *Ibid.*, p. 17-18.

(24) A. D. E. CAMERON, *JRS*, 1964, p. 19 ff.

(25) A. D. E. CAMERON, *JRS*, 1966, p. 25-38.

(26) For instance in XVI, 10 when he describes Constantius' visit to Rome in 357 A.D., Ammianus fails to mention that on that occasion the Emperor removed the statue of Victory from the Senate House (SYMMACHUS, *Rel.*, 3, 4 and 6).

(27) AMMIANUS, XXIX, 5; SYMMACHUS, *Ep.*, 10, 1.

(28) XIV, 6, 1; XXVII, 3, 2. Orfitus was accused of embezzlement CASSIODORUS, *Rome*, 1957, p. 49-50.

History as an acquaintance of Ammianus and who was highly placed in Roman society, is never mentioned by Symmachus⁽²⁹⁾.

Many of Ammianus' political and moral ideas were traditional and common in fourth century Rome. Many of his concerns and complaints are similar to those of the senatorial order, but not necessarily because of derivation, rather because in many areas senators and curials had similar interests. That is not to argue that famous men such as Symmachus, Praetextatus and Flavianus had no influence at all upon Ammianus. But he is not the mouthpiece of the senatorial class, except insofar as on specific subjects their viewpoints are similar.

The *History* was first published in twenty-five books, ending at the year 364 A.D. Since Ammianus himself says that he began from the principate of Nerva⁽³⁰⁾, it is usually assumed that the work began at 96 A.D. The twelve surviving books (XIV-XXV) cover only the last eleven years of this period, and therefore the lost thirteen must have covered the rest, from 96 to 353 A.D. This huge disproportion, together with other considerations, has led to a theory that the years 96 to 337 A.D. (the death of Constantine I) were dealt with in an entirely separate work and that the present history only ran from 337 to 364 A.D.⁽³¹⁾ The theory is not impossible, but also not necessary. The assumption can be defended that the earlier period was covered quite sketchily and that the treatment expanded as the fourth century approached, a procedure used by Zosimus amongst others.

The last stage of the expansion of the text seems to be marked in XV, 1, 1 by the words *residua ... limatius absoluemus*. A previous, less detailed stage, of which XIV was the last book, was compiled by means of personal observation or interrogation of eyewitnesses, as Ammianus says, also in XV, 1, 1: "I have set down these events which my age allowed me to observe, or to learn by careful interrogation of eyewitnesses"⁽³²⁾. The very first, sketchy part of the *History* would have relied upon written sources.

(29) XXIX, 2, 16: *inter Hypatium*. Hypatius was in Rome by 379 A.D., when he held the urban prefecture. He received the insignia at Antioch in 378 (A. CHASTAIGNOL, *Les fastes de la préfecture de Rome au bas-Empire*, Paris, 1962, p. 192).

(30) XXXI, 16, 9: *a principatu Caesaris Nervae consulis*.

(31) Proposed by MICHAEL BRESHAU, 1880, and recently revived with further arguments by ROWELL, Cincinnatus, 1964, p. 15 ff., and "The First Mention of Rome in Ammianus' Extant Books and the Nature of the History," p. 839-48.

(32) Cp. ROWELL, Cincinnatus, 1964, p. 18-19, who would, however, refer these words to all the lost thirteen books.

The most weighty objection to the assumption that the first thirteen books of the *History* covered the period from 96 to 353 A. D. is that in the surviving books Ammianus makes references to material in the lost part which indicate that it contained digressions, sometimes (so the historian himself says) long ones⁽³³⁾, and descriptions of sieges etc. which seem to demand a detailed narrative, hardly to be reconciled with a sketch. Against this argument it has been shown from examples in surviving books that when Ammianus refers to treatment of material elsewhere in terms expressing size or number his description is not always accurate: and thus when he says "long" or "many" he may mean something short or infrequent⁽³⁴⁾. That Ammianus is unreliable in this way in references to lost material is quite possible. But it is not necessary to argue that therefore the early books of the *History*, however sketchy, contained no digressions of any length or any other detailed material.

There are at least two ways of reducing material to proportions suitable for a sketch. One, the procedure of the Latin epitomators, is to mention briefly the important facts, treating them all as more or less equal. Another method, used by Procopius in his *Wars*, is to give more weight to a few selected events, dealing with them in detail. Thus in the introduction to the *Persian War* the history of Romano-Persian relations from 408 to 518 A. D. is sketched in about 41 Teubner pages (*B. P.*, 1, 2-10), yet the selected material is detailed. Four pages are devoted to the siege of Amida (7, 12-35), four to the first campaign of the Persian king Perozes against the Ephthalite Huns (3) and so on. Again in the introduction to the *Vandalic War* the period from the capture of Africa by the Vandals to the death of Gaiseric (430-477 A. D.) receives 24 pages (*B. V.*, 1, 3, 14-7, 30) against almost six pages (8) devoted to the reigns of his successors up to Ilderic, a period of time of almost equal length (477-523 A. D.).

A possible objection to this comparison is that Procopius' *Wars* are primarily military, whereas Ammianus' interests are considerably wider, which would impose upon him far more material. However, despite the great amount of space which Ammianus devotes to civil affairs and his vital interest in them, his *History* is built around a military narrative. It is the detailed descriptions of such as the treason trials which would have

(33) E.g., XXII, 15, 1: *res Argathioae... quarum notitiam in actibus Hadriani et Severi principum dignissimae sunt*.

(34) *Ibid.*, RBM, 1888, p. 60 ff., 56 ff.

been missing from the sketch, depending as they do upon eyewitness reports or detailed documentation, which is unlikely to have been available for the earlier period, nor perhaps offered in the sources. That is not to say that all non-military material would have been omitted. Hadrian's travels may well have found a place, and events such as the condemnation of Lusius Quietus and his fellows during the reign of the same Emperor and the uprising of the Roman mintworkers against Aurelian. But such material would probably have been treated either briefly or in digressions (as, in the case of the revolt of the mint-workers, is suggested by the treatment of events at Rome in the surviving books of the *History*)⁽³⁵⁾. If Ammianus did produce a sketch of the kind offered by Procopius (though not restricted to any particular area of the Empire), it can be reasonably assumed that the important battles and sieges, to which he refers in the surviving books, occupied a major portion of it⁽³⁶⁾.

A parallel for the inclusion of detailed digressions in a sketch is also offered by Procopius' *Persian War*. In the introduction there is a formally marked digression (i.e. one introduced by words such as "the story is worth telling" and closed by such as "but now I shall return to my narrative") of five Teubner pages on how a fourth century Armenian king was captured by the Persians and imprisoned in the Castle of Oblivion (I, 5, 10-40) and another of two-and-a-half pages devoted to the origin of a pearl of the Persian king Perozes which he lost when he died fighting the Ephthalite Huns (I, 4, 17-31)⁽³⁷⁾.

It is highly unlikely that the first stage of Ammianus' more detailed narrative started at the beginning of book XIV. There is no reason for it to have done so; although the suggestion that the surviving part of the *History* survived because it was more detailed than the rest, does imply that. It almost certainly started at the beginning of the reign of an Emperor or some key point in it⁽³⁸⁾. 337 A. D., the date which Michael advanced as the beginning of Ammianus' second work, has been

(35) It is to such that the words of XIV, 6, 2 (an obvious exaggeration) could refer: *cum oratione ad ea monstranda deflexerit quae Romae geruntur, nihil propter seditiones narrare et tubernas et milites hauriri similis alius*. The form of expression suggests that no systematic exposé, such as that which follows, has been offered before.

(36) Cf. descriptions of battles and sieges in the first book of Zosimus' history: I, 33, the capture of Trapezus; I, 52-3, the battle of Emesa; I, 69-70, the siege of the Isaurian brigand, Lydius.

(37) Cf. Zosimus, I, 57, 1-58, 4, a formally marked digression on omens which preceded the fall of Palmyra.

(38) See p. 95-96.

suggested⁽³⁹⁾, and it is quite possible. But there are perhaps some slight reasons for suggesting the beginning of the reign of Constantine I or some key point in it, such as the defeat of Licinius in 315 or 323 A. D. Firstly, in XXV, 4, 23 Ammianus blames Constantine for the hostilities with Persia which ended in the death of Julian. Perhaps therefore the series of wars with Persia, begun by Constantine, was treated as a theme unifying the large-scale part of the *History* which ended with book XXV. Secondly, for a pagan it would have been a satisfying treatment of history which began with the Emperor who virtually established Christianity within the Roman Empire, which charted the disasters of his sons, and which culminated in the reaction of Julian, the pagan hero. Such an approach would have been, not directly but by implication, a criticism of the policies of the Christian ruler⁽⁴⁰⁾.

Book XXI of the *History* seems to have been published before 391⁽⁴¹⁾. It is usually assumed that book XXV appeared before or during 392. How long the work had been in preparation cannot be discovered.

After the death in 392 A. D. of Valentinian II, the last of the Pannonian Emperors, Ammianus decided to extend his *History* to cover the reigns of these rulers⁽⁴²⁾. He published his account of the reigns of Valentinian I and Valens, which forms books XXVI to XXXI of the work. It is possible that he had prepared much of the material for these books before 392 A. D. in case an opportunity to publish them should offer itself⁽⁴³⁾; and it is frequently held that they were published during the short reign of Eugenius (392-5 A. D.)⁽⁴⁴⁾. However, the treatment of the father of the Emperor Theodosius I, a man of the same name and

(39) By Sauer, Oxford, 1968, p. 8, n. 4.

(40) See also p. 145.

(41) XXI, 10, 6 mentions the urban prefecture of Aurelius Victor (388-9 A.D.). XXI, 16, 2 mentions the Alexandrian Serapeum as still standing. It was burnt down in 391. Of course, the former notice may have been inserted after the first publication.

(42) See p. 94 with reference to XXVI, 1, 1.

(43) That Ammianus was already collecting material for the last books when he wrote book XX is perhaps suggested by XX, 4, 18, where he writes, *Maurus nomine quidem, postea comes, qui rem male gerit quod Saverio*. This refers forward to XXXI, 10, 21, where Maurus replaces Frigeridus who was fortifying the pass of Sucii (cp. Leontinopolis, *ad loc.* in Waacke-Ennen, II, p. 310). Although in the later passage Ammianus does not actually describe a disaster, he implies that the replacement was disastrous, which suggests that he had more material and chose not to include it. (On the other hand, the passage of book XX might again be a later addition.)

(44) Rowell, Cincinnati, 1964, p. 29; Demandt, p. 148-51; Maercken-Helfen, *ASP*, 1955, p. 184-99. The detailed arguments of the latter that book XXXI was published in winter 392-3 A.D. have been challenged by R. Sauer, Oxford, 1968, p. 17 ff. Maercken-Helfen's theory is also discussed by me in Appendix A.

of a character not wholly praiseworthy⁽⁴⁵⁾, is markedly panegyrical. Ammianus hated flattery and it is hard to believe that he would have published such effusions as XXVIII, 3 and XXIX, 5 on the elder Theodosius while Eugenius was alive, even during the period before 394 A. D., when relations between the two rulers were cordial⁽⁴⁶⁾. It is therefore more likely that, although much of this part of the *History* was written before and during the reign of Eugenius, it was not published until after his overthrow at the river Frigidus, that is to say during the short sole reign of Theodosius I or during the first year or so of the reign of his sons⁽⁴⁷⁾.

Within the field of Latin literature Ammianus' *History* stands very much in isolation. Though traces of the works of many earlier authors appear in it, yet it is hard to evaluate their influence precisely. A number of studies of Ammianus' use of ancient writers have been made⁽⁴⁸⁾, yet not one has successfully passed beyond the stage of merely listing supposedly derived passages. Here again the work is like its author. Ammianus can be firmly associated with few figures of his age and even when this is possible, as in the case of Libanius, the connexion is not a close one. There is little reflection of Ammianus' *History* in current (or subsequent) literature, or of current literature in his work⁽⁴⁹⁾. It is perhaps significant that his closest (and then not very close) associate in the *History*, Ursicinus, appears only once in any other source⁽⁵⁰⁾.

The work reflects its author's background, straddling the two cultures, Greek and traditional Roman. Much of the political and moral thought tends to the latter (insofar as it can be distinguished from the Greek).

(45) THOMPSON, Cambridge, 1947, p. 89 ff.

(46) The suggestion of DEMANDT, p. 149-50.

(47) In general the dating which I prefer is that of THOMPSON, *op. cit.*, p. 18 and 117 and SYMS, *op. cit.*, p. 17 ff. The *terminus ante quem* for publication is taken to be 397 A.D., when Gildo, who is mentioned by AMMIANUS at XXIX, 5, 6, 21 and 24, was declared a public enemy, a fact not recorded in the *History* (see THOMPSON, *op. cit.*, p. 18). However, this argument *ex silentio*, based upon a few passages in a very imperfect part of the text, is not strong and, even if it is accepted for book XXIX, proves nothing for the last two books. There is no reason to doubt that Ammianus might have survived a few more years into the reign of Honorius except perhaps for the fact that even in 397 he would be in his mid-sixties or even approaching seventy.

(48) Many of the studies are noted by FLETCHER, *RPh.*, 1937.

(49) FLETCHER, *RPh.*, 1937, p. 395 offers one or two possible parallels with Ausonius. For knowledge of Ammianus in Priscian, Cassiodorus and possibly Olympiodorus and the Salmasian John of Antioch, see THOMPSON, *op. cit.*, p. 19. On Macrobius and Ammianus, see A. D. E. CAMERON, *JRS.*, 1966, p. 38. On the *SHd.*, see SYMS, *op. cit.*

(50) ZONARAS, 13, 9 mentions Ursicinus as the killer of Silvanus.

The historiography has been associated with Tacitus, on the whole too firmly⁽⁵¹⁾. It has much more in common with the contemporary and later histories of Greeks such as Eunapius, Olympiodorus and Priscus.

"He was a soldier. Yet he is apparently not interested in military organization"⁽⁵²⁾. The narrative structure is basically military, yet the writer is more interested in, and aroused by, civil affairs. Such ambiguity permeates the *History*, even to the end, where Ammianus characterizes himself *ut miles quondam et Graecus* (XXXI, 16, 9). What does he mean? Perhaps just what he says; but probably more. Many interpretations have been offered, most possible and perhaps partly correct. But essentially judgement is subjective. To me (and I stress the subjectivity) the words taken together suggest the individuality of the writer and his work — a Greek writing a history of Rome, at Rome, in Latin; a man from the profession of arms, closed to the senatorial order, writing a history for them. Another paradox underlines the individuality — the Greek as a soldier, a man with an education which cultured Romans still admired⁽⁵³⁾ in a barbarian, uneducated profession⁽⁵⁴⁾; a man from a race scorned by the Romans as weak and degenerate⁽⁵⁵⁾ in a profession traditionally of strength and courage⁽⁵⁶⁾.

This statement of individuality and independence, especially of Roman origin and civilian background, since it was uttered before a Roman senatorial audience, would seem to offer a claim to personal impartiality in respect of the audience which might be compared with the Tacitean *sine ira et studio, quorum causas procul habeo*⁽⁵⁷⁾.

(51) See BUCKLEY, *Latinity*, 1973.

(52) MURRIE, Oxford, 1963, p. 97.

(53) SYMMACHUS, *Rel.*, 5.

(54) Cf. CAMERON, p. 53 ff.

(55) The scorned *Greco-orient* of HERODOTUS, *Sat.*, 3, 38 still had significance in the 4th century A.D. The epithet is used of Julian by his mutinous troops in XVII, 9, 3 (*op. cit.*, 1).

(56) SYMS, *Latinity*, 1967, p. 18-21 suggests that *Graecus* = *ἑλληνας* and identifies Ammianus' paganitas. NAUDE, Leiden, 1956, p. 28 and ANASTASIUS, p. 89 ff suggest that it points to the type of history which he wrote, universal as opposed to Romano-centred. Both are possible, but such notions would be valid for Ammianus personally as a Greek, rather than aimed at a Roman audience.

(57) *Ibid.*, I, 1, 6. I base the comparison on the remarks upon the Tacitean claim made by D. R. DUNCAN, *The World of Tacitus*, Boston/Toronto, 1968, p. 23-4.

CHAPTER I

Gallus : Dramatic and Moralizing History

Much of book XIV, the first surviving book of Ammianus' *History*, describes the later part of the reign and the death of Constantius Gallus. Gallus, who, with his half-brother Julian, survived the massacre of the kinsmen of Constantine I carried out at the accession of his sons⁽¹⁾, was appointed Caesar in 351 A. D. by his cousin, the Emperor Constantius II, and left to guard the East against the Persians while the Emperor went West to face the usurper Magnentius⁽²⁾. In 354, after the defeat of the usurper, Gallus was summoned to the West, deposed and put to death.

Ammianus, whose narrative deals only with the years 353 and 354 (and perhaps not all of 353)⁽³⁾, characterizes Gallus as a cruel and angry tyrant. Dwelling upon these traits he describes actions which led to unrest in the East, a plot against the Caesar (which was uncovered and cruelly suppressed) and finally to his deposition and execution at the order of Constantius, who, Ammianus suggests, was afraid that his behaviour would cause an uprising if it were allowed to continue⁽⁴⁾.

E. A. Thompson has argued that the curial Ammianus, through omissions and distortions, has seriously misrepresented the reign of Gallus who, favouring the lower classes and hostile to the curials, aroused the ire of the latter which led to his downfall⁽⁵⁾. Elsewhere I have partly accepted this interpretation, rejecting the suggestion that the Caesar favoured the lower classes, and arguing instead that Gallus' dif-

ficulties arose mainly from his failure to understand the role of the Caesar as conceived by Constantius. The Emperor thought of him purely as a military assistant, whereas Gallus saw himself as a sort of junior Emperor with civil and military competence. Thus Gallus' interference in civil affairs led to opposition by officials who better understood his position. But the Caesar saw this opposition merely as insubordination, and reacted (or rather over-reacted) accordingly⁽⁶⁾.

However, Ammianus' account of the career of Gallus is coloured not only by his own class prejudice, but also by other non-objective factors, especially moral preconceptions and literary considerations which influenced the form and content of the narrative.

Building upon parallels between the cases of Gallus and Julian and using the former as a foil for the latter, Ammianus consciously points to contrasts between the two men. Julian, like Gallus, was slandered at court, and Constantius reacted similarly in both cases: his suspicions aroused, he tried to withdraw his Caesar's troops⁽⁷⁾. Gallus was deceived and Julian acquiesced. But whereas Julian, according to Ammianus (XX, 4, 14-22), was so popular that he was forcibly hailed Augustus, Gallus was so hated that even when driven to consider revolt he could find no support (XIV, 11, 8) and was destroyed. Julian, like Gallus, had to face the opposition and treachery of the officials appointed by Constantius⁽⁸⁾, and when he announced his usurpation to the Emperor, aware that Gallus' inertia had contributed to his downfall (XXI, 1, 2), he stipulated that he himself would appoint all officials except the praetorian prefect (XX, 8, 14). Naturally the careers of the two Caesars were linked and compared by observers; and not only Julian, but also his detractors, referred to Gallus in commenting upon his own actions⁽⁹⁾.

More important for Ammianus' purpose is the contrast between the characters of the two men which he exploits as he describes their respective careers. Julian has in great measure all the virtues of the ideal ruler, which are carefully illustrated by the historian both in the narrative and in the biographical sketch which is inserted after the account of his death⁽¹⁰⁾; Gallus, on the other hand, is represented as the exact obverse

(1) Some sources say at the instigation of Constantius: ZOSIMUS, II, 40, 2; JULIAN, *Ep. ad Ath.*, 270C-271B; PHILOSTORGHUS, 2, 16; THEODORET, 3, 1 (cp. GREGORY NAZIANZEN, *Or.*, 21, 26). Others say that he connived at it: EUTROPIUS, 10, 9; SOCRATES, 2, 25.

(2) PHILOSTORGHUS, 3, 25; SOCRATES, 2, 28; ZOSIMUS, II, 45, 1; LIBANIUS, *Or.*, 13, 16; ZONARAS, 13, 8.

(3) See BLOCKLEY, *loc. cit.*, 1972, p. 439-40.

(4) XIV, 7, 9; 11, 1 and 21-3. Cp. XXI, 13, 11; VICTOR, *Coey.*, 42, 12; ZONARAS, 13, 9.

(5) THOMPSON, Cambridge, 1947, ch. 4.

(6) BLOCKLEY, *op. cit.*

(7) Gallus: XIV, 7, 9. Julian: XX, 4, 1-3.

(8) Gallus: XIV, 1, 10; 7, 9 and 10-20. Julian: XVI, 7, 1-2; 11, 6-15; XVII, 3; XVIII, 3, 6; XX, 4, 2.

(9) XVII, 1, 14.

(10) See p. 73-74.

of this ideal. In the description of Julian's dealings with the recalcitrant Antiochian senate his own mildness is contrasted with his half-brother's anger and cruelty. Gallus urged on the mob to violence against the governor of Syria and later condemned the whole senate to death under one writ. Julian refused to be deterred from his plans by the objections of the senate, but, despite his anger, he stopped short of violence — "like his brother Gallus, but not thirsty for blood" (11). Similarly Gallus' love of blood-sports, which he shared with the mass of the Antiochians (but not with Ammianus), contrasts sharply with Julian's disgust at the spectacle (12).

Ammianus says that when Gallus was created Caesar he swelled up in pride (*efferebatur in fastus*, XIV, 1, 1). But Julian, when raised to the purple and seated in the Emperor's carriage, remained downcast and whispered a line from Homer :

Ἐλλαβε πορφύρεος θάνατος καὶ μοῖρα κραταίῃ (13).

Gallus was immoderate, foolish, unjust and afraid, with no compensating virtues (14). In short, Ammianus says (XIV, 11, 28), he differed as much from his brother as Domitian did from Titus. This remark not only illuminates the historian's view of the contrast between Julian and Gallus, but also suggests that he regards the latter as a typical tyrant in the moralistic sense of an evil and immoderate ruler, of which Domitian had become a stock example (15). This figure, stereotyped and extremely popular in Greek and Roman philosophy, declamation and other kinds of writing, exercised considerable influence upon history also. The classic example is the Tacitean portrait of Tiberius, but less subtle treatments are found in some of the lives of the *Historia Augusta* and in Herodian's sketch of Maximinus Thrax. The historical epitomes frequently assimilate "bad" rulers to this type. Justin's sketch of the younger Dionysius is a fine example (16). Shorter and more essential is the description of Domitian in Eutropius' epitome, which might have

(11) Gallus: XIV, 7, 2 and 5-6. Julian: XXII, 14, 1-2.

(12) XIV, 7, 3; JULIAN, *Misopogon*, 340A-B; LIBANIUS, *Op.*, 1, 5; 18, 170-1; ZOSIUS, III, 11, 4.

(13) XV, 8, 17 = *Ibid.* 5, 83. Cp. XV, 8, 11 and 20. Such a show of unwillingness was traditional (ROSEN, p. 71).

(14) Immoderate, XIV, 1, 1; foolish, 11, 11 and 26; unjust, 1, 3; afraid, 11, 21. There are many more examples. The whole narrative emphasizes these characteristics.

(15) ROSEN, p. 182 calls the account of Gallus' reign *einer stufenweisen Verschlimmerung der Tyrannis*.

(16) *Epitome* 21, 1-3.

been known to Ammianus (17); "But in the commencement of his reign he used his power with moderation; however, soon proceeding to the greatest excesses of licentiousness, rage, cruelty, and avarice . . ." (7, 23). This brief sketch illustrates two of the major characteristics of the literary tyrant, the four prime vices and the descent from an auspicious beginning into tyranny.

Ammianus would have been familiar with these conventional figures from his wide reading of history and also from knowledge of more specialized works which described types of persons, such as the angry and the cruel man. He certainly knew the handbook of Valerius Maximus (18) which treats various aspects of behaviour under separate headings, for instance cruelty: *crudelitatis uero horridus habitus, truculenta facies, uolenti spiritus, uox terribilis, ora minis et cruentis impetibus referta: cui silentium donare, incrementum est adlicere* (9, 2). Some of the expressions, though too commonplace to suggest imitation, are similar to those used by Ammianus of Gallus.

Of the four tyrannical vices mentioned by Eutropius, Ammianus ascribes three of them of Gallus, anger, cruelty and greed (19). Since the first part of the narrative of his reign is missing, we cannot tell whether it was described as beginning auspiciously. But indications of a deteriorating behaviour appear in the part which survives. *Post hoc imple perpetratum . . . tamquam licentia crudelitati indulta* (XIV, 1, 4); *quibus mox Caesar acris efferatus, uelut contumaciae quoddam uexillum altius erigens* (*id.*, 10); *latus iam disseminata licentia* (XIV, 7, 1) — such expressions suggest development, not a change in character but rather a clearer revelation of the true self (the concept of many other ancient writers, including Tacitus) (20). Similarly another passage, on Gallus' spying in disguise: *nouo denique pernicioso exemplo idem Gallus ausus est inire flagitium graue, quod Romae cum ultimo dedecore temptasse aliquando dicitur Gallienus* (XIV, 1, 9). Here clearly the phrase *nouo exemplo* refers not to the general activity of spying in disguise (since a second instance — Gallienus — is given, and other tyrants are reputed

(17) He is perhaps mentioned in XXIX, 1, 36. Like Ammianus he was with Julian in Persia (EUTROPIUS, 10, 16).

(18) For Ammianus' use of Valerius Maximus see SCHWENK, p. 12 ff., 34 ff., 38; FISKE, p. 15-20; KATZ, p. 60-1.

(19) Anger and cruelty: XIV, 1, 1, 4-5 and 10; 7, 3; 9, 9. Greed: XIV, 1, 4.

(20) On the static concept of character in Tacitus see F. B. MARSH, *The Reign of Tiberius*, Oxford 1931, p. 14; ALEXANDER, *The Tacitean "not huius" or Seneca*, p. 355 ff.

to have done the same)⁽²¹⁾, but to the specific act of Gallus, which Ammianus views as another development in viciousness.

Another characteristic of the tyrant (discussed by Dio Chrysostom in his *Sixth Discourse*, 41-5) is the perpetual insecurity which drives him on to still greater excesses of repression. This, too, finds its place in the portrait of Gallus. As with the other traits the best illustrations come from XIV, 1, which is not based upon quoted facts but is little more than a collection of commonplaces giving expression to Ammianus' hatred of Gallus. Spies eavesdrop and concoct fake stories to ruin their victims (XIV, 1, 2); they penetrate the houses of the rich and, with information which they have gleaned, bring them to ruin (6), creating such a climate of terror that even the walls are feared as informers (7). Some are charged with treason and magic (2); some are condemned on a mere shadow of suspicion (4), others despite their obvious innocence (3). Gallus himself walks the streets in disguise, asking opinions of Caesar (9).

The tyrant's behaviour is also illegal. Ammianus describes how Clematius, though innocent, was put to death "without being allowed to speak or even to open his mouth" (XIV, 1, 3); and this episode is followed by a general complaint that constitutional rule and due process had given way to a bloody and arbitrary despotism. Later, in the trial of those who plotted against Gallus, even the ordinances of the gods were banished from the court: *uelut exturbatum e iudiciis fas omne discessit* (XIV, 7, 21).

Ammianus not only portrays Gallus as a typical tyrant, but he also interprets his career as a fall to *nemesis* resulting from his *hubris*. When he has described the last journey and the execution of the Caesar, the historian comments: "These and countless events of this kind are at times (and I wish that they were always) the work of Adrastia, who punishes evil deeds and rewards good, and whom we also call by another name, Nemesis ... When the pride of mortals swells in vain, she binds it in the unbreakable bonds of necessity (*necessitas*)" (22).

The precise significance of this passage need not be discussed here, but it clearly shows that Ammianus is thinking in terms of punishment for evil. Its importance to him is indicated by the way in which it displaces the regular biographical sketch of the dead ruler, which is reduced to a

few conventional details (XIV, 11, 27-28), lost in the far longer discussion of which the above quotation is a part. The view expressed is important not only in its effect upon the interpretation of Gallus' career, but also in that the *hubris-nemesis* scheme influences the structure of the narrative.

Ammianus, taking the pro-Julian view of the harsh treatment which the brothers in their early life are said to have suffered at the hands of Constantius (23), describes Gallus' promotion to Caesar as an unexpected advancement to prosperity from the depths of wretchedness — *ex aqualore ino miseriarum ... ad principale culmen insperato saltu prouectus* (XIV, 1, 1). Next he emphasizes the excess, pride and especially the cruelty of the man (24), the prime ingredients of *hubris*, which is commonly translated into violent behaviour — *ultra terminos potestatis delatae procurrens, asperitate nimia cuncta foedabat ... efferebatur in fustus*. A Fury too is supplied, Gallus' wife Constantia, *grauis ... inuentium ... turgida supra modum ... Megaera quaedam mortalis, inflammatrix saeculentis assidua* (1, 2). Proud to excess like her husband, she drives him on to madness with her goads — *stimulus admovente regina, quae abrupte mariti fortunas trudebat in exitum proceps* (25).

After ruining some unimportant persons, Gallus and his wife advance to their first real crime, the killing of the nobleman Clematius, *nefanda mors repentina* (1, 3). When they have performed this impious (*impiet*) deed, the evil pair spread their activities wider, *tamquam licentia crudelitati indulta* (1, 4). Gallus encourages spies, listens to rumours, roams the streets at night looking for trouble. His desire to destroy increases, *uelut contumaciae quoddam vexillum altius erigens* (1, 10). Finally Constantius has to prepare to uproot the Caesar, *antequam effundendis rebus pertinacius incumberet confidentia* (XIV, 11, 1). His cruelty and anger are developing into insanity, he is *effrenatus*; and others goad him on: *Thalassius ... considerans incitationem eius ad multorum atque discrimina ... aduersando iurgandoque cum parum congrueret, cum ad rabiem potius eulorabat ... quibus mox Caesar ... effrenatus* (XIV, 1, 10). Domitianus insults Gallus, driving him into a rage. Montius accuses him of treason: *his cognitis Gallus ut serpentem ...*

(21) XIV, 1, 1. Ammianus refers to the exile at Maellum which was perhaps not too harsh (Mazzoni, I, p. 278-913). The note is from *Leaves* (sup. *Epist. Adm.*, 271B-10).

(22) For cruelty see note 19.

(23) XIV, 1, 8; cp. 7, 4. In 9, 1 Ammianus writes of Constantia *strenua regina excoercentis mo*. If one (the case of MS. V1 is read, then there is an echo of *Vicin. Aem.*, 3, 425, where Scylla is thus described.

(21) Cp. *TACTICS*, *Ann.*, XIII, 25, 1-2 on Nero.

(22) XIV, 11, 25-6. Cp. the summary of the fate of Eusebius in similar terms in XXII, 3, 12.

districta dentium acie stridens (XIV, 7, 13) — a fine image of madness, which infects the soldiers too, "bold even to the point of insanity" (7, 17). Finally the Caesar's madness is revealed to all — *non celate (ut antea) turbidum saeulebat ingenium* (7, 21).

Gallus never realizes where his course is carrying him. After the un hoped-for advancement to the purple, he is deceived and blinded by his *confidentia* (26), and despite his sometime realization of his danger and resistance to the initial attempts of the Emperor to lure him to Italy (XIV, 11, 6-10), he is finally persuaded to set out by the tribune Scudilo. "And as men's perception is dulled and blunted when the Fates lay their hands upon them, Gallus, aroused by his persuasion to hope for better things ... set straight out from the smoke, as the old proverb says, into the fire" (11, 12). Constantia, travelling ahead in order to placate her brother, dies on the journey. The *nemesis* of the Caesar is now at hand, and though troubled, he remains blind (27). On the way he stops at Constantinople, where he celebrates games, crowning the winning charioteer, "as if his situation were prosperous and secure" (*ibid*) — the final act of blind *hubris*, at the news of which *Constantius ultra mortalem modum exarsit* (11, 13). When Gallus reaches Adrianople the deceit is swept away, and too late he realizes his position, "weeping and at times cursing his rashness which had reduced him to a contemptible and worthless condition, and had subjected him to the will of the lowest of men" (11, 16). The cycle is completed, returning him whence he came, *squalor imus miseriarum*. Tormented in his dreams by the phantoms of his victims who fling him to the claws of the Furies, he is subjected to interrogation, condemned, beheaded and left — *cadaver est relictum informe, paulo ante urbibus et prouhelis formidatum* (11, 13). The career of Gallus thus ends suitably and pathetically with a Virgilian echo (28).

From this analysis it is clear that in his description of Gallus' career Ammianus not only places a moral interpretation upon the actions of the Caesar, but also builds this interpretation into the structure of his narrative, which, though hardly tragic in the Aristotelian sense (Gallus is too much a monster to evoke the necessary response), is undoubtedly dramatic and at times pathetic (29). Ammianus' tendency to dramatize

the narrative is observable elsewhere in the *History*, for instance when he relates his own adventures and when he tries to give dramatic unity and force to certain episodes, such as the revolts of Silvanus and Procopius (30). The narrative upon Gallus has a fairly tight dramatic structure, which as such is not used elsewhere by Ammianus on a similar scale. But a similar, though looser structure, utilizing the same progression of related incidents to a climax, will be seen in other parts of the work, and is of great importance for causation, as is clear from the narrative on Gallus.

Ammianus' concern for the dramatic is reflected in his interest in the stage which is expressed in some of his descriptions and similes. In a number of passages to introduce or sum up a description he uses the simile of the theatre curtain hiding or revealing a scene with dramatic suddenness (31). The scene itself as described is static, its actors frozen in a pose. A good example of this is an incident at the battle of Strasburg (XVI, 12, 57) which is described as if it were a compartmentalized painting. Another is the description of the usurper Procopius at his acclamation, which, as it catches a strange world of vividness and gesticulation, shows Ammianus' graphic prose at its best:

stetit itaque subtabidus — excitum putares ab inferis —, nusquam reperto paludamento, tunica auro distincta, ut regius minister, indutus, a calce in pubem in paedagogiani pueri speciem, purpureis opertus tegminibus pedum, hastatusque purpuream illidem pannulam laeva manu gestabat, ut in theatriali scaena simulacrum quoddam insigne per aulaeum uel mimicam caullationem subito putares emersum

(XXVI, 6, 15).

Many of Ammianus' other similes display a similar vividness, especially the important group which uses animals (32). There are over fifty of these in the surviving books of the *History* and the great majority of them are used either of unpleasant situations or (by far the commonest) of persons to whom Ammianus is intensely hostile. Their distribution is very uneven and instructive. They are most frequently found in books XIV and XV (on Gallus and Constantius) and XXVI-XXXI (the Pannonian Emperors), which deal with periods when the historian is hostile to the leading characters and pessimistic in his view

(26) XIV, 11, 1; cp. 11, 6, *spe* (of Constantia).

(27) Cp. later (XIV, 11, 13) *ac neque casu idem Gallus de futuris incertus*, which implies that he is still *certus* (i.e. blind).

(28) HAGENOSE, p. 3-4, referring to *Aen.* 2, 556 ff. (of Priam). Cp. PACATUS (*Rom. Lit.*, 10, 45, 2, *ausum humeris Maximi caput et sine nomine corpus adspicit*, of the dead usurper Maximus).

(29) On the quality of the tragic in Ammianus' *History* see SILEM, *ASNP*, 1965, p. 404-14.

(30) For discussion and more examples see Koser, p. 189-92.

(31) XVI, 8, 1, 12, 37; XXVI, 6, 15; XXVIII, 6, 29. Cp. XX, 1, 2; XXIII, 5, 6; XXVIII, 1, 4 and 19; XXIX, 2, 23.

(32) For the data upon which the following remarks are based see Appendix B.

of events. On the other hand, they are far rarer in books XVI-XXV, which span the career of Julian. Since the images are used both of Romans to whom Ammianus is hostile (most commonly) and of external enemies, such as the Goths and the Huns, they provide a link between the two forces which the writer sees as threatening the Empire. The animals themselves are almost all wild, and the characteristics which they most frequently represent are savagery (*bestia, fera*) and cunning (*serpens, coluber, ulper*), the latter almost exclusively of Romans. Other writers too use such animals to express evil qualities⁽³³⁾, and the model for the usage has been found in the symbolic art of the period⁽³⁴⁾: one thinks of the serpent trodden underfoot on the reverse of some *solidi* of the late Empire⁽³⁵⁾. More specifically, however, the description of a bad ruler or official or an enemy of the state as a savage beast would appear to be a natural inversion of the scene of peaceful domesticity — the shepherd, his sheep and the guard dog — which is commonly used to represent the reign of a good king⁽³⁶⁾. In contrast with this the savage beast is the wolf which threatens the flock.

Ammianus' style tends towards the visual and descriptive rather than the narrative, and animal images are a means towards vividness in descriptions⁽³⁷⁾. However, in the light of the ancient tendency to regard appearance and behaviour as evidence of a particular moral state, their use in a derogatory manner of human beings means in effect that they are reinforcing Ammianus' own expressions of hostility, as for instance in the case of the prefect Maximinus who is a number of times likened to a snake. From the point of view of objectivity this is dangerous, as can be seen in the following passage (XIV, 7, 13). Domitianus had threatened Gallus and was under arrest. The quaestor Montius had summoned the leaders of the *palatini* and had protested Gallus' action, im-

plying that it was treasonable. For the purpose of this argument it does not matter whether the actions of Domitianus and Montius were themselves treasonous⁽³⁸⁾, but Gallus had reason to think that they were. Ammianus describes Montius as *ad lenitatem propensior* and says that he addressed the troops *mollis* (XIV, 7, 12), which stands in sharp contrast with Gallus' behaviour. When he learned of Montius' action, *Gallus ut serpentis appetitus telo uel saxo, iamque spes extremas oppetens et succurrens saluti suae quauis ratione, colligi omnes iussit armatos, et cum starent attoniti, districta dentium acie stridens*... Not only is this a fine visual image, but against the background of the calmness of Montius the snake simile, appealing to the common feeling about the unpleasantness of these reptiles, condemns Gallus in the very middle of the episode as something nasty. Ammianus, appealing to emotion, has asked his audience to prejudge the Caesar.

A similar danger is present when the historian involves us in a scene, making us look at it through the eyes of one of the actors or spectators. Thus we join the crowds lining the road to observe the triumphal entry into Rome of Constantius (XVI, 10, 4) and view a Roman mob rioting through the eyes of the urban prefect, Leontius, who is naturally unsympathetic (XV, 7, 4). In these and other cases we are invited to take upon ourselves the emotions and attitudes of the people through whom we watch the activity⁽³⁹⁾.

Ammianus allows his moral preconceptions to intrude into his *History* and judges the characters in his narrative against these⁽⁴⁰⁾, a trait which he shares with all the important Roman historians, although the approaches differ. History's function was to enshrine the good and evil actions of the past as examples for posterity and to provide a reward for the good and a punishment for the bad⁽⁴¹⁾. Firstly, this meant that basically men and their character counted in history, not political systems, economic forces and so on: of the Emperor the historian asked, "*capax imperii?*"⁽⁴²⁾ and opened the way towards Imperial biography. Tacitus, by a brilliant use of dramatic narrative development, avoided some of the

(33) Eg. TITIMISTUS, *Or.*, XIX, 226 B-C (on Nero): *ut fides dei angelus de propiti adfuerit*. SESECA, *de Clem.*, I, 25, 1; 26, 3; II, 3; III, 24, 33; EUNAPIUS, *fragm.*, 14, 2; 68; 69; 71; 87.

(34) MACMILLAN, *A. Bull.*, 1964, p. 442-4.

(35) *Solidi* from Valentinian III onwards are found with the serpent motif on the reverse (see the illustrations in W. E. KAUT, *Byzantium and the Decline of Rome*, Princeton, 1968, facing p. 18). Cf. also the *solidus* of Honorius which shows the Emperor treading on a lion; and the fourth century bronzes on which a phoenix accompanies the legend *fel. temp. reparatio*.

(36) PLATO, *Polit.*, 268C; CRITO, 109B; DIO CHRYSOSTOM, *Or.*, 2, 69; 3, 130; 4, 43-5; 56, 2; PLUTARCH, *Moralia*, 781C; JULIAN, *Or.*, II, 36D; 38B; EUSEBIUS, *Land. Const.*, 2; TITIMISTUS, *Or.*, VIII, 118B; IX, 121D; XIII, 171C; XV, 186D; SYNESIUS, *de Regno* (PG., 66), 1061A-C; 1089C; and very often elsewhere.

(37) On Ammianus' striving for vividness see E. AUERBACH, p. 47-9; ROSEN, p. 193 ff.

(38) See TITIMISTUS, *op. cit.*, p. 64.

(39) For further examples see ROSEN, p. 193-96.

(40) The heavily moralizing character of Ammianus' *History* has often been noted — VONZ, p. 324-5; DAUTHMER, p. 126; KEEL, p. 10; DAMASCUS, p. 11-12.

(41) See p. 162-3.

(42) Cf. SYNE, *The Senate as Historian*, p. 191-8.

dangers of this type of historiography. But Ammianus wrote at a time when the composition of biography of a markedly anecdotal kind had become influential and when the projected personality of the Emperor was paramount in the life of the Empire. That is to say, most of the Emperors attempted by means of aloofness, complex ceremonial and a formalized pattern of behaviour to assimilate themselves in the eyes of the world to an almost mystical ideal: they aimed to become, as it were, caricatures. And there was in this a danger for the historian that in writing a history with individuals at the centre he would himself, either in praising or in censuring such an Emperor, tend to produce a type.

Secondly, since the moral-didactic approach to history forced the historian to judge between good and evil, using his own preconceived ideals as a yardstick, his judgements tended to be based upon general principles rather than particular events, his interpretations upon general conclusions drawn from a number of observations and at times forced upon recalcitrant phenomena in order to point a moral. Such an approach, in a character-dominated history written in an age when the leading figures of the day behaved, in public at least, in conformity to a type, itself reinforced the tendency for the historian to produce types, black-and-white caricatures of virtue and vice.

In Ammianus this development was itself further reinforced by his tendency on occasions to generalize from a dominant idea. For example in XXI, 12, 20 the historian tells how after the surrender of Aquileia the rebel leader, Nigrinus, was burnt alive while others were decapitated. But later, in XXII, 8, 49, we are told incidentally that the defenders of Aquileia had surrendered the rebel leaders, all of whom had been burnt alive (*isdemque uiuis exustis, ut supra relatum est*). This is carelessness, but it also reveals a particular manner of thought which, in combination with the tendencies described above, contributes towards the production of a characterization such as that of Gallus.

Gallus is a type, static and timeless and firmly within the ancient rhetorical tradition. Wholly evil, his character undergoes no change, merely a clearer revelation of wickedness as his behaviour deteriorates and he sinks into madness. He is important to Ammianus as the incarnation of arbitrary cruelty, an evil against which the historian vigorously protests; he forms the lower end of the moral spectrum, serving as a foil for and introduction to Julian.

That is not to suggest that all Ammianus' characters are caricatures; Gallus is extreme. But the type of thought is at work throughout the

History, especially in the portrait of Julian. At times there is tension with a more objective outlook as the moralist conflicts with the objective historian. And it is to Ammianus' credit that the latter holds his own, minimizing the effect upon the work of the tendency to think in types and of other influences which, though harmful to objectivity, are attractive to the moralist.

CHAPTER II

The "Bad" Emperors

At the beginning of his *Life of Alexander* Plutarch says that he will not set down all the famous deeds of his subject, nor relate in full all of those which he does include: "for we are not writing history but *Lives*. The most famous deeds do not in all cases illustrate virtue or vice. Often an insignificant act, an expression, a game, conveys a characteristic better than corpse-strewn battles and the most impressive marshalling of armies or sieging of cities" (1). That is to say, biography, unlike history, is interested in character for its own sake and aims to present an analysis and illustration of virtues and vices.

However, even in history, and especially in the politico-military history favoured by the ancients, certain people were important for their influence upon events. Cato might have attempted to efface the individual by refusing to name names (2), but in general, history, both Greek and Roman, tended to become more strongly moralizing and thus more concerned not only with what the individual did, but with what he was. After Augustus, the Emperor — *Princeps* or *Dominus* — was the hub of the system and loomed large in the consciousness of his subjects. Whether he was a mere figurehead or a genuine power, a *persona* assiduously cultivated for the public eye and mind or a real character, the Imperial propaganda was oriented towards him as the origin of military success, of political initiative, and of all benefits to the people. What he was, was vital to all, and the history of the period had to organize itself around him. At the conclusion of his narrative on the reign of Caracalla (V, 1, 1) Herodian remarks, "How Antoninus [i. e. Caracalla] ruled and died has been revealed in the previous book". Such expressions occur frequently in Imperial histories (3) and at times reflect accurately the contents of the work and the historian's attitude towards it.

(1) *Vit. Alex.*, I, 2. Cf. *Nepos: Polydorus*, I.

(2) *Pliny, Nat. Hist.*, VIII, II.

(3) E.g. *Herodian*, IV, 1, 1; VII, 1, 1. *Dio Cassius*, LIX, 1, 1. *Eunapius*, *fr.*, 14, 1.

Generally speaking two approaches to the treatment of character are used by ancient historians, though they are not mutually exclusive. One, favoured by Thucydides and Tacitus, and which might be called dramatic, allows the character of a man to emerge from his actions described in the narrative (4). Indirect and more artistic, it nevertheless could give a strong impression of objectivity. Its success in polemical history, when used by a master, is illustrated by the Tacitean Tiberius (5).

The other approach, utilized by Theopompus, Polybius and Sallust, deals with the relevant aspects of the life and ways of the subject at greater or less length in a separate section (6). The writer intrudes and addresses himself directly to his reader, a method which might be called more scientific insofar as the motives and prejudices of the historian are more easily discernible. At times it is used by writers of the first group when they insert a brief biographical summary to pull together the traits developed in the narrative (7).

After the first century A. D. a further source of biographical influence on history was the *Imperial Lives* of Suetonius which retained enormous influence until well into the 9th century A.D. (8). The Imperial biography, so clearly in harmony with the increasingly important role of the Emperor in all aspects of life, seems to have almost supplanted history during the third century A.D., and its influence upon the historiographical tradition was profound (9) and sometimes for the worse. Especially dangerous was the biographical anecdote, a useful means for revealing character, as Plutarch remarks in the passage quoted at the beginning of this chapter. In Suetonius and especially Marius Maximus (10) such anecdotes tended to become ends in themselves, appealing to curiosity and to various interests, often sensational and salacious. Some histories were contaminated, such as the work of Dio Cassius, which offers long descriptions of, for instance, a malicious

(4) *Suetonius*, p. 23-5.

(5) See e.g. *Watkins*, p. 82 ff.

(6) *Suetonius*, *loc. cit.*

(7) *Leo*, p. 235.

(8) G. B. Townend, *Suetonius and his Influence*, in *Duray*, London, 1961, p. 96-108. For Antoninus' knowledge of Suetonius see *Fleischer, RPh.*, 1937, p. 392-3.

(9) See *Leo*, p. 236 for its influence on Ammianus.

(10) On Maximus see *Sauer*, Oxford, 1968, p. 89-93. On the type of anecdote, *Struett*, p. 74 and 171-2.

prank of Domitian (LXVII, 9, 1-5) and the gluttony and exotic sexual habits of Elagabalus (LXXX, 9-16).

In Ammianus' *History* the Emperor, or Caesar, is central. In books XIV to XXV the tendency towards an annalistic structure, which clashes somewhat with the biographical elements in the characterization of the Emperors (especially the posthumous *elogia*), has caused some discomfort. "At one time", Seeck complains⁽¹¹⁾, "he inclines toward Imperial history, at another to Imperial biography." Phrases such as that quoted from Herodian, which illustrate the importance of the Emperor in the writer's thought, are used by Ammianus: *ut in Gordianorum actibus... retulimus* (XIV, 1, 8) and *cum Constantis principis actus componerem* (XXVII, 8, 4)⁽¹²⁾.

It is true that in the first surviving part of the *History* the digressions, the chapters on Rome and the long memoirs of books XVIII and XIX do serve to exclude the Emperor from considerable portions of the narrative. But in the core of the history the reader is always aware of him whether in the foreground or the background. In a few short episodes other characters usurp the stage almost entirely (as Musonianus in XV, 13 or Barbatio in XVII, 6), but usually, even where there are other protagonists, the presence of the Emperor continues to be strongly felt. The account of the fall of Silvanus clearly illustrates this (XV, 5). Sections 1-14 are oriented towards the court of Constantius and the action involves intrigue around the Emperor. After a short switch to Cologne (15-16) to show Silvanus deciding to revolt, we return to Constantius at Milan (17-22). Then we travel north with Ursicinus and Ammianus to Cologne (23-26), but even here the Emperor intrudes in the complaints of the usurper (28). After the death of Silvanus (31), which is followed by a note on his relations with Constantius, we are returned to the court and the inordinate pride of the Emperor. The revolt is Silvanus' but the shadow of the Emperor lies over the whole episode.

The geographically based, episodic structure of the later books (XXVI-XXXI)⁽¹³⁾ tends, perhaps surprisingly, to diminish somewhat the presence of the Emperor, even in some of the longer central actions, notably those involving the elder Theodosius. However, this is balanced by the lack of digressions and memoirs in these books, and, in general, the impact of the Emperor is as strong as ever until book XXXI where he

drops out of sight for much of the narrative. In the account of the fourteen-year reign of Valens there are only six major episodes: his selection as Emperor and the sharing of the Empire; the revolt of Procopius; the attack upon the Goths; the dispute with Persia over Armenia and Iberia which culminated in the murder of Pap; the trials in the East; and the events up to and including Adrianople. Of these the first five and parts of the sixth (including the climax) are written with reference to the Emperor.

The Emperor therefore figures largely in Ammianus' thought and he is central to the historian's critique of the political system, not only insofar as successes are attributed to him (as stressed in Imperial propaganda), but also because he is blamed for the abuses of government, which in the propaganda are either ignored or absorbed by other functionaries. To Ammianus a cruel regime means a cruel Emperor, an identification of state and ruler which is certainly not reflected in the historian's constitutional theory but which, in the circumstances in which he was writing, was difficult to avoid⁽¹⁴⁾.

Ammianus' treatment of character is the directly descriptive type as utilized by Sallust and others⁽¹⁵⁾. Dramatic methods of presentation are not wholly absent: they have, for instance, been noted in the account of Gallus' career. But in general the historian prefers to address himself directly to his reader: *trux suapte ingenio Valentinianus... quam rem indicia uaria testantur et certa, e quibus pauca sufficet poni* (XXIX, 3, 26).

There are some passages (such as the one introduced by the words just quoted, but especially noticeable in books XIV to XXV of the *History*) which are almost digressions and where the predominantly chronological arrangement of the military narrative gives way to a more "biographical" approach with a topical structure. Such passages are used to illustrate the administrative ability or the character of an Emperor or Caesar⁽¹⁶⁾; and it is here that Ammianus, dealing with character by his preferred direct method, makes greatest use of the "biographical" anecdote. The description of the cruelty of Valentinian I in XXIX, 3 proceeds through such

[14] Procopius of Caesarea, in his *Wars*, avoided the centrality of the Emperor by building his narrative upon the foreign wars of the generals and adding other important events in digressions. This is so marked that Evagrius (*HE*, 4, 12) refers to this work as the deeds of Belisarius, the most important general (see B. Ruggs, *Procopius and Byzantium* in *RE*, XXIII, 1, col. 158). This negative approach of indirectly devaluing the role of the Emperor by praising his generals had later to be supplemented by the more directly critical anecdote.

[15] Cf. Kennedy, p. 1-4.

[16] E.g. XVI, 1, 5; XVII, 1; XVIII, 1; and much of XXXI.

[11] Ammianus in *RE*, I, col. 1848. Cf. Kennedy, p. 5; Ginzane, p. 179-83.

[12] Also XIV, 4, 2; XXII, 15, 1.

[13] See Klein, p. 16-15.

anecdotes: the cudgelling to death of a page on the Emperor's orders (3); the activities of his pet bears (9); the reply to the elder Theodosius who supported a suit of one Africanus for a second province — "He wants a change of province? Then go away, Count, and change his head." (6) (17). Similar anecdotes, though not as unpleasant, are very frequent in the description of Julian's administration as Augustus prior to his Persian expedition. There indeed the whole narrative becomes at times an exposition of the Emperor's virtues (18).

Another kind of anecdote also occurs in the *History*, concentrated in the sections where Ammianus is writing about his own experiences. That is the old soldier's reminiscence of a striking or significant event, such as the return of a lost child to a city (XVIII, 6, 10-12); the capture of a deserter (6, 16); the night watches at Amida and the singing by both sides of the praises of their rulers (XIX, 2, 11). Such details are also found in the narrative of Julian's Persian expedition (19).

However, with the exception of these reminiscences, Ammianus' anecdotes are not of excessive number or length and are in general relevant to his moralizing purpose. When he censures the Roman nobles for reading nothing but Juvenal and Marius Maximus (XXVIII, 4, 14) he implicitly rejects the type of biography then popular, which purveyed lurid and at times salacious anecdotes (20). In his comments upon sexual behaviour Ammianus limits himself to brief remarks, such as that upon the chastity of Valentinian (XXX, 9, 2) and of Julian (XXV, 4, 2-3), the promiscuity of Heliodorus (XXIX, 2, 7), and the homosexual habits of the Taifali (XXXI, 9, 5). The sexual slant of Juvenal's strictures upon Roman life find no counterpart in Ammianus' digressions on the unacceptable ways of the inhabitants of the Eternal City.

The most obvious biographical elements in Ammianus' *History* are the sketches of individuals. Some are non-Imperial, and the best of these is that of C. Anicius Petronius Probus (XXVII, 11). After introductory remarks on his wealth and good fortune, it concentrates upon his character. The vices/virtues division, which is found in the major Imperial *elogia*, is not used, and parts of the sketch proceed antithetically (e.g. 2: cruelty/generosity, arrogance/timidity), a treatment not common in Am-

(17) Also XVIII, 1, 4; XXII, 4, 9; 10, 4.

(18) E.g. XXII, 10, 1-5; 4, 9-10; 6; and often.

(19) E.g. XXIV, 1, 10; 5, 2; 6, 3.

(20) Cp. XXVI, 1, 1: *examinatores... intemperantius, strepentes ut laetos, si praeteritum sit quod locutus est imperator, in cena...*

mianus. More frequent than this comparatively long sketch of Probus are the shorter characterizations of a line or two, which serve to fix one or more traits: Viventius, "a Pannonian, yet honest and prudent" (XXVII, 3, 11); Orfitus, "certainly a man of prudence and a thoroughly experienced lawyer, but with a background in the liberal arts which was insufficient for a nobleman" (XIV, 6, 1). Civil officials are regularly treated in this way; military men never — an indication of Ammianus' real interests or arising out of an opinion that such things are less important in a soldier?

The people whom the historian sketches in this way are on the whole those to whom he is hostile: Probus and Orfitus mentioned above; Paulus (XIV, 5, 6; XV, 3, 4); Mercurius (XV, 3, 5); Maximinus (XXVIII, 1, 5-7); Lampadius (XXVII, 3, 5); Georgius (XXII, 11, 4). A few urban prefects of whom he approves, Viventius, for instance, and Symmachus (XXVII, 3, 3), are described in a line or two; also the admirable Eupraxius (XXVII, 6, 14; cp. XXVIII, 1, 25). But the only elongated characterization of an honest man is that of the eunuch Eutherius (XVI, 7, 4-10). The treatment is encomiastic (21) and rhetorical, emphasizing his uniqueness as an honourable eunuch: *sed inter uesperes rosae nascuntur, et inter feras nonnullae mitescunt* (4), comments the historian. On this occasion the approach is chronological — origin; how he became a eunuch and came to the court of Constantine; his behaviour during the reign of Constans; the same under Julian; his retirement to Rome; argument for his superiority over all the eunuchs of antiquity.

In his non-Imperial lives Ammianus shows some variation (22), in the Imperial ones less. Of the minor ones there are Gallus — age, origin, physical characteristics, moral character (XIV, 11, 27-8); Jovian — age, manner of death, physical and other characteristics (XXV, 10, 13-15 — his father's name already given in XXV, 5, 4); the usurper Procopius — age, physical and other characteristics (XXVI, 9, 11 — origin, character and early career already described in XXVI, 6, 1 ff.).

These sketches, unlike the non-Imperial ones, are posthumous, as are the major Imperial *elogia*, whose format is as follows:

Constantinus (XXI, 16) — virtues, vices, physical characteristics (age given in XXI, 5, 3).

(21) Cp. *l.c.* p. 240.

(22) Cp. *Vocat.* p. 107-8.

Julian (XXV, 3, 23-4, 22) — age, origin, virtues, vices, physical characteristics.

Valentinian (XXX, 6, 6-9, 6) — age, origin, deeds, vices, virtues, physical characteristics.

Valens (XXXI, 14) — age, (origin as Valentinian), virtues, vices, physical characteristics.

It has been suggested that Tacitus' posthumous sketches in the *Histories*, especially of Galba, Otho, and Vitellius, provided the model for Ammianus' *elogia* (23). However, the suggestion is not compelling. The three Imperial necrologies in Tacitus offer the following formats: Galba — age, fortune, nobility, wealth, moral characteristics; Otho — age, origin and youth, moral characteristics; Vitellius — origin, age, career, moral characteristics. The points in common are that both actually use *elogia* and that both include age, origin, and moral characteristics. But the parallelism is by no means complete. Tacitus gives no physical details. Ammianus separates virtues and vices, whereas Tacitus (whose approach is slightly less formal than Ammianus') mixes them and sometimes uses antithesis.

Although, in respect of form, no complete parallel with Ammianus' *elogia* survives, *post mortem* sketches themselves were not uncommon. Germs of such sketches appeared in Thucydides; they were used occasionally by Sallust, more often by Livy and the now lost historians of the early Empire (24). Justin's epitome of Pompeius Trogus preserves two necrologies, as does Zosimus' *History* (25). There are traces of them in the fragments of Eunapius and Olympiodorus (26). And the practice itself

(23) BUDINGER, p. 33; VOGT, *loc. cit.*; DEMANDT, p. 12; L. F. FIELD, p. 55-82, in a chapter which argues that Tacitus, Victor, and (to a certain extent) Suetonius were the models for Ammianus' *elogia*, provides no new or convincing arguments. He ignores all the Hellenistic historians (except Polybius) and the secular historians, and dismisses the other Greeks in an appendix (1).

(24) SENECA, *Silas*, 6, 21: *quoniam magni alicuius viri mors ab historico narrata est, iudicium fore consummatio totius vitae et quasi funebri laudatio redditor. Hoc saepe aut iterum a Thucydide factum, item in paucioribus personis usurpatum a Sallustio. T. Livius benignius omnibus magnis viris praestitit; sequentes historici multa id effusus fecerant. Hoc, ut Graeco uerbo uir, latineque Livius reddit. On Thucydides see SEUAKI, p. 36-7.*

(25) JUSTIN, *Epit.*, 12, 16 (Alexander), 26, 5 (Pyrrhus). ZOSIMUS, II, 54, 1 (Magnentius), V, 35, 6-7 (Sallustius) — from Olympiodorus.

(26) EUNAPIUS, *fr.*, 57, a sketch of Gratian, possibly posthumous (see MÜLLER, *FRG.*, IV, p. 40, *ad loc.*); *fr.*, 26, to judge from its position in the *Excerpta de Sententiis*, from a necrology on Julian (see MÜLLER, *FRG.*, IV, p. 25, *ad loc.*). To judge from its position in Photius' summary, Olympiodorus, *fr.*, 39 could be a necrology of Constantius III. See also the previous note.

seems well suited to a moralizing historian such as Theopompus (27). Much history has been lost, and amongst it perhaps the model for the form of the *elogium* used by Ammianus. But for the form other possible influences offer — the topical approach of biography, or panegyric, which made use of such sketches (28). A model for the description of vices could have been found amongst the well established anti-panegyrics, the *phlogoi* (29).

Within Ammianus' *elogia* the illustrations of vices and virtues are of supreme importance. Even some of the physical details, which are relegated to a few lines at the end of the sketch, are relevant to the writer's moral purpose when a physiognomical interpretation is placed upon them. Thus both Julian and Valentinian I are described as well proportioned, an important indication of a good ruler (30). Julian is also described as *uenustate oculorum micantium flagrans* (XXV, 4, 22), always a good sign. On the other hand, Valens had a cataract, knock-knees, and a pot-belly (XXXI, 14, 7) (31).

The material in the necrologies is therefore highly moralizing, and praise or blame is formally assigned by the writer, a practice of historians of the Hellenistic period also, which was followed by Ephorus, accepted in moderation by Polybius, and cultivated to a fault by Theopompus (32). Ammianus organizes his *elogia* by topics, the enumeration of Julian's virtues being the most formal, the rest less so. A chronological scheme is never used, except in the treatment of Gratianus, the father of Valentinian I and Valens (XXX, 7, 2-3). In the description of moral characteristics far more space is given to virtues of direct public concern (which head the lists) than to purely personal ones; the faults are almost exclusively public. Biography, in contrast, assigns more space to personal details.

(27) SCHILLER, p. 77-8; J. B. BURY, *The Ancient Greek Historians*, New York, 1958 (1906), p. 165-6; W. R. CONNOR, *Theopompus and Fifth Century Athens*, Cambridge, Mass., 1968, p. 13 ff. See also note 32.

(28) MEYERSON-BRITTON, *Op.*, III, p. 372, 21-373, 1. ROSEN, p. 116, compares Ammianus' *elogium* on Julian with Xenophon's *post mortem* encomium of Cyrus in *Anabasis*, I, 9. On the formal panegyric influence on Ammianus see STALLA, p. 114-35.

(29) PARK, *TAPW*, 1953, p. 184 ff.

(30) XXV, 4, 22; XXX, 9, 6.

(31) Cf. the remark of Ammianus on physiognomical interpretation in XV, 8, 16. For a more detailed treatment of the subject see EVANS, *HSNP*, 1935, p. 43-64, esp. p. 64-5, 71-4, 82-4.

(32) Ephorus, SCHILLER, p. 48-9; Polybius, *Polybius*, I, 14, 5; VIII, 13, 2; Theopompus, *Prokris*, VIII, 10, 6; *Deus Hec.*, *Ep. ad Pomp.*, 785; *Livius*, *Ant. Comm.*, 59.

Within the larger framework of the *History* Ammianus' characterizations have encountered criticism. The annalistic form of the first part of the work has been held to combine unhappily with its biographical traits: the remark of Seeck, that the historian wavers between Imperial history and Imperial biography, has been noted⁽³³⁾. However, a more important incongruity lies in the *post mortem* sketches of the four major Emperors, where the characterizations are in some respects different from those of the same persons which are offered in the main narrative⁽³⁴⁾. Leaving Julian for another chapter, an analysis of the portraits of the other three Emperors will illustrate this contention.

The *elogium* of Constantius makes the following points: *virtues* — he maintained Imperial dignity; was cautious in giving promotions and in making administrative innovations⁽³⁵⁾; he kept the civil and military separate; he made the soldiers respect the praetorian prefect; he was careful in preserving his troops and in promoting tried men (XXI, 16, 1-3 = public virtues). He made pretension to learning, but was slow at it (4)⁽³⁶⁾. He was moderate, abstinent and chaste (5-6)⁽³⁷⁾. He was athletic⁽³⁸⁾ and personally dignified (7). *vices* — His suspicion of treason caused cruelty and injustice (8-14). He was boastful (15). He was swayed by his wives and eunuchs (16)⁽³⁹⁾. He allowed tax extortion and other fiscal abuses (17)⁽⁴⁰⁾. He was excessively involved in Christian theological disputes (18)⁽⁴¹⁾.

In the *elogium* Ammianus does not illustrate the characteristics which he lists, but on the whole it would appear that he has drawn a fair picture, despite the fact that more text (72 lines of Clark) is devoted to fewer vices than is allotted to a greater number of virtues (32 lines). However, even a cursory glance will reveal that the narrative gives a

(33) See p. 32.

(34) Noted but not developed by MOONEY, p. 57.

(35) Cp. ZONARAS, 13, 11.

(36) Ammianus lists as a virtue that Constantius was *doctrinarum diligens affectator*, but then adds the sneer that he failed in rhetoric *per ingenium obtusum* and at poetry (cp. VICTOR, *Coes.*, 42, 18). However, the Emperor had a keen respect for education (ZONARAS, 13, 11; cp. C. Th., XIV, 1, 1) and had himself been well educated (ALFORD, p. 115-7). Is Ammianus angry that Constantius was the first to begin selecting officials from amongst others than those with a traditional classical education (cp. A. J. FESTUGIERE, *Antioche julienne et chrétienne*, Paris, 1959, p. 92-4)?

(37) Cp. VICTOR, *Coes.*, 42, 18; ZONARAS, 13, 11.

(38) Cp. VICTOR, *Coes.*, 42, 18; ZONARAS, 13, 11.

(39) Cp. VICTOR, *Coes.*, 42, 19; LEBANUS, *Or.*, 62, 9-10.

(40) CONTRAST XVII, 3, 5 where Constantius agrees to Julian's request for no tax increase in Gaul.

(41) Cp. XV, 7, 6-10.

wholly different impression. There the cruelty of the Emperor and his terror of plotters is abundantly illustrated. He is *timidus* (XVI, 8, 10), *suspicious et minutus* (XIX, 12, 5) and prone to *suspicionum unitati* (XIV, 5, 4)⁽⁴²⁾. This leads to anger and cruelty — *acerbum ac implacabilem* (XIV, 9, 2), *irrevocabili ira... percitus et dolore* (11, 23), *iratus ultra modum* (XX, 2, 5), *amicum cruentum* (XXI, 1, 2)⁽⁴³⁾. He is unjust — *a iustitia declinavit ita intemperanter* (XV, 1, 3) — a judge before whom innocence is in danger — *parum tuto loco innocentium stare* (XV, 2, 3)⁽⁴⁴⁾. Also he is arrogant — *insolentia coalitus et tumore* (5, 35), *elatus in arduum supercilium* (XVI, 10, 12), *suapte ingenio nimium* (12, 68)⁽⁴⁵⁾. And there are other lesser vices, such as unreliability (XV, 5, 33) and subservience to eunuchs⁽⁴⁶⁾.

It would be rash to deny that Constantius had these faults. It would also be rash to deny that Ammianus has exaggerated them. Overemphasis and inconsistencies reveal a lack of objectivity. The historian says that after the death of Gallus, Constantius became so arrogant that he confidently thought that he would henceforth be free from all mortal woe and *confestim a iustitia declinavit ita intemperanter ut "Aeternitatem meam" aliquotiens subsereret ipse dictitando, scribendoque propria manu orbis totius se dominum appellaret* (XV, 1, 3). The expressions *Aeternitatem meam* and *dominum totius orbis* are regular usages of the chancellory style of the period⁽⁴⁷⁾ and, even though it might have been in bad taste for the Emperor personally to use such expressions, Ammianus' comment that he deviated far from *iustitia* is hardly justified. In fact the historian has transformed into personal faults two policies with which he is in disagreement, namely the representation of the Emperor as more than an ordinary human and an expansionist foreign policy which claimed the right to unite the whole world⁽⁴⁸⁾.

The first of these policies is treated in a similar manner elsewhere. In XVI, 12, 65-70 Ammianus censures Constantius for ascribing in official communications (*edicta*) all military success to his own favourable auspices, claiming all victories for himself and even lying that he had

(42) Also XIV, 5, 2; 9, 2; 11, 4; XV, 3, 2 and 9; 5, 5; XVI, 7, 1; XVIII, 4, 2.

(43) Also XIV, 5, 1, 4, and 5; XV, 3, 2; XX, 9, 2; XXI, 6, 9.

(44) Also XIV, 5, 1 and 9; XV, 2, 9; 3, 1 ff.; 5, 36; XVI, 8, 1 and 1-9; XXI, 8, 2-3.

(45) Also XV, 1, 3; 5, 37-8; XVI, 10, 1-3; XVII, 4, 12; 11, 2; XIX, 12, 16; XX, 8, 2.

(46) XVIII, 4, 3; XX, 2, 4.

(47) CROISSANT, *RHIG*, 1896, p. 450-2.

(48) See p. 159-4.

been present on the battlefield when he had been nowhere near it. But the historian must have known that such claims were regular Imperial practice and elsewhere tacitly accepts the convention⁽⁴⁹⁾. Here, in fact, he is attacking the policy of exalting the Emperor above other mortals; but translates it into the personal vice of boastfulness on the part of Constantius.

In another passage when Ammianus says, "For no-one easily remembers the acquittal of anyone during Constantius' reign, even in cases where these charges [i.e. of treason] were merely whispered" (XIV, 5, 9)⁽⁵⁰⁾, he ignores the acquittals which he himself has recorded, including those of Ursicinus and Julian⁽⁵¹⁾.

Just as he did in his description of the career of Gallus, Ammianus, in the narrative on Constantius, makes use of rhetorical assertions without adequate supporting facts. Paul the *notarius* created *strages multiplices et ruinas* in Britain by his over-zealous pursuit of the supporters of Magnentius. No victim is named except Martinus, the pro-prefect in charge of the provinces, who, finding his opposition to Paul's activities to be ineffectual, tried and failed to kill the notary, and then killed himself (XIV, 5, 8). Elsewhere we are told that after the defeat of Magnentius the Emperor "made his victory an occasion for grief by slaughtering innocents" (XIV, 5, 2). He tortured and exiled Gerontius, a known partisan of the usurper; and this, Ammianus says, was *inter alia* (1). But no more names are given, and there is some possible evidence of an amnesty (which may not, however, have applied after the death of Magnentius)⁽⁵²⁾. After the collapse of the revolt of Silvanus many are said to have been put to death (XV, 6, 4). Ammianus has five names. He omits to record that the friends of the usurper at court went unmolested⁽⁵³⁾. Again, trials at Scythopolis are described, for treasonable consultation of oracles (XIX, 12). So trifling were the offences and malicious the judges that, "if anyone wore around his neck a charm against the quartan fever or any other disease... he was condemned on a capital charge and

executed" (12, 14). But the lack of named victims is conspicuous: no-one killed, two banished, two pardoned⁽⁵⁴⁾.

In contrast with the ample illustration of vices in the narrative, there is a conspicuous absence of virtues. An example of dignified behaviour is recorded (XVI, 10-11), but it is accompanied by a sarcastic comment — *patientiae non mediocri indicia, ut existimari dabatur, uni illi concessae* — and followed by a statement of the Emperor's conceit (12-13). The censure, which here is the result of a wish to contrast Constantius with Julian⁽⁵⁵⁾, conflicts sharply with the approval of such dignity expressed in the *elogium* (XXI, 16, 7).

Constantius' desire to preserve his soldiers is noted⁽⁵⁶⁾, but only incidentally and is qualified by the comment that on this occasion the alleged wish was merely a pretext; the real reason was to withhold troops from Ursicinus and to prevent him from winning glory by the relief of Amida.

Constantius, says Ammianus in the *elogium*, was *in negotiis aliis principibus mediis comparandus* (XXI, 16, 8). Nothing of this administrative ability⁽⁵⁷⁾ appears in the narrative, although similar qualities are noted in the case of the urban prefects. In fact Constantius seems to have been an extremely conscientious ruler, a characteristic which enters only incidentally into Ammianus' account, as the Emperor hurries away from Rome to face raiders on the middle Danube, although he wishes to remain longer in the city (XVI, 10, 20); as he fortifies Amida (XVIII, 9, 1); prepares for a Persian war (XX, 8, 1); or, putting foreign dangers before the menace of an usurper, elects to secure the eastern frontier before turning to face Julian (XXI, 7, 1).

Constantius as a ruler had solid virtues as well as obvious faults. And since Ammianus has not seen fit to illustrate the former in the way in which he has dwelt upon the latter, it is hard to resist the conclusion that he has allowed his prejudice against Constantius to affect his objectivity.

The *elogium* of Valentinian I notes the following characteristics: *vices* — He was angry and cruel (XXX, 8, 2-7), greedy (8-9), envious (10), and a coward (11-12). He gave his support to cruel judges (13)

(49) See XXX, 7, 7-11 and STRAUSS, Stuttgart, 1964, p. 56-7. Cf. TACITUS, *Ann.* II, 22, 1-2; CLAUDIAN, *B. C. de Rom.*, 633-4. Another example of Constantius' appropriation of the glory of success might be seen in a speech at XVII, 13, 26-33.

(50) Cf. XIV, 5, 1 and 3; XV, 2, 2; XXI, 16, 8-9.

(51) XV, 2, 6 and 8; 3, 11; XVI, 6, 3; 8, 6-7; XIX, 12, 11-13; XXI, 6, 2. On difficulties in Ammianus' treatment of Ursicinus see THOMSON, Cambridge, 1947, p. 42-55.

(52) On this amnesty see Appendix C.

(53) JULIAN, *Op.* I, 48C; IL 95D-96A; 99A-B.

(54) Cf. XVIII, 3, 5 where Valentinian was wrongly accused of complicity in Barbarian's plot and tortured. He was compensated with a generalship in Illyricum.

(55) Suggested by BAYNES, *JRS*, 1935, p. 87. Cf. XXX, 9, 13.

(56) XIX, 3, 2. Cf. XXI, 13, 3.

(57) This accepts the translations of Rolfe, Yonge, and Scott. Alternatively, since treason trials are contrasted with *alia negotia*, *negotia* might mean "cases", "suits" (cf. SORANUS, *Graec.* 40, *Rhet.* 61, and refer to Constantius' reasonableness in other judicial matters (cf. XXX, 3, 11).

and he lacked philanthropy (14). *virtues* — He lightened the tribute, founded towns and built defence works, kept good military discipline, but failed to check corrupt officers (XXX, 9, 1). He was chaste and avoided nepotism (2). He was careful in appointing officials and refused to sell offices (3). He was a good general, intellectually able (4), and he was tolerant in religious matters (5).

Again there is some imbalance of treatment. Over 75 lines (Clark) are devoted to vices compared with under 30 for virtues; and about 33 lines of the section on vices are concerned with his anger and cruelty against a mere 6 lines for the first three virtues mentioned, important public ones. The narrative reflects the imbalance. There little is heard of the Emperor's cowardice or envy, whereas cruelty and injustice, which are stressed in the *elogium*, predominate. Two complete expositions of Valentinian's savagery, with illustrative anecdotes, are included (XXVII, 7, 4-9; XXIX, 3) and repeated references are made to this fault⁽⁵⁸⁾. The result of this rage is injustice⁽⁵⁹⁾.

Zosimus, too, attributes this vice to Valentinian. A disease, he says (IV, 1, 1), drove the Emperor's natural anger near to madness, and he came to suspect that the friends of Julian had tried to poison him. Here, however, the excess of rage is related to one specific situation, and the partiality of the writer towards Julian has probably led to overstatement. Zosimus does not claim that Valentinian actually harmed any of Julian's friends (IV, 2, 1-2), and Maximus, the one person who is identified as an associate of the Apostate and who did lose his life, was killed by the officers of Valens⁽⁶⁰⁾.

There is little else in Zosimus beyond the occasional reference to the Emperor's harshness⁽⁶¹⁾. Other sources are silent, except Jerome, who seems inclined not to judge Valentinian severely⁽⁶²⁾. Nowhere is there an emphatic general indictment, and therefore, even if the Emperor's proneness to anger and individual acts of savagery and rashness are con-

(58) See XXVI, 4, 2; XXVII, 6, 14; XXVIII, 1, 11, 20, 23, and 31; 2, 9; 6, 22; XXX, 5, 3-4, 11-12, 15, and 19; 6, 3.

(59) XXVIII, 1, 11 ff. and 18.

(60) AMMIANUS, XXIX, 1, 42; ZOSIMUS, IV, 15, 1; EUNAPIUS, PS, 480.

(61) E.g. ZOSIMUS, IV, 16, 3.

(62) JEROME, *Chron.*, II, 369: *Valentinianus egregius alius imperator et Avelianus moribus similis, nisi quod severitatem eius nimiam et perditatem quidam crudelitatem et avaritiam interpretabantur.*

ceded, there is no independent corroboration of the extreme stress which Ammianus lays upon this trait.

Evidence of Valentinian's toleration in religious matters (except for practitioners of magic) is offered by the *Theodosian Code* and other sources⁽⁶³⁾. The Emperor could be rather mild, and Ammianus himself preserves an example of his leniency in the political sphere. Phronimius and Euphrasius, who had joined the usurper Procopius and had been made urban prefect of Constantinople and master of the offices respectively (XXVI, 7, 4), were sent, after the collapse of the revolt, to the West for punishment since they were Gauls. Valentinian pardoned Euphrasius despite his clear guilt, and banished Phronimius. Ammianus, instead of remarking upon the comparative mildness of the punishments, maliciously adds that Phronimius was banished because he had been in Julian's favour (10, 8). The hostility of the historian, confirmed by a later comment on Valentinian's clemency — *ad simulavit non numquam clementiae speciem* (XXX, 8, 2) —, casts doubt upon the allegation, made in the necrology (XXX, 8, 12), that the Emperor was a coward. What Ammianus calls cowardice seems in fact to have been toleration. The anecdote which illustrates the charge is unconvincing. When Remigius, the master of the offices, observed that Valentinian was in a rage, he mentioned *inter alia* (a useful phrase in Ammianus) that the barbarians were restless (*fieri motus quosdam barbaricos*), whereat, "because he was straightway stunned by fear, he became as mild and merciful as Antoninus Pius." It is hard to believe that this Emperor, who enjoyed such success against the barbarians, as Ammianus admits, and who once almost lost his life through an act of rashness in enemy territory (XXVII, 10, 10 ff.), would have been reduced to fear and trembling by such words. More likely the story is apocryphal and a perversion of the Emperor's willingness on occasions to recognize his hasty temper and to allow his angry impulses to be deflected by good advice. This characteristic is elsewhere implicitly conceded by Ammianus, who, however, prefers to praise the adviser for daring to confront the Emperor, rather than the Emperor for recognizing the value of the advice⁽⁶⁴⁾. Julian similarly was willing to accept opposition. But in his case Ammianus sets it down to his credit⁽⁶⁵⁾.

(63) C. TH., IX, 16, 9; SOCRATES, 4, 1; SOZOMEN., 6, 6; ZOSIMUS, IV, 3, 2-3. Plus of course AMMIANUS, XXX, 9, 5.

(64) XXVII, 3, 6-7; XXVIII, 1, 23. Cf. ZOSIMUS, IV, 3, 3.

(65) XXV, 4, 16.

Of the virtues listed in the *elogium*, only Valentinian's military ability finds suitable illustration in the narrative. Ammianus attaches to the beginning of the *elogium* a summary of the Emperor's achievements (XXX, 7, 7-11), carefully emphasizing his own real prowess. In the narrative Valentinian's campaigns are afforded ample treatment, and specific military virtues of the Emperor are noted, such as his building of defence works (sometimes over-zealous, says Ammianus) (66) and his readiness to share the lot of his troops (XXIX, 4, 5). Nevertheless, this praise is tempered by censure of the Emperor's lax handling of his senior officers (67) and his rashness (XXVII, 10, 11). In commenting upon the latter the historian grows sarcastic: *Valentiniano ad expeditionem caute, ut rebatur ipse, profecto* (XXVII, 10, 1); *ut dux cunctator et tutus, centurias et manipulos capite intecto collustrans* (XXVII, 10, 10).

As for the other virtues, there are a few words upon Valentinian's character before and at the beginning of his reign, with a note that he was unanimously chosen Emperor by the council of officers (XXVI, 1, 5); a remark that he was held to be a *uir serius* (2, 2); and that he soon showed his authority and courage in calming the unruly troops (2, 5) (68). Other sources, especially Orthodox Christian, are far more complimentary (69).

The anonymous *Eptome de Caesaribus* (45, 6) says of Valentinian, "If he could have been free from the criminal elements to whom he entrusted himself as if to the most loyal and prudent advisers, or if he had made use of tried and learned counsellors, he would, without a doubt, have shone forth as a perfect ruler." The source is senatorial and is presumably attacking men such as Remigius, Romanus, Maximinus, and the Pannonian party which was in favour with this Emperor and his brother (70). Nevertheless, when the bias is taken into account, it gives some confirmation of the well illustrated charge made by Ammianus that Valentinian tended to deal too leniently with his high officials.

The *Eptome* also says that Valentinian was tainted with vices, especially avarice (45, 5), a charge which Ammianus makes in the

necrology (XXX, 8, 8-9) and repeats once or twice in the narrative (71). This allegation harmonizes ill with another statement in the *elogium* that the Emperor was indulgent to the provincials and everywhere lessened the burdens of the tribute (XXX, 9, 1). The previous claim of the *Eptome*, that the Emperor entrusted himself to unworthy men, suggests, in view of the scrappy evidence that he was personally greedy, that by the avarice of Valentinian is meant the depredations of his officials, of whom Romanus is a good example (72). The process is the same, *mutatis mutandis*, as that by which Constantius could claim the successes of Julian and Ammianus himself attribute the victories of Theodosius the elder to Valentinian: the good and bad qualities of a regime are transferred to the Emperor. A passage of Zosimus supports this interpretation: "Valentinian... was hard on his subjects, pressing extremely severely for the payments of the tribute and exacting more money than usual... He was unwilling to investigate his officers to see if they refrained from profiteering... Therefore the Libyans, who could not endure the extorsions of Romanus, the count of Africa, gave the purple to Firmus and created him Emperor" (IV, 16, 1-3). Although both Ammianus and Zosimus dilate upon the Emperor's failure to control his officials, they fail to note that when informed of the corruption of the chamberlain Rhodanus, he put him to death (73).

A somewhat confused section of Ammianus' narrative on Valentinian's relations with the powerful prefect Probus (XXX, 5, 4-10) suggests the real state of affairs. Probus had been oppressing the inhabitants of his prefecture, Illyricum, with extortionate taxes, and reports on the matter were sent to the Emperor. However, according to Ammianus, *Valentinianus uero tamquam auribus ceri illitis ignorabat, indifferenter quidem lucrandi vel ex rebus minimis audis* (7). Yet when an envoy from Epirus described the behaviour of the prefect to the Emperor, *in immensum excauit* (10). He really did not know what had been happening, a situation like that described by Ammianus himself in his account of the machinations of Romanus in Libya, which were one long exercise in hoodwinking the Emperor. In some cases at least Valen-

(66) XXIX, 6, 2: *studio montuorum limitum gloriam quidem sed nescio*. Cp. 4, 1; XXVIII, 2, 1 ff.

(67) XXVII, 3, 4. Cp. Zosimus, IV, 16, 2-3.

(68) Cp. XXVI, 5, 12-13; XXX, 7, 4.

(69) SOCRATES, 4, 1; SOZOMEN, 8, 36; JEROME, *Cypor.*, 4369; ZONARAS, 13, 15; CLEDREUS (*PG*, 121), col. 588-9.

(70) See ALFOLDI, p. 15-18, 100-123.

(71) XXVIII, 1, 20; XXX, 5, 5-8.

(72) XXVII, 9, 1-3; XXVIII, 6; XXIX, 5, *passim*; XXX, 2, 10-11. See WAGNER, *Rev. Z.*, 1956, p. 55-64.

(73) EPIPHANES, *de*, 30; ZONARAS, 13, 15; *Chronicon Paschale*, 4369 (MONTANUS, *Chron. Ann.*, 1, p. 241); CLEDREUS, (*PG*, 121), col. 592.

tinian's apparent connivance at the corrupt dealings of his officials was the result of bad communication rather than wilful negligence.

In short, it seems that Ammianus could not make up his mind about Valentinian. Militarily he was an ideal ruler; and the historian admits that had all his conduct been on a level with his obvious virtues, the Emperor would have been another Trajan or Marcus Aurelius (XXX, 9, 1). Yet Alföldi, though he overcorrects Ammianus' picture, is right when he says that the portrait which emerges from the *History* is unfair⁽⁷⁴⁾.

Finally the *elogium* of Valens notes the following qualities: *virtutes* — A good friend; he punished excess ambition, kept civil and military discipline, rejected nepotism, did not overtax the provinces, and attacked corruption (XXXI, 14, 2); he was just and liberal in his dealings over the estates of the deceased (3); he was a great builder (4). *vices* — He was greedy, lazy, cruel, uneducated and savage in defence of the Imperial dignity and in pursuit of gain (5). He was arbitrary and unfair in his judicial acts (6). He was a procrastinator and irresolute (7).

This necrology is far shorter, lacking the discussion of some of the vices which is found in the other two *elogia*; and slightly more of the text is devoted to virtues than to vices (19 lines compared with 14). Nevertheless, the narrative again ignores most of the virtues and places great stress upon one or two vices. Valens' greed is emphasized: *aduliscebat autem obstinatum eius propositum, admovente stimulus avaritia* (XXIX, 1, 19); *penatibus multi protruderentur insontes, praeceptis in exilium acti, quorum in aerario bona coacta et ipse ad quaestus proprios redigebat* (21). His desire for more gold is said to have been the reason for his decision to allow the Goths across the Danube in 376 A. D. (XXXI, 4, 4)⁽⁷⁵⁾ and for his connivance at the depredations carried out in the eastern provinces by his father-in-law, Petronius, who had been promoted from the command of a legion to the patriciate (XXVI, 6, 7)⁽⁷⁶⁾. The second of these charges hardly squares with Am-

(74) ALFÖLDI, p. 25-7, 65 ff. ROSEN, p. 245 and note 2 refutes Alföldi's argument that Ammianus has treated Valentinian unfairly by pointing out that the historian can cite actual examples of cruelty. But the senators at Rome who were threatened by, and suffered under, the Emperor, were a willing source and not unbiassed. The important point is not whether the examples of cruelty are genuine but whether they will bear the stress put upon them. In this respect I agree with Alföldi.

(75) Cp. SOCRATES, 4, 34. ZOSIMUS records the decision without comment (IV, 20, 5).

(76) The patriciate was an honorary office; and it is not known whether Petronius held any other post. Perhaps he held a special position (*Petrus*, 4 in *RE*, XIX, 1, col. 1194) or perhaps he worked through others whom his influence had placed in positions of power (as *Nehridius, praefectus praetorio Orientis*, AMMIANUS, XXVI, 7, 4).

mianus' assertion that Valens rejected nepotism and punished corrupt officials.

Once again, however, anger and cruelty are the central characteristics. Valens is *ad crudelitatem propensior* (XXVI, 10, 2; cp. 12 and 14); *fremebundus et minax* (XXIX, 2, 10); *eruditior ad laedendum* (1, 27); *saeuus ille sententiae lator* (1, 38)⁽⁷⁷⁾. The Arian Emperor persecuted and murdered Orthodox Christians and is therefore reviled as savage and inhuman by the ecclesiastical historians⁽⁷⁸⁾. Zosimus confirms his irascibility⁽⁷⁹⁾ and the anonymous *Epitome* concedes it, though claiming no harm came of it⁽⁸⁰⁾. Apart from the treason trials in the East (to be discussed in chapter 6) and the killing of Orthodox Christians (of less concern to a secular historian), it was Valens' punishment of the supporters of Procopius which aroused the most censure. Ammianus is vehement (XXVI, 10, 6-14) and Zosimus alleges reprisals against innocents⁽⁸¹⁾. Some sources celebrate the Emperor's clemency, but they are mostly panegyric⁽⁸²⁾.

As has been noted, there is a contradiction between Ammianus' claim that Valens' father-in-law, Petronius, was permitted to extort money from the provincials and his statements in the necrology that Valens showed a great care for the provinces and resisted nepotism. If Petronius' behaviour were so monstrous, how could the Orient⁽⁸³⁾ have received better treatment from Valens than from anyone else in respect of peculation, extortion, and overtaxation, as Ammianus says it did (XXXI, 14, 2)? The answer seems to be that the abuses of Petronius were committed at the beginning of the reign. We hear no more of Petronius after the revolt of Procopius, and the abuses were probably corrected after and

(77) Also XXIX, 1, 10 and 11 ff.; 2, 14 and 17-18. For injustice — XXVI, 9, 10; XXVII, 5, 8; XXIX, 1, 20, 27, 42, and 44; 2, 3 and 10; XXX, 1, 2 and 16-18; 4, 1-2. Seeck, *Untersuch.* V, p. 8-11 suggests that his cruelty was the wildness of a half-barbarian.

(78) SOCRATES, 4, 12; 15-17; and often; ZOSIMUS, 6, 9; 12-14; and often; ZONARAS, 13, 16; OROSIUS, 7, 33.

(79) ZOSIMUS, IV, 8, 4-5; 10, 1; 14, 2; etc.

(80) *Epit. de Curs.*, 46, 6: *traxi sine viro ac periculo cuiusquam*.

(81) ZOSIMUS, IV, 8, 4-5; 10, 1. Cp. EUTHYRIUS, *fr.*, 25; JEROME, *Chron.*, s. 370; *et plures Procopianae partis caesi atque proscripti*; OROSIUS, 7, 32.

(82) THEODORUS, *Or.*, VII, 93B; LUCIANUS, *Or.*, 19, 15; SYMMACHUS, *Or.*, 3, 21. Best is the non-panegyric LUCIANUS, *Or.*, 1, 171 which is, however, contradicted by *Or.*, 24, 13, where many are said to have suffered.

(83) By *Orient* I take Ammianus here to mean the eastern part of the Empire which Valens ruled and which was coterminous with the prefecture of *Oriens* (Illyrium was joined to Italy and Africa under one prefect — AMMIANUS, XXVI, 5, 5). In some passages Ammianus seems to use *Oriens* to indicate the diocese (e.g. XXVI, 1, 4 and 14).

as a result of it. If this were so, the greater part of the reign may have deserved Ammianus' praise. But the historian, wholly hostile to Valens in the narrative, has used the behaviour of Petronius to reflect what he sees as a general vice of the Emperor (i.e. greed for the property of others)⁽⁸⁴⁾ and has failed in his account to note a change of policy after the crushing of the revolt.

Little to the credit of Valens is heard in the narrative except his noble reply to the demand of Sapor that the Romans evacuate Armenia or Iberia (XXX, 2, 1-3) and a note that since the Emperor was *homo rigidus, audire cupiens lites* (XXX, 4, 1), the defence of innocence would have revived as in the time of Julian, had not the praetorian prefect Modestus deterred him from hearing civil suits. One has to turn to the anonymous *Epitome* for confirmation of Valens' loyal friendship, his care for the landowners, and his reluctance to replace officials (46, 3).

Valens was the most reviled of the three rulers under discussion. An Arian persecutor loathed by the Orthodox; an active Christian and so unacceptable to the pagans who yearned for another Julian; compared unfavourably with his brother, in whose shadow he undoubtedly always was⁽⁸⁵⁾; the man who admitted the hordes of Goths into the Empire and lost the disastrous battle of Adrianople. When Ammianus angrily notes that Valens and his brother attacked the memory of Julian's virtues without being anywhere near his equals (XXVI, 10, 8), he reveals that, partly at least, the antipathy which he feels is based upon his partisanship for the Apostate.

The foregoing argument does not claim that Constantius was not arrogant and suspicious, Valens not cruel, nor Valentinian angry. The constant repetition of weakly substantiated or unproven charges may well represent the honest opinion of the writer. Indeed it might seem that in the fourth century the use of terror had a definite political function insofar as it was used against opposition groups, both real and potential⁽⁸⁶⁾. Nevertheless, it is clear that Ammianus has written his cooler and more balanced *elogia* in comparative isolation from the more condemnatory tendencies of the narrative. The Emperor was central to the political, military, and (insofar as the state tried to regulate certain aspects of it) social thought of the period, and the current vices, as well

(84) Cp. XXVI, 6, 6.

(85) XXVI, 4, 3.

(86) See p. 119-121.

as virtues, of the system were associated with him as a person (or rather *persona*). Ammianus reflects this, but since in his narrative he is mainly concerned to censure these three Emperors, he emphasizes faults almost to the exclusion of good qualities, refusing to describe the virtues of their civil administration, the aspects of which he deals with at greater length being the treason and magic trials which were held during these reigns and which bring no credit to them. Of the faults, one or more are stressed, especially the related vices, anger, cruelty and injustice, with the result that there is a tendency (as was seen most clearly in the case of Gallus) of assimilation towards a type and the interpretation of the actions of the subject in the light of this preconceived and prejudged type.

Various standard rhetorical devices are used throughout the narratives of the reigns of these Emperors. It will suffice to point out a few. Rumour is used to introduce a doubtful allegation⁽⁸⁷⁾. Comparison is made with odious figures of antiquity — Domitian (XV, 5, 35); Caligula, Domitian and Commodus (XXI, 16, 8); Gallienus (XXI, 16, 9); Croesus and Dionysius (XV, 5, 37). Secret feelings and thoughts are reported⁽⁸⁸⁾. An interesting technique is the presentation of the negative aspect of behaviour by the use of *sine* with the attribute to be preferred⁽⁸⁹⁾. But most insidious, because unsupported and uncheckable, are some of the allegations which the historian makes, such as the order of Valentinian that any debtor who could pay nothing was to be put to death (XXVII, 7, 8); the order of Constantius that a man once condemned could not be retried (XIV, 5, 5); that the same Emperor hardly ever acquitted a man once he was accused (XIV, 5, 9). Commoner still are the charges of endless executions, bloodshed and slaughter, a favourite device of Tacitus also⁽⁹⁰⁾, and partly stylistic, since such indefinite statements were the refuge of writers who rejected *minutiae*, in this case the repetition of unpleasant incidents⁽⁹¹⁾.

Other considerations, too, influence the accounts of these reigns. Firstly, there is a partial contrast drawn between the characters of Con-

(87) XVI, 11, 13; XXI, 3, 5. Cp. XIV, 1, 3; 5, 5; XX, 4, 2; XXXI, 7, 4.

(88) XIV, 11, 1, 3 and 8; XV, 5, 35; XIX, 3, 2.

(89) E.g. XV, 3, 2; *sine innocentium sanguine differenda*. Cp. XV, 3, 9; XXVI, 10, 9; XXI, 14, 6. This was noted by Astorson, p. 114-5.

(90) Walker, p. 83-4. For a longer list of such devices in Ammianus, see Moorey, p. 124-47.

(91) Examples in Ammianus, XXIII, 1, 1; XXVI, 1, 1; XXVIII, 1, 14; 2, 12; XXIX, 2, 9, and often. Cp. H. Petzet, *Die geschichtliche Literatur über die römische Kaiserzeit*, Leipzig, 1897, II, p. 276 ff.

stantius and Julian⁽⁹²⁾, the former suspicious, cruel and unjust, pompous and arrogant, the latter open, even naive, clement, extremely conscious of his judicial responsibilities and so unmindful of his dignity that Ammianus feels called to rebuke him⁽⁹³⁾. Constantius' lack of concern for the provinces contrasts with Julian's care for them⁽⁹⁴⁾, the corruption of his court with that of the Caesar who is surrounded by soldiers on his vigorous campaigns against the Germans. These were attended with success⁽⁹⁵⁾, whereas Constantius failed in his foreign wars⁽⁹⁶⁾.

The difference between the two rulers is heavily emphasized in XVI, 10-12. In the first part, which describes the Emperor's triumphal entry into Rome, Ammianus prefaces his account with a note to the effect that the pomp of the procession, wholly out of proportion with Constantius' achievements (or rather lack of them), was motivated by his empty pride (10, 1-3). The description itself is broken by comment critical of Constantius' haughty manner (11-12) and by ironical barbs (6 and 16). At the end of the chapter, after a brief note on the plots of the Empress Eusebia against Julian's wife, we are told that although Constantius wished to stay longer in Rome, he was called away by an invasion over the lower Danube (18-21). Then immediately (XVI, 11-12) we pass on to Julian's campaign against the Germans which culminated in the victory at Strasbourg, which itself is treated at great length and as a glorious triumph.

These opposing traits (which seem to some extent to reflect genuine characteristics) are not gathered into any formal contrast by Ammianus, but are found at various points in the narrative. They are of some importance to the historian, who exploits the contrast, but perhaps more important is the relationship which he has created between certain of the traits of Constantius and his regime and the climactic event of the reign, the usurpation of Julian.

Julian is the dutiful, long-suffering Caesar, loyally guarding the Rhine frontier and easing the lot of the Gauls. The chain of events leading up to the usurpation is viewed from the court of Constantius, where the

situation has long been developing. Upon Julian the whole affair bursts with startling suddenness (XX, 4, 14 ff) and he was, we are told, innocent of treachery and unwilling to revolt. The helplessness of Julian throughout the events of the usurpation and the compulsion brought to bear upon him are stressed⁽⁹⁷⁾.

Ammianus describes Constantius as vain of his achievements, really the work of others⁽⁹⁸⁾, and actively malicious towards Julian. The Empress Eusebia prevented Julian's wife from giving him an heir (XVI, 10, 18-19). The Emperor refused to allow his Caesar to give a donative to his troops, *fraude potius quam tenacitate* (XVII, 9, 7). In this he was influenced by a report of the notary Gaudentius, who had put a sinister interpretation upon an act of generosity by Julian in giving money to a soldier for a shave. If this episode has been correctly reported by Ammianus, it appears to have been a case of mischievousness on the part of an official, rather than Imperial malice.

Constantius, we are told, was eager to hear slanders against Julian, of whom he was jealous⁽⁹⁹⁾. This Ammianus claims to have been the real reason for the withdrawal of the Caesar's troops, which in turn is represented as the direct cause of the revolt⁽¹⁰⁰⁾. When, after the initial breach with the Emperor, Julian later came to consider whether to continue to negotiate for a settlement or to attack first, he weighed, on the one hand, Constantius' success in civil war, but, on the other, the dangers which his friendship entailed and the warning offered by the fate of Gallus (XXI, 1, 1-3). The latter considerations led him to show himself an overt enemy and to open hostilities⁽¹⁰¹⁾.

By appealing in this way to characteristics of Constantius, which he himself has emphasized in the narrative, Ammianus is able to steer his readers away from the uncomfortable topic of Julian's part in the revolt, which seems to have been far more positive than the historian would allow⁽¹⁰²⁾. The death of the Emperor was timely, and Julian's partisans made play with the rumour that while on his deathbed he had named Julian Augustus⁽¹⁰³⁾. But this did not erase the fact of the revolt, and

(92) Often noted, e.g. ROSEN, p. 184-5; JANNACCONE, p. 39; DE SPIGNO, *Helikon*, 1962, p. 456-9; MÜLLER-STEDEL, *HZ*, 1955, p. 125-6.

(93) For Constantius' vices, see p. 38-41. Julian's openness and lack of dignity, XXI, 7, 3 and 5. His clemency, XVI, 5, 12; XXII, 7, 5; XXV, 4, 9; and often. His consciousness of his judicial duties, XXII, 9, 9 ff.

(94) Constantius' lack of care, XXI, 16, 17. Julian's care, XVI, 5, 14; XVII, 3; and often.

(95) ROSEN, p. 185.

(96) XIV, 10, 16; XX, 11, 32; XXV, 9, 3.

(97) Helplessness, XX, 4, 4-5; 8, 10. Compulsion, XX, 4, 14, 17, and 18; XXI, 5, 5.

(98) XVI, 10, 1-3; 12, 67 ff.

(99) Eager to hear slander, XVII, 11, 1. Cp. MAMERTINUS, *Proc. Lat.*, III, 4, 5-7. Jealous, XX, 4, 1. Cp. MAMERTINUS, 3, 1; EUSAPIUS, *Op.*, 14, 4; LAMPRIDIUS, *Op.*, 12, 37.

(100) Also LAMPRIDIUS, *Op.*, 18, 90.

(101) XXI, 1, 6. Cp. JULIAN, *Ep. ad Ath.*, 286D-287A.

(102) MÜLLER-STEDEL, *HZ*, 1955, p. 225-44.

(103) XXI, 15, 2 and 5; XXII, 2, 1; NORMAN, London, 1965, p. 181.

Ammianus, following what was probably Julian's own line of propaganda⁽¹⁰⁴⁾, seeks, by stressing the unfair behaviour of Constantius towards his Caesar and the role of the troops in the actual elevation, if not to condone the usurpation, at least to generate some sympathy for it.

Constantius might have had in some degree the vices which Ammianus sketches so luridly and uses to such effect. For Valentinian's anger and cruelty there is little evidence outside Ammianus himself and Zosimus. Alföldi has argued that Ammianus' treatment is unfair and that the attitude of the historian finds its origin in Valentinian's hostility towards the decadent Roman senate⁽¹⁰⁵⁾. Two further considerations offer themselves. Firstly, the usual version of the Emperor's death, which is the one found in Ammianus, ascribes it to apoplexy brought on by a paroxysm of rage⁽¹⁰⁶⁾. Ammianus has described in an earlier passage the physical effect of a fit of anger upon the Emperor: "He was borne through his acts of savagery as if on some seething flood of wave and wind, so that when he was angry his voice and his expression, his gait and his colour were changed." (XXIX, 3, 2). Perhaps the historian, influenced by the death of Valentinian, has emphasized the rage and savagery in his character in order that the manner of his end might correspond to the manner of his life and suggest a causal connexion.

Secondly, it has been suggested that, when writing of Valentinian, Ammianus has utilized traits of his character in such a way that, by praising or blaming them, he might indirectly censure opposite or similar traits in Theodosius I⁽¹⁰⁷⁾. In 390 A. D. Theodosius ordered the massacre at Thessalonika, an act of shocking savagery. Ammianus may well have been writing about the reign of Valentinian at the time. A few years later he published. Is the savage act of the one reflected in the savage portrait of the other?

The treatment of Valens differs somewhat from that of his brother and of Constantius. Here, though in a looser form, appear some of the dramatic elements found in the account of Gallus' reign. In book XXIX Ammianus already looks forward to Valens' death when he writes that

(104) Cp. LIBANIUS, *Op.*, 18, 90-105, where it is suggested that *hubris* was a cause of the Emperor's death, and EUNAPIUS *fr.*, 14, 1, where his machinations against Julian are also stressed.

(105) See note 74.

(106) XXX, 6, 3-6. Also ZOSIMUS, IV, 17, 2; SOCRATES, 4, 31; SOZOMEN, 6, 36. The *Epit. de Caes.*, 45, 9 says that many ascribed his death to overeating.

(107) STEIN, I, p. 215; DEMANDT, p. 62-3; SYME, Oxford, 1968, p. 13-14; THOMPSON, Cambridge, 1947, p. 116.

the Emperor was saved from the many plots against him, *fatis reflectente depulsum, quem lacrimosis in Thracia discriminibus destituerat* (I, 15). Later three lines of verse are quoted, part of a longer oracle which those who had tried to learn the name of Valens' successor said foretold their own fate and that of the Emperor:

οὐ μὲν ὑπὸ νύκτι γε πῶν ἴσεται αἶμα καὶ αὐτοῖς
Τραπέσιν θηρίωνος ἐφαλλίσει κακὸν οἶτον
ἐν κεδύσσι Μίμνεντος ἀγαγόμενος Ἄρης⁽¹⁰⁸⁾.

Again, while still describing the terror at Antioch, the historian says, "For the last curses of the slain moved eternal god with their just complaints and fired the torches of war, so that the truth of the oracle was confirmed, that no crime goes unpunished" (2, 20). The Furies, too, were at Antioch (I, 21).

Then we move to the opening of the last book — *inter haec Fortunae uolucris rota, aduersa prosperis semper alternans, Bellonam furis in societatem adscitis armabat* (XXXI, 1, 1). Just as the ghosts of those done to death by Gallus appeared in his dreams foretelling his doom and their revenge (XIV, 11, 17), so now many saw the phantoms of Valens' victims (XXXI, 1, 3). The Thuringi, hard pressed by the Huns, were admitted across the Danube, since the Emperor saw profit in them: no potential destroyer of the Roman state was left behind (4, 5). To aggravate the danger, corrupt men were set over the newcomers, *quasi lucro quodam numine diligente* (4, 9). Their negligence allowed more Goths to cross the river, their extortions and murderous behaviour goaded those already admitted to revolt. As the fatal battle approached the times were mad and the Furies were abroad — *quae temporum rabies uelut cuncta clientibus furis*⁽¹⁰⁹⁾. Valens was advised to await Gratian who was on the way with an army (12, 4-5). But, consumed by envy at the exploits of his fellow Emperor (1) and misinformed of the enemy's strength, he preferred the advice of Sebastianus, overruled the majority of

(108) XXIX, 1, 33. Cp. ZOSIMUS, 13, 16 who says that the lines were communicated to Valens in a dream shortly before the fatal battle. EUNAPIUS, 15, 480, says that the conspirators asked Maximus to interpret some oracular verses which foretold the death of all the plotters and a strange end for Valens who would not enjoy burial. The last part of the prophecy is not, nor could have been, in Ammianus' version of the oracle. It most probably has followed the foretelling of Valens' death. Ammianus' quotation contains the last three lines of the oracle which foretold the Emperor's death but not that he would not be buried.

(109) XXXI, 10, 1, cp. 3, 4. *In commune exitum huius turbes inuenit*.

his officers, and, *procaci quodam calore percussus* (3), decided to attack: *uicit tamen funesta principis destinatio* (7). Ammianus has omitted to record that an influential factor in Valens' decision to risk battle was the demonstrations of the populace of Constantinople who reviled him for his *sloth* in facing the Goths⁽¹¹⁰⁾.

The preparations for the battle were bungled, the soldiers left hungry and in the heat of the midday sun. The Romans were annihilated, their Emperor killed and deprived of burial, *suprematis honor* (13, 17).

(110) SOCRATES, 4, 38; SOZOMEN, 6, 39.

CHAPTER III

The Revolt of Procopius

When Julian was preparing his invasion of Persia, he left a second, smaller army under the command of his cousin Procopius and the general Sebastianus to guard against an enemy attack along the Tigris into Mesopotamia and, if the chance offered, to join forces with Arsaces, the allied king of Armenia, and invade Persia, linking up with the larger army in Assyria⁽¹⁾. Ammianus reports a rumour that, before setting out on the expedition, Julian secretly gave his kinsman a purple robe (XXIII, 3, 2) and told him to have himself declared Emperor, if disaster befell the forces in Persia (XXVI, 6, 2)⁽²⁾. Whether or not this was merely later Procopian propaganda, when he heard of the death of Julian and the accession of Jovian, Procopius offered no opposition to the new Emperor and was permitted to conduct the body of his cousin to Tarsus (XXV, 9, 12). Then, alarmed by rumours that Julian, on his deathbed, had named him to succeed and by reports that other potential rivals to the new Emperor had been put to death, Procopius went into hiding⁽³⁾. Eluding the agents of Jovian⁽⁴⁾, he made his way to Chalcedon and, after the death of Jovian and the accession of Valens, raised the standard of revolt on September 28th, 365 A.D.⁽⁵⁾. Supported initially by the people of Constantinople and some troops in the vicinity of the capital, the revolt spread quickly. Thrace was won over, but not Illyricum; Bithynia was taken after Valens had been forced to retreat from his siege of Chalcedon; the fall of Cyzicus brought over Hellespontus. Then the momentum of the revolt was lost. Preoccupied with his attempts to win over Asia, Procopius failed to move quickly East against Valens.

(1) AMMIANUS, XXIII, 3, 5; XXVI, 6, 2; ZOSIMUS, III, 12, 5.

(2) ZOSIMUS, IV, 4, 2 treats the report of the purple robe as a fact and has Procopius later surrender it to Jovian (4, 5).

(3) XXV, 9, 13; XXVI, 6, 4. The account of Zosimus (IV, 4-5) differs in details.

(4) XXVI, 6, 4. Zosimus makes no mention of an attempt by Jovian to arrest Procopius. He says that agents of Valentinian I and Valens caused him to flee (IV, 5, 1).

(5) For the date see STRICK, *Untersuchung* V, p. 49. The details of Procopius' revolt are given by AMMIANUS, XXVI, 6-10 and ZOSIMUS, IV, 4-5. For a full account and details of other sources, see STRICK, *op. cit.*, V, p. 46 ff.

although, according to Ammianus (XXVI, 8, 14), the provinces there were ready to join him. In early 366 Valens from his base at Pessinus in Phrygia sent an army into Lydia⁽⁶⁾ against Procopius' general Gomoar, who betrayed his men and surrendered to the Emperor. Soon afterwards Procopius' other general Agilo did likewise near to Naucolia in Phrygia. With his armies gone, Procopius was soon taken and put to death⁽⁷⁾. His kinsman Marcellus held out for a while in Chalcedon, but was taken and killed by the general Aequitius⁽⁸⁾.

The precise nature of Procopius' revolt is not clear, but it seems to have been to some extent a pagan reaction against the choice by Valentinian I of his brother, the Christian Valens, as co-Emperor⁽⁹⁾, and also a protest by adherents of the dynasty of Constantine against the accession of the Pannonian Emperors. Certainly some of Julian's partisans supported and helped to lead the revolt⁽¹⁰⁾; but Procopius also advertised his relationship with other, Christian, members of the house of Constantine⁽¹¹⁾. The pagan element in his support was undoubtedly of great importance, especially after Arbitio, the senior general of Constantius II and an officer of Constantine himself, had declared for Valens (XXVI, 9, 4); but it is unlikely that Procopius' appeal was ever narrowly pagan, or could have been if he wished his attempt to succeed in the East, and especially at Constantinople (where he found his initial support)⁽¹²⁾.

(6) At XXVI, 9, 2 for *Lydiam* is CLARK and SEYFARTH. *Lydiam* should be read (see SEECK, *op. cit.*, V, p. 446 n.10 p. 51, 13, who adduces ZOSIMUS, IV, 8, 1, where the confrontation with Gomoar is placed near to Thyatira).

(7) On May 27th 366 A.D. (SEECK, *op. cit.*, V, pp. 55 and 447).

(8) On Marcellus see AMMIANUS, XXVI, 10, 1-5.

(9) So SOLARI, *Byzantium*, 1932, p. 43-8.

(10) E.g. PHRONIMIUS (XXVI, 10, 8), AZIUS (XXVI, 10, 7; JULIAN, *Ep. ad Them.*, 189C-D), ORMIANUS (XXVI, 8, 12; ZOSIMUS, IV, 8, 1), ELPIDIUS (PHILOSTORGUS, 7, 10; THEODORET, 3, 8). The *Disidentes* and the *Tungrici iuniores*, who joined Procopius at the beginning of the revolt (XXVI, 6, 12), were from the West (cp. *Not. dign. occ.*, V, 4; *av.*, VIII, 11) and apparently some of Julian's troops who marched with him to the East (SOLARI, *op. cit.*, p. 45; SEECK, *op. cit.*, V, p. 48).

(11) XXVI, 6, 18; 7, 10 and 16; 9, 3; ZOSIMUS, IV, 7, 1; THEODOSIUS, *Or.*, VII, 928-C.

(12) SOLARI, *op. cit.*, p. 46 notes that Procopius issued coins with the Christian monogram on the reverse, which would seem at least to imply that Christians were not rejected. AE coins with chi-rho in the reverse field are recorded for all four mints which struck for Procopius (Heraclea, Constantinople, Nicomedia, Cyzicus — see KENT, CARSON, HILL, *Late Roman Bronze Coinage*, London, 1965, p. 84, 88, 93, 97). The reverses of Procopian bronze all show the Emperor facing, head right, holding spear and resting left hand on shield, with the legend *Reparatio Fel. Temp.* A similar (the Emperor has two captives) and widely minted type of the Constantinian dynasty (Constantine and Constantius II) carried the words *Fel. Temp. Reparatio*, perhaps the best known legend of the sons of Constantine and of Gallus and Julian as Caesars. This reverse of Procopius, which bears no similarity to the contemporary types of Valentinian I and Valens, clearly advertises his links with the former dynasty.

Ammianus is utterly hostile to usurpation and finds it indefensible even when the usurper is, like Silvanus (XV, 5, 32), admittedly wronged and personally able. To Ammianus a legitimate Emperor is appointed by the will of a higher power⁽¹³⁾, manifested in the act of choice by the predecessor or the senior Emperor and confirmed by acclamation by the army⁽¹⁴⁾; or, if no Emperor is alive, in the acclamation by the army alone⁽¹⁵⁾. The predecessor, if alive, must give his assent⁽¹⁶⁾; otherwise it is usurpation, even if the army (or rather part of it) gives its support. The civilian element counts for nothing.

The historian has another compelling reason for disapproving of usurpation, for he realizes how much suffering such an attempt causes. "While the affairs of the Empire were already in a sorry state in this area, a storm of new disasters arose which brought equal suffering to the provinces. And it would have ruined everything at one stroke, had not Fortune, which controls all human events, brought a speedy end to an extremely frightening revolt" (XV, 5, 1). With these words Ammianus introduces the revolt of Silvanus⁽¹⁷⁾, displaying an antipathy which stands in marked contrast with the rather more tolerant attitude towards usurpation found in other (senatorial) historical works of the period⁽¹⁸⁾.

Ammianus' disapproval finds a dramatic form in his description of Procopius' seizure of power (XXVI, 6, 15-19), where stress is laid upon the ineptitude and bungling of the attempt. At his acclamation Procopius confronts the crowd "quite emaciated — you would think that he had risen from the dead." Dressed in a gold-embroidered tunic, looking at the top like a palace servant, at the bottom like a page boy, he holds a lance and waves a piece of purple rag — a *mime*, *ludibrose sublatu*s, flattering his supporters as a servant would his master. His troops are fearful of the populace, the populace indifferent, and Procopius himself too terrified to deliver a proper address. This is a grotesque perversion of an Imperial acclamation, *dehonestamentum honorum omnium*, says Ammianus.

(13) E.g. XXVI, 1, 5; *numinis adiutorio caelestis* (cp. XXVII, 6, 8). For further references see DEMANDT, p. 108-9). For discussion see also VALENSI, *BAGB*, 1957, p. 65-6, 77-8; ROWELL, *Cincinnati*, 1964, p. 47-8; CORMY, *RIHR*, 1896, p. 447-8. The idea of divine sanction was common in the period (e.g. THEODOSIUS, *Or.*, VI, 73C), but in Ammianus at least it is not to be confused with a notion of the ruler's divinity.

(14) XV, 8, 9; XXVI, 4, 3; XXVII, 6, 5 and 10.

(15) XXV, 5, 4-6; XXVI, 2, 2.

(16) Cp. XXX, 10, 5-6.

(17) Cp. XXVI, 5, 15, 6, 19; 9, 10; XXVIII, 3, 3.

(18) SYME, *Oxford*, 1968, p. 74. The panegyrics are, of course, implicitly hostile (e.g. THEODOSIUS, *Or.*, VII, 88B-C; SYMMACHUS, *Or.*, 1, 20).

echoing a portentous Sallustian phrase (¹⁹). In the all-important matter of deportment, on an occasion which should have been awesomely symbolic (²⁰), Procopius falls miserably short. Ammianus' whole description calls to mind the Hellenistic idea, borrowed from Persia, that the man who is not chosen king by a higher power and is therefore incapable of ruling, will be assailed by vertigo if he aims at the throne (²¹).

In Ammianus no usurper is properly dressed in what was perhaps the most important of all the Imperial symbols, the purple robe (²²). All usurpers had to display this colour as a mark of their aspirations, and so the possession, not only of a purple cloak, but also of purple shoes or even an over-generous purple border on a table cloth, could be regarded as sure proof of treasonable intent (²³). Later the manufacture of the dye and the wearing of the cloth were strictly regulated as an Imperial monopoly (²⁴).

Ammianus' legitimate Emperors are properly dressed when presented to the troops (²⁵). But Silvanus has to improvise with the purple fabric from the soldiers' standards (²⁶), and Procopius, who is said to have been given a purple robe by Julian (²⁷), appears at Constantinople with nothing more than a piece of rag (XXVI, 6, 15).

The grotesque description of Procopius' acclamation, his inability to display the symbolism and decorous ceremonial proper to such an occasion, are dramatic manifestations of Ammianus' condemnation of his

attempt. The hostility of the historian continues throughout the narrative. Procopius' supporters are worthless, his soldiers "mercenary ... always on the watch for gain" (6, 14). Supported only by the auxiliary *Dulcentius* and *Tungricani iuniores*, he relies on a mob of deserters quickly gathered together (7, 14). His initial partisans are "sellers of cheap dainties, present or former palace servants, and ex-soldiers who had retired to a life of leisure" (7, 1); the leading senators have fled the city (6, 18). Under the regime some rise from the dregs to positions of power, and nobly born men are ruined or even killed (7, 7). The general whom Procopius sends out against the peerless Arintheus is Hyperichius, "before this a camp quartermaster, that is to say a servant of the belly" (8, 5) (²⁸). Despite Procopius' protestations of the legitimacy of his claim by virtue of his relationship with the house of Constantine (²⁹), Ammianus is adamant — he is *usurpator indebitae potestatis* (7, 12) and *perduellio* (8, 1), who was justly betrayed to Valens as *rebellem et oppugnatorem internae quietis* and whose betrayers deserved rich rewards rather than the death which they found (9, 10) (³⁰).

Ammianus, as often, reveals his prejudices. As even he admits, Procopius had a fairly strong popular following, especially at Constantinople (³¹), though to the historian these supporters are the dregs of the people. This is mere snobbishness; although in the emphasis laid upon the weakness of the Procopian party, its lack of popular support, there is perhaps a reflection of the conventional treatment of a failed usurper by the spokesmen of the winning side. However, this approach causes some awkwardness. Valens' father-in-law, Petronius, is accused as the cause of disaffection and revolt, for, by his hostility to rich and poor alike, he drove all men to long for a change in their present state (6, 9). But when this change came, ushered in by Procopius, the historian says, *nec resistebat populus nec fauebat* (6, 17). Then he recalls what he has said of Petronius and the current discontent and weakly adds, "Yet the people were inflamed by a sudden delight in revolution, which is innate in many of the commons, and they were even more aroused by their universal hatred of Petronius, who, as I have said, was using violent

(19) SALLUST, *Hist.* (ed. Maurenbrecher), I, 55, 22. Cp. XXVI, 6, 19 and the expression *nouell imperatoris* used contemptuously of Silvanus (XV, 5, 25. See DE JONGE, commentary *ad loc.*). In general on the use of the grotesque by Ammianus, see ROSTEN p. 208-14. With Ammianus' description of Procopius' appearance *ut in theatri scaena simulacrum quoddam etc.* (XXVI, 6, 15) compare ZOSIMUS' comment on the usurper: *τοῦτο ἀνὰ ἀκριβοῦς βασιλεὺς ἀγέλασθαι* (IV, 5, 5), which perhaps hints that Eunapius' treatment was equally hostile. A similarly mocking account by THEMISTIUS, *Or.*, VII, 91C, of Procopius' acclamation suggests that Ammianus might have been developing a theme of the Imperial propaganda.

(20) Cp. WARREN BONFANTE, *PP.*, 1964, p. 410.

(21) GOODENOUGH, *JCS.*, 1928, p. 77, referring to Euphrates in STORAEUS, 273, 6-10 (see DELATTE, p. 28-9, 195-7).

(22) AVERY, *MAAR.*, 1940, p. 75-80.

(23) XIV, 7, 20; XVI, 8, 4 and 8; XXII, 9, 10-11; XXIX, 2, 9-10. Conversely to put off the robe = to abdicate (e.g. XIV, 11, 20; ZOSIMUS, III, 9, 4; IV, 4, 3; JULIAN, *Or.*, I, 32A; II, 77C).

(24) C. *Iust.*, IV, 40, 1 (384-392 A.D.); C. *Th.*, X, 21, 3 (424 A.D.).

(25) XV, 8, 11; XXV, 5, 5; XXVI, 2, 3, 4, 3; XXVII, 6, 11. The problem did not arise in the case of Julian who received a purple robe upon his promotion to Caesar (XV, 8, 11). But he had problems with other parts of his regalia (XX, 4, 17-18).

(26) XV, 5, 16. JULIAN, *Or.*, II, 98D-99A says that Silvanus used purple cloth taken from the women's apartments.

(27) XXIII, 3, 2 (cp. XXVI, 6, 2). See also n. 2.

(28) Hyperichius was a pupil and friend of Libanius (PARK, *Michigan*, 1935, p. 26-7; *TAPA*, 1951, p. 188-9).

(29) References in n. 11. Ammianus prefers merit to dynastic claims (cp. XXVI, 4, 1), like Julian who, according to LUCIUS, *Or.*, 18, 181, held this opinion.

(30) PULCHERIANUS, 9, 5 mentions only one of the two betrayers named by Ammianus and says that he (Florinus) was put to death for cruelty towards partisans of Valens.

(31) XXVI, 8, 2 and 14, 9, 3, 10, 6; SOCRATES, 4, 8 and 18; SOZOMENUS, 6, 39. *THEOPHYLACTUS*, *Or.*, VIII, 92B.

means to increase his own wealth" (*ibid.*). Even so a claque was needed to whip up enthusiasm (6, 18).

In fact, Procopius had not only the support of the people of the capital of the East but also the backing of men of note, both military and civilian⁽³²⁾; and he raised a strong army, as his successes described by Ammianus and the direct statements of other sources testify⁽³³⁾. The revolt was highly dangerous and came close to success; but in Ammianus it is a laughable shambles, worsened by the ineptitude of Valens⁽³⁴⁾ and ended only by the treachery of Agilo and Gomoar⁽³⁵⁾ and, significantly, by the *hubris* and consequent failure of Procopius himself. Despite the desperation of the attempt, all went with uninterrupted success until after the capture of Cyzicus (8, 6-11). "As a result of this victory Procopius became proud beyond what is right for mortals. Not knowing that every happy man can, at the turn of Fortune's wheel, sink before evening into the depths of misery, he ordered that the house of Arbitio, which was full of priceless furniture, be looted. This he had previously left untouched as if it were his own, since he thought that Arbitio was on his side" (8, 13). Arbitio had so far held aloof, but this act won him for Valens (9, 4). The usurper feared serious consequences, but the eastern provinces were now ripe for revolt and open to him (8, 14). At this juncture, however, the man who had previously acted speedily and craftily⁽³⁶⁾ "moved slowly and lost his sharpness, like a blunt sword point" (*ibid.*). Thereafter Procopius' fortunes rapidly declined. Arbitio, summoned by Valens, persuaded Gomoar and his men to desert (9, 4-6)⁽³⁷⁾. Agilo soon followed suit (9, 7), and Procopius, unexpectedly overthrown (*praeter spem*, 9, 8), was betrayed and put to death.

There is much rhetoric in Ammianus' account of Procopius' revolt, just as there is in the rest of the *History*. It is as natural to him as to other Roman historians or, for instance, to the writers of the Imperial constitutions⁽³⁸⁾. Nevertheless, it would be perverse to see in Am-

(32) See n. 10. Also Euphrasius, Gomoar, Agilo (XXVI, 1, 4) and Eugenius, a discharged cumach, whom Ammianus would have scorned (Zosimus, IV, 5, 3).

(33) Zosimus, IV, 6, 4; 7, 1; SOCRATES, 4, 2; SOZOMEN, 8, 8; EUNAPIUS, F.S., 479; THEMISTIUS, Or., VII, 97D.

(34) XXVI, 7, 2 and 13, supported by Zosimus, IV, 7, 3 and Eunapius, *fr.*, 33. Contrast the flattery of THEMISTIUS, Or., VII, 86A-B.

(35) Confirmed by Zosimus, IV, 8, 1-3; PHILISTORGIUS, 9, 5; SOCRATES, 4, 5; SOZOMEN, 6, 8; CEDRENIUS (PG, 121), col. 589.

(36) XXVI, 7, 4 ff (cp. THEMISTIUS, Or., VII, 91D-92A).

(37) The important role of Arbitio is confirmed by Zosimus, IV, 7, 3-4 and Eunapius, *fr.*, 33.

(38) Cp. MacMullen, *Trafford*, 1962, p. 364-78.

mianus' rhetoric nothing more than a striving after effect, since often (and occasionally in lieu of evidence) it underlines the writer's convictions and recommends their validity to the reader. A complete philosophy of history cannot be seen in Ammianus' work. He is a pragmatic historian in the classical tradition and rarely an apologist. But naturally there are specific attitudes which are reflected by the language used and which also markedly affect the organization and presentation of the material in the *History*. The introduction of *hubris* into the explanation of Procopius' failure is a case in point. Ammianus, as always, thinks in terms of individuals and lifts the action from the political to the moral level, making judgement of character necessary. Thus, as in the case of Gallus and others, the failure of Procopius is explained in terms of a character defect, *hubris*. He is punished for a personal fault⁽³⁹⁾.

Although Ammianus is by no means friendly to the Pannonian dynasty, he is also hostile to Procopius' revolt. Dislike of usurpation and the damage which it caused has been proposed as a reason for this hostility. Also, whatever his faults, Valentinian I had been approved by Julian's army and officers and especially by Salutius⁽⁴⁰⁾, the confidant of the Apostate and the man who had himself been offered the purple and had rejected it (XXV, 5, 3). Therefore Valentinian was the legitimate Emperor and, as was his right, had duly selected his brother Valens as his partner.

But Ammianus' disapproval of the revolt is not formulated in these terms. The transference of judgement to the moral level leads to remarks upon the worthlessness of the rebel's supporters and the ineptitude of his attempt. This might mislead one to the conclusion that here we have Procopius, with a few upper and middle-class civilians and some high ranking soldiers, leading a genuine lower-class revolt against the government⁽⁴¹⁾. There is, however, no plausibility in this view and no evidence for it beyond the sneers of Ammianus, which are a conventional way (common in government propaganda) of dismissing such failed usurpations. Besides the fiscal abuses which Ammianus alleges, the revolt seems to have drawn its strength from the disaffection of some of the pagan opposition and the still powerful affection for the dynasty of Constantine, even in the person of such a distant relative as Procopius.

(39) This element of Ammianus' thought is further discussed on p. 172-74.

(40) Cp. Eunapius, *fr.*, 30.

(41) So G. I. KURBATOV, *The Revolt of Procopius*, in *Vizantitskiy Vremennik*, N.S. 14, 1938, p. 1, 26 (in Russian).

CHAPTER IV

The Armenian King Pap

By the terms of the treaty made in 365 A. D. between the Emperor Jovian and the Persian king Sapor, the Romans renounced any right to aid the king of Armenia, Arsaces, against attack (XXX, 7, 9-12). Persian inroads into Armenia began soon afterwards, and in 368 Arsaces, deserted by many of his followers, was lured to a conference with the Persian king and taken prisoner⁽¹⁾. Then the Persians overran not only Armenia but also Hiberia, where they ejected the pro-Roman ruler and established their own puppet, Aspacures (XXVII, 12, 4). The subjugation of Armenia and the establishment of the Magian religion were entrusted to the generals Zig and Garen and the civil government to the Armenian renegades, Vahan and Merushan (winter 368-9)⁽²⁾.

The pro-Roman party, led by the *catholicos* of Armenia, Narses, and Mouschegh, a general from the important family Mamigonian, asked the Roman Emperor Valens to assist the return of Arsaces' son Pap⁽³⁾, who had fled to the Roman Empire⁽⁴⁾. Valens, currently distracted by a war with the Goths⁽⁵⁾ and perhaps reluctant to interfere in Armenia, where the Romans had disclaimed any rights by the treaty of 365 A. D.⁽⁶⁾,

returned Pap for the time being without the title of king and accompanied only by Terentius, the duke of Armenia⁽⁷⁾, but no army (369 A. D.)⁽⁸⁾. Sapor reinforced his army in Armenia, and Pap and his supporters, powerless to resist the Persians, were compelled to retreat to the mountains between the Roman Empire and Lazica⁽⁹⁾, while the Persians took, amongst other places, the fortress of Artagherk (which they had long held under siege) and Arsaces' queen, Pharrantsem, who was inside the castle (winter 369-70)⁽¹⁰⁾.

In 370 A. D. Valens, now at peace with the Goths⁽¹¹⁾, decided to act and, declaring Pap king, sent the master of the infantry Arintheus with a strong army to Armenia⁽¹²⁾. Arintheus entered Armenia, destroyed the Persian armies in the country and razed the fire temples⁽¹³⁾. Sapor protested that by the terms of the treaty of 365 A. D. the Romans had no business in Armenia, but was ignored. Terentius invaded Hiberia and partitioned the land between Aspacures and the nominee of Rome, Sauromaces (XXVII, 12, 15-17).

Sapor prepared for war, but Mouschegh anticipated him by attacking his camp and capturing some of the royal harem, who were returned unharmed (370 or 371 A. D.)⁽¹⁴⁾.

In 371 A. D. a combined Roman and Armenian force led by Trajanus and Vadomar defeated a Persian army at Vagabanta beyond the borders of Mesopotamia⁽¹⁵⁾. The summer was then at an end and a truce was concluded (XXIX, 1, 4).

(1) AMMIANUS, XXVII, 12, 1-3; PROCOPIUS, *BP.*, I, 5, 10-29; FAUSTUS OF BYZANTIUM, 4, 50-54 (trans. J. B. EMEINE in *FHG*, V, pt. 2, ed. V. LANGE, Paris, n. d. = *Historiens anciens et modernes de l'Arménie* II); MOSES OF KAGRENE, 3, 35 (in *Historiens anciens et modernes de l'Arménie*, II, Paris, 1869); ANON., *Genealogy of S. Gregory the Illuminator and Life of S. Narses*, (trans. J. B. EMEINE in *Hist. anc. et mod. de l'Arménie*, II). (Henceforth these works of FAUSTUS or BYZANTIUM, MOSES OF KAGRENE and the *Life of S. Narses* will be referred to as FAUSTUS, MOSES and *PN* respectively.) For the date of the capture of Arsaces see SEITZ, *Hermes*, 1906, p. 520-21, whose chronology for the years 368-70 A. D. is followed. (For differences in chronology see BAYNES, *EHR*, 1919, p. 616).

(2) FAUSTUS, 4, 57-8; MOSES, 3, 36.

(3) Ammianus' account of Pap is encompassed by XXVII, 12, 9-15 and XXX, 1, *PN*, 11 and MOSES, 3, 36 say that Narses requested the return of Pap; FAUSTUS, 5, 1 says Mouschegh; AMMIANUS, XXVII, 12, 5 names Cylaces and Arribannes. *PN* and MOSES call the Emperor Theodosius. FAUSTUS does not name him.

(4) FAUSTUS, 4, 55; AMMIANUS, XXVII, 12, 9.

(5) STEIN, I, p. 186-7.

(6) AMMIANUS, XXVII, 12, 1 says that Sapor broke the treaty of 365 A. D. by invading Armenia, but according to the terms which he gives at XXV, 7, 9-12 only the Romans promised to keep out.

(7) The Roman province of Armenia Minor which guarded the border.

(8) AMMIANUS, XXVII, 12, 10, MOSES, 3, 36 and *PN*, 11 make Pap king immediately. Faustus ignores this sending of Pap without an army.

(9) AMMIANUS, XXVII, 12, 11.

(10) FAUSTUS, 4, 55; AMMIANUS, XXVII, 12, 12.

(11) Peace was made at the end of 369 A.D. (AMMIANUS, XXVII, 5, 7-10).

(12) AMMIANUS, XXVII, 12, 13; MOSES, 3, 37. On the identification of Arintheus with the officer named in the Armenian sources see Appendix D. In general on Arintheus see *Armenia*, I, in *RE*, II, 1, col. 831-2. At this point in his narrative Faustus, against Ammianus and Moses, wrongly telescopes the sending of Terentius and Arintheus into one account: "The great king of the Greeks made Pap, the son of Arsak, king, as Mouschegh had come to ask. The king gave Pap considerable support and sent a general Terentius with a count Art and six million [sic] men" (5, 1).

(13) FAUSTUS, 5, 1.

(14) MOSES, 3, 37, confuses this battle with the battle of Vagabanta and has the Romans present. FAUSTUS, 5, 2, does not mention the Romans (cp. *PN*, 11). A considerable part of the Roman forces was probably still with Terentius in Hiberia.

(15) AMMIANUS, XXIX, 1, 1-4; FAUSTUS, 5, 4, *PN*, 11. BAYNES, *op. cit.*, p. 639, following Bidez, p. 27-8, would date this battle to 373 A.D. But this would entail unnecessarily moving the

In Armenia Mouscheghr and Pap suppressed widespread revolt and imposed a semblance of unity upon the country⁽¹⁶⁾. This did not last long. Relations between Pap and Mouscheghr were already strained⁽¹⁷⁾, and those between the king and the *catholicos* quickly deteriorated.

In Armenia Christianity had been imposed early and superficially, and the majority of the ordinary people remained loyal to the old gods⁽¹⁸⁾. Heads of the Armenian Church (*catholicos*) were traditionally selected from amongst the descendants of Gregory the Illuminator, the first *catholicos*, and were appointed by the metropolitan bishop of Caesarea in Cappadocia⁽¹⁹⁾. After the establishment of Christianity in the Roman Empire, the Church of Armenia naturally tended to take a pro-Roman position in the contest between Rome and Persia for control of that strategically important country, and the history of the succeeding *catholicos* is one of struggle against the king to consolidate and increase their power and sometimes to oppose a pro-Persian policy, which might entail a resurgence of officially countenanced Mazdaism⁽²⁰⁾. On one occasion a *catholicos* had been murdered on the orders of the king⁽²¹⁾, and at times the monarch had succeeded in imposing a nominee from outside the family of Gregory⁽²²⁾.

Narses, educated at Caesarea and an adherent of the Eastern Roman Church, was created *catholicos* at Caesarea in 339 or 340 A.D.⁽²³⁾.

Antioch treason trials from winter 371-2 to winter 373-4 since Ammianus places them after the battle. His main evidence for the date is THEODOSIUS, *Or.*, XI, 148D (373 A.D.): ἐπεὶ δὲ τὸ Σουλὸς πρὸς βασιλέως τῆς ἀσίας, (ἀποῖν δὲ διαμαρτυροῖται). In a note Harduin takes this as evidence that Valens was preparing for a Persian expedition in that year; and from the language it might certainly seem that the truce which followed the battle of Vagabanta had not yet been made. However, since both verbs are in the present tense and the former refers to the peace made with the Goths in 369 A.D., there is no reason why the second verb should not refer to the past also. Theodotius is merely in vivid language illustrating the power of Valens who simultaneously, as it were, could make peace with one nation and war with another. Thus the passage is no indication of chronology. (For the correct dating see CLAYTON, *Fatti Romani*, I, p. 476).

(16) FAUSTUS, 5, 8-19 (cp. MOSES, 3, 38).

(17) FAUSTUS, 5, 2 and 4; FW, 11.

(18) FAUSTUS, 3, 13; PALANQUE, *Paris*, 1947, p. 490-91.

(19) PALANQUE, *loc. cit.*; DUCHESNE, III, p. 371.

(20) PALANQUE, *loc. cit.*; DUCHESNE, *loc. cit.* The basic motivation of the Armenian Church was naturally anti-Persian, which often dictated a pro-Roman position. But when conditions were right, nationalist sentiments could replace pro-Roman feelings. Basil encountered resistance to his authority when he visited Armenia in 372 or 373 A.D. (Ep., 99). See also n. 37.

(21) DUCHESNE, *loc. cit.*

(22) PALANQUE, *op. cit.*, p. 491-2.

(23) This date is argued for by BAYNES, *art. cit.*, p. 625 ff., and apparently supported by a statement of MOSES (3, 38) that Narses held the seat for 34 years. Others (e.g. PALANQUE, *loc. cit.*) place his consecration as late as 364 A.D.

He was the first *catholicos* from the family of Gregory for some time and he was also related by marriage to the Mamigonians⁽²⁴⁾, whose head during Pap's reign was Mouscheghr, one of the leaders of the pro-Roman party⁽²⁵⁾. Narses' policy for the Church was vigorously expansionist and evangelizing⁽²⁶⁾, and he had already clashed with Pap's father Arsaces, who had tried to replace him⁽²⁷⁾.

Narses, who had played a leading role in effecting the return of Pap, initially asserted control over the young king, which the latter soon strove to break⁽²⁸⁾. Pap, who, according to Faustus of Byzantium, had been consecrated by his parents to the *dev* (the old pagan demons of the Armenian religion)⁽²⁹⁾, was himself no more than a very weak Christian and perhaps a pagan sympathizer⁽³⁰⁾. He was also, like other Armenian kings, concerned to inhibit the growing strength of the Armenian Church. There were other sources of friction, one at least, possibly two. Pap might at this period have been making overtures to Persia, which would naturally have been opposed by the pro-Roman Narses; and the king lived a somewhat dissolute life (according to Faustus the result of his possession by the *dev*)⁽³¹⁾, of which Narses strongly disapproved. Sermons and even exorcism were ineffective against the latter⁽³²⁾, and finally the *catholicos* banned the king from church⁽³³⁾. Pap, plotting to kill Narses, hesitated in fear of Valens, but finally poisoned him at a banquet⁽³⁴⁾.

(24) His wife was a Mamigonian (FW, 2; cp. 14). Faustus and FW both stress the role of the Mamigonians in Armenian history.

(25) Although Mouscheghr, a strong Christian, seems to have been consistently pro-Roman, others of the family were not. Vahan, later killed by his own son, defected to the Persians (FAUSTUS, 4, 58). Manuel, who avenged the death of his brother Mouscheghr by expelling his killer, king Vahan, (FAUSTUS, 5, 37; FW, 15), fought against the Romans (FAUSTUS, 5, 38).

(26) PALANQUE, *loc. cit.*; DUCHESNE, III, p. 372-3.

(27) FW, 9. For relations between Narses and Arsaces see H. GELZER, *Die Anfänge der armenischen Kirche* (Berichte über die Verhandlungen der königlich sächsischen Gesellschaft der Wiss. zu Leipzig, p.-h. Klasse 47, 1895), p. 154 ff.

(28) GELZER, *op. cit.*, p. 155.

(29) FAUSTUS, 4, 44; 5, 22. In the Zoroastrian pantheon the *dev* (*dævas*) were the evil demons, the adversaries of Ahura-Mazda. Their worshippers evoked in violence. The *dev* were still worshipped in Sassanid times (R. C. ZAHEDI, *The Dawn and Twilight of Zoroastrianism*, London, 1961, pp. 36-7, 101-2, 121-3 and *passim*).

(30) The charges of magic noted in AMMIANUS, XXX, 1, 17 probably reflect Pap's anti-Christian stance.

(31) FAUSTUS, *loc. cit.* (cp. FW, 12). Here the *dev* possess people in the same way as the *dæmon* of Greek and Roman hagiographical literature (cp. E. L. VITTORE, p. 195 in *Hist. ant. et mod. de l'Arménie*, II).

(32) FW, 12.

(33) FW, 12; FAUSTUS, 5, 21; MOSES, 3, 38.

(34) FW, 12; FAUSTUS, 5, 23-4; MOSES, 3, 38.

After the death of Narses, Pap's policy became clear. He attacked the powerful organization which the *catholicos* had built up, destroying monasteries, confiscating Church lands ⁽¹⁵⁾ and allowing the worship of the old gods to revive ⁽¹⁶⁾. He demanded of Basil, the bishop of Caesarea, that his own nominee from the rival priestly family of Albanius should be consecrated *catholicos*, and when Basil refused, had him consecrated elsewhere, thus rejecting the primacy of Caesarea ⁽¹⁷⁾. Further, despite protests by Moushegh and others, he demonstrated his independence of Rome by planning an agreement with Persia ⁽¹⁸⁾ and by aggressively demanding certain territories held by the Roman Emperor ⁽¹⁹⁾.

Terentius, who was still representing Roman interests in Armenia, reported the king's behaviour to Valens and suggested that he be removed before he went over to the Persian side (XXX, 1, 3-4). Perhaps in this he was backed by Mouschegh, who cannot have been pleased by the murder of Narses and whom, it is alleged, some wanted as king^(*). Certainly the Armenian general was accused of plotting against Pap and put to death by the king's successor^(*).

At any rate, Pap was summoned to the Roman Empire and held a virtual prisoner at Tarsus in Cilicia (XXX, 1, 4), while Terentius, an Orthodox Christian, who now acted almost as regent⁽⁸²⁾, tried to repair some of the damage done to the Church⁽⁸³⁾. Pap, learning of the reports of Terentius and realizing his position, fled back to Armenia where he made no move hostile to Rome (XXX, 1, 5-15). Terentius had, of course, to be withdrawn, and the count Trajanus took over his functions⁽⁸⁴⁾. Valens was still determined to remove the king since he was

(35) *PN*, 15; *FALSTUK*, 5, 3f.

(36) FAUSTUS, 5, 31 says that the people returned to the worship of the *dei*, by which he probably means all the old pagan gods in general.

(37) FAUSTUS, 5, 29; MOSES, 3, 39. On this assertion of Armenian independence see GELZER, *op. cit.*, p. 156 ff. The name of the new *katholikos* varies in the sources (Duchesne, III, p. 374-5).

(38) FAUSTIN. 5. 31 (cf. MOGGS. I. 39) AMMIANUS. XXX. 2. 1).

(39) FAUSTUS. 5. 11

(40) PW, 15. There was considerable disaffection after the death of Nurus (FAUSTUS, 5, 38; Moses, 3, 39). Cp. Basil, Ep., 120: *ὡς ἐπὶ σπασίῳ ἐκλήθησαν τὴν Ἀρσένιον*, of another occasion of ecclesiastical dispute during the same series of events, an attempt by Pap to have a nominee consecrated bishop.

(41) VN. 15: FAUSTUS, 5. 34.

(42) On Terentius' Orthodoxy and his position during Pap's absence see Smek, *Untersung*, V, p. 63 and n. 10, p. 63, line 25, and *Terentius*, 7, in *RE*, V, a, 1, col. 593-4.

(43) Cp. Basil, *Ep.*, 99, to Terentius, on the former's attempts to appoint bishops in the Armenian Church and the resistance which he met.

(44) See, e.g., *Chün-pang*, V, p. 63 suggests that a religious motive dictated the withdrawal of Teren-

angry both at his intrigues with Sapor and at his anti-Christian activity. Therefore Trajanus, after winning Pap's confidence, had him murdered at a banquet (374 A. D.)⁽⁶⁵⁾.

The foregoing account, based upon both Roman and Armenian sources, seems the most plausible available. In it the course of events is greatly influenced by two factors: the attempts of Pap to assert his independence of Rome; and his attempts to weaken and control the Armenian Church, which was rapidly gaining worldly as well as spiritual power under the leadership of Narses. However, the account of Ammianus alone casts a somewhat different light on events.

According to the Roman historian, Pap, after the capture of his father Arsaces and at the bidding of his mother who was blockaded in Artagherk (Artogerassa in Ammianus), fled to Roman territory (XXVII, 12, 1 ff). Later the Persian imposed governors of the land, the renegades Cylaces and Arrabannes, changed sides again and asked Valens for help and the return of Pap as king (5-9). Pap was returned by the aid of the

man who, by asking the Orthodox Basil to appoint Armenian bishops, had angered the Arian Valens. But if this were so, one might have expected an Arian replacement. Trajanus, however, was Orthodox (Trajanus, 2, in *RE*, VI, 2, col. 2049). Pap's knowledge of Terentius' reports is a sufficient explanation for the withdrawal. Von Nöcker, *Hermes*, 1928, p. 452 suggests that Trajanus came to Armenia not as Terentius' successor, but as his superior with the rank of master of the infantry (presumably as the successor of Arintheus). This is partly correct. Terentius was only a duke, Trajanus already a count in 371 (AMMIANUS, XXIX, 1, 23). Later Trajanus certainly held the rank of master of the infantry (XXXI, II, 1), perhaps in succession to Arintheus who died suddenly just before or during 378 (BASA, *Ep.*, 269; *Arintheus*, 1, in *RE*, II, 1, col. 831). Ammianus only mentions Arintheus in Armenia during 370; and he had certainly left by 372, when he held the consularship. Trajanus, with the rank of count (which, as a social title, could be used of a master of the infantry, cp. XXVII, 12, 13), was fighting the Persians in Mesopotamia in late 371. On the other hand, Arintheus was still in favour in 372 (TRENKLEIN, 4, 30) and could have held his rank until that time. I would reconstruct the events as follows: Arintheus remained in Armenia during the emergency. After the defeat of the Persians at Vagabunta and the truce of late 371, the Romans could withdraw a large number of the *comitatenses* from Armenia. These forces returned with Arintheus when he returned for his consularship of 372. Terentius remained with the men whom he commanded as duke of Armenia, while Trajanus, who was already in Mesopotamia, was transferred to Armenia with his present rank of *comes rei militaris* to command the units of the *comitatus* left behind. Therefore as count he was nominally Terentius' superior, although the latter, as Rome's representative in the area, handled the diplomacy (and therefore he, not Trajanus, reported on Pap). When Pap returned, Terentius was withdrawn (perhaps to Armenia Minor still as duke of Armenia) and was not replaced. Trajanus took over his functions.

(45) AMMIANUS, XXX, 1, 18-21; FAUSTUS, 5, 32; *EW*, 15. These agree in essentials, though Faustus writes Terentius for Trajanus. *MORIS*, 1, 39 has a wholly different version. Pip attacked the Roman army, was defeated and captured and sent by Terentius to the Roman Emperor who had him put to death. *BEVANS*, *art. cit.*, p. 661 (*op. cit.*, I, p. 231 which reads 375 ?) would date Pip's death to 375 A. D. But this date is forced upon him because he places the battle of Vagabantis two years too late in 373 (see n. 15). The chronology of the events after 370 A.D. is uncertain (*Opusc. Héroïques*, 1906, p. 525 and *Antiquaire*, V, p. 58 ff.).

duke Terentius, but without the title of king and a military force *pro tempore*, since the Romans did not yet wish to break the peace (10). Sapor invaded Armenia, ravaged the land, took Artagherk and caused Pap and his supporters to flee to the mountains between the Roman territory and Lazica (11-12). Sapor withdrew for the winter, and Valens sent the count Arintheus with an army to resist a second invasion (13). Sapor by diplomacy persuaded Pap, in the hope of an alliance, to deliver to the Persian court the heads of Cylaces and Arrabannes, *ut ei morigerus* (14). However, despite the panic which this action caused, Arintheus prevented a second invasion. Sapor protested Roman interference, and when Valens replied by sending Terentius to re-establish Imperial authority in Hiberia, Persia prepared for war (15-18). During the subsequent year a battle was fought at Vagabanta, where a Persian army was driven back with heavy losses by Trajanus and Vadomar. A truce was then made (XXIX, 1, 1-4).

Pap next appears as the object of a plot by Terentius and a few Armenian nationals, who were in fear because of their crimes (XXX, 1, 2). Terentius, "who always walked about with a somewhat modest and gloomy air, but was as long as he lived an eager sower of discord" (*ibid.*), kept writing to Valens, reminding him of the deaths of Cylaces and Arrabannes and describing the arrogance and cruelty of the king (3). Pap was summoned by the Emperor and held a virtual prisoner at Tarsus. There he discovered Terentius' plot to have him replaced, "lest out of hatred of Pap and fear of his return the nation, which was useful to us, should go over to the Persian side" (4). Pap decided to escape and, after an exciting chase, regained Armenia, where he acted as if nothing had happened (5-15). His baffled pursuers, claiming that the king had used magic to effect his escape (16-17), roused Valens to anger, and plots were formed against Pap's life (18). The task was entrusted to Trajanus, *agenti tunc in Armenia ... et rem militarem curanti*, who accomplished it by winning the king's confidence and then inviting him to a feast, where he was murdered (18-21). Ammianus comments, "By this trick the trusting king was shamefully deceived. At a feast, respected even along the Black Sea, under the gaze of the god of hospitality, the blood of the foreign guest was spilled on the expensive linens and, as it spewed forth, overcame the bloated guests, who fled in the greatest horror" (22). More moralizing and historical comparisons follow (22-3).

Ammianus' material is on the whole unexceptionable, and his narrative is usually better than those of the Armenian writers. His version forms a considerable element in the best modern accounts and is often

followed rather more closely than was done above. But there are some important omissions and divergences in it which seriously affect the interpretation of events.

Firstly, the political reasons for Roman action against Pap are relegated to specious excuses in the reports of Terentius. The basic charge against the king is one of cruelty, and, as an example of it, the murders of the obscure Cylaces and Arrabannes are cited instead of the clearly more important death of Narses. The fears of the Romans that Pap would swing Armenia to the side of Persia are overlaid with moralizing, and the swing itself is interpreted not as Pap's policy but as the potential result of a popular revolt against his cruelty. Terentius advises Valens to depose the king in order to prevent the Armenian people from defecting to the Persians out of fear of his return (XXX, 1, 4). Yet it is unlikely that the nation (or rather the pro-Roman party of the aristocracy, which presumably substantially represented the Christian element) would have gone over to the Persians out of hatred for a king who had already signalled his willingness for an accommodation with the same. Even Ammianus admits negotiations between Pap and Sapor, the eagerness of the latter for an alliance with the Armenian king (XXX, 2, 1), and Pap's readiness to submit to him (XXVII, 12, 14). But Pap's act of submission, which is carefully separated from the account of his death¹⁴⁶, is treated in an obscure manner. Ammianus says, "When the news of this disaster [i. e. the murders of Cylaces and Arrabannes] was widely known, all of Armenia would have been lost without a fight had not the Persians, terrified by the arrival of Arintheus, put off a second invasion" (XXVII, 12, 15). If Pap had indicated his submission at this time, Sapor, in invading Armenia, must either have been betraying the king who had shown his desire for friendship, or attacking not Armenia as such but the Roman forces who were there, but now unwelcome. In the latter case Arintheus would not have been helping Pap, but defending Roman interests in Armenia and preventing a link with Persia. On the other hand, in at least one major battle which followed Pap fought against the Persians. This leads to one of three conclusions: 1, that an early attempt by Pap to ally with Persia was thwarted and quickly forgiven; 2, that Ammianus has misplaced the murders of Cylaces and Arrabannes, which should follow the battle of Vagabanta along with the

¹⁴⁶ Cp. XIV, 7-9, where the discovery of the plot against Gallus and the trial of the conspirators are split by an excursus.

other intrigues and the killing of Narses; 3, (which I prefer) that Ammianus has arbitrarily linked later intrigues of Pap to ally with Persia and the earlier murders of Cylaces and Arrabannes, which were actually motivated by some reason other than desire to show submission to Persia. Thus Terentius uses the murders of these men to illustrate not Pap's disloyalty to Rome but his cruelty, which, he alleges, will drive the Armenians into the arms of the Persians out of fear of their king.

The most important omission in Ammianus' account is dictated to him by the secular and classicizing nature of his *History*, which will not usually admit more than passing references to Christianity and (in common with other similar historical works of the fourth and fifth centuries at least) invariably excludes it from any important role in events⁽⁴⁷⁾. Thus Ammianus is precluded from introducing one of the major causes of the conflict, the rivalry between Narses, the head of the Armenian Church, and Pap, whose anti-Christian, and perhaps even pro-pagan, position is indicated only obliquely in the accusation, which Ammianus records (XXX, 1, 17), that he used magic to effect his escape. Since the historian chooses to ignore this conflict, he must look elsewhere for his explanations. As he writes from a Roman point of view, he may have utilized an official Roman account of the death of Pap (if such existed). If the practice of the panegyrist is any guide, this would have played down the political aspects of the situation (i. e. a power struggle between the king and the *catholikos*) and emphasized the moral failings (in this case cruelty) of the dead king. Naturally, in such a version the unjust fate of Cylaces and Arrabannes, who had aided the recall of Pap, would have been tragically stressed.

In this way Ammianus, perhaps following an official version and certainly his own regular practice, has played down the political and emphasized the moral aspects of the situation. However, the considerations given for the removal of Pap are used against the Roman side, since their origin is clearly identified in the plotting of Terentius, one of those "cunning men who often profit from public disasters" (XXX, 1, 2), in conspiracy with some Armenian criminals. The charges are laid by a crook and are therefore, it is implied, merely pretexts. Ammianus clearly does not believe, or wish his audience to believe, Terentius' allegation that the Armenians were ready to go over to the Persian side out of hatred of Pap (XXX, 1, 4), for he says that when the king returned to his

(47) See p. 131-34.

country he was "received by the populace with the greatest joy" (XXX, 1, 15). In keeping with his denigration of Terentius, Ammianus gives him no military role in Armenia, attributing the defence of the land to Arintheus, whom he admires⁽⁴⁸⁾. This contrasts sharply with the Armenian histories in which Terentius far overshadows Arintheus.

It is a regular practice of Ammianus to allow the vices and virtues of subordinates to reflect upon their Emperor; and in this case the odium against Terentius reflects upon Valens. Though not actually stated, it is very strongly implied that Valens ordered the murder of Pap (XXX, 1, 17-18). Later the king is directly represented as the victim of the Emperor when his phantom, together with those of the men condemned at the Antioch trials, returns to haunt the populace, offering a portent of Valens' imminent death (XXXI, 1, 3). Pap was killed at a banquet; and direct moralizing upon the wickedness of such treachery emphasizes the shameful nature of the act. Treachery it was, though Ammianus' version would have been more balanced had he also told his audience that Pap did exactly the same to Narses. When it suits his purpose Ammianus himself can approve of such treachery and treat it on a purely political level. The massacre of a band of Saxons by Severus and Nannienus (XXVIII, 5, 1-17) and the arrest of the German Vadomar at a banquet on the orders of Julian (XXI, 4, 1-6) are not only condoned but strongly approved. Ammianus is friendly to those involved⁽⁴⁹⁾. But the murder of Gabinus, the king of the Quadi, by Marcellianus, also at a banquet (XXIX, 6, 5), is roundly condemned. Marcellianus was the son of the hated Maximinus.

The whole episode of the death of Pap is cast in tragic and dramatic form⁽⁵⁰⁾. The faults of the king are played down and he is represented as the innocent victim of Roman villainy. Almost half of the narrative is devoted to the dramatic account of his hair-raising escape from Tarsus, material which is not found in the Armenian sources, but which is obviously important to Ammianus because of its value for generating excitement and interest. Drama is also used to emphasize the horror of

(48) See XXVI, 8, 4-5 and cp. the official view in Terentius, *Op.* XI, 1498. There is no religious motive behind Ammianus' admiration for Arintheus, who was an Orthodox Christian and a friend of Basil (Arintheus, 1, in *RE*, II, 1 col. 831-2).

(49) Severus: XVI, 10, 21; XXVIII, 5, 1; and often Nannienus: XXVIII, 5, 1. Cp. also the favourable comment on the treacherous murder of the Goths at the command of the general Julian (XXI, 16, 8).

(50) Noted by Vogt, p. 814-5.

Pap's death. The assassin enters the banquet: "an uncouth barbarian was sent in, his eyes flashing threateningly, an unsheathed sword in his hand" (XXX, 1, 20) — an image of barbarism intruding upon the elegance of the feast, well calculated to move a fastidious Roman audience. The king is killed: "pierced through the chest the victim fell disfigured, horribly mangled by many wounds" (XXX, 1, 21) — an end even more pathetic than that of the Caesar Gallus.

CHAPTER V

Julian : The Ideal Emperor

"Distinguished by his brilliant exploits and his inborn majesty, he was indeed a man to be ranked amongst the heroic spirits. There are, according to the philosophers, four particular virtues, temperance, wisdom, justice and fortitude, and other external ones corresponding to these, knowledge of military science, authority, felicity and liberality. All of these he cultivated individually and with great eagerness." Thus Ammianus begins his *elogium* on Julian (XXV, 4, 1). He then discusses these virtues individually and briefly:

Temperance (*temperantia*, 2-6) — avoidance of sexual excess, and sex altogether after the death of his wife; moderation in eating, drinking and sleeping, and a willingness to work far into the night.

Wisdom (*prudencia*, 7) — skill in war and peace, courtesy and dislike of excess pomp; care in the administration of justice, strict censorship of morals and a contempt for riches and other material things.

Justice (*iustitia*, 8-9) — in judgement, consideration of circumstances and a preference for threats rather than punishment. Julian was awesome but not cruel.

Fortitude (*fortitudo*, 10) — personal bravery in battle and a willingness to bear hardship with the troops.

Knowledge of military science (*scientia rei militaris*, 11) — tactical and strategical ability proven during various campaigns.

Authority (*auctoritas*, 12-13) — Julian was both feared and loved by his men, who would do anything he asked. Even when Caesar, his authority was such that he could control his troops although they were mutinous because of lack of pay.

Felicity (*felicitas*, 14) — his success created by good fortune (i. e. not dependent upon his personal activity) is shown by the fact that even when he left the West, the barbarians still kept the peace.

Liberality (*liberalitas*, 15) — comparatively light taxation, the remission of the *aurum coronarium*, the cancellation of old debts, fair treatment by the treasury of *municipia* and individuals in the matters of taxation and land ownership. Julian was generous to his friends.

The narrative on Julian, in contrast with that on the other Emperors, fully illustrates the virtues which are categorized in the *elogium*. To detail a few instances: his temperance is said to have matched even that enjoined by the edicts of Lycurgus (XVI, 5, 1); he often ate the same food as the common soldiers, or worse (XXV, 2, 2); in waking from sleep he excelled Alexander the Great (XVI, 5, 4-5) (1). Julian's action in refusing to find guilty, for lack of satisfactory evidence, an ex-governor of Narbonese Gaul who had been accused of embezzlement is described as wise (*prudenter* — XVIII, 1, 4) (2), a characterization used of his decisions upon a number of occasions (3). Julian's mental powers both in peace and war are continually emphasized: *celeris corde futura praevidens Caesar* (XVI, 12, 55); *sollerti colligens mente* (XVII, 1, 12); *sagaci praevidens mente* (XXI, 5, 1) (4). Julian's courage was proven at Strasburg where, when the cataphracts were fleeing, he personally turned them back into battle (XVI, 12, 38-41) and at the siege of Maiozamalcha where he is alleged to have killed an assailant with his own hand (XXIV, 4, 4-5). When his troops refused to cross the Rhine to attack the Alemanni (XVII, 1, 2) and when, during the Persian expedition, they complained of poor rewards for their toil, his eloquence and authority won them over (5).

But the virtues most emphasized are Julian's justice and clemency, which in both the *elogium* and the narrative are related and almost inextricable. In the *elogium* Ammianus says:

There is much proof of the just qualities which marked him out. Firstly he inspired fear without the use of cruelty and he took into account circumstances and persons. He checked crime by punishing a few and threatened the sword rather than used it. Finally, to omit much else, he was so lenient towards some open enemies who were plotting against him that, with his natural mildness, he lightened the weight of their punishment (XXV, 4, 8-9).

In the narrative Julian is described as "a judge sterner than Cassius and Lycurgus" (XXII, 9, 9), whose sternness is, however, directed not

(1) Cp. XV, 8, 10; XVI, 5, 1; XXI, 9, 2; XXII, 4; XXIV, 4, 27; XXV, 3, 18.

(2) JOHN OF ANTIOCH, *fr.* 178, 3 and ZONARAS, 13, 12 tell the same anecdote.

(3) E.g. XVII, 9, 2; XX, 8, 22.

(4) Also XVI, 11, 5; XVII, 2, 3; 8, 1-2; 9, 1; XVIII, 2, 9.

(5) See the remarks of ROWELL, *Cincinnati*, 1964, p. 37 ff. on Ammianus' treatment of Julian's military virtues.

against the accused but against a malicious accuser who was trying to use the court for personal revenge. The clement aspect of the Emperor's character predominates. To his own subjects he is described as merciful even beyond the laws: *clemens ut Antoninus* (XVI, 1, 4); *placabilis imperator et clemens* (XXI, 12, 20) (6). A saying of the Emperor is quoted: "The laws might condemn my clemency. But an Emperor of most merciful disposition should rise above all other laws" (XVI, 5, 12). This clemency extends also to the enemies of Rome. After the battle of Strasburg he treated with great consideration Chonodomar, the leader of the defeated Alemanni who feared for his life; and later during the Persian expedition the commanders and the populace of the towns which surrendered were spared (7).

Ammianus recognizes that such a catalogue of virtues might seem incredible. Nevertheless, he insists that they were genuine. At the beginning of his account of Julian's career he says: *quicquid autem narrabitur, quod non falsitas arguta concinnat ... ad laudatiam poene materiam pertinebit* (XVI, 1, 3). Other sources (not all pro-Julian) verify many of the claims. Libanius describes how Julian stopped the flight of the cavalry at Strasburg and how he shared the toil of his troops (8). Zosimus reports his personal continence and his clemency to the defeated enemy (9). Eunapius records his justice and mercy and in this is supported even by Christian authors (10). Eutropius and John of Antioch note his fair treatment of the provincials (especially in the matter of taxation) and his generosity to his friends, even to excess (11). Even the ungracious Gregory Nazianzen admits that Julian's administration had some virtues (12).

Julian was not, of course, the incarnation of all virtues to all men, especially to the Christians whose hostility was motivated by his apostasy and treatment of their church and religion. But there is little evidence that the Emperor actually ordered the deaths of, or actively of-

(6) Cp. XX, 4, 13; XXI, 5, 12; XXII, 10, 5; 14, 5.

(7) Strasburg, XVI, 12, 65 (cp. XVII, 8, 4). The Persian expedition, XXIV, 1, 9; 2, 21; 4, 26.

(8) Strasburg, LIBANIUS, *Or.* 18, 58 (cp. ZOSIMUS, III, 5, 3). Shares the toil of the troops, LIBANIUS, *Or.* 18, 216 and 226 (cp. GREGORY NAZIANZEN, *Or.* 4, 71).

(9) Clemency, ZOSIMUS, III, 6, 3 (cp. EUNAPIUS, *fr.* 10). Continence, ZOSIMUS, III, 5, 3 (cp. LIBANIUS, *Or.* 18, 171, 174 and 179; ZONARAS, 13, 13).

(10) EUNAPIUS, *frags.* 12, 16; 18; GREGORY NAZIANZEN, *Or.* 4, 79; SOZOMEN, 5, 1 (cp. LIBANIUS, *Or.* 17, 18; 18, 30, 151-3 and 182-4).

(11) EUTROPIUS, 10, 16; JOHN OF ANTIOCH, *fr.* 180 (cp. LIBANIUS, *Or.* 18, 200-203; MAMELIANUS, 12, 2-3).

(12) GREGORY NAZIANZEN, *Or.* 4, 75.

ferred violence to, many Christians for their religion alone⁽¹³⁾; and even some Church historians are forced to admit that there was no violent persecution⁽¹⁴⁾. Most of the victims were either fanatics who courted martyrdom by attacking cult images and other sacred objects⁽¹⁵⁾, or persons who suffered at the hands of vindictive governors or vengeful mobs for past wrongs which they had done to the devotees or holy places of the old religions⁽¹⁶⁾. On the other hand, Julian did not react strongly against those who offered illegal violence to Christians⁽¹⁷⁾ and he did lay disabilities upon members of the Church⁽¹⁸⁾. That he intended worse after the crushing of Persia and the consequent strengthening of his own position is speculation, but by no means unlikely⁽¹⁹⁾.

The Christian sources also attack Julian on grounds other than his hostility to the Church. It is said that he was excessively superstitious⁽²⁰⁾; vain and greedy for popularity⁽²¹⁾; undignified and headstrong⁽²²⁾; a prey, in his generosity, to rapacious friends⁽²³⁾. Verdicts of later writers tend to be more balanced. Prudentius (*Apotheosis*, 450) admits that although he betrayed God he was loyal to Rome, and John of Antioch says that "he alone managed the Roman state well, and he would have restored it if the power of God had not turned against him" (*fr.*, 180).

(13) Some did suffer at Julian's hands (e.g. SOCRATES, 3, 19; SOZOMEN, 5, 20), but many of the alleged atrocities rest upon anonymous piles of bones and corpses found after Julian's death (e.g. THEODORET, 3, 21-2) and perhaps derive ultimately from the tradition that the Emperor performed human sacrifices (cp. THEODORET, 3, 27; GREGORY NAZIANZEN, *Or.*, 4, 92; MARJAS, ed. Dindorf, 13, p. 328; CROSSLAND, *PG*, 121, col. 527).

(14) SOCRATES, 3, 12; SOZOMEN, 5, 4 and 17.

(15) THEODORET, 3, 11 and 14; SOCRATES, 3, 14-15; SOZOMEN, 5, 8.

(16) PHILOSTORGIUS, 7, 1, 2 and 4; THEODORET, 3, 3; SOCRATES, 3, 2 and 14; SOZOMEN, 5, 9-11; GREGORY NAZIANZEN, *Or.*, 4, 86-90; SOZOMEN, 5, 11 concedes that Julian knew little of this activity. Nevertheless, he was blamed for it (PHILOSTORGIUS, 7, 1; GREGORY NAZIANZEN, *loc. cit.*; ZONARAS, 13, 12).

(17) AMMIANUS, XXII, 11, 11.

(18) E.g. the ban on Christians teaching the classical curriculum, THEODORET, 3, 4; SOCRATES, 3, 12; JOHN OF ANTIOCH, *fr.*, 179; ZONARAS, 13, 12. For other acts see THEODORET, *loc. cit.*; SOCRATES, 3, 13; SOZOMEN, 5, 3-4, 5 and 18.

(19) Cf. Bidez, p. 310 ff. who argues that Julian, initially only concerned to re-establish pagan worship, was at the end of his reign moving towards a war with the Church.

(20) GREGORY NAZIANZEN, *Or.*, 4, passim; SOCRATES, 3, 17 and 23.

(21) SOCRATES, 3, 21; JOHN OF ANTIOCH, *fr.*, 180; ZONARAS, 13, 13 (cp. EUTHYPIUS, 10, 16; ANON., *Epit. de Caes.*, 43, 71).

(22) Undignified, SOCRATES, 3, 1. Headstrong, SOCRATES, 3, 21-2 (cp. ANON., *Epit. de Caes.*, 43, 71).

(23) GREGORY NAZIANZEN, *Or.*, 4, 44 and 72; 5, 19 (cp. LIBANIUS, *Or.*, 18, 200-203).

If we set aside Julian's apostasy and his treatment of the Christians, we find in Ammianus' narrative more varied condemnation than in any one ecclesiastical writer. Julian is accused of acts of rashness (XXIV, 6, 4), for example, his indiscriminate ejection of all Constantius' palace servants, even those of good character⁽²⁴⁾, and the final dash into battle without body armour, which resulted in his death⁽²⁵⁾. He improperly slandered Constantine I and Constantius II to the Roman senate, and inconsistently attacked the former as an innovator who first appointed a barbarian to the consulship, only later to do the same himself when he gave the office to Nevitta⁽²⁶⁾. He is said to have lacked personal dignity (XXII, 14, 3), partly as a result of his refusal to conform to the norms of ceremonious behaviour expected of an Emperor in the fourth century A. D.⁽²⁷⁾. He is accused of cheap popularity-seeking which, according to Ammianus, was the cause of an unseasonable lowering of corn prices at Antioch (XXII, 14, 1) and which motivated him to make an undignified rush from the senate house at Constantinople in order to greet the philosopher Maximus⁽²⁸⁾. There is also censure both for Julian's excess superstition (XXII, 12, 6-8) which led him to improper behaviour (XXII, 14, 3) and even for his anti-Christian policy, especially the law which forbade Christian *rhetorici* and *grammatici* to teach⁽²⁹⁾.

The criticism that the Emperor unjustly forced back into the *curiae* those who were immune from service through privilege or lapse of time is the complaint of a man of curial family who, though serving in the army, had felt insecure⁽³⁰⁾. Libanius, who was also of curial background and also immune, but secure in his privilege, wholeheartedly approves of Julian's measures and makes a hit at such as Ammianus who "defected... some to the military"⁽³¹⁾.

The trials at Chalcedon of the civilian ministers of Constantius II (XXII, 3) seem to have been set up by Julian in order to conciliate the

(24) XXII, 4, 1-2 (cp. ZONARAS, 13, 12).

(25) XXV, 3, 3-6 (cp. XXI, 5, 13; XXIV, 5, 6). For further examples of rashness in battle and on campaign see THOMSON, *Cambridge*, 1947, p. 79.

(26) XXI, 10, 7-8 (cp. 12, 25). On Julian's inconsistency see THOMSON, *loc. cit.*

(27) On the importance of correct bearing see WARREN BONFANTE, *PP.*, 1964, p. 408-9; MACMILLAN, *Adul.*, 1964, p. 436-8; CHARLESWORTH, *JRS.*, 1947, p. 34-5. LIBANIUS, *Or.*, 18, 190-3 testifies to Julian's hatred of excess pomp and abuses his critics in this in "usque" (*Glynnus*, *Or.*, 1, 129).

(28) XXII, 7, 3. LIBANIUS, *Or.*, 18, 155-6 points Julian in this.

(29) XXII, 10, 7 (cp. 5, 1-4; 10, 2).

(30) XXI, 12, 23; XXII, 9, 12; XXV, 4, 21 (cp. THOMSON, *op. cit.*, p. 81).

(31) *Or.*, 18, 146-8: ἀναγκαστικῶς... οὐκ ἐκ τῆς αἰσχύνης ἀποστασάντες.

military: to discredit the regime of his predecessor and to effect his revenge upon the enemies of himself and his brother Gallus⁽³²⁾. The execution of Ursulus, the count of the largesses, and the punishment of some of the other accused were travesties of justice. Ammianus contrives to cast most of the blame upon Arbitio, one of his favourite scapegoats⁽³³⁾, who, he says, unduly influenced the court. Nevertheless, he accuses Julian of timidity in the matter (XXII, 3, 9) and is honest enough to observe that there was much wrong with these inquisitions and to refuse to free the Emperor entirely from censure, unlike Libanius who blandly praises Julian for his course of action⁽³⁴⁾.

The cumulative weight of these charges is heavy, and Seeck was led, quite unnecessarily, to postulate a separate, Christian, source for this censure⁽³⁵⁾.

In the *elogium* the faults of Julian are dealt with briefly (XXV, 4, 16-21 = less than 25 lines of Clark compared with almost 75 on the virtues). His *leue ingenium* is noted, his talkativeness, his superstition, his desire for popularity and two acts of injustice. The first and the last of these faults are qualified. Julian is said to have counteracted his *leue ingenium* by submitting to correction (16); and the two acts of injustice (the law forbidding Christians to teach classical authors and the attempt to return to the *curiae* those who were exempt) are introduced by the words "... it could have been said, as he himself used to claim, that Justice of old ... had returned to earth during his reign, had he not on occasions acted in an arbitrary fashion and seemed unlike himself" (19). That is to say, such unjust actions are exceptions to the general fairness of Julian's regime.

Ammianus' characterization of Julian, especially in books XXII to XXIV, is more plausible than the extremes found, on the one hand, in some Christian authors and, on the other, in the *epitaphios* of Libanius. Nevertheless, as with the other Emperors, the treatment is strongly morally oriented and at times becomes anecdotal. This is noticeable during the narrative upon Julian's activity in Gaul, where short

digressions are inserted which illustrate virtues of the Caesar⁽³⁶⁾, but is even more pronounced in book XXII (mostly on Julian's civil administration as Augustus), parts of which (chapters 4, 6-7, 9-10) tend to take on a topical form and differ markedly from the bulk of the narrative.

In the narrative of Julian's campaigns in Gaul there is also a tendency to treat the events as illustrative of the Caesar's military ability, as, for instance, in the account of the activities of 356 A.D. (XVI, 2-4), Julian arrived in Gaul during the winter of 355-6, which was *negotiosum* (2, 1). Since Autun was reported in danger, the Caesar, ignoring the attempts of the courtiers to turn him to dissipation and luxury, planned to relieve the town, "like an experienced leader of superior strength and wisdom" (2, 2). After relieving Autun, in imitation of Silvanus he took a shorter and more dangerous route to Troyes — "with greater confidence Caesar was becoming extremely eager to imitate the daring of that brave man" (2, 4). Clever tactics defeated the enemy (2, 6); a short rest at Troyes, *dum fatigato consulit militi* (2, 8), then on to Rheims. From there Julian advanced to attack the Alemanni, making his plans carefully — "he was foresighted and careful, which is a prime virtue in great leaders and often assists an army and ensures its safety" (2, 11). After further success in battle, on to Cologne and then to Sens for winter quarters, where *scindebatur in multiplices curas* (3, 3): how to right a desperate military situation and how to obtain supplies for his troops. The enemy tried to blockade the town. "Julian himself could be seen day and night with his soldiers on the ramparts and battlements" (4, 2). The enemy abandoned the siege, and, "when he was freed from this fear, Caesar, a most efficient man, made it his constant care to give the soldiers some rest from their long toil, short but sufficient to renew their strength" (4, 4). There was little food in the area. "But this problem, too, he solved by his ceaseless energy" (4, 5).

To Ammianus Julian's character as a civil administrator and his civil administration itself are of great importance. Less text is allocated to it (almost 18 pages in Clark) than to the Persian expedition (almost 45 pages)⁽³⁷⁾, but this contrasts sharply with the even greater imbalance in Zosimus (almost 21 pages of Mendlessohn's text on the Persian expedition compared with 1 1/2 on the civil administration). Since Zosimus devotes little space to Julian's civil government he has little to say about

(32) On the trials at Chalcedon see BLACKLEY, *APh.* 1972, p. 449-50.

(33) Cp. XIV, 11, 2; XV, 2, 4; 3, 2; XVIII, 3, 4; XX, 2, 2; etc.

(34) LIBANIUS, *Op.* 18, 152-3 (cp. *Op.* 13, 42). Libanius, following eulogistic convention, ascribes the sentences directly to Julian. ROSEN, p. 143 notes that four of the victims, Palladius, Florentius (son of Nigrinianus), Saturninus and Evagrius, had connexions with Antioch and suggests that as a reason for Ammianus' refusal to exculpate Julian entirely.

(35) SEECK, *Heimes*, 1906, p. 515, refuted by THOMSON, *op. cit.* p. 24 ff.

(36) E.g. XVI, 5; XVIII, 1.

(37) This omits the digressions at XXII, 8, 15; 16 and XXIII, 4 and 6, and the *elogium* which have no counterpart in Zosimus.

his civic virtues, beyond the occasional remark upon his temperance and wisdom (III, 2, 4) and his foresight (III, 8, 1). But there is hardly more upon his military qualities⁽³⁸⁾. Zosimus' longest characterization of Julian is as follows: "His soldiers thought well of him because of his simple style of life, his bravery in war, his lack of greed and his other virtues in which he surpassed virtually all of his contemporaries" (III, 5, 3).

To Zosimus the character of Julian is far less important than to Ammianus, and this is reflected by differences in treatment of events in the narrative. At Maiozamalcha in Zosimus (III, 20, 2), as in Ammianus, Julian is attacked by enemy soldiers. But in Zosimus he kills no one; his men do the work. Even the battle of Strasburg is dealt with summarily (III, 3, 3-5). It is noted that Julian stopped the flight of the cataphracts, but that is incidental to the historian's main purpose which is to describe the novel punishment inflicted by the Caesar upon those who fled (and not recorded by Ammianus). There is nothing to compare with the noble words of Julian, reported by Ammianus, by which the cavalry were encouraged to renew the fight, or the comparison of the Caesar with Sulla, "fighting alone in Boeotia and shedding his blood for us all" (XVI, 12, 41).

Zosimus, in the part of his *History* devoted to Julian, is dependent upon the *History* of Eunapius. It is impossible to be sure how accurately he reflects his source both in the proportion of text devoted to civil administration and in the importance of Julian's character. However, the nature of the surviving fragments of Eunapius suggests that in these respects the reflection is not an accurate one and that in the source not only was the treatment more like to that in Ammianus, but also that the characterization of Julian was itself even more extreme. His humanity, clemency and justice are directly celebrated (fr. 12; 16; 18), and the treatment tends towards the anecdotal (fr. 12; 24). Photius' verdict, that the account of Julian's reign was almost an encomium⁽³⁹⁾, is supported by Eunapius' own clear statement of bias towards Julian (fr. 8); his tendency to treat the Emperor as almost divine (fr. 1; 12; 23; 24); and the description of him in fr. 10 as the true king (τὸν ὄντως βασιλέα)⁽⁴⁰⁾.

(38) ZOSIMUS, III, 16, 2 and 4; 19, 4.

(39) PHOTIUS, *Bibl. cod.*, 77: καὶ σχεδόν τι τὸ τῆς ἱστορίας αὐτοῦ εἰς τὸ ἐκένου ἑγκώμιον συντελεῖν ἐξιστορήσθαι.

(40) Cp. the posthumous eulogy in fr. 25.

Eunapius seems to have treated Julian as the ideal king. To what extent does Ammianus idealize his hero? He begins his narrative of the events in Gaul with a declaration that the activity of Julian which he will describe *ad laudatium paene materiem pertinebit* (XVI, 1, 3). Though this has been wrongly taken to show that Ammianus intended to write a panegyric⁽⁴¹⁾, it does reveal a highly adulatory attitude towards the subject. This same attitude is reflected in the words which introduce the digressions that prepare the way for the narrative of the campaigns of Julian in Gaul: *proinde quoniam — ut Mantuanus iutes praedixit excelsus — "Maius opus moueo" maiorque mihi rerum nascitur ordo* (XV, 9, 1). This passage is part quotation, part adaption of *Aeneid*, 7, 44-5. In Virgil the Trojan refugees have landed in Italy, and the poet uses the words to point forward to the wars in which they established themselves in the new land and which formed an important step towards the ultimate foundation of Rome. Ammianus too (who initially ended his *History* with the reign of Jovian) suggests that Julian's wars, especially those in Gaul, point the way to the future and set Rome on the path to recovery⁽⁴²⁾. Further, he implies the greater importance of the achievements of his hero over those of Constantius and (perhaps) his predecessors.

Since Ammianus is not writing a simple panegyric of Julian he does not reserve the jargon of propaganda for his hero, nor indeed for the Emperors in general; although when it is used of an Emperor, it is usually of Julian. Of 30 instances of *fortitudo* (including *fortis*, *fortiter*, etc.) which I have noted, nine are used in speeches and letters (where Ammianus might be imitating more closely the official usage); ten in general of soldiers etc.; four of individual officers; one of Arsaces, the founder of the Persian royal line; and six of Emperors (Julian four, Valentinian I and Gratian one each)⁽⁴³⁾. Of 41 examples of *prudencia* etc., seven are used in a general way, five in a neutral or complimentary sense, four in speeches, twelve of named officials and private individuals, one each of Eusebia (Constantius' wife) and Sapor (the Persian king) and eleven of Emperors (Julian seven, Constantius,

(41) So M. KENNEDY, p. 7.

(42) Compare the picture of the revival of the cities in MAURITIUS, 7, 3; 8, 3-4, 10 (cp. LAMPROUS, *Or.*, 13, 43; 18, 194).

(43) XIV, 10, 14; 11, 3; XV, 5, 19; XVI, 10, 2, 12, 32; XVII, 1, 14, 5, 14, 6, 3; 10, 2 and 5, 12, 6; 13, 29 and 32; XVIII, 5, 4, XXI, 13, 12; XXII, 7, 9; XXIII, 5, 16, 6, 3; XXIV, 1, 1; 2, 5; 3, 4; 4, 2, 24 and 30; XXV, 4, 1 and 10; XXVII, 6, 7; XXX, 7, 2 and 10; XXXI, 10, 16.

Valens, Valentinian I and Gratian one each)⁽⁴⁴⁾. *Magnanimus* is used thrice, of Julian, Ursicinus and Petronius Probus⁽⁴⁵⁾.

In contrast with the official usage found, for instance, in the Latin Panegyrics and the *Relationes* of Symmachus⁽⁴⁶⁾, Ammianus avoids expressions which imply the divinity of the Emperor. *Aeternitas* is used only of the Eternal City⁽⁴⁷⁾; and the assumption of that title by Constantius is censured (XV, 1, 3). *Dominus* appears twice, but only as a reported form of address⁽⁴⁸⁾.

Julian does not have a monopoly of virtues in Ammianus' *History*. Many individuals win high praise for their qualities — Severus, Charietto, Ursicinus, Symmachus, Eutharius, Eupraxius and so on. But all tend to be one-dimensional; and even Ursicinus is only the perfect general. On the other hand, the portrait of Julian is almost complete in its virtues, and it seems clear that Ammianus is strongly influenced by a desire to idealize his hero as the perfect king. A contrast is drawn between him and his half-brother Gallus, who is cast as a stock tyrant. Julian's qualities are emphasized throughout the narrative and, at least in the *elogium*, his faults are played down. In the account of the trials at Chalcedon (XXII, 3) there are signs of an attempt to whitewash the Emperor, and the executions of other enemies of Julian, including the notary Gaudentius (XXII, 11, 1-2), are dealt with in a peremptory fashion. In both passages of book XXII the rhetoric hostile to such executions, which is so marked in the descriptions of similar events in the reigns of other Emperors, is conspicuously absent. Again, beyond the narrative of the death of George (XXII, 11, 3-11) and a few words upon the inconveniences which they suffered⁽⁴⁹⁾, Julian's conflict with the Christ-

ians is hardly touched upon. Of course, the secular historiography of the later Empire tends to omit matters relating to the Church, but Ammianus is not entirely rigorous in this respect and he could easily have included some more material illustrating Julian's treatment of it. He does mention some Christians who were killed by the tolerant Valentinian I⁽⁵⁰⁾.

Valesius notes an inconsistency between XXV, 4, 15, where Ammianus counts it as a virtue that Julian cancelled long-standing debts to the fisc, and XVI, 5, 15, where he is praised for having refused to do so "to the very end of his life and his reign"⁽⁵¹⁾. This is clearly an oversight; but the praise of the Emperor for two opposite policies reveals a certain partiality.

Ammianus mentions Charietto, "a man of amazing courage" (XVII, 10, 5), who later, when count of both Germanies (XXVII, 1, 2), was killed fighting bravely against the Alemanni. From Zosimus (III, 7) we learn that when Julian arrived in Gaul, Charietto was a robber chief who aided the Caesar against the Germans. Now Ammianus clearly knows that at this period Charietto was not a regular officer, since, when he tells how Charietto and a certain Nestica were ordered to capture an Aleman (XVII, 10, 5), he calls the latter a tribune but the former merely *uir*. If he knew that Charietto was not a regular officer, then probably he knew what he was. If so, it would appear that Ammianus has suppressed details which were recorded by Eunapius⁽⁵²⁾, and the likely explanation for this is that he thought that they would be discreditable to Julian.

After the capture of Maiozamalcha Ammianus says that the governor of the town, Nabdates, was brought alive to Julian, who spared his life (XXIV, 4, 26). Later (5, 4) the historian says that he was burnt alive because, although he had promised to betray the town, he fought on, and when he had been pardoned for that, he insulted Ormizdas, a Persian refugee and one of Julian's generals. Zosimus (III, 22, 6; 23, 4) confirms this account except that he makes no mention of an initial pardon and he says that Nabdates was executed both for treachery and for insulting Ormizdas. Zosimus' version would indicate (more plausibly) that the governor was not spared but saved up for a set trial. Ammianus' account looks like a rather misguided attempt to use the failure to kill Nabdates straightway as an illustration of Julian's clemency.

(44) XIV, 6, 1 and 5; XV, 5, 19; 8, 3; XVI, 1, 4; 5, 2 and 6; 12, 22; XVII, 5, 7; 9, 2; 13, 26; XVIII, 1, 4; 3, 2; 5, 1; XIX, 13, 2; XX, 4, 16; 7, 1; 8, 22; 9, 6; 11, 7; XXI, 1, 3; 4, 2; 9, 8; 13, 1; XXII, 14, 5; XXV, 4, 1 and 7; XXVI, 2, 9; XXVII, 12, 17; XXIX, 1, 8 and 21; 5, 32 and 39; XXX, 1, 5; 4, 10; 9, 4; XXXI, 2, 20; 5, 12; 10, 6 and 13; 16, 8. Cp. *providens* etc. (and *providens*), used four times of Julian (XVI, 2, 11; 3, 3; 12, 55; XXI, 5, 1), once in a bad sense of Romanus (XXVII, 9, 1) and once in general way (XXVI, 7, 13). Ammianus often refers to "wise plans" etc. rather than to people.

(45) XV, 2, 3; XVI, 5, 9; XXVII, 11, 4.

(46) *Pan. Lat.*, VII, 2, 2; 11, 5; 12, 1; 13, 3; VIII, 3, 1; 13, 3; IX, 8, 2; 16, 4. SYMMACHUS, *Rel.*, 3, 1, 3, 4 and 7; 5, 1 and 3; 6, 1 and 3.

(47) XIV, 6, 1; XV, 7, 10; XXI, 12, 24; XXIII, 1, 4; 3, 3.

(48) XXI, 3, 6; 10, 1. The divinity of a dead Emperor is referred to in XXX, 10, 1. In XXII, 9, 14 Ammianus says that the people of a town greeted Julian *in speciem alicuius numinis*, but this is a statement of fact, not of the historian's opinion (cp. XXI, 3, 6).

(49) E.g. XXII, 5, 10; 7, 13; 2, 20; XXV, 4, 20.

(50) XXVII, 7, 5; XXIX, 1, 4.

(51) WAGNER-ERFORD, III, p. 102.

(52) EUNAPIUS, *fr.*, 11, ad *fr.* (from Sozomen) notes that Charietto was a brigand.

Individually these points are negligible, but collectively they suggest that Ammianus is tending to idealize Julian in a manner similar to that which Eunapius seems to have adopted. That is not to argue that the picture of Julian's qualities is wholly false. The Emperor's admiration for and imitation of the idealized Alexander the Great and Marcus Aurelius, the favourite models of a good king, were well known⁽⁵³⁾. Gregory Nazianzen (*Or.*, 4, 91) says that people called him a philosopher king; and he schooled himself to be such, as Ammianus confirms: "For since, according to the philosophers, there are four primary virtues ... with great zeal he cultivated them all individually"⁽⁵⁴⁾. Thus Ammianus would merely have to emphasize the virtues which Julian cultivated and play down the blemishes, particularly in the Emperor's treatment of the Christians.

In idealizing Julian Ammianus is much more than a mere publicist for the views and propaganda of that Emperor. Indeed at times his views differ. He does not, for instance, mention the charitable aspect of Imperial *philanthropia*, upon which Julian laid stress⁽⁵⁵⁾. Beyond the occasional statement that the Emperor is chosen of God⁽⁵⁶⁾ (a notion that, on the one hand, is alien to the older Roman opinion, which regarded the Emperor as chosen by the members of the state, be they senate, army or people, or some combination of these, but, on the other, does not commit the writer to a belief in the divine, or at least superhuman, nature of the ruler), Ammianus appears wholly indifferent to the religious aspect of kingship. If he were merely advancing Julian's views, he could hardly have failed to stress the religious commitments of the ruler which were so important to Julian, who, although eschewing the more mystical aspects of kingship, held in common with most contemporary theorists, that the king was not only chosen of God, but also the *προφήτης* and *ὑπηρέτης* of God⁽⁵⁷⁾, the imitator of God⁽⁵⁸⁾, with binding religious duties⁽⁵⁹⁾. Ammianus' attitude towards Julian's religious activities is one of censure for his excess superstition⁽⁶⁰⁾.

(53) Imitation of M. Aurelius, AMMIANUS, XVI. 1, 4; EUTROPIUS, 10, 16; JULIAN, *Ep. ad Them.*, 253A. Imitation of Alexander, BAYNES, *EHR.* 1912, p. 755-60.

(54) XXV. 4, 1 (cp. XVI. 5, 10).

(55) JULIAN, *Letter to a Priest*, 289A-291B and 305B-C; KABERICH, p. 28 ff. This doctrine is not prominent in the two orations on Constantius. It developed later in response to the Christian tradition of charity.

(56) For references see ch. 3, n. 13.

(57) JULIAN, *Or.*, II, 90A.

(58) JULIAN, *Caesares*, 333A.

(59) JULIAN, *Or.*, II, 68B-70D; 86A.

(60) See p. 125.

There is also a basic difference in the approach to the problems of the day proposed by the two men. Ammianus thought in terms of individuals, and of wrongs in terms of character. Julian, on the other hand, thought in terms of systems, wishing, in the words of Downey, to restore the old Roman "unity of faith and culture," a process involving social and political as well as religious reforms which led him into violent conflict with the Christian community⁽⁶¹⁾. Essentially he sought not to dismantle the authoritarian system of the day but to reform it, a process which, however satisfactorily it might have emended current abuses, would not have restored the ancient "liberty" and humanism to which Ammianus looked⁽⁶²⁾.

On the other hand, Ammianus seems to have been influenced by Julian's writings. He had read some of his letters and speeches⁽⁶³⁾, quite probably including the two orations on Constantius, and in very many respects he was in close agreement, especially on the ideal of character outlined in the latter two orations. Julian's sketch was itself traditional, drawn from Dio Chrysostom and other theorists on kingship⁽⁶⁴⁾ and shared, in broad outlines and with variations in emphasis, with the panegyrist also. Thus, in respect of the virtues and functions of the ideal king, Ammianus, too, stands in close relationship with these two groups of writers, both in general and in many details.

By the time of Dio Chrysostom it had generally been conceded that the Empire depended upon one man; intellectual opposition to the monarchical idea was fading. Discussion had shifted away from the question of the constitutional position of the king (which at the time of Theophrastus still held an important place in discussions upon kingship⁽⁶⁵⁾) and centred upon the qualities which a ruler should possess⁽⁶⁶⁾. By the second century A. D. the two lines of thought on the matter (one that the king required special skills; the other that he needed only the proper personal virtues)⁽⁶⁷⁾ had converged, brought together

(61) DOWNEY, *CH.* 1959, p. 329-49.

(62) Cp. COCHRANE, p. 280-1. For Ammianus' individualism and ideas on liberty see p. 152-55 of the present study. Julian's position was to a certain extent anti-bureaucratic. Thus Ammianus' moralistic criticism of his drastic reduction of the palace staff (XXII. 4, 1-2) misses the point.

(63) XVI. 5, 7; *ut ostendit orationum epistoliarumque eius cum gratulatio continet incorrupta*. (64) FRANKS, *REG.* 1915, p. 417-39. On Julian's knowledge of THEOPHRASTUS, *Or.* I and II and LIBANIUS, *Or.*, 59 see GRADIS, p. 14-19, 29-31.

(65) T. A. SIOCLAIR, *A History of Greek Political Thought*, London, 1951, p. 249.

(66) SIOCLAIR, *op. cit.*, ch. 14, *passim*. BOWEN, *JAPA.* 1933, p. 131, n. 26 erroneously lists some references in older writers to some of the desired qualities of the king.

(67) VALDENBERG, *REG.* 1927, p. 154-5.

perhaps by Dio himself⁽⁶⁸⁾; and it is this fusion which is found in both Julian and Ammianus.

The king has specific duties in three fields, civil, military and religious⁽⁶⁹⁾. The last of these is, on the whole, ignored by Ammianus who thus differs from the writers on kingship and the panegyrists, none of whom omit the subject, although they approach it in two different ways. One group, including Libanius and Julian (in the two orations on Constantius), discusses the king's religious obligations but not his divine origin nor the nature of his special relationship with God; and in this respect at least Ammianus is closer to these⁽⁷⁰⁾. The other group, notably Eusebius and Themistius, inclines to a mystical view of the king's power, stressing both his unique relationship with God and his own special nature⁽⁷¹⁾.

On the other functions of the king there are also two general interpretations which tend to combine. The first regards the king as a benefactor in the tradition of the Hellenistic *evergetes*⁽⁷²⁾, who implements the aim of the state which is the prosperity of its members. Thus the importance of the ruler's *liberalitas*⁽⁷³⁾ (often treated by the Greeks as a part of *philanthropia*), which is frequently expressed in financial generosity such as gifts to friends⁽⁷⁴⁾, but also in the building and repair activities of the king⁽⁷⁵⁾.

(68) VALDENBERG, *loc. cit.* and *Byzantion*, 1924, p. 576-7.

(69) DIOGENES, p. 37-9 (cited from Delatte).

(70) In one passage (XVI, 1, 4) Ammianus appears to subscribe to the theory of the divine creation of the king, when he says of Julian *videtur enim lex quaedam utique melioris hunc luuenem a nobilitate cuius ad usque spiritum comitatu supremum*. But too much weight cannot be placed upon a single statement in a writer as rhetorically exuberant as Ammianus. It probably merely expresses the ancient belief that men are different, some naturally greater and more virtuous than others. Perhaps the form of expression is influenced by the language of panegyric, which regularly used such expressions of divine superiority (ROSEN, p. 73). In places Ammianus' language seems to have been influenced by Mamertinus. Compare the two descriptions of Julian: MAMERTINUS, 2, 3, *quasi quoddam salutare humano generi sidus*; AMMIANUS, XXI, 10, 2, *ut sidus salutare susceperetur* (for this and other comparisons see E. GALLETTIER, *Panegyriques Latines*, III, Paris, 1955, p. 9, notes 4 and 5).

(71) STRAUB, Stuttgart, 1964, p. 169; LACOMBRADÉ, Paris, 1951, p. 94-6; BAYNES, *Alpho*, 1933-4, p. 13-18.

(72) GOODENOUGH, YCS, 1928, p. 67; SYNESIUS, *De Regno* (PG, 66), 1065B; 1104A-B; THEMISTIOS, Or., VIII, 107D; XV, 193A; PLINY, Pan., 68, 1.

(73) DIO CHRYSOSTOM, Or., 1, 23-4; PACATUS (Pan. Lat., II), 27, 5; NAZARIUS, 33, 4; 35; PLINY, Pan., 25-32; AUSONIUS, *Grat. Act.*, 1, 15-16; Pan. Lat., IX, 3, 2; 4; 19, 1; X, 1, 4; 9; 3; JULIAN, Or., II, 77C; 86A; I, 44B-C; MAMERTINUS, 10; CLAUDIAN, *IV Cos. Hon.*, 118-19; VI *Cos. Hon.*, 72-3. The whole of Pan. Lat., V is a panegyric on the generosity of Constantine I.

(74) JULIAN, Or., I, 44D; 46B-C; DIOGENES, p. 40; DIO CHRYSOSTOM, Or., 1, 30-32; PLINY, Pan., 86, 5.

(75) THEMISTIOS, Or., IV, 58A-D; XI, 150A-152C; PLINY, Pan., 51; Pan., Lat., VI, 22, 4-7; JULIAN, Or., I, 41A; MAMERTINUS, 9, 2-4.

The second function, equally if not more widely canvassed, is the peace of the state and the safety of its people, often expressed by reference to the king as saviour⁽⁷⁶⁾ (another Hellenistic concept)⁽⁷⁷⁾ or as father⁽⁷⁸⁾. He is the protector of all, preferring peace to war, rendering every life safe⁽⁷⁹⁾. As Themistius puts it: "I say that it is more kingly to do good to more people than to conquer more people, just as, in my opinion, it is more kingly to save men than to destroy them (Or., XIII, 175D-176A).

Ammianus recognizes both functions. *Liberalitas* is often expressed in financial generosity of a rather negative but all important kind, such as the lightening of the tribute and the remission of debts⁽⁸⁰⁾; and it is noted amongst the virtues of Valens that he restored and constructed many buildings⁽⁸¹⁾. Advancing the second function of the king, Ammianus describes the Emperor as "the defender and champion of good men upon whom the safety of others depends" (XIX, 12, 17). And he combines the two in Julian's deathbed words, *iusti esse finem imperii, obediendum commodum et salutem* (XXV, 3, 18)⁽⁸²⁾.

The other virtues characteristic of the ideal king are illustrated in great detail by Ammianus and in almost every case conform to the model proposed by panegyric and the tracts on kingship.

As a soldier the king should be vigorous and healthy and so must exercise himself energetically in suitable sports, such as hunting, athletics and especially weaponry⁽⁸³⁾. He must be courageous and warlike⁽⁸⁴⁾; Constantine's panegyrists even allow him to fight in a bat-

(76) THEMISTIOS, Or., VIII, 107A; V, 65C; XIII, 171C, 179B; etc.; SYNESIUS, *de Clem.*, I, 5, 4 and 7; EUSEBIUS, *Land. Const.*, 2 (PG, 20, col. 1325C); LIBANIUS, Or., 18, 176.

(77) DELATTE, p. 249-50.

(78) THEMISTIOS, Or., XIX, 233A-B; PLINY, Pan., 2, 3; 6, 4; 38, 1; etc.; SYNESIUS, *de Clem.*, I, 14 and 15; CICERO, *Rep.*, I, 54; 2, 47.

(79) PLINY, Pan., 44, 5; DIO CHRYSOSTOM, Or., 3, 39; THEMISTIOS, Or., VII, 97A, XIII, 176A-C; SYNESIUS, *de Regno*, 1100A-D.

(80) XVII, 3, 5-6; XVIII, 1, 1; XX, 4, 13; XXIII, 2, 1; XXV, 4, 15; etc. (cp. FERGUSON, p. 199 ff.).

(81) XXXI, 14, 4 (cp. XVI, 10, 17; XVII, 3, 3).

(82) Cp. XVII, 9, 1; XXI, 5, 7; XXVIII, 2, 5; XXIX, 1, 18, 2, 18; XXX, 8, 14.

(83) JULIAN, Or., I, 10D-11C; II, 53B-C; DIO CHRYSOSTOM, Or., 1, 28-9; 3, 135-6; SYNESIUS, *de Regno*, 1073A-C; THEMISTIOS, Or., XV, 187C-D; AUSONIUS, *Grat. Act.*, 14; PLINY, Pan., 18; LIBANIUS, Or., 59, 35; CLAUDIAN, *III Cos. Hon.*, 39-50; *IV Cos. Hon.*, 337-52, 527-45.

(84) SYNESIUS, *de Regno*, 1073A-1076C; DIO CHRYSOSTOM, Or., 3, 38-60; 4, 34. Warlike deeds in panegyric are too frequent to need illustration. For fortitude see n. 43.

tle⁽⁸⁵⁾. As a general he should control his troops by means of his *auertorias* and lead them by example, sharing their toil and eating their food⁽⁸⁶⁾; and, though terrible to the enemy, he should be merciful in victory⁽⁸⁷⁾.

Ammianus concurs, praising Constantius as "expert at horsemanship, javelin-throwing and especially at archery, and a thorough master of the skills of the footsoldier" (88). Julian is credited with personally killing an enemy soldier at Maiozamalcha⁽⁸⁹⁾, and is able to calm mutinous troops by his prestige and eloquence⁽⁹⁰⁾. He eats the same food as his men⁽⁹¹⁾, worries about their supplies⁽⁹²⁾ and even gives his own to them⁽⁹³⁾. His soldiers love him and strive to match his achievements⁽⁹⁴⁾; whereas the enemy always await his onset in fear⁽⁹⁵⁾. Yet he is clement to them in victory⁽⁹⁶⁾.

Though the king must reject flatterers⁽⁹⁷⁾, he needs the counsel and help of reliable friends, whom he should bind to himself by his generosity⁽⁹⁸⁾. He should be affable and courteous not only to these, but to all men⁽⁹⁹⁾. All agree that the ruler must preserve his dignity⁽¹⁰⁰⁾. But while some, especially Eusebius, the encomiast of Constantine I, are strongly in favour of the seclusion and remoteness imposed by court ceremonial⁽¹⁰¹⁾, most incline to the opposite opinion, that, while preser-

(85) NAZARIUS, 29, 3-6; *Por. Lat.*, VIII, 14, 3-5 (cp. *Sid. Apol.*, *Por. Maj.*, 217-54; *Por. Arch.*, 246-94).

(86) JULIAN, *Or.*, I, 21D-22A; II, 87D-88A; THEMISTIOS, *Or.*, IX, 121A-B; PLINY, *Pan.*, 13, 17, 3; 19, 2-4; MAHERIUS, 12, 2-3; CLAUDIAN, *IV Cos. Rom.*, 331-52; *Sid. Apol.*, *Por. Maj.*, 511-52.

(87) JULIAN, *Or.*, I, 17A; LIBANIUS, *Or.*, 59, 63; AMBROSE, *Obit. Theod.*, 4; CLAUDIAN, *IV Cos. Rom.*, 111-117 (cp. the combination *fortitudo-clementia* in PLINY, *Pan.*, 16; *Por. Lat.*, X, 4, 31).

(88) XXI, 16, 7 (cp. XXI, 2, 1; 16, 19; XVI, 5, 10). For a summary of Ammianus' ideal of the general see ROSEN, p. 219-21.

(89) XXIV, 4, 4-5 (cp. XVI, 10, 3; XXIV, 2, 14-15; 6, 11).

(90) XXIV, 3, 3-8; XXV, 4, 12 (cp. XXVI, 2, 5-11).

(91) XXV, 2, 2 (cp. XXI, 9, 2).

(92) XVI, 3, 3; 4, 4; 11, 11.

(93) XXV, 2, 2.

(94) XVII, 1, 2; XX, 4, 13; XXV, 3, 10; 5, 6.

(95) XVII, 1, 6 ff.; 8, 3 ff.; 10, 3 and 9-10.

(96) See p. 75.

(97) DIO CHRYSOSTOM, *Or.*, 3, 129; SYNESIUS, *de Regno*, 1072C-1073A.

(98) JULIAN, *Or.*, I, 44D; 46B-C; II, 86B; DIO CHRYSOSTOM, *Or.*, 1, 30-32; 3, 86-90; THEMISTIOS, *Or.*, I, 17A-18B; SYNESIUS, *de Regno*, 1072A-C; DIORGENES, p. 40 (cp. PLINY, *Pan.*, 45, 3; 86, 3).

(99) EUPHANTIOS, p. 32 (cp. PLINY, *Pan.*, 79, 6; 85-7; AUGUSTINUS, *Grat. Act.*, 14).

(100) E.g. DIO CHRYSOSTOM, *Or.*, 1, 25; 2, 15; THEMISTIOS, *Or.*, IX, 122B; DIORGENES, p. 42-3; NAZARIUS, 5, 1-3.

(101) STRAUB, Stuttgart, 1964, p. 168 ff.

ving his dignity, the king should mix with his people. The latter view, critical of the practice of many of the Emperors of the period, underlies the words of Synesius, critical of the seclusion of Arcadius: "You are living the life of a jellyfish!"⁽¹⁰²⁾.

Ammianus, too, likes his Emperors approachable. With a note of reluctant admiration for his endurance, the historian pours scorn on the extreme pomp of Constantius⁽¹⁰³⁾, and applauds Julian, "most careful to be civil, demanding only so much respect as he thought necessary to protect himself from scorn and insolence" (XXV, 4, 7)⁽¹⁰⁴⁾. He registers strong approval when officials venture to correct their masters⁽¹⁰⁵⁾ and observes that Julian insured against danger from his own *leue ingentum* by submitting to correction when he was in error⁽¹⁰⁶⁾. The necessity of friends is also reflected in the remark that Valens was "a firm and loyal friend" (XXXI, 14, 2). But Ammianus loathes flatterers⁽¹⁰⁷⁾.

Julian's temperance is copiously illustrated by Ammianus⁽¹⁰⁸⁾. Constantius, too, is praised for his moderation in eating, drinking and sleeping, and for his chastity (XXI, 16, 5-6); Valentinian I for his chastity (XXX, 9, 2). On the other hand, Jovian is censured for his love of wine, women and food (XXV, 10, 15).

Panegyric says much in praise of temperance⁽¹⁰⁹⁾. Theory is concerned with it as an element of self-control, which can be destroyed by extravagance with disastrous results, since lack of self-control in one thing can lead to the general rule of the passions; and when the king sinks to this state he poses a great danger to his subjects⁽¹¹⁰⁾.

Similar fears haunt Ammianus and help to explain his preoccupation with the cruelty of Constantius, Valens and Valentinian I. Hence also

(102) SYNESIUS, *de Regno*, 1077A (cp. PLINY, *Pan.*, 21; PACATUS, 21; *Por. Lat.*, XII, 14, 3-4; CLAUDIAN, *IV Cos. Rom.*, 303-20).

(103) XVI, 10, 2-3 and 10-12 (cp. XIV, 6, 3-9; XXVIII, 4, 7-8 and 10).

(104) CAMUS, p. 107-8 suggests that Ammianus' origin made him sensitive to arrogant behaviour by his social superiors (cp. XV, 13, 2; XXIX, 1, 8 and 43).

(105) XVI, 8, 7; XXVII, 6, 14; XXVIII, 1, 25.

(106) XXV, 4, 16 (cp. XVI, 7, 6; XXII, 7, 2; 10, 3).

(107) XIV, 5, 4; 11, 2; XV, 1, 2-3; 5, 37; 8, 2; XVI, 12, 67-9; XVII, 4, 11; 11, 1-2, etc.

(108) See p. 74.

(109) JULIAN, *Or.*, I, 16A; II, 86A; PACATUS, 4; NAZARIUS, 9, 4; 14; PLINY, *Pan.*, 2, 6-7; 20; *Por. Lat.*, XII, 4, 4; 7, 5; THEMISTIOS, *Or.*, VIII, 105B; 119D; XI, 146D; LIBANIUS, *Or.*, 59, 46, 122 and 158; AUGUSTINUS, *Grat. Act.*, 14; CLAUDIAN, *IV Cos. Rom.*, 262-6.

(110) EUPHANTIOS, p. 36; DIORGENES, p. 39; DIO CHRYSOSTOM, *Or.*, 3, 58-60; 62, 4; THEMISTIOS, *Or.*, I, 5B-C; 7A; LIBANIUS, *Or.*, 59, 122. Other references in DELEATE, p. 136.

two key words in his vocabulary, *sobrius* and *nimius*. The historian uses the former to bestow high praise — *eruditus et sobrius* (XIV, 6, 15) who were rejected by the degenerate nobles of Rome; Eutherius, *semper sobrius* (XVI, 7, 6); Nannienus, *uirutis sobriae dux* (XXXI, 10, 6) ⁽¹¹¹⁾. The Romans suffered disasters in ancient times, but in those days the state was restored *quod nondum solutioris uitae mollitie sobria uetustas infecta nec ambitiosis mensis nec flagitiosis quaestibus inhiabat* (XXXI, 5, 14). Converse is the use of *nimius*, a common word in the *History* (appearing over 60 times). *Cupiditatem opes nimias congerendi* (XXX, 8, 8); *studio ... glorioso quidem sed nimio* (XXIX, 6, 2) — both are phrases of censure. The word is used similarly by itself — *suapte ingenio nimium* (XVI, 12, 68) of Constantius' arrogance; *minax Imperator et nimis* (XXVII, 6, 14); *erat tamen ipsa nimietas odiosa* (XXIX, 1, 22).

This fear and hatred of excess leads Ammianus frequently to judge the justice of the ruler in terms of his clemency. *Iustitia* in the narrower sense is not wholly absent: indeed retributive justice plays a considerable part in the *History* ⁽¹¹²⁾. And not only is one of Julian's gods Dikē ⁽¹¹³⁾, but Ammianus' own deity, whatever other qualities he might possess, is also a just god ⁽¹¹⁴⁾. However, the historian knows that, whatever the theory on the constitutional position of the Emperor, he is *de facto* beyond legal restraint ⁽¹¹⁵⁾, and he shows, especially in his accounts of magic and treason trials, a full awareness of what horrors this unrestrained power in the wrong hands can do. Therefore the ruler must control himself; and to emphasize the gentle virtues Ammianus makes full use of a number of words: *uentia*, *misericordia*, *misericordia*, *humanitas*, *clementia*, *lenitudo*, *mitis* ⁽¹¹⁶⁾. The idea of clemency or fairness seems sometimes to attach to the word *iustitia* and, of course, very frequently to

aequitas ⁽¹¹⁷⁾; though at times the former and very rarely the latter are used of retributive punishment ⁽¹¹⁸⁾. Often in the case of *iustitia* it is difficult to tell whether it refers to strict legality or to equity.

Ammianus addresses himself directly to his readers to make his own concerns plain:

Cicero is to be imitated who, when he had the power either to pardon or to harm, as he tells us, sought reasons to spare a man, not opportunities to punish him. This is the proper behaviour for a cautious and merciful official (XIX, 12, 18).

... that, according to the philosophers, sovereignty is nothing other than care for the security of others, and that the duty of a good ruler is to restrain his power and to resist unlimited greed and implacable anger, and to know (as the dictator Caesar used to say) that the recollection of one's cruelty is a wretched means of supporting one's old age. Therefore a judge who is to pass sentence affecting the life and existence of a man, who is a part of the world and a living being, must hesitate long and deliberate hard, lest he be driven by emotion to an irreversible action (XXIX, 2, 18).

Therefore generosity and clemency bring love to Julian, whereas anger and cruelty bring hatred to Constantius and the first two Pannonian Emperors.

Similar preoccupations occupy panegyrists and other writers on kingship. "How much have I said about moderation, and how much more remains to be said," exclaims Pliny (*Paneg.*, 56, 3) ⁽¹¹⁹⁾. For the Greeks *clementia* (= *πραότης*, etc.) is frequently included with *εὐπρεπεία* as a part of *philanthropia*, the crown of virtues, the royal virtue, which is shared with the gods ⁽¹²⁰⁾. The clement aspect predominates, not only within *philanthropia*, but also through the works as a whole, with the result that some of these tracts (especially of Themistius), which are in

(111) Also XV, 4, 3; XVII, 3, 1; XXI, 10, 6; 16, 5; XXII, 7, 9; etc.; and especially XXV, 3, 18.

(112) E.g. XXVIII, 6, 25; XXIX, 2, 20; XXX, 2, 9; XXXI, 15, 7. And compare the whole idea of *habris-nemesis*.

(113) XXII, 10, 6; XXV, 4, 19 (cp. Libanius, *Or.*, 18, 284).

(114) *Witte*, p. 57-8.

(115) See p. 151-2.

(116) *Ventia*: XIV, 10, 9; XVII, 12, 19 and 21; XX, 8, 7; XXIV, 2, 19; etc. *Misericordia*: XVII, 12, 9. *Miseratio*: XVII, 12, 17; XVIII, 6, 10; XIX, 10, 3; etc. *Humanitas*: XIV, 6, 21; XXI, 13, 10; XXVII, 12, 9; XXIX, 6, 5; etc. *Clementia*: XIV, 11, 11; XVI, 5, 12; XXI, 16, 11; XXVIII, 1, 23; etc. *Lenitudo*: XXVI, 10, 7; XXIX, 5, 20 and 23; XXX, 8, 3, 4 and 6; etc. *Mitis*: XIV, 11, 11; XXV, 4, 9; XXX, 8, 3; etc.

(117) *Iustitia*: XX, 8, 11; XXII, 11, 5; XXV, 3, 18; XXXI, 7, 9; etc. *Aequitas*: XVII, 5, 3; 12, 11 and 14; XX, 8, 14; XXII, 3, 2; XXVI, 2, 8; and very often.

(118) *Iustitia*: XIV, 11, 25; XV, 2, 10; XXI, 13, 15; XXIII, 5, 17; XXVI, 9, 10 (and see n. 112). *Aequitas*: XXIX, 5, 43.

(119) See the laudatory passage in Pacatus, 44, 2. Also Nazarius, 8-9; 21, 2-3; 37, 2; *Pan. Lat.*, V, 9, 4-5; VI, 5, 3; 10, 4; VIII, 7, 3; 19, 3; IX, 21, 2; Themistius, *Or.*, VIII, 105C; 110D; Ausonius, *Cent. Aet.*, 15; Ammianus, *Orat. Theod.*, 4; 12-13; 16; Pliny, *Pan.*, 2, 6-7; Claudian, *De Cons. Hon.*, 276-95; *De Cons. Hon.*, 550; Julian, *Or.*, 1, 20D, 48C; II, 50C-D.

(120) So Themistius, *Or.*, I, 5A; 6B; 8A-1' (also IV, 51D; VI, 76C-D; 83, 146C-147B, 153C-D; and very often; Libanius, *Or.*, 59, 85; Diodorus, p. 44; Euphrantius, p. 34-5). For discussion see Ferguson, ch. 6; Valentinberg, *Beaufort*, 1924, p. 362-6; Downey, *Historia*, 1955, p. 199-208.

general rather defensive writings, appear in places to be almost attempts, in default of effective legal restraints, to define and limit the powers of the ruler by means of moral and intellectual intimidation. Every method is used: appeal to reason, religion, to nature and utility⁽¹²¹⁾. All eye apprehensively the ruler's power, which is conceded to be the reason why he must be clement⁽¹²²⁾. The king must not attempt to maintain himself by fear and force, but should seek the love of all. Friendship and consent must be the basis of his reign⁽¹²³⁾. Therefore he should leave property and wealth unharmed⁽¹²⁴⁾, and when called upon to decree punishment, should seek to set it aside or at least to modify it⁽¹²⁵⁾. The essence of the argument is the exclamation of Ambrose: *miser cordia ipsa iustitia est* (*Obit. Theod.*, 26), a position not far from that of Ammianus.

The character of Ammianus' ideal king is in the main that proposed by the writers on kingship. Therefore it is hardly surprising that his use of a list of four prime virtues (XXV, 4, 1) and indeed the virtues themselves (*temperantia, prudentia, iustitia, fortitudo*) are paralleled in these works. Such a conventional list is also found elsewhere. Indeed it has been proposed that Ammianus derived his from Cicero, *Imp. Cn. Pomp.*, 24 and *De officiis*, I, 15 ff. being offered for comparison⁽¹²⁶⁾. To these should be added *De Inv. Rhet.*, II, 15, 9: *habet [i.e. virtus] igitur partes quatuor: prudentiam, iustitiam, fortitudinem, temperantiam*. But an even closer parallel, which might suggest recourse to a Stoic work *On Virtue*, is a passage of Diogenes Laertius: τῶν δ' ἀρετῶν τὰς μὲν πρῶτας, τὰς δὲ ταύταις ὑποτεταγμένας, πρῶτας μὲν τὰςδε, φρόνησιν, ἀνδρείαν, δικαιοσύνην, σωφροσύνην (7,92). Later Diogenes again mentions the lesser virtues (7, 94-5), which he there calls external (ἐκτός) and secondary (ἐπιγενήματα)⁽¹²⁷⁾.

(121) Reason: SYNEKES, *de Regno*, 1069B; PLUTARCH, *Moralia*, 780C; Religion: THEMISTIUS, *Or.*, I, 8A; Nature: JULIAN, *Or.*, I, 14A; Utility: SENECA, *de Clem.*, I, 12 ff.

(122) SENECA, *de Clem.*, I, 1, 1-4 (cp. AMBROSE, *Obit. Theod.*, 12-13).

(123) DIO CHRYSOSTOM, *Or.*, 3, 91-115; SYNEKES, *de Regno*, 1073B; THEMISTIUS, *Or.*, I, 10C-D; IX, 122B; XIX, 231D; and often: ECHINASTUS, p. 32 and 34; SENECA, *de Clem.*, I, 13, 4-5; PACATUS, 17-18; NAZARIUS, 4, 3; PLINY, *Pan.*, 46, 1, 76, 6; LIBANIUS, *Or.*, 59, 122 and 163; CLAUDIAN, *IV Cos. Hon.*, 276-95; AUGUSTINUS, *Gen. Act.*, 15.

(124) JULIAN, *Or.*, II, 85B-D (cp. PLINE, *Pan.*, 50; LIBANIUS, *Or.*, 59, 122; CLAUDIAN, *IV Cos. Hon.*, 493-500).

(125) THEMISTIUS, *Or.*, I, 14A-14B; SENECA, *de Clem.*, I, 20; DIOGENES, p. 44 (cp. LIBANIUS, *Or.*, 59, 122; PACATUS, 44).

(126) MICHAEL, Breslau, 1874, p. 12 and *Beiträge zur Charakteristik des Ammianus Marcellinus*, p. 235.

(127) VON SCALA, *Doctrinae et stiloische Reste bei Ammianus Marcellinus*, p. 148.

Ammianus, when introducing his list with the words *ut sapientes definiunt*, seems to indicate a philosophical source or sources; and there is no reason to disbelieve him. Whether he was looking to political or moral philosophy is neither discoverable nor important. But the parallel usage in the works devoted to kingship can hardly have escaped him. Sometimes such writings refer to a different number of virtues, five, for instance, or six⁽¹²⁸⁾; sometimes the virtues differ. But the commonest number by far is four and the commonest virtues are those listed by Ammianus, which are proposed by one of the Latin Panegyrist, by Libanius, by Mamertinus and by Julian himself (four times)⁽¹²⁹⁾. Indeed another of the Latin Panegyrist (VII, 3, 4-5, 2) is the closest to Ammianus in treatment of the primary list, offering not only the same four virtues, but also examples.

Clearly therefore this list is traditional to panegyric, a fact confirmed by Menander Rhetor, who, during a discussion in his handbook *περί επιδεικτικῶν* of the four virtues basic to an evaluation of character, details the same ones⁽¹³⁰⁾.

Menander also discusses the procedure for describing the qualities of a general: "Therefore in dealing with war you will speak of matters concerning bravery and wisdom, in the case of the latter those aspects of it relevant to war" (Sp., III, p. 373, 14-17). With this one might compare Ammianus' discussion of *fortitudo* and *scientia rei militaris* in the *elogium* on Julian, and also the words of the standardbearer to Julian before the battle of Strasburg: *tandem per te uirtutem et consilia militare sentimus* (XVI, 12, 18)⁽¹³¹⁾.

Ammianus would certainly have been familiar with encomiastic theory, a subject taught in the schools⁽¹³²⁾; and panegyric was certainly in his mind when, at the beginning of the narrative on Julian, he said of the activity of his subject, *ad laudatium paene materiam pertinebit*.

(128) Five virtues: inscription of Constantius II in honour of Fl. Philippus (SWIFT and OLIVER, *AP.*, 1962, p. 248). Six: EUSEBIUS, *Laud. Const.*, 5 (PG, 20, col. 1336C). For other lists see NAZARIUS, 33, 2; ALSENIUS, *Gen. Act.*, 2; SENECA, *de Clem.*, I, 19, 8; EUSEBIUS, *Laud. Const.*, 5 (PG, 20, col. 1333D-1336A).

(129) *Pan. Lat.*, XI, 19, 2; LIBANIUS, *Or.*, 18, 211; MAMERTINUS, 21, 4; JULIAN, *Or.*, I, 10C; II, 79B; 55A-96A; 100C (cp. the slightly different lists in *Or.*, I, 16A-D). Also AUGUSTINE, *De Moribus Ecclesiarum*, I, 15, 25; *Diuers. Quest.*, 31, 1.

(130) MENANDER (Sp., III), p. 373, 7-8 (cp. STRAUB, Stuttgart, 1964, p. 155).

(131) ROME, p. 71-2 and 132 gives further parallels between Ammianus and Menander. He argues (p. 71-2) that the characterization of Julian in XVI, 1-5 depends upon panegyric theory as represented by Menander (cp. d'ARLIS, *Studi Romani*, 1962, p. 380 ff.).

(132) MARROU, p. 272 ff.

A characteristic of Ammianus' style, uncommon in other historians (except Eunapius) is the use of *exempla* (133). They are common in oratory and philosophy (both of which may well have influenced Ammianus), but also in panegyric, which uses them both in comparisons with famous figures, usually of antiquity, in order to enhance the subject, and also as models which are surpassed (134). Both types of *exempla* are used by Ammianus, although, as one might expect in a writer who is often critical, with different functions (135).

If Ammianus had the encomiasts in mind when he was writing his *History*, he is nevertheless not a mere encomiast himself. In what relationship, therefore, does Ammianus' thought stand with that of the panegyrists?

At the beginning of book XXVI Ammianus explains why he had stopped writing when he reached the death of Jovian: *conuenerat iam referre a notioribus pedem, ut et pericula declinentur ueritati saepe contigua* (I, 1). He does not say why he decided to continue his work, only why he decided to stop. But the use of the pluperfect *conuenerat* implies that the conditions which caused him to stop have now passed; and this provides the missing explanation. He would not publish his account of the reigns of Valens and Valentinian I while others of the Pannonian dynasty were on the throne. But now, when the last of these rulers, Valentinian II, was dead, and the throne was occupied by a new Emperor not of the dynasty, Eugenius, Theodosius I or Honorius, it was safe to publish his work as he wished it: that is to say, with the critical tone of the earlier part and without the limitations imposed by fear of reprisal or the need to turn to panegyric flattery (136). And on the whole he successfully avoids these limitations in his last six books, except when he deals with matters of concern to the house of Theodosius (137).

Ammianus hates courtiers and their base flattery (138). What they did to Julian, Ursicinus and others is reported with rage. Modestus provides a fine example of the type as he plays upon the vanity of Valens by praising the elegance of the Emperor's uncouth speech and declaring that

even the stars could be brought down should he order it (139). This is precisely the procedure of the panegyrist. Sometimes his speech was delivered in thanks for some honour, often the consulship; sometimes favour or high office was the reward for the effort. But whatever the occasion, the panegyrist was a typical courtier.

Ammianus would have known that the writing of an encomium entailed what Menander blandly calls "amplification" (*αὐξησις*, Sp., III, p. 368, 3-8). He would also have noted the success of the panegyrists and the popularity of their works (140). They disseminated Imperial propaganda by holding up the ideal of a king and by persuading, through eloquent distortion and even lies, that the reality matched the ideal. Ammianus may or may not have intended, by his use of techniques, material and expressions reminiscent of panegyric, to call attention to the contrast between his *History* and such works; but he is certainly underlining the independence of his own position in relation to the official interpretation of history. Thus, when dealing with character, he takes the same premises as the official version (which is found in panegyric) and re-assesses the careers of the Emperors in this light. Sometimes indeed the re-assessment goes too far. The official stress upon *clementia* becomes in Ammianus an emphasis upon Imperial cruelty at times as extreme as that against which he is reacting (141).

This concern of Ammianus influences the structure of the whole *History*. The Emperor, as has been noted, is central to the historical thought; and, since the writer intends an evaluation (or re-evaluation) of the Emperor's career, the framework of the *History* should be the individual reigns, or at least complete sections of them beginning and ending at key points; this approach is reflected in Ammianus' own words, *a principatu Caesaris Neruae exorsus, adusque Valentis interitum* (XXXI, 16, 9). When two Emperors reigned simultaneously these frameworks would be interconnected; but even then, as Pighi has shown for books XIV-XXV (142), there is a tendency for the material to divide up by geographical spheres, an arrangement which preserves the integrity of the individual parts of the whole structure, since the Emperors were usually in different parts of the Empire. Initially there was no difficulty with the

(133) See p. 163-4.

(134) Cp. MENANDER (Sp., III), p. 377, 3.

(135) For a full list of *exempla* in Ammianus and their use see Appendix F.

(136) Cp. XXVII, 9, 4 and XXX, 8, 1: *nee metu nec adulandi foeditate constricta posterioris, incorrupta praeteritorum solet esse spectacula*.

(137) Esp. XXVII, 8, 6-10; XXVIII, 3; XXIX, 5; and possibly XXVIII, 1. On the latter see THOMSON, Cambridge, 1947, ch. 6, esp. p. 93 ff.

(138) See note 107.

(139) XXIX, 1, 11, translated in full on p. 112.

(140) SCHAEFER, Stuttgart, 1994, p. 146-51.

(141) Another explanation of this was offered on p. 89. They are not mutually exclusive.

(142) PIGHI, *I Discorsi*, p. 65 ff. The symmetry which Pighi sees in books XIV-XXV is not continued in books XXVI-XXXI, but the geographical division is.

ending of the *History*, since book XXV closed with the death of Jovian, the sole Emperor. But for book XXXI it would have been quite inconsistent for the *History*, which was built up of reign piled upon reign, to follow an annalistic pattern and end arbitrarily at a given date half-way through the reign of one Emperor. Therefore, quite naturally from Ammianus' point of view, the history of the West ends with the death of Valentinian I in 375 A. D., while that of the East continues until the death of Valens in 378.

In this way one can suggest what Ammianus' procedure might have been had he produced more of his work. The promised narrative on the reign of Gratian (XXVIII, 1, 57) would soon have followed, taking the history of the West to 383. But that of the East would have had to wait until the end of the Theodosian dynasty (at least in the West, where Ammianus was residing), when it could again be discussed in a critical spirit. Since Ammianus was an old man and Theodosius had young sons to succeed him, the *History* was unlikely to proceed further⁽¹⁴³⁾.

Ammianus' concern for the recognition of his independence finds expression in his repeated insistence upon the truth⁽¹⁴⁴⁾, which is the vital

ingredient that makes his version of events so different from the official interpretation. He is obsessed by the reality behind the lies: "and so truth was obscured by lies, and at times falsehood was regarded as the truth" (XV, 2, 9); "at last truth, which was strangled, was allowed to breathe again" (XVI, 8, 6); "for it will be enough to deal with the key events and to avoid obscuring the truth with false statements, for in writing history absolute honesty is always essential" (XXXI, 5, 10). In his *elogia* on Constantius, Valentinian I and Valens he insists upon the veracity of what he records⁽¹⁴⁵⁾.

The impact of truth upon the narrative of the *History* clearly makes it very different from the accounts offered by the purveyors of the official version. This can be illustrated in one instance where the judgements of the historian and the encomiast can be set side by side. Ammianus, describing the initial success of the revolt led by Procopius, says of Valens: "He advanced in fear and mistrust, and his ability to think coolly was impaired by his sudden panic. His spirits had sunk so low that he considered casting off his Imperial cloak as if it were a heavy burden, and he would without a doubt have done so, had he not been deterred from his disgraceful intention by the opposition of his closest advisers and encouraged by the advice of better men" (XXVI, 7, 13; cp. 7, 2). In contrast, Themistius flatters the Emperor with a totally different version: "The assessment of the situation changed frequently as at the changing of the wind, and it was not only many of the ordinary soldiers who wavered in their hopes for the future, but even the high officials. Yet you alone, Emperor, remained completely firm of counsel, you alone never paled, nor raised nor lowered your voice" (*Or.*, VII, 86 A-B).

This concern of Ammianus for the truth, this attempt to peel away the façade and to penetrate to the reality beneath, is not unique. It is shared, for instance, with Tacitus and, to a lesser extent, Sallust. Moreover, it is by no means the sole guiding influence upon Ammianus' historical judgement. But it is pervasive and important, for instance in some of the speeches, where it adds an extra dimension through the illustration of a discrepancy between the fine words of the speaker and the reality behind the action.

In 354 A. D. Constantius, when marching against the Alemanni, was met by a peace delegation. The Emperor decided against fighting and

(143) STRAUB, *Soultz*, 1964, p. 153 (followed by DEMANDT, p. 61-2) suggests that the words with which Ammianus closes his *History* (*scribenti reliqua potiores, aetate doctus florentes, quam ad se liberis, aggressurus, proculdubio itaque ad maiores memos scribo*, XXXI, 16, 9) lay down an historical law that one can treat the present only in panegyric form. The phrase *maiores memos scribo* is conventional, being found also in EUTROPIUS, 10, 18 and SHA, *Fortun.* 15, 10 (cp. JEROME, *Christ. praef.* and SYMMACIUS, *Ep.*, II, 13, 13). In these examples it appears to be an expression of modesty and perhaps (certainly, in the case of Eutropius) a tribute to the Emperor. KAZEN, p. 3 (followed by THOMSON, Cambridge, 1947, p. 72 and EXETER, p. 10) explains the passage of Ammianus in this way. Ammianus certainly disclaims his historical ability elsewhere (e.g. XVI, 1, 2; XXIII, 4, 1); and such modest professions are a convention in the later Empire (SOKELAND, *Untersuchung*, V, p. 169 and 341; NORDEN, *Die antike Kunstsprache*, Leipzig, 1898, p. 595). However, although such expressions do appear in some historical works (e.g. EUSEBIUS, *HE*, I, 2; THEODORE, *HE. praef.*; JORDANES, *Get. praef.*, 2; plus those noted above, of which the passage of Jerome is imitated by FREDEGARUS V. *praef.*), such modesty is rare in historians of the grand manner, who prefer to set forth their qualifications to write history (exceptions are MENANDER PROTECTOR, *fragm.*, 2 and 35a; THEOPHYLACTUS, *praef.*, 16; OLYMPIODORUS, *fr.*, 1 also apologizes, but says that he is only writing *ἀπὸ συγγραμμῆς*). It is above all the panegyrists who display modesty. MENANDER lays it down as a rule that one must profess inability to do justice to one's theme (*Sp.*, III, p. 308, 9 ff. Cp. JULIAN, *Or.*, I, 1A; II, 54B; LIBANIUS, *Or.*, 59, 211; *Pan. Lat.*, II, 1, 3; VI, 1, 3). Perhaps Ammianus intended the phrase which he used to be ambiguous. The profession of inability and the tribute to the reigning Emperor would mask the reference to the necessity of treating the present in a panegyric manner and the implication that the freedom of the historian who writes about the reigning Emperor is curtailed. This implication, I have already suggested (p. 94), is present also in the words with which he begins book XXVI. On the other hand, perhaps these subtleties are unnecessary and Ammianus is merely advocating the writing of classicizing history in the grand manner as opposed to other forms such as ecclesiastical history and chronography.

(144) E.g. XIV, 6, 2; XV, 1, 1; XVI, 1, 3; 12, 69; XVIII, 6, 23; XXVI, 1, 1; XXVII, 9, 4; XXIX, 1, 15; XXXI, 2, 12; 5, 10; 16, 9.

(145) XXI, 16, 1; XXX, 8, 1; XXXI, 14, 1.

went before the army to explain his decision. He told them that the enemy, in fear, had asked for peace and he suggested that it should be granted for various reasons — in order to avoid the dangers of battle; to win the enemy's friendship; to conquer without bloodshed; because voluntary submission fashions a firmer yoke than conquest by force; and since he, as a peace-loving prince, preferred moderation and humanity (XIV, 10, 11-15). The soldiers agreed with these words, but for a different reason — "The army was extremely eager for the following reason. From frequent campaigns it knew that Constantius' fortune was active only in civil wars, whereas when foreign wars were afoot, their outcome was often disastrous" (16).

The same Emperor, when preparing to face the rebel Julian, addressed his troops, confessing his mistake, in his kindness (*humanitas*), of appointing his cousin Caesar: "While you were fighting the foreign tribes who were raging throughout Illyricum, Julian, whom I had appointed to the defence of Gaul, fought a few minor skirmishes with the half-armed Germans. Like a madman, carried away by his success, he has overreached himself and, in alliance with a few auxiliaries, whom their natural savagery and lack of hopes have made reckless even to destruction, he has trampled justice underfoot and conspired to harm the state." (XXI, 13, 13). In the situation this would certainly be the right sort of thing for the Emperor to say to his soldiers, but from the preceding account of Julian's achievements in Gaul and the description of how he was compelled to revolt, not only by his own troops but also by the action of the Emperor himself, it is clear that Ammianus would regard this version as hypocrisy.

When Valentinian I had been acclaimed Emperor, the army demanded that he select a co-ruler. The new Emperor spoke to the troops, admitting that their demand was reasonable, and continuing: "Fortune, which aids good counsels, will, I hope, grant me a man of sober character. My search will be as diligent as I can possibly make it. For, as philosophers tell us, not only in the case of sovereignty, where the dangers were greatest and most frequent, but even in private and everyday relationships a wise man should receive a stranger (*alienum*) into friendship only when he has assessed him, and not assess him after acceptance" (XXVI, 2, 9). The implication here is clear, that Valentinian is thinking of selecting the best man, who is likely to be a stranger. When later he asked his generals whom he should select, Dagalaifus underlined his dilemma: "Most glorious Emperor, if you love your kin, you have a brother. If you love the state, seek someone else to

make Emperor" (4, 1). But the Emperor had already decided upon Valens, his brother, a disastrous choice in Ammianus' opinion.

The historian records an exchange of letters between Sapor, the Persian king, and Constantius. The former demands the cession of some Roman territory and threatens war if the demand is refused (XVII, 5, 3-8). The Emperor sends a noble reply. The Empire wants peace, but it is strong and will fight to maintain its integrity (5, 10-14): "For it cannot be doubted that we sometimes awaited hostilities rather than began them, not through lack of will but because of our policy of moderation; and when we are attacked, we defend our territories with a very valiant spirit and in the knowledge that we are in the right" (5, 14). But when the Persian attack comes, the competent Ursicinus is superseded by the inept Sabinianus (XVIII, 5, 5), who spends his time feasting amongst the tombstones at Edessa and refuses to fight even to relieve the town of Amida (XVIII, 7, 7; XIX, 3). Constantius, sunk in intrigue and walled in by eunuchs, is warned by Ursicinus, "Let the Emperor know ... that while he is swayed by the will of eunuchs, next spring not even he in person, should he take the field with his full army, will be able to prevent the dismemberment of Mesopotamia" (XX, 2, 4). The only result of this warning is the dismissal of Ursicinus.

Many scholars have insisted that Ammianus told the truth⁽¹⁴⁶⁾. Which he did, as he saw it. But insistence upon the truth is one of the stock apologies of ancient historiography and does not itself guarantee greater objectivity. One need not go so far as to impugn the reliability of all Roman historians⁽¹⁴⁷⁾, but the honesty of the writers of the later period often left something to be desired⁽¹⁴⁸⁾. Moreover, to the writers of the Empire the word "truth" seems to have carried two different implications. Usually it refers, as one might expect, to the objectivity which the writer claims to impart to his narrative. Thus, when describing some squalid activities at Rome, Ammianus says, "Nowhere shall I intentionally depart from the truth" (XIV, 6, 2). But occasionally, when the writer proclaims his adherence to the truth, he is advertising not so much his objectivity as the fact that he is exercising freedom of speech. He is emphasizing his critical tone and his opposition to another, usually official, version of events; an approach which itself places objectivity in

(146) E.g. Eusebius, p. 12; Frankel, *l. c.* p. 29; in *Seutonius*, RAL, 1930, p. 389.

(147) As T. S. Brown, *Aspects of the Study of Roman History*, NY, 1962 (1923), ch. 14, attacked by Mommsen, *ICS*, 1935, p. 44-7.

(148) Cf. Mommsen, *Studies in Historiography*, NY, 1966, p. 143.

danger. This attitude Ammianus himself betrays, especially in his last five books, in the insistence that *now* he is free to speak the truth. This tendency to equate truth with opposition is far stronger in Ammianus' contemporary, Eunapius, who launches a direct attack upon official versions of events or versions from the lips of influential men⁽¹⁴⁹⁾, with the result that, although he frequently insists upon the truth⁽¹⁵⁰⁾, he writes an obviously biased work.

Ammianus is one of the most honest of the Roman historians. But even his objectivity has been called into question a number of times and in various respects⁽¹⁵¹⁾. Generally his lack of objectivity arises from his prejudices; but the influence of the theory of suitability also plays a part⁽¹⁵²⁾. Thus Ammianus says of history: "Its purpose is to touch upon important matters, not to pry into the insignificant details of minor events" (XXVI, 1, 1). *Minutiae* are rejected as unsuitable; and the judgement upon unsuitability is dictated, of course, by the writer's own prejudices⁽¹⁵³⁾.

Ammianus' somewhat ambiguous position in respect of truth has already been noted in his treatment of the cruelty of some of the Emperors. Difficulties also exist in the narrative on Julian. At the beginning of his account of the Caesar's achievements in Gaul, Ammianus comments that his subject's career *ad laudatiam paene materiam pertinebit* (XVI, 1, 3)⁽¹⁵⁴⁾, though he insists strongly upon his own veracity: *quod non falsitas arguta concinnat, sed fides integra rerum absoluit*. *Paene* is the key word: the material is almost, but not quite, panegyric. Ammianus does not, of course, say that he is writing panegyric. Quite the opposite: he says that he is determined not to be an encomiast.

Nevertheless, to Ammianus Julian is close to the ideal of the king, so that the danger of falling into panegyric is considerable and not always

avoided successfully. At times one can observe in the narrative tension between, on the one hand, the tendency to idealize Julian and, on the other, the desire to tell the truth. It is reflected in the contrast between the faultless hero of the Gallic narrative and the more fallible Augustus in the East. For the western events Ammianus had sources which were probably very enthusiastic, none too discriminating and difficult to check. He himself was far away from most of these events, and so it was easy to stress the ideal. But for events in the East the historian was himself a major source and in a position to check much of his other information. Since he was directly affected by the realities (especially Julian's attempt to fill the *curiae*), he was less inclined to idealize. When he comes to the *elogium*, the ideal of the king regains its influence, so that Julian's faults are again played down.

The tension is at its greatest in the account of the Persian expedition and the death of Julian. Faithful to the truth Ammianus ignores the charge, later advanced by Libanius, that a Christian in the Roman army killed the Emperor⁽¹⁵⁵⁾; and in contrast with Zosimus (III, 32, 9), who lays all the blame for the failure of the expedition upon Jovian, he admits that it began to fail before Julian's death and faults the latter for burning the ships (XXIV, 7, 3-6). But he encounters difficulties in his attempts to come to terms with the failure and death of his hero. There are traces of various approaches. The *hubris-nemesis* scheme is considered. When Julian conceived the war, *ultra homines iam spirabat* (XXII, 9, 1). When rashly deciding to burn the ships, he rejected the pleas of his generals — *ille unidae semper ad ulteriora cupiditatis* (XXIV, 7, 3). The prodigies and omens, warnings from the gods, were uniformly terrible, but all ignored⁽¹⁵⁶⁾. An act of injustice is emphasized, the execution of an official because the supplies, for which he was responsible, were late; they arrived on the next day (XXIII, 5, 6).

A slightly different factor is introduced into the descriptions of the burning of the ships and Julian's fatal entry into battle without body-armour (XXV, 3, 3-6). Here Ammianus mentions a personal fault which he has discerned in Julian, his rashness (a characteristic which is not noted by Zosimus in his account of these events)⁽¹⁵⁷⁾.

(149) EUNAPIUS, *frags.* 73; 74; 75, 1.

(150) EUNAPIUS, *frags.* 9; 28; 41; 62.

(151) THOMPSON, Cambridge, 1947, esp. chs. 4 and 6; MOONEY, Michigan, 1955; DI SPIGNO, *RAL.*, 1950, p. 390, 393-5; WARRINGTON, *BzZ.*, 1956, p. 55-64; ROSEN, *passim*; SCHEDA, *Historia*, 1966, p. 380-3.

(152) PACHE, *I Observed*, p. 41-4, 49 ff. Cf. ROSEN, esp. p. 231 ff., who examines the influence of the literary theory of *τὸ ἀλλότῳ* on the veracity of Ammianus.

(153) Especially social prejudices. SELEM, *ASNP*, 1964, p. 151-2; NERONOVNA, *BCO*, 1965, p. 260.

(154) FRANKLE, A. & A., 1962, p. 31 refers these words solely to the account of Julian's campaigns against the Germans. But the *elogium*, which reviews the whole career of Julian, takes a similarly laudatory view (which appears also during books XXI-XXIV, despite the criticisms offered there). Thus the statement can be taken to refer to the whole narrative.

(155) LIBANIUS, *Or.* 18, 274 ff. (probably to be dated to 365 A.D. according to R. FORSTER, *Libani Opera*, Leipzig, 1903-27, II, p. 222-4). SOZOMEN, 6, 2 says that it was likely that a Christian killed Julian. AMMIANUS, XXV, 6, 6 says that immediately after the battle a rumour was circulating that a Roman had killed the Emperor.

(156) XXII, 13; 9, 15; XXIII, 1; 2, 4-8; 3, 3; 5, 4-14; XXIV, 6, 17; XXV, 2, 4-8.

(157) ZOSIMUS, III, 28, 2-3; 29, 1.

But the historian is clearly unhappy that his hero should fail so badly and die in such a way. When he comes to describe Julian's death, he lays aside the *hubris-nemesis* scheme. The Emperor, in a speech which is a *consolatio* (158), bids a fatalistic welcome to death: "the gods of heaven themselves have given death to some men of the greatest piety as their greatest reward" (XXV, 3, 15); "nor shall I be ashamed to admit that long ago I learned from the words of prophecy that I should die by the sword" (19). Nevertheless, Ammianus still feels that he must add a defence of Julian, in which he justifies the Persian expedition (which he himself regards with approval (159) and treats, when it begins to fail, as something heroic and tragic) (160) and points to the Emperor's success when he dealt in a similar fashion with the Germans. He accuses Constantine I of beginning the hostilities, "when he greedily gave credence to the lies of Metrodorus" (XXV, 4, 23), suggesting that an unjust war, begun by a predecessor, was the cause of Julian's failure and death (161).

Ammianus' approach to the history of Julian is the same as for the other Emperors. The ruler is central to the thought; the thought is highly moralizing. The actions of the ruler are treated as illustrations, this time mostly of virtues. Thus Julian approximates to the ideal of the king and stands himself as a model (162). Again this parallels the approach of the panegyrist: "the world is shaped after the example of its ruler." (163).

Ammianus did not set out to compose a panegyric upon Julian. If he seems to have produced one, it is because he honestly thought that the Emperor approached his ideal. At times his enthusiasm carried him away, not only in praise of his hero, but also in censure of his villains whom he conceived to have fallen short of Julian's high standards. As in

(158) STELLA, p. 123-6. The account of Julian's death offers some similarities with Plato's description of the last hours of Socrates (see SCHÉDA, *Historia*, 1966, p. 380-3 and cp. ROSEN, p. 166). Schéda argues that the account in Ammianus is (or rather derives from) an imitation and is therefore of little historical value. But the scene could be authentic, since Julian (who seems to have been in control of his senses up to the unconsciousness which preceded death) may well have tried to imitate Socrates. As Schéda himself admits (p. 381), noble last words were conventional and commonplace (e.g. TACITUS, *Ann.*, XIV, 59; XVI, 34).

(159) XXV, 4, 25-6.

(160) XXIV, 8-XXV, 3. A detailed analysis is offered by ROSEN, p. 149-66.

(161) The story is told at length by CREPENTUS, (PG, 121), col. 561.

(162) Cp. VON GLITSCHMID, p. 583.

(163) CLAUDIAN, *IV Cos. Hon.*, 299-300. Cp. PLINY, *Pan.*, 45-6; 65, 3; CLAUDIAN, *Cris. Stil.*, I, 168-9; EUSEBIUS, *Laus. Const.*, I (PG, 20, col. 1329A). Also SENECA, *De Clem.*, II, 2, 6; HERODIAN, I, 2, 4; VELLEIUS, II, 126, 4.

most Roman historiography the view is black and white; and much of Ammianus' distortion can be traced to such an approach, rather than to cynical disregard for the truth.

The *History* as it stands may or may not be a paean to Julian. But without him it would be something wholly different — an unrelieved chronicle of despair (164), lacking much of the basically didactic tone which the historian has given to it. Originally the work ended at book XXV, complete and orthodox in purpose — a succession of rulers castigated, culminating in Julian the ideal king, offering hope for the future despite his early death. Adrianople strengthened the assumption that underlies the *History*, that an unsuitable ruler ultimately means ruin and that a good Emperor can bring salvation to the state. The temptation to continue was thus too great to be resisted, and so books XXVI-XXXI were produced, more uniformly pessimistic, but still carrying hope and confirming the lesson offered in the earlier part. Before describing the campaign which led to Adrianople, Ammianus turns to preaching. In a digression on disasters of old he points out that in the past the Romans had suffered just as badly as at Adrianople, but then they had recovered because of their virtues. What is needed, he suggests, is a moral regeneration (165).

(164) So AUFFRACH, p. 46 E.

(165) XXXI, 5, 14: *verum non post calamitosa dispendia res in integrum sua restituitur huiusmodi, quod nondum solutis uisae mollior sobriis uentibus infecta nec ambitionis mentis nec flagitioris quiescentibus inhibetur.* Cp. EUSAPIUS, *fr.*, 58: *non asperius se uisere uentibus nec flagitioribus quiescentibus inhibetur.* Cp. EUSAPIUS, *fr.*, 58: *non asperius se uisere uentibus nec flagitioribus quiescentibus inhibetur.*

CHAPTER VI

The Troubles of the State : Treason, Magic and Divination

Within the political and social system of the later Roman Empire, which was under considerable strain as a result of the military situation and the economic burdens imposed by it, conditions were created which might fairly be called extremely harsh. In many cases the individual Emperors, expressing paternalistic concern for their subjects, attempted to alleviate the individual wrongs inflicted by their own officials. But the latter were often anonymous and incapable of detection within the echelons of the bureaucracy, and the exigencies of the times forbade any real hope of reform. The Emperors therefore failed and their failure is illustrated not only in the lawcodes, which offer repeated, and therefore apparently ineffectual, fulminations against the abuses of the times, but also in the histories of the period, which transfer to the Emperors as individuals much of the blame for the very same abuses which they tried at times to stop.

Although criticism of the Emperors is to be found throughout Ammianus' narrative of the reigns of Constantius, Valentinian I and Valens, it becomes especially strident in a group of episodes which form a conspicuous part of the *History*, namely the various trials and investigations of political crimes, mostly rebellion and treasonable magic (and allied practices). On at least eighteen occasions Ammianus mentions or describes these processes⁽¹⁾, detailing far more than that number of individual cases and claiming that these are only representative; many more have been passed by in silence⁽²⁾. Such inquisitions are classed with civil wars as scourges of the Roman people — "Yet amidst these

troubles, as if by some custom handed down from antiquity, to replace civil wars the blast of the trumpets announced some trumped up charges of treason" (XIX, 12, 1).

By the fourth century A. D. superstition and belief had to a considerable extent displaced reason; and belief in the magic arts, which had been increasing for two centuries or more, reached a climax⁽³⁾ which was more or less maintained by Christians and non-Christians alike⁽⁴⁾ for hundreds of years thereafter. Often even the philosopher was an irrational man, accepting oracles, prodigies, demons and such⁽⁵⁾. Neoplatonism, the prevailing philosophy, was more than half a religion, and many of its more famous exponents in the fourth century, such as Maximus of Ephesus, practised theurgy and other types of magic⁽⁶⁾. As early as Apuleius (*Apol.*, 2, 7) the word *philosophus* was used for a *magus*; later for *astrologus* and other such practitioners⁽⁷⁾.

The reaction of Julian had patronized the wonder-workers like Maximus, as well as the literary pagans such as Libanius. The reign of Valens brought confusion of the two groups and danger to both. Libanius, for instance, was accused of utilizing the magic of an astrologer⁽⁸⁾. Many Christians were by no means averse not only to causing discomfort (and worse) to the pagans, but also to the large-scale destruction of their literature. At Antioch the Christian Emperor Jovian burnt the library of his predecessor Julian, an action not recorded by Ammianus⁽⁹⁾. In such an atmosphere of intolerance, antagonism and ignorance it is small wonder that many pagan works of a perfectly unexceptionable nature — legal, scientific and even geometrical⁽¹⁰⁾ — were

(1) MacMullen, *Cambridge Mus.*, 1967, p. 121-27; 322-25; Bonner, *TAPA*, 1932, p. 34-44.

(4) Maury, p. 101 ff.; Barr in Momigliano, *Oxford*, 1963, p. 103 ff.; 114 ff.

(5) Starr, *NY*, 1965, p. 301 ff.; Curnont, *NY*, 1960, p. 53 ff.; MacMullen, *op. cit.*, p. 108 ff.

(6) Doods, *JRS*, 1947, p. 55-67.

(7) Examples and references in MacMullen, *op. cit.*, p. 320-21, n. 16.

(8) Libanius, *Or.*, I, 43. Libanius was himself accused during his lifetime of magical practices (Bonner, *TAPA*, 1932, p. 42-44). For a later tradition that Libanius was one of those who dined in Valens' successor see n. 33.

(9) John of Antioch, *fr.*, 181; Sozomen, *Tellivus*, both quoted by Fournier, *TAPA*, 1936, p. 121, who implies that Ammianus purposely omitted the incident; unnecessarily, since in Ammianus the reign of Jovian was merely an annex to that of Julian, and he was not concerned to give details in his account of it.

(10) *C. Aust.*, IX, 18, 2 (Diocletian and Maximianus, 294 A.D.): *artem geometricam discrete atque exercere publice interest. Ars autem mathematica damnablem est et interdicta iunioribus*. *Mathematica* = *astrologia*, of course; but public doubts about the status of geometry are implied.

(1) XIV, 7, 7; 18-21 and 9, 1-8; 5, 1-9; XV, 2; 3, 1-2; 3, 7-11; 6; XVI, 6; 8, 1-7; 8, 8-9; XVIII, 3, 1-5; XIX, 12; XXII, 3; XXVI, 3, 2-5; 10, 6-14; XXVIII, 1, 3, 4-6; XXIX, 1, 5-2, 20; 2, 21-28; XXX, 5, 11-12.

(2) E.g. XIV, 9, 9; XVI, 8, 10; XXIX, 2, 24.

considered dangerous by their owners and destroyed in times of stress⁽¹¹⁾.

Earlier Roman lawyers had maintained a careful distinction between good and bad magic, the potions of the magician being defined in the same way⁽¹²⁾. White magic was tolerated in the ancient world, whereas black was regularly persecuted⁽¹³⁾. Members of the ruling class both feared its power in the hands of their enemies and utilized it for their own purposes.

With the growth of belief in, and use of, magic, the laws against it became harsher⁽¹⁴⁾. Moreover, not only was the distinction between the various types of magicians, conjurers, poisoners and so on becoming blurred, but also, in the atmosphere of general suspicion, that between black and white magic. Since there was no sharp borderline between the two types, if a person could perform white, why not black? Perhaps he (or she) had. Hadrian ruled in the case of *malefici* that "the intent is to be considered, not the result"⁽¹⁵⁾. The time of panic was the time of danger. Then, as happened during the persecution of magic at Antioch in Valens' reign, a harmless old woman, dispensing simples and charms against illness, could find herself arrested and condemned as a dangerous magician (XXIX, 2, 26).

Magic was not necessarily treason, but would still bring death if black. Astrology was a different case. Suspected by the Romans from its introduction into Italy, on a number of occasions its practitioners were expelled from Rome and the peninsula⁽¹⁶⁾. The earliest edict of expulsion (praetorian of 139 B. C.) exhibits a tone of disbelief, branding astrologers as charlatans⁽¹⁷⁾. Credence soon came: Augustus and Tiberius believed, as did most of the contemporary upper class⁽¹⁸⁾. With

belief came fear of prediction. Augustus, afraid that it would encourage plotters, in 11 A. D. banned throughout the whole Empire the consultation of the stars concerning his death or the death of anyone else, and all consultations without witnesses⁽¹⁹⁾. By the third century A. D. at the latest, astrologers, whose power to predict from the stars which governed events had been extended into a power to control the stars themselves, were credited with magic powers: controlling the stars and therefore events, they could bring harm or death⁽²⁰⁾. Now the Emperor had to fear the astrologer as well as the effect of his predictions. Philosophers, too, entered the confusion, since some Neoplatonists claimed, amongst other magical powers, the ability to control the demons of their cosmos⁽²¹⁾.

In 357 A. D. the Emperor Constantius II had banned all forms of divination under which, in a spirit of intolerant confusion, he subsumed the arts of "magicians and all the rest who are commonly called evil-doers (*malefici*) because of the enormity of their crimes," as well as *haruspices, mathematici, harloti, uates, augures* and *Chaldaei*⁽²²⁾, and he threatened torture to any of these individuals, whatever his rank, who might be found at his court or that of his Caesar (C. Th., IX, 16, 6). All such practices are here regarded as treasonous⁽²³⁾.

The Roman law of treason was extremely imprecise⁽²⁴⁾, covering during the Imperial period not only active hostility to the state (*perduellio*), but also many other actions which impaired the power and glory of the state and which, together with *perduellio*, comprised the crime of *laesa maiestas*⁽²⁵⁾. Thus there were certain specific offences punishable

(11) On the burning of books see p. 110-11.

(12) GAIUS, *Dig.*, I, 16, 236.

(13) For persecution of black magic see PERR, *TAPA*, 1932, p. 269 ff. (cp. C. Just., IX, 18, 1 [Antoninus, n.d.]: *plus est hominem extinguere veneno quam occidere gladio*). For toleration of white magic see C. Th., IX, 16, 3 (317-9 A.D. ?).

(14) MacMURDO, *op. cit.*, p. 121-27.

(15) CALISTHENES, *Dig.*, XLVIII, 8, 14: *voluntas spectatur, non exitus*. Cp. C. Just., IX, 8, 5, 7 (397 A. D.) which equates intent with guilt in cases of treason. On the width and frequency of accusations of magic in the fourth century A.D. see SEYFARTH, *Klio*, 1965, p. 380 ff., who (as is inevitable) uses material mainly from Ammianus.

(16) CRAMER, Philadelphia, 1954, p. 233.

(17) VAL MAX., I, 3, 2: *insidius et inopis ingenis, fallaci siderum interpretatione, quatuordecim mendacis suis caliginem incientes*.

(18) SEXTONUS, *Arg.*, 94, 5 and 12; *Th.*, 14, 4; TACTUS, *Ann.*, VI, 20-21; DIO CASSIUS, LVI, 25, 5. Cp. HERODIAN, IV, 12, 3.

(19) CRAMER, *op. cit.*, p. 249-50.

(20) Cp. the accusation against Libanius' astrologer mentioned in LUCAN., *De.*, I, 41. For the confusion of the types cp. C. Th., IX, 16, 4 (357 A.D.) and JACOBI, in *Diss.*, 2, 2 who tries to define some of them.

(21) On the general blurring of distinctions in respect of the various magic powers see BARN, *op. cit.*, p. 137.

(22) C. Th., IX, 16, 4 (cp. IX, 16, 3; XVI, 10, 2 and 4-6). The view expressed in the text is that of MAURICE, *REL.*, 1927, p. 112-14 and MAURY, p. 110-1K. Against these MAURICE, *REL.*, 1930, p. 472-4 argues that Constantius merely reiterated his father's position. For criticism of Martroy's position see J. SCHWERTZ in *Bursians Jahresberichte*, 246, 1 (1931), p. 121.

(23) Cp. ANTONINUS, XIX, 12, 1: *adversus laesae maiestatis materiae*, of the truth held by Paulus in *Sylogista*, which began as an investigation of treasonable enquiries at an oracle and developed into a general prohibition of magic. If such practices were regarded as treasonous, torture could be used against all involved (C. Th., IX, 35, 1 [369 A.D.], *in maiestatis crimine insidius equis et ceteris*). Also PUL., *lib. Sent.*, V, 29, 2; ANTONINUS, XIX, 12, 17.

(24) H. F. JACOBUS, *A Historical Introduction to Roman Law*, Cambridge, 1932, p. 123-4.

(25) Th. MAURICE, *Römisches Strafrecht*, Graz, 1953 (1899), p. 337 ff.; F. B. LUKAS, *Treason in Roman and Germanic Law*, Austin, 1965, pp. 26 ff. and 62-3.

by death; but there were also wide areas of uncertainty, dangerous if the Emperor were timid. Since he was the head of the state, an attack against the Emperor was regarded as an attack upon the state itself; and not only physical but also verbal assaults were held to be treason and liable therefore to the death penalty⁽²⁶⁾. The area of literary treason was vaguely defined; and many other offences, such as counterfeiting or tampering with the gold coinage or even offering insult to representations of the Emperor, were regarded as treasonous⁽²⁷⁾. A constitution of Theodosius I (*C. Th.*, IX, 4, 1 [393 A. D.]) begins liberally enough: "If anyone, unacquainted with modesty and ignorant of decency, should dare to assail our names with wicked and insolent slanders and, drunken and aggressive, should complain about the present state of affairs, we do not wish him to be punished nor to suffer anything harsh or unpleasant ...". The sting, however, is in the tail: "Therefore let no action be taken and let the case be brought to our knowledge, so that we might weigh the man's words in the light of his character and decide whether the matter should be dropped or pursued". The decision on the nature and seriousness of the insult is claimed by the Emperor himself. The dangers are obvious if he is a nervous ruler or if *maiestas* is in the air, always a time of panic.

Most of the passages in Ammianus' *History* which deal with treason and magic trials are fairly short, a page or two (or less) in length. However, the descriptions of the trials held at Rome during the reign of Valentinian I (XXVIII, 1) and those at Antioch during the reign of Valens (XXIX, 1, 5-2, 20) are of considerable length and detail. This very length (which has occasioned the criticism that they are disproportionate and artistically inferior)⁽²⁸⁾ and the climactic vehemence of the attacks upon cruelty and injustice which Ammianus makes in them argue their importance to him⁽²⁹⁾.

The investigations at Antioch, which quickly developed into a major and bloody inquisition that ruined many persons of high rank and sent through much of the East a shock which is echoed in the pages of other

sources besides Ammianus, began in an unspectacular fashion. A certain Procopius alleged that two palatine officials, Anatolius and Spudasius, had made an attempt upon the life of the count of the privy purse⁽³⁰⁾, Fortunatianus. The latter handed over for investigation by Modestus, the praetorian prefect, two men, Palladius, said to be a hired poisoner, and Heliodorus, an astrologer⁽³¹⁾. Palladius, to save himself, offered information about a far more serious plot, claiming that others, Fidustus, Irenaeus and Pergamius, had sought by divination the name of Valens' successor. Fidustus, under interrogation, named also Hilarius, an ex-palatine, and Patricius who was "skilled in soothsaying" (XXIX, 1, 7). The accession was foretold to them of an excellent prince, whom they conjectured to be Theodorus, a notary. Theodorus was sent for, and, after preliminary investigations (1, 12), the trials began. Pergamius, brought first to the question, named an endless chain of accomplices and was executed *ut consarcinante nimis ardua*, says Ammianus (1, 25). After other deaths the case of Theodorus came up. Hilarius and Patricius described the method of divination, saying that Theodorus knew nothing of it. Theodorus himself claimed that he had tried without success to report the affair, and he was supported in this by one Euserius, who had been betrayed by Fidustus (1, 9). Nevertheless, he was convicted by a letter written in his own hand, in which he expressed a willingness to revolt (1, 35). Then follow notices of the trials of others and the punishment of the condemned, including Alypius, who was accused of black magic and exiled, and whose son was condemned to death, but saved *caso quodam prospero* (1, 44). John Chrysostom clarifies this. As the son was being led out for execution, the people at the circus where it was being staged cried out for his pardon, and Valens relented⁽³²⁾. But the deaths did not end. Palladius named others, some as accomplices in the plot, some for unrelated offences, often trifling. Nevertheless, they died. Some notable persons were condemned but not to death, including the consular brothers Eusebius and Hypatius (2, 9-11). One man, Numerius, alleged by Ammianus to have been guilty of magic practices, escaped through the Emperor's favour (2, 17). And amidst all this carnage the informers Palladius and Heliodorus reaped great profit (2, 6-8 and 12 ff.); while Festinus, the governor of Asia, jumped onto the bandwagon

(30) His rank is given by Zosimus, IV, 14, 1.

(31) Palladius, *veneficus* (XXIX, 1, 5); Heliodorus, *fatum per genitum interpret* (*ibid.* Cg. 2, 6).

(32) *De incomprehensibili Dei natura*, 1, 3 (PG, 48, col. 726-8).

(26) Cramer, *JHI*, 1945, p. 170 ff.

(27) On counterfeiting see Grierson, *The Roman Law of Counterfeiting*, p. 240-61. For insults see Suetonius, *Tib.*, 51 (carrying a coin bearing the Imperial image into a lavatory); *HA*, *Caracalla*, 5, 7 (urinating near to an Imperial statue). For further examples of insults see Strahl, Bonn, 1963, p. 53 ff.

(28) So Gemzani, p. 304-5, who thinks that it is a result of a change of source and the servile copying of information.

(29) Cf. Demandt, p. 50; Anderson, p. 129 ff.

by ordering trials and executions for magic in his province, in many cases for trifling offences (2, 21-8).

Other sources confirm this account both in general and in some details, and themselves add further information. There was a treasonable attempt to discover by means of divination the name of Valens' successor⁽³³⁾. A plot existed and Theodorus was in it, from the beginning according to Zosimus⁽³⁴⁾. The attack by magic upon count Fortunatianus is confirmed⁽³⁵⁾, also the profit and immunity enjoyed by Palladius and Heliodorus⁽³⁶⁾, the extension of the attack to philosophers in general⁽³⁷⁾ (both for knowledge of the original plot⁽³⁸⁾ and for different reasons), the activity of Festinus in Asia⁽³⁹⁾, the names of some of the victims⁽⁴⁰⁾. The terror and insecurity of the times is stressed — informers were everywhere⁽⁴¹⁾, attacking people for their wealth⁽⁴²⁾; the prisons were overflowing⁽⁴³⁾; men executed like hens⁽⁴⁴⁾, many of them innocent⁽⁴⁵⁾.

During his account Ammianus notes that the trial judges had burned numerous books which they suspected as being unlawful (i. e. on magic or other forbidden arts)⁽⁴⁶⁾, although many of them were devoted to

(33) ZOSIMUS, IV, 13, 3-4; SOCRATES, 4, 19; SOZOMEN, 6, 35; *Épít. de Coes.*, 48, 3-4. Cp. PHILOSTORGIUS, 9, 15. ZONARAS, 13, 16 and CASSIODORUS (PG, 121), col. 565 describe a different method of divination, which had the same result. They also implicate Libanius and Iamblichus.

(34) So ZOSIMUS, IV, 13, 3. SOCRATES, SOZOMEN and PHILOSTORGIUS, and perhaps LIBANIUS, *Or.*, 1, 171, agree with Ammianus that Theodorus entered the plot after the divination. The *Épít. de Coes.* is ambiguous.

(35) ZOSIMUS, IV, 14, 1.

(36) ZOSIMUS, IV, 14, 4.

(37) ZOSIMUS, IV, 14, 2; JOHN OF ANTIOCH, *fr.* 184, 2 (cp. LIBANIUS, *Or.*, 1, 171-2 and 177-8; ZONARAS, 13, 16).

(38) EUNAPIUS, *VS.* 480 (cp. AMMIANUS, XXIX, 1, 42).

(39) ZOSIMUS, IV, 15, 2-3; EUNAPIUS, *VS.* 480; *fr.* 39. Both call him Festus.

(40) ZOSIMUS, IV, 15, 1. Other sources add other names: SOCRATES, 4, 19 (Theodosius); LIBANIUS, *Or.*, 1, 173 (Adelpius); ZOSIMUS, *loc. cit.* (Andronicus).

(41) LIBANIUS, *Or.*, 1, 171.

(42) ZOSIMUS, IV, 14, 4.

(43) ZOSIMUS, IV, 14, 3.

(44) EUNAPIUS, *VS.* 480: ἀκαταπαύτως ὡς περ ἀλεκτορίδων ἐν δασέϊ καὶ πυρρῶν καὶ κορυφῶν ἐκείνων ἐκείνη.

(45) SOCRATES, 4, 19; SOZOMEN, 6, 35; PHILOSTORGIUS, 9, 15; ZONARAS, 13, 16.

(46) The official burning of books was a not uncommon Imperial practice. During the Principate the works of persons convicted of literary treason were burned, and the private possession of such books soon became a crime (CRAMER, *JHI.*, 1945, p. 170-71; SENeca, *Controv.*, 10, pr. 5). The destruction of a man's written work was the final loss of freedom, the freedom of appeal to posterity (cp. SENeca, *Stoic.*, 7, 1-3 and 8-9), and the destruction of any hope of literary immortality, so dear to Roman writers. Augustus had burned oracular literature (SURTOMUS, *Aug.*, 31, 1; DIO CASSIUS, LIV, 27, 2-3); and long before the reign of Valens the possession of books on magic had been made illegal. If found they were to be confiscated and burned (PAULUS, *Sent.*, V, 23, 18).

other disciplines including law itself; and in the ensuing panic whole libraries were destroyed in order to avoid the charge of possessing such illegal works (XXIX, 2, 4). John Chrysostom, who, as a young man, was in Antioch at the time, confirms and illuminates Ammianus' version. He found a book which had been thrown away by an unfortunate who had been arrested. A soldier was nearby. John and his friends were terrified. Who would believe that they had merely found the book⁽⁴⁷⁾?

In outline therefore, and in some details, other accounts of the trials at Antioch, though less comprehensive, do substantiate Ammianus' version⁽⁴⁸⁾. But once again, as elsewhere, the historian has embroidered his narrative with rhetorical moralizing which reveals a certain lack of objectivity. The informer Procopius is described as "a restless man with an insatiable desire for causing trouble" (XXIX, 1, 5) and Fortunatianus as "that tiresome dunner" (a characterization possibly explained by the omitted information that he is count of the privy purse) who, when he hears of the attempt on his life, becomes "straightway angered almost to the point of insanity, as a result of his natural irascibility." Given the official discountenance of informers⁽⁴⁹⁾ (which was often not translated into fact), the attack upon Procopius can be justified. However, the description of Fortunatianus as a "tiresome dunner" (unless it is the reason for the attack upon him, which is not made clear) is irrelevant. Indeed one could hardly blame him for his action, since his life was in danger. His behaviour seems to have been condemned by the historian in the light of the subsequent holocaust which he unwittingly created.

In contrast with the representatives of authority, Theodorus, the central figure in the plot, is shown as an attractive character, and the admission of his guilt is left until comparatively late in the narrative (1, 35). Zosimus, on the other hand, quickly and readily admits his implication⁽⁵⁰⁾.

Ammianus sustains his hostility towards the Emperor and the investigators of the plot. When Valens was told of what had been unearthed, "at this his incredible savagery flared up even further, like a fiercely blazing torch" (1, 10). Fair enough, but Ammianus adds that this passion was increased by the base flattery of some, especially the

(47) *Homil. in Act. Apol.*, 38, 5 (PG, 60, cols. 271, 275-6). For another reflection of the insecurity of the times see BASIL, *Ep.*, 178.

(48) For the tradition that Theodorus' plot was a pagan attempt to replace Valens see p. 121.

(49) E. g. C. *Th.*, X, 10, *passim*.

(50) ZOSIMUS, IV, 13, 4 (cp. EUNAPIUS, *fr.* 38).

praetorian prefect Modestus, "who, being daily haunted by fear that he would be replaced, hoodwinked Valens, who was somewhat of a clod, with cleverly thought-out and well disguised flattery and won his favour by calling his unpolished and crude phrases Ciceronian gems and, in order to arouse his vanity, by promising that, if he ordered it, the stars too could be brought forth for him" (1, 11). Modestus may well have spoken thus; it sounds like a typically extravagant courtly manner. But it has little relevance to the case in hand.

Ammianus introduces much material of a rhetorical and repetitive nature, driving home, at times at the cost of irrelevance and even silliness, the cruel and unjust behaviour of the judges. Pergamius, who had confessed his guilt and named a huge number of accomplices, was condemned, according to the historian, "because he was contriving a task too hard" for the judges (1, 25). The blind rage of the Emperor is repeatedly stressed⁽⁵¹⁾, also the cruelty of the tortures, a favourite theme: "their sides were furrowed" (1, 28); "he was butchered with every kind of torture" (1, 44)⁽⁵²⁾. The informers reaped their profits. Heliodorus died and was buried magnificently. Many men of rank, some of them his victims, were ordered to precede the coffin. This final proof (to Ammianus) of the rottenness of the state goads the historian to what is perhaps the most hysterical outburst of wrath in the whole history (2, 12-16).

During the terror men crept about in abject fear (1, 24), and only a few dared to face their persecutors. Amongst these few was Simonides, a philosopher, "a young man indeed, but within our memory the most upright of all" (1, 37). He admitted that he knew of the prediction, but had kept the secret *pro firmitate animi*⁽⁵³⁾. The other condemned were beheaded, but Simonides was burnt alive by order of Valens who was "enraged by his stern constancy" (1, 38). The philosopher "stood motionless as he burned, leaving this life as if he were fleeing an insane master and laughing at the sudden ruin of such trifles" (1, 39). One might doubt that Valens was so vindictive towards an individual. Sozomen (6, 35) says that he burned the diviners as well. Ammianus, it

(51) XXIX, 1, 10, 27, 38 and 42; 2, 10, 12 and 17.

(52) Also XXIX, 1, 9, 23, 33, 35, 36 and 40; 2, 3, 25, 27 and 28.

(53) This was probably no defence, since the laws of the later Empire sometimes held that a person who failed to reveal a plot was himself guilty of treason, e.g. C. 7A, IX, 14, 6 = C. Inst., IX, 8, 5, 6 (397 A.D.).

would seem, is using a common trope, that of the wise man, unmoved in the face of torture or death, defying and defeating the tyrant⁽⁵⁴⁾.

The same rhetoric, aimed at the same targets, is to be found in Ammianus' other accounts of trials for treason and magic⁽⁵⁵⁾. It is far from aimless. Specific and related complaints occur. Anonymous accusations are accepted⁽⁵⁶⁾; informers, a breed which many Emperors professed to reject⁽⁵⁷⁾, are listened to⁽⁵⁸⁾; false charges succeed⁽⁵⁹⁾. Material of trivial importance is given great weight⁽⁶⁰⁾; at times the Emperor wrongly delegates his judicial responsibilities⁽⁶¹⁾; at others the Emperor and his judges overreact to the evidence and fail to distinguish innocent from guilty⁽⁶²⁾, so that a mere accusation can be taken as proof of guilt⁽⁶³⁾; on occasions the Emperor condemns all under a blanket decree (*elotum*)⁽⁶⁴⁾. Judicial corruption is rife⁽⁶⁵⁾; and the laying of charges by informers (who received a percentage of the property of the accused if he were condemned)⁽⁶⁶⁾ and the determination of guilt by the judges is motivated to a great extent by their greed for wealth and property⁽⁶⁷⁾. Worst of all, immense suffering is inflicted upon the victims both innocent and guilty⁽⁶⁸⁾.

(54) E. p. Seneca's *Jpn.*, 78, 17; Suetonius *Tib.*, 81, 5; Val. Max., III, 3, 2-5; Plutarch, *Moral.*, 301E; Cyp. Irenaeus, *Or.*, 1, 46; Sidonius Apollinarius, *Poet. Met.*, 76-78.

(55) The trials at Rome during the reign of Valentinian I have been discussed by Thompson, *Cambridge*, 1947, p. 101-5; Alpert, p. 65-80; Ensslin, p. 28-31. They all accept that Ammianus has distorted the account and suggest as the reason either the writer's sympathy for the Roman senators, who were the major victims, or his fear of Theodosius I, whose father might have been involved in some plot there.

(56) XIV, 1, 2 and 6; 9, 6.

(57) See n. 49.

(58) XXVI, 10, 11.

(59) XIV, 5, 6; XV, 3, 5; XVI, 8, 4; XIX, 12, 1; XXIX, 2, 3 and 9.

(60) XIV, 9, 8; XV, 3, 7; XVI, 8, 1-2, 8 and 9; XIX, 12, 1, 3 and 14; XXVIII, 1, 16; XXIX, 1, 25-28.

(61) XXI, 16, 17; XXVII, 7, 8; XXX, 4, 2.

(62) XIV, 7, 21; 9, 5-6; XV, 2, 5, 9 and 10; 3, 2; XVIII, 3, 5; XXVI, 10, 13; XXVIII, 1, 14, 48 and 45; XXIX, 1, 18.

(63) XIV, 1, 3; 5, 2.

(64) XIV, 5, 5; 7, 2; XXIX, 1, 38; XXX, 8, 1 and 13; Cyp. XXVIII, 1, 31 and Asterius, p. 142-3.

(65) XIV, 1, 3; 7, 7; XXIX, 2, 17.

(66) Monnus, *op. cit.*, p. 877 ff.

(67) XIV, 5, 3; 7, 21; XXVI, 10, 11 and 14; XXIX, 1, 21 and 41; 2, 3 and 5.

(68) XIV, 5, 9; 9, 6; XV, 3, 1-2 and 11; XIX, 12, 7 and 13; XXVI, 10, 13; XXVIII, 1, 55; 6; XXIX, 1, 23-4, 33, 35 and 38-40; 2, 3 and 25.

It is tempting to compare Ammianus' trial descriptions with those which play such an important part in the *Annals* of Tacitus⁽⁶⁹⁾. But there is an important difference. Tacitus, although he does not entirely omit examples of suffering and bravery (such as the descriptions of the enforced suicides, and the courage of Epicharis in *Ann.*, XV, 57, 1-3), is primarily interested in using the trials to illustrate and condemn the development and widening application of the law of *maiestas* and the consequent narrowing of political freedom. Tacitus' interest is more closely political; Ammianus' is moral. His narratives reveal an orgy of persecution and savagery and an overwhelming catalogue of horrors; his concern is clearly with the dangers and sufferings of the individuals who face this ordeal at the hands of unbridled and often corrupt power which transforms judicial enquiries into uncontrolled reigns of terror where "neither legality, nor conscience, nor equity separated truth from the lies" (XXIX, 2, 3).

In a number of passages Ammianus intrudes into the narrative to state clearly his own position. The lawful Emperor is the "champion and defender of good men, and the source of safety for others" (70), the regular claim of Imperial propaganda. In view of this it is right that he be defended by all, and to this end the Cornelian Laws allowed torture of persons of any rank in cases of treason (XIX, 12, 17). Nevertheless, the Emperor must hesitate long before condemning a man and above all must not allow a fit of rage to drive him to excess (71), lest the people seem "to be subject not to a constitutional power, but to an arbitrary and unlimited despotism" (72). In such a situation corrupt men, by working on the Emperor's fears, could easily pervert the course of justice (73), and the function of the Emperor, *cura salutis alienae* (XXIX, 2, 18), would be negated. Ammianus rejects the doctrine, current in official circles of his day, that the will of the Emperor is law (74). He also clearly rejects the extreme position taken by Constantius II, who persecuted all forms of divination and magic (75). The historian's position on the treatment of magic, astrology and other such practices by the law

seems to have been traditional and similar to that of Constantine I, who accepted and confirmed the old Roman approach to the problem, forbidding the practices in private of *haruspices* and *sacerdotes* and all magic aimed at life, health and chastity (*C. Th.*, IX, 16, 1-3), but expressly sanctioning the public activities of *haruspices* and white magic for health and agricultural purposes (76).

On occasions Ammianus goes further. In censuring the processes where there is a crime but where, in the historian's opinion, the Emperor or his judges overreact (77), he demands that even strict legality be tempered with good sense and humanitarian principles. He is highly critical when the Emperor shirks his judicial responsibilities (78) and allows a free rein to corrupt subordinates, or when he and his officials deal too harshly with their victims, inflicting excessive torture upon them (79). The description of the injudicious criticisms of the current regime made by a provincial governor, Africanus, and his guests and their torture and imprisonment which was the result (80), illustrates Ammianus' attitude. By law they were guilty, but the historian's sympathy is with the accused. It seems that Ammianus, while accepting the right of the Emperors to execute persons for hostile activity against the state, would, like Tacitus, reject many of the charges involving a diminution of the majesty of its ruler. He defends the right of the Emperor to protect himself from attacks upon his person (81), but not from all criticism. And his ideal of behaviour is that of Julian who, when a man was accused by his enemy of treasonous designs and the manufacture of a purple robe was offered as proof of the charge, merely sent the accused a pair of purple shoes to complete the outfit (XXII, 9, 10-11).

As well as the trials, there are frequent descriptions or mentions of acts of injustice during the narrative on the reigns of Constantius II, Valentinian I and Valens, all of which give the impression that the age

(69) *C. Th.*, IX, 16, 3; XVI, 10, 1.

(70) *Cp. DEMANDT*, p. 89-91; *CAMUS*, p. 114. In XXVIII, 3, 4 Ammianus praises the elder Theodosius for refusing to allow widespread inquisitions to be set afoot.

(71) *Cp. AMMIANUS*, p. 163.

(72) At times Ammianus seems to confuse judicial torture with punishment, as when he describes how Hilarus and Patricius were *angustus male mulctati* after they had given their evidence (XXIX, 1, 1). *Cp.* I, 24, 5, 501. This probably reflects a quite common situation in which torture was regarded as punishment, even when guilt had not yet been proven (e.g. *C. Th.*, VIII, 1, 8 [365 A.D.]; IX, 16, 8 [358 A.D.]; IX, 35, 2 [376 A.D.]; *Ulpianus*, *Op.*, 28, 8-20).

(73) XV, 3, 7-11 (*cp.* XVI, 8, 3 where it is said that they were put to death).

(74) XIX, 12, 17; XXIX, 1, 15 ff.

(69) *ROGERS*, *TAPA*, 1952, p. 279-311 and *JRS*, 1959, p. 90-94; *MENDALL*, *JCS*, 1935, p. 20 ff.

(70) XIX, 12, 17 (*cp.* XXIX, 1, 15-17).

(71) XIX, 12, 18; XXVI, 10, 12; XXIX, 1, 18.

(72) XIX, 12, 18: *licentia regis subiecti non potestate*.

(73) XXVI, 10, 10; XXIX, 1, 19.

(74) See p. 150-1.

(75) See p. 197.

was one of great insecurity. Much of this, caused by the depredations of greedy officials and soldiers, was of an irregular nature and opposed by the central authority. But there also seems to have been insecurity of another sort, almost institutionalized, which was caused by fear of accusation of treason (or magic etc.) and which developed into full-blown terror during the trials which are periodically described. This insecurity is well illustrated by the predicament of the general Ursicinus when he was appointed judge for the trial of the plotters against Gallus (XIV, 9, 1-2). Associated, so it is claimed (3), with corrupt accusers and judges as a mere figurehead and in fear of the danger which threatened him (the precise nature of which is never made clear), he secretly informed the Emperor Constantius of the proceedings and asked for his help. "But as a result of his excessive caution he fell into a worse pitfall, since his rivals set dangerous traps for him at the court of Constantius" (2). The thought is somewhat obscure and the story may well have been a figment of the imagination of the disaffected Ursicinus. But the air of insecurity does seem genuine and is paralleled elsewhere in relationships with the central government (in, for instance, the nervous and at times almost querulous *Relationes* of Symmachus). Whichever course Ursicinus takes he is wrong. Later he ventured to censure the Emperor directly and was cashiered (XX, 2, 4-5). Perhaps he was lucky. Ammianus offers evidence that criticism of the Emperor could lead to imprisonment and even death for the critic⁽⁸²⁾. It was, he asserts, even dangerous to speak in the seclusion of one's own house: "and so even the walls, the sole sharers of a man's secrets, were feared" (XIV, 1, 7) — particularly horrible to the Romans, who had strong feelings about the inviolability of the home⁽⁸³⁾.

On occasions feelings of real terror emerge from the narrative. During his description of Maximinus' inquisitions at Rome Ammianus says that a certain Cethegus was beheaded for adultery, one Alypius banished for a trifling fault and others executed. He continues, "Each man, seeing in their miseries the mirror, as it were, of his own danger, dreamed of fetters and torture and dark dungeons" (XXVIII, 1, 16). Even more insistent is the emphasis upon terror (which the historian himself experienced) in the narrative on the inquisitions at Antioch, when, it seemed, each man feared that he would be the next to be dragged off to

(82) XV, 3, 7-11; XXVIII, 1, 20; 6, 20 and 2 (cp. XX, 11, 5).

(83) Wieszowski, p. 29-30.

prison: "We saw many condemned to death after terrible tortures, and everything is in a jumble and confusion as if in darkness" (XXIX, 1, 24. Cp. 1, 13, 23 and 26-7): "For, to speak briefly, at that time all crept about as if in the darkness of Hell, fearing what the guests of the Sicilian Dionysius feared" (XXIX, 2, 4. Cp. 2, 7) (84).

The victims of the inquisitions fall into two groups: on the one hand, military men, on the other, the civilian upper and middle classes — the senators, curials of any importance, and those associated with these people (usually by virtue of education). *Humiliores* rarely appear except as accomplices (astrologers, poisoners etc.) in trials for magic and treasonable consultation⁽⁸⁵⁾. The rarity of their appearance may partly result from Ammianus' omission of them as *minutiae*, but there is no indication that a systematic search was made amongst these people. Military men are usually involved in the reprisals which followed failed usurpations, and even in these cases Ammianus gives few names⁽⁸⁶⁾. But in the trials for magic and treasonable consultation the civilian group provides almost all the victims. Indeed Ammianus complains that soldiers guilty of practicing magic arts were allowed to go unpunished⁽⁸⁷⁾. The total of soldiers named as condemned on charges of treason, magic, etc. during the reigns of Constantius, Valentinian I and Valens is five, all in the reign of Constantius. Against this number Ammianus names a total of approximately forty-seven civilians condemned, six during the reign of Constantius, twenty-two under Valentinian I and nineteen under Valens⁽⁸⁸⁾.

(84) For further testimony to the panic on this occasion see p. 119-11.

(85) Probably the old woman condemned in XXIX, 2, 26 was *humilis*. Chariters, also *humiliores*, appear a number of times, twice as poisoners aiding others (XXVIII, 1, 27; 4, 25); once using magic arts (XXIX, 3, 5); once apprenticing his son to a poisoner (XXVI, 3, 3); and once without a specified charge (XV, 7, 2). Charitoers were notorious for dabbling in the black arts (e.g. *JR*, IX, 16, 11 = *C. Iust.*, IX, 18, 9 [389 A.D.]). In general on magic at the hippodrome see Bury, *op. cit.*, p. 119-20.

(86) Magnentius (XIV, 5) — one military man exiled. Silvanus (XV, 6) — three soldiers executed (plus Praemienus, status unknown, executed, and Proculus, Silvanus' *domesticus*, tortured, fate unknown). Procopius (XXVI, 9, 9-10, 10) — one soldier executed (plus the two captors of Procopius who were soldiers and who were executed on the battlefield in the heat of the moment). Barbatus was also put to death for plotting (XXVIII, 3) and in the subsequent investigations a soldier Valentinus was tortured but acquitted (XXVIII, 3, 5).

(87) Serenianus (XIV, 7, 7; 11, 23; XXVI, 10, 5); Numerius (XXIX, 2, 17). I can find in Ammianus no example of a serving soldier executed for magic, poisoning, treasonable consultation etc.

(88) For a tabulation of those named by Ammianus as involved as defendants in the trials see Appendix I.

The value of these figures is lessened by the fact that we do not know what proportion of the whole they represent or by what criteria Ammianus selected the names for inclusion. But they do suggest some possibilities. Perhaps, as has been argued⁽⁸⁹⁾, in his accounts of these trials (and in other attacks upon the Emperors and their servants) Ammianus is making a class appeal on behalf of the senators and curials. Certainly at times his snobbishness leads him to an unsympathetic view of the sufferings of the common man. Peter Valvomeres is held to deserve the flogging which he receives as the alleged inciter of a riot (XV, 7, 2-5); and the severity which the urban prefect Apronianus uses against the illicit practices of certain of the Roman lower classes (XXVI, 3, 1 ff.) raises no protest. Nevertheless, he can show sympathy, mingled perhaps with contempt, for slaves ill used during judicial investigations, emaciated and filthy through long neglect and tortured almost to death to betray their master (XXVIII, 1, 55)⁽⁹⁰⁾; or for an old woman unjustly executed for using an innocent charm (XXIX, 2, 26). If there were widespread condemnations and executions amongst the lower classes one would expect Ammianus at least to mention them, since they would have strengthened his case against the Emperors; and, whatever its motivation, his plea against injustice and cruelty is expressed as a universal one.

Alternatively the figures might reflect a situation in which there were many more civilian than military plots. This is possible if by "civilian" we mean the leaders and organizers of the plot. But in the later Roman Empire, where power clearly rested with the army, any civilian conspiracy, to have even a remote chance of success, had to include military men. In the light of this the small number of soldiers condemned might seem to indicate a policy of non-reprisal⁽⁹¹⁾, reflecting the concern of the Emperors to conciliate the military. Three considerations support this suggestion: 1, the Emperor could not resist a disaffected army; 2, he could not afford to weaken the army by attacks on its personnel, since he needed it to defend the borders; 3, he also needed its support against ac-

tual and potential opposition within the state, since there was no strong and reliable police force⁽⁹²⁾.

If the small number of soldiers condemned might indicate a policy of leniency towards the military, the far greater number of the civilians from the upper and middle classes who fell victims during the trials suggests that the Emperors were more concerned with political opposition from this group than elsewhere and dealt more harshly with it. The apparently infectious waves of terror which accompanied the inquisitions raise the question whether terror was used by these Emperors as a political weapon against counter-forces in the state, both real and potential.

Such a prophylactic use of terror was not unknown in the ancient world. The Assyrians used it, possibly the Spartans when they released the *Krypteia* upon the Helots, and certainly the Athenians (according to Thucydides) at Melos and elsewhere. In the second debate on the fate of the Mytilenaeans Thucydides makes Cleon urge the Athenians, "Punish them in a suitable manner and give a clear warning to the rest of your allies that whosoever revolts will be punished by death" (III, 40, 7).

Ammianus and other sources for the fourth century A.D. repeatedly insist that, amongst other judicial malpractices, the Emperors and their judges overreacted to the evidence set before them during the trials and that many of those condemned were punished unjustly, on flimsy pretexts or far too harshly⁽⁹³⁾. These allegations (even if exaggerated), when added to the fact that one specific group seems to have been a consistent target for attack, might suggest that there was something more than a rush of panic-stricken anger behind the violent Imperial reaction to any suspicion of a plot.

There were also economic motives behind many of the accusations. Ammianus alleges widespread confiscations and suggests that certain of those condemned were attacked primarily for their wealth⁽⁹⁴⁾. In the *elogium* on Valentinian I he reports that some people defended the attacks by that Emperor upon the rich by saying that he did it to make up for the losses which the state had suffered as a result of Julian's Persian expedition (XXX, 8, 8). It would certainly seem that some efforts were

(89) ANDERSON, p. 133-4 (cp. ALFOLDI, p. 41, 55 ff.).

(90) Cited by ALFOLDI, p. 68 as an example of snobbishness.

(91) In XXIX, 1, 16 Ammianus notes an attempt by a soldier to kill Valens, but mentions no reprisals. Some general support for the suggestion advanced in the text is offered by LEBANUS, *Op.*, 24, 14, who says that after the revolt of Procopius, in which soldiers took part, most of the many victims were from *ἀνὰ δαμοῖς*, which would have been civilians.

(92) In the East the *ἀστυνομία* seem generally weak (AMMIANUS, XXVII, 9, 6; HIRSCHFELD, Berlin, 1913, p. 662-9). At Rome, where the urban and praetorian cohorts and the *vigiles* had disappeared, policing was ineffectively carried out by the *apparitores* of the urban *officia* (SILVERSTEIN, Rome, 1957, ch. 101).

(93) For references see notes 56-63.

(94) For references see n. 67.

made to free resources from the control of individual groups (i. e. rich senators and curials) and to make them available for Imperial use when necessary⁽⁹⁵⁾.

It has been suggested that the trials which were instituted by Constantius and Valens were part of a general attack upon paganism⁽⁹⁶⁾. Ammianus certainly insists (although he does not offer evidence) that during the reign of Constantius pagan superstitions were persecuted (XIX, 12, 13-14); and the *Theodosian Code* preserves some harsh laws of the same Emperor which are arguably anti-pagan rather than aimed at specific offences⁽⁹⁷⁾. On the other hand, those laws relating to divination and magic were passed late in the reign⁽⁹⁸⁾, and there is no indication of how vigorously they were enforced. Ammianus gives too few names of victims to offer a firm basis for argument, and those which he does give suggest that the Emperor was more concerned with actual plots and rebellions than with treasonable consultation and magic.

The trials held at Antioch during the reign of Valens certainly look more like a general attack on paganism. A number of sources say that their aim did develop from the punishment of the original plotters into a general persecution of pagan philosophers in the area⁽⁹⁹⁾. This does not mean, however, that these trials were part of a wider drive by Christian intolerance against pagan practices. Within limits paganism was tolerated. Those practices which were prosecuted had long been illegal, even under pagan Emperors. Innocent victims may well have suffered⁽¹⁰⁰⁾, but as a result of the atmosphere of suspicion, sometimes through corrupt practices, and perhaps as a result of the prophylactic

purpose of the trials suggested above. At Antioch the basic motive for the attacks was political⁽¹⁰¹⁾. The religious question was still not finally settled, and the pagans could yet hope for another Julian to smash the power of the Christian Emperors. The Pannonian dynasty was new and not completely secure. Already Valens had almost been overthrown by the revolt of Procopius which appealed to the usurper's relationship with the former dynasty of Constantine⁽¹⁰²⁾ and was supported by some of the partisans of Julian⁽¹⁰³⁾. Even before this revolt an illness which Valens and his brother had suffered was blamed upon the pagan supporters of the Apostate⁽¹⁰⁴⁾. The plot of Theodorus seems to have been pagan inspired⁽¹⁰⁵⁾; all who were involved in it and whose religion is identifiable were pagans, and some were known supporters of Julian⁽¹⁰⁶⁾. Supporters of Julian who had survived the reprisals which followed Procopius' revolt were probably already being hounded⁽¹⁰⁷⁾; and the extension of the inquisition to those who had only a tenuous association with the plot of Theodorus and to those who were alleged to have committed other offences, would have been a natural result of a combination of suspicion and desire to remove or intimidate other potential opposition. The activities of Festinus of Tridentum seem to have been dictated by political opportunism⁽¹⁰⁸⁾. That the attack was against the political opposition as such is suggested by Socrates (4, 19) and the suggestion is supported by two facts: firstly, only civilians were victims (no soldier is mentioned as involved); secondly, of those certainly condemned fourteen were punished for treasonable consultation and only five for magic (two of whom fell victim to Festinus)⁽¹⁰⁹⁾. In short, the authorities attacked the diviners, those who might seek to forecast the fate of the Emperor and thus inspire others to hope for greater things.

On the other hand, the religious motive cannot be entirely rejected, if only because the best means of identifying the opposition was by its

(95) This phenomenon was not uncommon in comparable political systems (S. N. Eisenstadt, *The Political Systems of Empires*, London, 1963, p. 116-19).

(96) SCHAUB, Bonn, 1963, p. 63-74, esp. 70-74. MERREAU, *ADPhO*, 1953, p. 423-31 suggests that AMMIANUS, XXX, 5, 11-12, the execution of one Faustianus for the killing of an ass for the purpose of magic, hides in fact the punishment of a blasphemous parody of the eucharist (ass's blood and body = Christ's blood and body). Certainly enemies of Christianity had associated the ass with that religion (examples in P. G. WALSH, *The Roman Novel*, Cambridge, 1976, p. 184-87), but SEYFARTH, *Klio*, 1965, p. 373-83 rightly rejects this interpretation of the passage of Ammianus and regards it as one of the many instances furnished by the historian of overreaction caused by fear of black magic (or again of political overreaction).

(97) See p. 107.

(98) C. TH., IX, 16, 4 (357 A.D.); 16, 5 (357 A.D.); 16, 6 (358 A.D.). Earlier laws were issued against temples and sacrifices: C. TH., XVI, 10, 2 (341 A.D.), which merely confirms a ruling of Constantine I: 10, 4 (346); 10, 5 (353); 10, 6 (356).

(99) LIBANIUS, *Or.*, 14, 287 ff.; SOZOMEN, 6, 35; JOHN OF ANTIOCH, *fr.*, 184, 2; ZOSIUS, IV, 14, 2. Cf. MAURY, p. 119-25.

(100) Cf. XVI, 8, 1: *per simulationem tuendae maiestatis imperatoris*. See also p. 113.

(101) Cf. FUNKE, *JAC*, 1967, p. 145-75.

(102) See p. 56.

(103) See ch. 3, n. 10 for references.

(104) AMMIANUS, XXVI, 4, 4; ZOSIUS, IV, 2.

(105) SOZOMEN, 6, 35; NICETIUS CALISTUS, *HE*, 11, 45.

(106) Associated with Julian - Abpian (JULIAN, *Epp.*, 6 and 7; THEODORE, 3, 81, Paganism (Paganism), 1 in *RE*, XIX, 1, col. 690), Eutropius (EUTROPIUS, 10, 16). The only victim identified as possibly Christian is Hypatius (GANG. NAZ., *Ep.*, 96), who was not in Theodorus' plot.

(107) See the references in n. 104 and SIECK, Hildesheim, 1966, "Selenus" and "Clematus", 3.

(108) This AMMIANUS, XXIX, 2, 23.

(109) See Appendix E and cf. LIBANIUS, *Or.*, 3, 171.

religion. The religious aspect is likely to have been played down by Ammianus for a number of reasons. Firstly, his prime interest in discussing the trials is moral, since he uses them to illustrate the sufferings of the accused and the violations of *iustitia*. Secondly, to stress the religious side of the conflict would have involved the considerable introduction of Christianity, a violation of one of his canons of historiography, which preferred to ignore the Church, at least in matters of importance. Thirdly, as a pagan writing under Christian Emperors he would have been unwise or at least uncomfortable in stressing the religious aspect since his sympathies were with the wrong side.

CHAPTER VII

Ammianus on Christianity

Ammianus wrote most of his *History* during the reigns of Gratian, Valentinian II and Theodosius I, the first and third of whom began to take a more openly anti-pagan position than their immediate predecessors. Theodosius especially, after 392, showed hostility to the pagan opposition and, under the influence of the bishops Ambrose and Damasus, published a series of intolerant laws which culminated in the condemnation of all acts of sacrifice as treason⁽¹⁾. Such conditions, which must have affected Ammianus as a pagan, find some reflection in his *History*.

The *History* of Ammianus is one of the so-called secular histories which were produced from the fourth to the seventh century A. D. and which, in distinction from other forms of history written during the period, look back to the classical models of antiquity, particularly Herodotus and Thucydides. One amongst a number of the characteristics of secular history is its "elevation" of language and content which entails the omission of unsuitable expressions and material from the text; and Christian material and technical terms are amongst the unsuitable elements⁽²⁾. Things Christian are not entirely omitted by Ammianus, but when they are touched upon they are treated in a studiously neutral manner, which has in the past caused some confusion over whether he was really a Christian or a pagan. Once he was regarded as a Christian⁽³⁾; later as a pagan, but objective in his treatment of Christianity⁽⁴⁾. Most recently, when his paganism has been established beyond doubt, some have seen anti-Christian bias in the narrative⁽⁵⁾.

(1) C. J. B. XVI, 10, 12. Cf. D'ARLIS, *SR*, 1962, p. 373-5 and THOMSON, Cambridge, 1947, p. 113-17.

(2) See esp. A. M. and A. D. E. CAMERON, *CQ*, 1964 and MEMIGLIARO, Oxford, 1963, p. 94 ff.

(3) E.g. C. CHIFFLET, *de vita Ammiani Marcellini* in WAGNER-EDURDT, I, p. xci-xcii.

(4) E.g. WIEBE, p. 12 ff.; EISSIN, p. 98 ff.; JANSZON, p. 74 ff.; MACKAIL, *JRS*, 1920, p. 110.

(5) E.g. D'ARLIS, *op. cit.*; SIEGM, *RCM*, 1967, p. 224-62.

It has been argued that, although Ammianus condemns other Emperors for their ill-treatment of pagans, in his account of the reign of the strongly anti-Christian Julian he shows bias against the Church, both in his omission of many examples of that Emperor's discrimination against Christians and in his failure to condemn sufficiently strongly some of those which he does include⁽⁶⁾. For instance, in XXII, 11, 3-11, where he describes the murders of certain individuals, including George, the bishop of Alexandria, by the enraged pagans of that city, Ammianus notes that Julian condemned the act but took no further action. The historian not only fails to censure the Emperor for taking this position, but also, it is argued, presents George in an unfavourable light⁽⁷⁾.

Ammianus is certainly hostile to George, who was himself an avowed enemy of the pagans of Alexandria and also, according to the historian, a hated informer⁽⁸⁾. Nevertheless, the murders of George and the others, who had also committed overtly anti-pagan acts, are condemned as *facinus nefandum* (3, 11) and any temptation to blame the killings upon the Orthodox Christian opponents of the Arian bishop is resisted (although it is noted that the Christians, who in this instance must be Orthodox, failed to help George because he was so hated). Except insofar as he fails to distinguish between Arian and Orthodox (a detail with which a secular historian was not especially likely to concern himself), Ammianus' account agrees basically with that of the Orthodox Sozomen⁽⁹⁾. His judgement is shaped by two concerns which are regularly expressed in the *History*, hatred of informers and divisive troublemakers such as he conceives George to be, and admiration for the clemency of Julian, which is praised in general terms elsewhere⁽¹⁰⁾. An anti-Christian attitude is not necessary here to explain the treatment of the material.

In XXII, 5, 3-4 Ammianus describes how Julian, in order to aid the re-establishment of the worship of the pagan gods, advised the leaders and members of the dissident Christian sects to lay aside their differences and each observe his own beliefs. The historian explains that Julian did

(6) Examples of anti-Christian discrimination during Julian's reign in SOCRATES, 3, 13; SOZOMEN, 5, 17-18; RUFINUS, HE, 1, 32.

(7) SALAM, *art. cit.*, p. 254.

(8) XXII, 11, 5: *ad delatorem ausa feralia discerebat*.

(9) HE, 5, 7 (cp. 4, 30 and SOCRATES, 3, 2-3). Ammianus connects George's death with his general ill-treatment of pagans, whereas the Church writers impute it to his desecration of a Mithraeum.

(10) See p. 74-5.

this in order to allow the freedom of the Christians to increase their internal dissensions and thus weaken their opposition to the pagan revival: for the Emperor knew that "no wild animals are as hostile to men as the majority of Christians are to each other" (5, 4). If this is Ammianus' own comment (as it appears to be), it is certainly hostile. But it is also based upon a consideration which is not essentially religious — the destructive and divisive nature of the Christian sectarian feuds, which troubled even the Christian Emperors.

Politically and morally (considerations which are all important to the historian) Julian is the hero of Ammianus. He also approves of the Emperor's reversal of the intolerant policy of Constantius II towards the pagan religions and thus of his position in respect of the Christians in this matter. But he approves neither of Julian's excess of religious zeal (condemning him as *superstitiosus magis quam sacrorum legitimus observator*)⁽¹¹⁾ nor of his extreme anti-Christian prejudices which began to lead him in the direction of persecution, albeit of a comparatively mild kind. In XXII, 10, 2 Ammianus exhibits impatience with a tendency of the Emperor, when hearing lawsuits, to ask a man's religion, which, even though it was not permitted to affect the course of justice, was nevertheless *intempestivus* and violated the principle of toleration. Far stronger criticism is reserved for the law which forbade *rhetorici* and *grammatici* to teach if they were Christians and which, says Ammianus, was *obruendum perenni silentio*⁽¹²⁾. It has been argued that in thus censuring Julian, the historian was not guided by any ideal of toleration, but by concern for the welfare of the curials of Antioch, some of whom would have been affected by it⁽¹³⁾. This, however, is unlikely since, although Ammianus does seem to have been motivated by care for the curials in some of his judgements, the number of that class at Antioch who were affected by this measure cannot have been large. There is no reason why the pagan Ammianus should have been concerned for a few Christians simply because they were members of the *curia* of Antioch: Libanius, who stands as a constant defender of Antiochian interests, approves of this law⁽¹⁴⁾. Ammianus should rather be taken at his word when, in both passages in which he mentions the law, he condemns it as

(11) XXV, 4, 17 (cp. XXII, 12, 6-8; 14, 31).

(12) XXII, 10, 7 (cp. XXV, 4, 20).

(13) SALAM, *art. cit.*, p. 243 ff.

(14) See p. 77.

inclemens and thus in violation of one of his basic principles of virtuous conduct⁽¹⁵⁾.

While these passages appear to be at least not unfriendly to Christians, others seem clearly pro-Christian. In XXVII, 3, 12-15 Ammianus, noting the riots which marked the rivalry between Damasus and Ursinus for the bishopric of Rome, attacks the ambitions of such prelates and remarks sarcastically that he can hardly blame them for such exertions since the office which is the prize offers great material rewards (14). Of such ambitious men he says, "They could be truly blessed if they rejected the great city, which they use to excuse their own faults, and lived in imitation of some of the provincial priests (*antistum*) whose frugality in eating and drinking, whose cheap clothes and eyes ever fixed to the ground all commend them to the immortal deity and his true worshippers as pure and venerable men" (15). There is some ambiguity here, possibly intentional: "the immortal deity and his true worshippers" (*perpetuo numine, uerisque eius cultoribus*) could refer to both Christians and pagans and, of course, to their gods⁽¹⁶⁾; though perhaps it would more naturally be taken to indicate the Christian God and Christians alone. The praise of the virtuous and humble provincial priest, although perhaps honestly given, is two-edged since it is offered not merely for its own sake, but in order to sharpen the criticism of the priests at Rome. The general criticism of material wealth and ambition in the Church was not uncommon amongst Christian contemporaries. But it is significant that one of Ammianus' specific targets is Damasus, because he was one of the prime movers behind the anti-pagan legislation of Theodosius I⁽¹⁷⁾; and this would not have been lost on a senatorial audience at Rome⁽¹⁸⁾. On the other hand, the activities of Damasus and Ursinus and their supporters were a source of discord and thus violated one of Ammianus' principles of civil behaviour⁽¹⁹⁾. Seen in this light, the incident is merely one of a series of such disturbances at Rome.

(15) See p. 90-91.

(16) Cp. D'ARLJA, *art. cit.*, p. 387.

(17) Cp. D'ARLJA, *art. cit.*, 386-7, who also remarks that Ammianus fails to censure rich pagan priests. But Ammianus is complaining about Christians who become rich because they are priests. At the time when he was writing some pagan priests may have been rich, but as a result of their personal wealth, not because they were priests.

(18) CAMUS, p. 256-7 notes that in XXVII, 9, 9 it is a pagan urban prefect, Praetextatus, who ends the troubles.

(19) Cp. the tone towards rioters in XIV, 7, 1-5 and XXVII, 3, 3-4 and the censure of the general Terentius in XXX, 1, 2 as *acer dissensionum instigator*.

In two passages there is praise for Christianity, but as a basis for censure of individual Christians who violated Ammianus' principles of civil behaviour. In XXII, 11, 5, in a passage already discussed, the activity of the bishop George is contrasted with the demands of his calling, "which calls for no behaviour that is not just and gentle." In XXI, 16, 18 the Emperor Constantius is characterized: *Christianam religionem absolutum et simplicem anili superstitione confundens, in qua scrutanda perplexius quam componenda grauius excitauit discidia plurima*⁽²⁰⁾. Constantius is here attacked because his attachment to such trivia created discord rather than unity. Here again the sentiments favourable to Christianity, although perhaps genuine, are used as weapons against the Emperor; and there does seem to be an undertone of real hostility in the subsequent description of the bishops who hurried hither and thither to the various synods at which the Arian Constantius attempted to impose his will. The hostility does not lie in the charge itself, that this activity caused the public post to break down (which it might have done), but in the contemptuous language used: *cateruis antistum ... ultro citroque discurrentibus*.

Two other passages seem to offer unqualified praise for Christians. In XXII, 11, 10 Ammianus describes how the Alexandrian mob which had murdered George and his fellow victims burned their corpses and cast the ashes into the sea, "fearing (so it shouted) that their remains would be gathered together and a church (*aedes*) be built for them." This hostile commentary upon the cult of the martyrs, which was so unpopular with the pagans⁽²¹⁾, is uttered by the crowd. Ammianus then adds what seems to me to be a gloss of his own and a not unadmiring one: "like the others, now called martyrs, who, when under compulsion to forsake their religion, endured savage tortures and advanced with faith unsullied to a glorious death," a sentiment which not only is consistent with his similar praises of pagan philosophers who found themselves in a similarly dangerous situation⁽²²⁾, but which also gains an added dimension from the time of writing, during the reigns of Gratian and Valen-

(20) It has been suggested (e.g. by CAMUS, p. 69 and SIEGEM, *art. cit.*, p. 258-9) that by *anili superstitione* Ammianus means Arianism, and the use of *superstitio* in XV, 13, 2 of Manichaeism and similar heresies might seem to offer some support for this view. If this is so, I suspect that Ammianus is not taking sides, but merely accepting the Orthodox position the better to attack Constantius.

(21) Cp. CAMUS, p. 252-3, 258-9.

(22) E.g. XIV, 9, 5-6; XXIX, 1, 38-9.

tinian II in the West, when for the pagans the storm clouds were beginning to gather on the horizon.

The second passage is more clearly favourable. In XV, 7, 6-10 Ammianus describes how Athanasius (to whom he is hostile) was deposed from his bishopric in his absence by a synod. Although Constantius wished the bishop of Rome, Liberius, to endorse this decree, the latter refused, "saying repeatedly that it would be the ultimate wickedness to condemn a man both unseen and unheard." Ammianus praises Liberius for this stand, and it has been suggested that he does so because the bishop was both an opponent of the Emperor and also on good terms with the Roman aristocracy⁽²³⁾. This is possible; alternatively such bias might have been in a senatorial source used by the historian. On the other hand, such opposition to an act of injustice (even against a person so disliked as Athanasius) is precisely the sort of behaviour which would have appealed to Ammianus, who frequently praises such boldness especially against an Emperor, and indeed makes such *libertas* a prime virtue of a good official⁽²⁴⁾.

More numerous and of greater prominence are the passages and remarks which betray apparent hostility to Christians. Some of these have been noted — the rivalry of Damasus and Ursinus, the death of George, Julian's description of dissident Christians as fiercer than wild beasts and Ammianus' own remark upon the herds of bishops hurrying hither and thither. In XVIII, 7, 7 (cp. XIX, 3, 1) the historian seems to be attacking the cult of the martyrs when he complains that Sabinianus, who replaced Ursicinus as commander in the East in 359 A. D., remained amongst the tombs of Edessa being entertained by his troops, instead of aiding Amida against a Persian siege⁽²⁵⁾. Here there is a definite sneer, not at the martyrs themselves but at their cult, based perhaps on insufficient familiarity with it⁽²⁶⁾. But this is incidental to the main judgement (which may have been right or wrong) that the general was wasting time at Edessa when he should have been fighting the Persians⁽²⁷⁾.

(23) D'ARLIE, *op. cit.*, p. 387-8.

(24) See p. 152.

(25) Cp. SELIG, *op. cit.*, p. 259.

(26) FROST, *Milet*, 1937, p. 63, who also notes that in the passage of Ammianus the Christian church is slightly referred to as *sepulchra*.

(27) Cp. the remark of A. D. E. CAMERON, Oxford, 1970, p. 226, n. 2. For another explanation of Sabinianus' behaviour see THOMPSON, *op. cit.*, p. 49 ff.

In XV, 7, 7 Athanasius, the bishop of Alexandria, is attacked as *ultra professionem altius se efferentem, scitaturque comitum externa*, a characterization which not only reflects Ammianus' dislike of troublemakers (a term which with some justification could be applied to Athanasius by one who was not his partisan) but also, in the use of the word *altius*, a non-Christian view of the functions and station of a bishop. In the same passage (7, 8) the historian also repeats a rumour that the bishop practiced augury and other prophetic arts, an apparently unjustifiable charge which might seem to argue bias and unfair treatment. But there were many rumours spread to the discredit of Athanasius, of which this may well have been one⁽²⁸⁾. If this were so, then Ammianus, who includes it as one of a number of charges which were laid before the synod, would merely have reported what was alleged, having no specifically anti-Christian intent. He repeats such charges elsewhere against persons to whom he is hostile⁽²⁹⁾.

Ammianus has been accused of making judgements upon people which are based on religious considerations. It has been suggested that he is friendly to pagan and hostile to Christian prefects of Rome⁽³⁰⁾, and that, even if he is not overtly biased, he does tend to give warmer praise to pagans than to Christians⁽³¹⁾. As far as Roman prefects are concerned the use of a senatorial source could explain the bias, were the suggestion itself wholly accurate. In fact the historian censures the pagan Orfitus, the father-in-law of Symmachus, and praises the Christians Leontius, Olybrius and Hypatius⁽³²⁾. Praise is also bestowed upon Christians other than these urban prefects, for instance the generals Jovinus, Victor and especially Arintheus⁽³³⁾.

But even if it is conceded that more pagans than Christians are praised and that the praise is greater for the former than for the latter, this does not prove that the basis for judgement is not moral and political rather

(28) E.g. SOCRATES, 2, 17; SOZOMEN, 2, 23; and cp. SOCRATES, 4, 10, who gives examples of Athanasius' alleged ability to see into the future.

(29) Cp. XIV, 7, 7 and esp. XXVIII, 1, 7 (of Maximian).

(30) GREGORI, p. 190-1.

(31) D'ARLIE, *op. cit.*, p. 375-6, 384-5.

(32) Orfitus, XIV, 6, 1; Leontius, XV, 7, 1-5; Hypatius, XXIX, 2, 9 and 10; Olybrius, XXVIII, 4, 1.

(33) Jovinus, XXV, 8, 11; XXVII, 2, 1-10. (Since *CHL*, XIII, 3236 appears to indicate that he built a church at Rheims, he could hardly be described, with D'ARLIE, *op. cit.*, p. 383, as *credulus* *inipidus*.) Victor, XXXI, 12, 6. (For his strong Orthodoxy see Victor, 9 in *RE*, VIIA, 2, col. 2050). For Arintheus see ch. 4, n. 48.

than religious. Ammianus' sympathies lie wholly with the old pre-Constantinian order, and his *History* is to a great extent a plea for a reaction to the old ways. Thus he is critical of many of the policies of the innovating Christian Emperors (including the non-tolerance of the pagan religions) and of what are to him their moral failings. Quite naturally he would be hostile to many of their supporters, even perhaps to pagans such as Themistius, who were trying to work out a *modus vivendi* with the new regimes⁽³⁴⁾. On the other hand, since, with the exception of the years of Julian's reigns, the Church was now in the ascendant, political opportunists were more likely to become at least nominal Christians in order to further their own advancement. In this situation it is only to be expected that more to be reprehended would have been found on the Christian side and more integrity amongst the pagans.

A good example of the tendency to find anti-Christian bias in Ammianus' political judgements is offered by his treatment of the Anicii, the leading Christian family of Rome, which he roundly condemns both in itself and through its leading member, Sex. Petronius Probus⁽³⁵⁾. The historian's critical position has been taken as an indication of his anti-Christian outlook, but his grounds for censure are moral and political — graft, corruption, patronage and the domination of high office. Even if these charges are not wholly acceptable, the basis for the judgement may well have been political and moral, for the Anicii had thrown in their lot with the new aristocracy of the Pannonian Emperors, Christian, predominantly Illyrian and the political enemies of the old Roman aristocracy with whose views, in this confrontation at least, Ammianus was in sympathy⁽³⁶⁾.

When Ammianus has occasion to refer to Christian things he often prefers to use a classical word rather than the Christian technical term. Less often he admits the technical word, but qualified by a formula such as *ut appellant Christiani*⁽³⁷⁾. This, as has been pointed out by A. M.

and A. D. E. Cameron⁽³⁸⁾, is not a result of unfamiliarity with Christianity, but a stylistic device of the classicizing historian who wishes to keep non-classical words out of his text or to apologize for them when he feels that he has to use them. But it would seem that the methods adopted by the writer in dealing with Christian terminology are only partly a means for attaining classical purity. They are also a way of achieving stylistic variation, as seems clear from a number of passages in which Ammianus uses Christian technical terms without apology. Thus in XXIX, 3, 4 he uses *presbyter* without qualification, although later, in XXXI, 12, 8, he writes *Christiani ritus presbyter (ut ipsi appellant)*. That the former is not a mere slip is suggested by passages where he uses *episcopus* and *antistes* together, both of a bishop⁽³⁹⁾, and especially by XXII, 11, 3-10 where the technical terms *episcopus* (twice) and *ecclesia* appear, the classical words *professio* and *aedes*, and *martyres* explained by a circumlocution. In using the technical terms *episcopus* and *ecclesia* correctly, Ammianus must have been aware that the usage was Christian and non-classical⁽⁴⁰⁾; yet the inclusion of three such words together with other classical expressions and a circumlocution indicates that this was not a mere oversight. Rather it suggests both a device for variety and also that the historian was not over-concerned for a rigorous exclusion of all Christian technical vocabulary.

The latter is also the case in respect of Christian material. Since the *History* is basically secular, where the Christian element is large or important, such as in the account of Pap the Armenian king, the work retains its secular character and the Christian material is excluded⁽⁴¹⁾.

(38) *CQ.* 1964, p. 316-28.

(39) XV, 7, 6-7; XX, 7, 7-9; XXVII, 3, 12-15. *Antistes*, which Ammianus uses five times of a priest (XV, 7, 6; XX, 7, 7; XXI, 16, 18; XXVII, 3, 15; XXIX, 5, 15, all of which except the last certainly refer to bishops) is not only classical but also used of a priest, and especially a bishop, by Christian writers both before and contemporary with Ammianus (see *TLL*, "antistes", II, 2) Pöhl, *Röm.* 1941, col. 392 remarks that Ammianus tends to use *antistes* of groups of bishops and *episcopos* for individuals.

(40) Ammianus uses *episcopus* seven times (XV, 7, 7 and 10; XX, 7, 9; XXII, 9, 4; 11, 3-4 [twice]; XXVII, 3, 12) and *ecclesia* four times (XXI, 2, 5; XXII, 11, 9; 13, 2; XXVIII, 6, 27). Neither word is ever qualified. Indeed these two words (with the word "Christian" itself) are the ones least often qualified by the Greek secular historians; except that there is frequently added the expression *τῶν Χριστιανῶν*. In Zosimus, for instance, when *ἐκκλησία* and *ἐπίσκοπος* are used for the first time in a passage they are, with three exceptions (V, 24, 3; 35, 4; 41, 2), always thus qualified.

(41) See p. 70-71.

(34) On Themistius' relationship with the Christian Emperors see DAGRON, *Travaux et Mémoires*, 1968.

(35) For references see ch. 8, n. 35.

(36) ALFOLDI, p. 13 ff. As with other passages on events at Rome the influence of a written senatorial source cannot be discounted.

(37) For a full list of the words used by Ammianus of the Christian religion see DEMANDT, p. 71-2. Many more words used by Ammianus which are found in ecclesiastical Latin are noted by PICOT, *Mélanges*, 1937, but as he remarks, many of these are also used by other pagan authors (see esp. p. 60). The *ut appellant* formula (or variants) is used at XIV, 9, 7; XV, 7, 7; XXI, 2, 5; 16, 8; XXII, 11, 10; XXXI, 12, 18. Explanatory formulae are used at XVIII, 10, 4 and XXVII, 7, 6.

But when the Christian element is of lesser importance or merely incidental, it is sometimes admitted into the text. Thus in XXXI, 12, 8-9 Ammianus mentions that an envoy sent by the Goths to the Emperor Valens was a Christian presbyter, a confidant of the Gothic leader Fritigern and therefore, from the point of view of the Romans, of suspect sincerity. The identification of the envoy as a Christian might seem to be gratuitous and a hostile association of Christianity with the enemy. But if it is accepted that Ammianus is not rigorous in the exclusion of lesser Christian material from his *History*, then the use of the word "Christian" can be seen to be nothing more than a convenient means of giving some identification to the envoy, perhaps the only such available to Ammianus from his source. Similar examples occur in the *History* of the labelling of a man or a place as Christian simply in order to give it some identification. Thus *Christiani ritus antistes* are sent by Firmus as envoys to the elder Theodosius (XXIX, 5, 15); after the battle of Adrianople the Goths send *Christianum quendam* to the nearby city to demand its surrender (XXXI, 15, 6); the charioteer Hilarinus, when condemned to death, flees to a *ritus Christiani sacrarium* (XXVI, 3, 3); Maras, *ut appellant Christiani diaconus*, is accused of complicity in a plot against the Caesar Gallus (XIV, 9, 7) (42). Such references are wholly neutral in tone.

In XX, 7, 7-9 Ammianus describes how, when the Persians were besieging Bezabde, the local bishop went to the Persian king, Sapor, to attempt to persuade him to lift the siege. He not only failed in this but also fell under the suspicion of having betrayed to the enemy the weak spots in the walls. Although Ammianus concedes that the subsequent concentration of the enemy upon the weaker parts of the walls gave force to the accusations, he says that, in his opinion, the suspicions were unfounded. His primary purpose in inserting the meeting between the bishop and Sapor is to illustrate the rage and cruelty of the latter (43), and he appears to feel some admiration for the courage of the bishop. The reporting of the reason for suspecting the bishop of treachery is not an attempt to throw odium on a Church leader, but an objective presentation of information necessary for an interpretation different from the historian's own. Such disinterested objectivity is also illustrated in XXII,

(42) Cp. XXIX, 3, 4 (the text is damaged) where Ammianus seems to indicate a Christian priest as a victim of the cruelty of Valentinian I (cp. JEROME, *Chron.*, s.a. 372).

(43) Cp. XVIII, 10, 4; XIX, 1, 6; 9, 1-2; XX, 7, 3. Note especially the contrast in the phrase used of the bishop, *placido sermone*.

13, 1-5 where Ammianus reports that when the temple of Daphnaean Apollo at Antioch was burned down, Julian blamed the Christians and in retaliation closed the greater church at Antioch. Ammianus records this without comment and he may well have felt that the Christians were the culprits. But he adds that there was a rumour, though very slight (*leuissimo*), that a candle which had been lit by the philosopher Asclepiades had accidentally started the blaze. Again, although he does not seem to accept this version, he gives it as a basis for independent judgement.

The material just discussed is not anti-Christian; neither are the majority of passages in the *History* which mention Christianity and Christians. Nevertheless, in a few places there are discernible undertones of hostility. Thus the attack on the disruptive ambitions of Damasus and Ursinus, which follows quite naturally from Ammianus' own principles of behaviour, develops into a general attack on the materialistic interests of the priests in the big cities. Again, hostility is in the sneer at the "herds of priests ... scurrying hither and thither" (44). There is possibly another sneer at XXVII, 7, 6, this time at the cult of the martyrs, when the quaestor Eupraxius is made to advise Valentinian I not to execute some condemned decurions since they would be honoured as martyrs (45). Twice, also, there are traces of sarcastic anger against Christian behaviour, one at XXVIII, 6, 27 where Palladius is said to have been able to commit suicide since his guards *festo die Christiani ritus in ecclesiam pernoctabant*; the other at XXVII, 10, 2, where it is remarked that at Mainz an Aleman raiding party was able to carry off defenceless men and women and much property since a Christian festival was under way at the time.

D'Aelia has suggested, without arguing the case, that at two points in his *History* Ammianus might be attacking S. Ambrose (46). In XXVII, 6, 15 the historian notes that the young Emperor Gratian had all the qualities which would invite comparison with the best rulers, "if the fates and his advisers had allowed it. For, while his virtue was still insecurely established, they beclouded it with their own evil actions." Later (XXXI, 10, 18) he returns to the same theme: Gratian was a youth of out-

(44) See p. 127.

(45) The notice upon the victims of Valentinian I honoured by the Christians at Milan (XXVII, 7, 5), which precedes the anecdote about Eupraxius, offers another example of martyr-worship.

(46) *Art. cit.*, p. 379.

standing character and would have rivalled the choicest Emperors. "had not his advisers allowed his character, which tended towards irresponsibility, to indulge in the worthless pursuits which the Emperor Commodus enjoyed, though Gratian spilled no blood." Possibly Ammianus means no one in particular, but his insistence suggests otherwise. If he is referring to some person or party, the accusation points to Ambrose and his supporters. Two periods of Gratian's reign are distinguished by Ammianus, firstly a promising beginning, then a falling away. For the initial three years after the death of Valentinian I in 375 A. D. Gratian was advised by his old tutor Ausonius, and the period was one of senatorial ascendancy such as Ammianus might praise. Then Gratian fell under the influence of Ambrose who initiated a decline in the power of the senatorial faction and turned the Emperor towards the official rejection of paganism⁽⁴⁷⁾. There are hints of corruption at the court of Gratian, but they cannot be attributed with certainty to the rise of the Ambrosian party⁽⁴⁸⁾. Nevertheless, Ambrose was precisely the type of meddling prelate whom Ammianus disliked. For the historian, whatever else he thought of the Church, definitely regarded its place as outside politics⁽⁴⁹⁾; and Ambrose was an excellent example of a political priest, one who was not above acting in the interests of the Church in a way which would have outraged Ammianus' sense of justice⁽⁵⁰⁾.

It has been suggested that the evil influences whom Ammianus had in mind were the praetorian prefect Maximinus, the man who was active during the reign of Valentinian I as the inquisitor of the Roman aristocracy, and the general Merobaudes⁽⁵¹⁾.

But the period of Maximinus' influence, which, it is said, interrupted the ascendancy of Ausonius, must have lasted for less than six months⁽⁵²⁾ (if in fact it ever existed) and, since it would have been followed by a resurgence of senatorial power, could hardly have been described by Ammianus in the terms used. The theory of this short period of power for Maximinus rests upon some laws in the *Theodosian Code* which are

addressed to him as prefect⁽⁵³⁾ and which Alföldi prefers to regard as pinpricks by the ascendant senatorial party against a man whose power had waned and who was shortly to be dismissed and put to death⁽⁵⁴⁾. Merobaudes is a more plausible candidate, but if Ammianus had him in mind it is surprising that he did not name him (since, unlike Ambrose, Merobaudes was dead at the time of publication⁽⁵⁵⁾) and that he did not display hostility in other passages where opportunity offered⁽⁵⁶⁾.

An undercurrent of hostility towards Christians is perhaps inevitable in a pagan historian who was writing his work during the reign of one Emperor who was destroying the privileges of paganism and of another who was moving towards a complete prohibition of it. But from the point of view of the pagans the struggle was political and social as much as religious; and this is reflected by Ammianus, whose judgements upon individual Christians are political and moral and whose censures against them are based upon violations of his own code of civic behaviour. The words of Momigliano contain much truth, that to Ammianus "what matters is *virtus*, not paganism or Christianity"⁽⁵⁷⁾. Certainly the historian seems to feel that the Church should remain outside politics, but this reflects not only his own aversion to the activities of political priests such as Damasus and Ambrose, but also in general the position of the pagan religions in the fourth century A.D.

As the majority of his commentators have noted, Ammianus' position on religious freedom is the advocacy of general toleration; and this is summed up by his praise of Valentinian I: "Finally, his reign was marked by moderation insofar as he did not involve himself with the different religions, but troubled no one and issued no orders that one or another belief should be held. He did not publish threatening edicts in an attempt to force his subjects to his own persuasion, but left the parties (*partes*) undisturbed as he found them" (XXX, 5). The meaning is clear — Valentinian did not interfere in the religious struggles of the age and

(47) ALFÖLDI, p. 120.

(48) SULPICIVS SEVERUS, *Chron.*, II, 49, 3.

(49) Cf. D'ARLJA, *art. cit.*, p. 389-90; SELEN, *art. cit.*, p. 256.

(50) Cf. AMBROSII, *Ep.*, 21, 4 and esp. *Ep.*, 40 and 41 (where the bishop uses his influence and appeals to the power of God in order to quash a charge against the bishop of Callinicum that he destroyed a synagogue).

(51) HOFFMANN, *REL.*, 1936, p. 126.

(52) HOFFMANN, *art. cit.*, p. 124 puts this ascendancy of Maximinus between Jan. 1st and May 23rd, 376 A.D.

(53) C. *Jh.*, IX, 6, 1-2; 18, 4.

(54) ALFÖLDI, p. 89 ff. (the laws involved protect senatorial privilege). On April 16th, 376 Maximinus was still addressed as prefect (C. *Jh.*, IX, 19, 4); by May 23rd he had been superseded in office (Cp. C. *Jh.*, XIII, 1, 11) and during the same year he lost his head (SYMMACIUS, *Ep.*, X, 2, 3; Cp. SYMMACIUS, *Or.*, 4, 11-12; AMMIANUS, XXVIII, 1, 7 and 57). In the passages cited Ammianus seems to approve of Gratian's behaviour at least up to the time of the battle of Adrianople, well after Maximinus' death. This too would appear to exclude him.

(55) His death was effected by Magnus Maximus (PACATUS, 28, 4).

(56) Especially XXVIII, 6, 29, where he is said to have received Romanus with favour.

(57) MOMIGLIANO, *op. cit.*, p. 95 (Cp. DEMANDT, p. 79).

did not attempt to force his own (Nicene) faith upon anyone. The contrast with Constantius II is explicit: that with Theodosius I implied. This praise of toleration, which is a common cry of the pagans of the period, who were faced with growing Imperial intolerance⁽⁵⁸⁾, may well have been dictated by political necessity⁽⁵⁹⁾. But Ammianus, who condemns not only the unacceptable behaviour of individual Christians but also the extreme paganism of his hero Julian⁽⁶⁰⁾ and the excessive influence at his court of pagan philosophers and soothsayers⁽⁶¹⁾, is consistent in his judgements upon Christians; and in this area his sincerity cannot be seriously challenged.

(58) The often quoted illustration is the dictum of SYMMACHUS (Rel., 3, 8): *ius enim cuique ius, ius ritus est*.

(59) So von Gutschmid, p. 578. Thompson, *op. cit.*, p. 85-6 suggests that the comparative brevity of Ammianus' treatment of the civil activity of Julian as Augustus was dictated by reticence, since he could not praise him as fully as he wished. But there is no indication that Eusebius, who was certainly not afraid to speak out, provided a fuller account; and one would think that, if Ammianus were so encounter any danger, what he did write would have been sufficient to bring it upon him. Thompson further suggests that similar prudence obliged Ammianus to condemn Julian's law against Christian teachers, although he might have approved of it. But books XXII and XXV (which contain the references to the law) were published before the Theodosian repression of 392 and after. There is no reason to regard Ammianus' comments upon this law as anything other than an expression of his true feelings. In general Thompson overestimates Ammianus' reticence in the last six books of the *History* which were written, or at least published, after 392 (see Demandt, p. 75 ff.; Seaman, *art. cit.*, p. 229 ff.).

(60) See p. 77.

(61) XXII, 7, 3; XXIII, 5, 10-14.

CHAPTER VIII

The Troubles of the State: The Emperor and the Individual

Clearly Ammianus is something more than merely a gifted narrative historian. There are certain fairly consistent political and moral ideas underlying his judgement and exercising considerable influence upon his work; and in this respect (as has been more clearly recognized during the last 25 years) he is an "engaged" historian studying current conditions within the Roman Empire and the state in its decline⁽¹⁾.

Ammianus realizes and admits that things are seriously wrong in the Roman world⁽²⁾. He shares with predecessors and contemporaries a strong feeling of malaise⁽³⁾. A good illustration of this state of mind is the recurrent phrases which relate individual disasters to the present situation, usually using the word *tempus*, more often in the plural. Eusebius is led to his death unafraid and *temporum iniquitate insoltans* (XIV, 9, 6); during the reign of Constantius the rapacity of the tax-collectors increases the *amaritudo temporum* (XXI, 16, 17); as the battle of Adrianople approaches the *rabies temporum* spreads far and wide (XXXI, 10, 1)⁽⁴⁾. Morally the people, especially of Rome itself, are bankrupt⁽⁵⁾; and even if the Cretan Epimenides, who purified Athens of the plague, returned, he could not cleanse the Eternal City: *tanta plerosque labes insanabilium flagitiorum oppressit* (XXVIII, 4, 5). Beset from without by barbarian invaders⁽⁶⁾, from within by brigands⁽⁷⁾ and

(1) CAMER, p. 7; de SPIEGEL, *Hellen*, 1962, p. 466; HEYEN, *Lotomus*, 1968, p. 191-6.

(2) Cf. JANNACCONE, p. 73-4.

(3) E.g. VELLEIUS, 2, 1; HORACE, *Epode*, 16; *Odes*, 3, 16; JEROME, *Ep.*, 60, 16; 123, 16-17; CLAUDIAN, *Bell. Gild.*, 17-127; AUGUSTINE, *Sermo*, 81, 8.

(4) Also XV, 6, 4; XVI, 8, 6; XXIX, 2, 18 (cp. XIV, 7, 21; XVI, 8, 11; XXIX, 2, 21; 1, 14).

(5) Esp. XIV, 6; XXVIII, 4. Also XXII, 4, 1-3; XXVI, 3, 4-5; XXXI, 5, 14, etc.

(6) XXVI, 4, 5; 5, 6 and 15; XXVII, 8; etc.

(7) XIV, 2; XXVII, 9, 6-7; XXVIII, 2, 10 and 11-14.

rapacious officials, the provinces are ruined⁽⁸⁾, their sufferings luridly described⁽⁹⁾. At Antioch during the reign of Constantius a horrible portent appeared, an infant with two heads, two sets of teeth, a beard and two very small ears: *qui partus ita distortus praemonebat rem publicam in statum uerti deformem* (XIX, 12, 19).

In one passage Ammianus applies the analogy of the four ages of man to the Roman state⁽¹⁰⁾. When she handed over power to the Caesars she was already *uergens in senium* (XIV, 6, 4)⁽¹¹⁾. Yet even now the city is still Eternal Rome⁽¹²⁾. The paradox is clear and not uncommon in the writers of the period⁽¹³⁾. It is also very natural — on the one hand, the harsh realities of the present, on the other, the nostalgic dreams of the glorious past and the continuing belief that civilization (and even the world itself) depended for its survival upon the existence of Rome⁽¹⁴⁾.

Ammianus views the decay of the Roman Empire in two ways. Firstly, as something external: a result of the barbarian invasions. But although these are treated as something disastrous, they are not regarded as fatal: the damage can be made good. Even the massacre at Adrianople is not the end. Rome has recovered from such reverses before⁽¹⁵⁾.

Secondly (an attitude not uncommon in other Roman writers)⁽¹⁶⁾, the decline is seen as something internal, in other words as decadence. In the early Empire authors like Juvenal could fulminate against the moral evils of the day without deducing a decline in the power of the state⁽¹⁷⁾. In the later Empire, when decline was obvious to most, the causal linking of the two was more natural⁽¹⁸⁾. And it is this latter, internal, approach which is of far greater importance to Ammianus, who expends con-

siderable space and passion upon castigating the injustice, greed and corruption in the state. Since the analysis is moral, causation is expounded in terms of character, and the various ills are related to a falling away on the part of the Emperor, the official and the ordinary man from the ideal which the historian has in his mind. Thus corrupt individuals are to blame for the revolts of Silvanus and Procopius⁽¹⁹⁾, and even the successes of the barbarians are the results of faults on the Roman side. The Persian invasion of 359 A. D. achieves the capture of Amida because of the appointment of the incompetent Sabinianus over Ursicinus: the losses suffered by the Libyans are the result of the corruption of the count of Africa, Romanus: the admission of the Goths across the Danube in 376 A. D. is urged by the greed of the Emperor Valens, their revolt caused by the trafficking of the Roman generals responsible for their settlement, their victory at the battle of Adrianople aided by the Emperor's jealousy of Gratian and the bad advice from his generals which caused him to fight without adequate preparation⁽²⁰⁾.

Ammianus' ideal of character against which the decay is measured is shared with theorists on kingship and panegyrists, with whom (especially the latter) he has other points of contact also. That is not to condemn his ideas as unreal and his political analysis as nothing more than a worthless exercise. The ideal was commonplace in ancient thought and plausible enough to serve both as a mirror for princes and as a basis for criticism. Dio Chrysostom did not consciously talk rubbish in his orations on kingship, and even the panegyrists were probably not wholly cynical. "By describing current actualities in idealized terms, the theorist invites a reconsideration of the real by comparison with a more perfect... At the very least he [i. e. the panegyrist] may hope to mould the prince by flattery, to induce him to resemble his portrait"⁽²¹⁾.

Since Ammianus' historical analysis is made in terms of individuals, like his fellow historians of antiquity he is not concerned to investigate the working of the impersonal forces which interest a modern observer. Nevertheless, in his indictment of the cruelty and greed of the Emperors and their servants he illustrates, almost incidentally, an important cause

(8) XVI, 1, 1: *probulisue fragmenta*. XX, 4, 3: *pruinciarum interitum*. Cp. the words of Julian (XXIV, 3, 9): *ita quassatum recrearet orbem Romanum*, and XV, 5, 2; XIX, 11, 3; XXX, 5, 6.

(9) E.g. XXX, 5, 4-10; XXXI, 8, 6-8.

(10) Also in FLORUS, *proem.*, 4-6 and LACTANTIUS, *Iust. Div.*, VII, 15, 15 ff., the latter of whom derives it from Seneca, probably the elder (see W. HARTKE, *Römische Kinderkaiser*, Berlin, 1951, p. 354, n. 2).

(11) DEMANDT, p. 142 discusses Ammianus' use of *senectus* and *aeternitas* when speaking of Rome.

(12) References in ch. 5, n. 47.

(13) DEMANDT, p. 143.

(14) Therefore Ammianus never considers the possibility of the fall of the Roman Empire (cp. PASCHOLD, Neuchâtel, 1967, p. 67).

(15) XXXI, 5, 11-17. Similar sentiments are expressed by FLORUS, I, 22, 1 and elsewhere.

(16) SANFORD, *AJP.*, 1937, p. 455.

(17) The link is made by the writers of the late Republic such as Sallust.

(18) Cp. the causal linking of vice and decline by JENOWE, *Ep.*, 60, 17 and *adv. Iov.*, I, 40; and SALVIAN, *DGD.*, 7, 23.

(19) See p. 144-5.

(20) Sabinianus, XVIII, 5, 5; 7, 7; XIX, 3, 1-3. Romanus, XXVIII, 6. Valen's greed, XXXI, 4, 4-5 (cp. XIX, 11, 7 on Constantius). The corruption of the Roman generals, XXXI, 4, 9-11. The decision to fight at Adrianople, XXXI, 12, 1 and 5-7 (cp. XXVII, 5, 3).

(21) BARNETT, p. 45. Cp. RADICE, *G. & R.*, 1968, p. 168-9 on the attempt by Pliny to propagandize Trajan.

of the troubles of the state, the deteriorating economic situation. The top-heavy bureaucracy, the ever growing and increasingly institutionalized corruption amongst the officials, the more and more inefficient collection of taxes (often avoided by those who could afford to pay them)⁽²²⁾, the growing practice of granting privileges and exemptions from financial obligations (again often to those who could best afford to pay), the high costs of a showy court and the huge expenditure on defence — all meant that the Empire was chronically short of money. Julian tells his troops why he cannot afford to pay them more: "Believe me, the Roman state, which was once immensely wealthy, has fallen into extreme poverty through the agency of those who, in order to increase their own riches, have taught the Emperors to buy peace from the barbarians with gold. The treasury has been emptied, the cities depopulated, the provinces ravaged ..." (XXIV, 3, 4-5). This explanation of the Empire's poverty is far from complete; and possibly Ammianus has inserted it as an indirect censure of a similar policy practised by Theodosius I⁽²³⁾. But it does recognize the fact that the state was in economic difficulties.

The need for gold had to be met, and in the attempt the populace (or rather that part of it which could not or would not avoid paying) was savagely overtaxed. Ammianus' complaints upon this are frequent — regular taxes heavily increased⁽²⁴⁾; superindictions (XVII, 3, 2); demands for old taxes which have been paid but the receipts for which have been lost (XXVI, 6, 7); even imprisonment and torture for those who could not pay⁽²⁵⁾. Overtaxation is frequently advanced as the cause of the ruin of the provinces⁽²⁶⁾, and once as the reason for revolt against Imperial authority⁽²⁷⁾.

Inability to pay taxes could lead to the seizure of the defaulter's property, attacks upon which are frequently mentioned by Ammianus. Often the motive for such attacks would have been the desire (and indeed the need) to mobilize all such resources for the use of the state, although Ammianus, true to his analysis in terms of individuals and their characters, usually attributes them to the greed and corruption of officials who

involved persons in judicial processes in order to profit from the confiscation of their property⁽²⁸⁾. But whatever the cause, it would often be the least powerful members of the *curiae*, to which Ammianus was sympathetic, who would suffer, since they were least able to defend themselves⁽²⁹⁾.

Ammianus is by no means a competent economic analyst. He does not, for instance, identify overexpenditure (however necessary) as a cause of overtaxation. Perhaps the nearest he comes to it are the words of Julian quoted above and the complaint which he notes of the count of the sacred largesses, Ursulus: "See how feebly the soldiers defend our cities. Yet now the resources of the Roman state are being drained in order that they might receive high wages" (XX, 11, 5). However, even in this latter passage the emphasis is upon the poor performance of the soldiers, and the words are quoted by Ammianus merely as the reason for Ursulus' subsequent trial and condemnation. The historian is not stirred to consider the various financial evils of the day (which he documents in great detail) in relation to this charge⁽³⁰⁾.

As has been noted, the discussion of the financial difficulties of the subjects of the Roman Empire is shaped by Ammianus' analysis in relation to character. The deficiencies of the system are transformed into the faults of the Emperor and his officials. The drain upon the wealth of the people is a result of the greed of "bad" Emperors and their servants. This criticism is frequent⁽³¹⁾, and its proposition almost as a generalization leads to inconsistencies. For instance, Valentinian I and Valens are criticized for their greed while, at the same time, it is conceded that they were solicitous for the welfare of the provinces and lightened the tribute⁽³²⁾. Their "greed" reflects the realities of the economic squeeze, their care for the provinces the valiant, though (except apparently in the case of Julian) unavailing attempt to limit taxation and foster resources.

The main weight of charges against the courtiers and members of the bureaucracy is the same as against the Emperors, with the extra ac-

(22) Cp. XVI, 5, 15.

(23) DEMANDY, p. 62.

(24) XVI, 5, 14; XVIII, 1, 1; XIX, 11, 3; XXX, 5, 7; XXXI, 6, 6.

(25) XXVI, 6, 7; XXX, 5, 6 and 10 (cp. F. Lot, *The End of the Ancient World*, trans. NY, 1965 [1931] p. 174-5).

(26) E.g. XVII, 3, 3; XIX, 11, 3; XXX, 5, 6.

(27) XXXI, 6, 6, where the overtaxed Thracian miners defect to the Goths.

(28) E.g. XIV, 1, 4; XVI, 8, 8; XXVI, 10, 14; XXIX, 1, 19-21 and 43-4; 2, 3; XXXI, 14, 3.

(29) Cp. PACK, Michigan, 1935, p. 30-32 on the ill-treatment of the curials of Antioch by the governors.

(30) The connection is clearly stated in *ANON., de rebus bellicis*, ed. E. A. THOMSON, Oxford, 1952, ch. 5 (see Thompson's introduction, p. 40-41). Also *SFA. Probus*, 23, 2; *Zosimus*, IV, 16, 1; *ANON. BEZANTIUS*, 2, 4 (ed. KOCHLY and RUTOW, *Griechische Kriegsschriftsteller*, II, 2).

(31) E.g. XIV, 1, 3-4; XIX, 11, 7; XXI, 16, 17; XXIX, 1, 19; XXX, 5, 5; 1, 8; XXXI, 14, 5.

(32) Valentinian I, XXX, 9, 1; Valens, XXXI, 14, 2. Also Julian, XXV, 4, 15.

cusation that they plotted for corrupt ends⁽³³⁾. Here, too, the objects of the plotting are property and other forms of wealth. The eunuch chamberlain Eusebius coveted a house at Antioch owned by the general Ursicinus (XVIII, 4, 3). The latter refused to surrender it to him, whereupon he was slandered before the Emperor⁽³⁴⁾. The rest of the rogues' gallery is equally greedy. Typical is the powerful C. Anicius Petronius Probus, who pined away like a fish out of water when he was not holding prefectures, "which he was forced to take as a result of the continuous lawlessness of his kinsmen who, because of their immense greed, were never free of guilt and therefore plunged their master into politics so that they might be able to commit their crimes with impunity" (XXVII, 11, 3)⁽³⁵⁾. Despite the goodwill which the Emperors expressed towards their subjects, the abuses continued unchecked, partly because they were forced to turn a blind eye in order to ensure that the money necessary for their own purposes was available, partly because the guilty protected themselves by blocking the flow of reliable information to the Emperors⁽³⁶⁾. The real power of these officials was at times (and not only during the reign of Valentinian I who, Ammianus says, refused to act against men of high rank)⁽³⁷⁾ as uncontrolled as that of the Emperor himself⁽³⁸⁾.

Though corruption is described in all branches of the bureaucracy, as a group the eunuch chamberlains are the most vilified. Strong distaste for them was commonplace in the ancient world, both as a result of their strangeness arising from their physical condition and also because of their regular functions at court which gave them ready access to and influence upon the ruler wholly disproportionate to their lowly (usually servile) origin. Claudian's *Against Eutropius* is the most comprehensive expression of this hostility. Ammianus, who mentions eunuchs almost

exclusively during his narrative on the reign of Constantius, makes the usual charges. The confidential nature of their employment enabled them to whisper slanders into the ready ears of the suspicious Emperor (XIV, 11, 3) and to forward the plots at which they were so adept and which served their cruelty and greed⁽³⁹⁾, passions born of their inability to beget children⁽⁴⁰⁾.

When discussing the failures of the military Ammianus invokes similar explanations. The corruption which the inhabitants of Libya endured at the hands of Romanus, the count of Africa, and the trafficking of the generals in Thrace in 376 A. D., both of which have already been noted, are illustrative of the activities of unworthy officers in Ammianus' *History*⁽⁴¹⁾. The ordinary troops are judged equally severely. Their greed and robbery fall hard on the populace⁽⁴²⁾; living in luxury they are enervated and unfit for war⁽⁴³⁾; they are ready to abandon their posts at the slightest danger⁽⁴⁴⁾; their riotousness and lack of discipline is troublesome and sometimes gives their own commanders reason to fear for their lives⁽⁴⁵⁾. It is counted to Julian's credit that he was able to persuade his auxiliaries to help in repairing the walls of the cities won back from the Germans, a task which they disdained⁽⁴⁶⁾.

To Ammianus the function of the Emperor is the safety and welfare of his subjects⁽⁴⁷⁾. Yet often precisely the opposite is offered. Not surprisingly, voices are raised in protest. Julian protests against the rapacity of the *agentes in rebus* and against the payment of gold to the barbarians as tribute⁽⁴⁸⁾; Ursicinus against court intrigue (XX, 2, 4); Firmus against injustice and corruption (XXIX, 5, 8); similarly the citizens of Ancyra (XXII, 9, 8); the people of Nisibis against the abandonment of their city to the Persians (XXV, 9, 2-4). Such protests were usually inef-

(33) E.g. XIV, 1, 10; XV, 2, 3; 5, 3 ff.; XVI, 6, 1-2; 7, 1-2; XVIII, 5, 4; XX, 2, 1-3; XXX, 1, 2.

(34) For other attacks on property see n. 28.

(35) Cp. XV, 2, 9; XXII, 4, 3; XXVI, 6, 7-8; XXVII, 7, 2; XXVIII, 1, 35; etc.

(36) E.g. XIV, 1, 10; XX, 2, 5; XXVIII, 6, 9 and 20; XXIX, 5, 2. Other examples will be found amongst the references at n. 33. On the general obscurantism of the bureaucracy see MacMULLEN, *Trajectories*, 1962, esp. p. 369-73, 377-8. In this context the story of Gallus' nocturnal tours of Antioch in disguise (XIV, 1, 9), if it is not a complete fabrication, might be a distortion of the attempts of the Caesar to obtain reliable information in the face of the obstruction by his generally hostile officials.

(37) XXVII, 9, 4; XXX, 5, 3; 9, 1. See also p. 44-6.

(38) E.g. XIX, 12, 13; XXVII, 11; XXVIII, 1, 36 and 38. In general on the fiscal corruption of the period see DILL, p. 175 ff.

(39) XVIII, 4, 3-6 (cp. XV, 2, 10).

(40) XVIII, 5, 4 (cp. XIV, 6, 17; XX, 2, 4; XXI, 16, 16). At XXX, 4, 2 Ammianus notes the influence of the eunuchs during the reign of Valens. Julian's chamberlain Eutropius is the only good eunuch, the exception which proves the rule (XVI, 7, 4-10).

(41) XXVIII, 6; XXXI, 4, 9-11 (cp. XV, 13).

(42) E.g. XX, 11, 5; XXII, 4, 7-8; XXX, 7, 10.

(43) E.g. XVIII, 7, 7; XXII, 4, 6; 12, 6; XXVII, 9, 6.

(44) E.g. XVI, 3, 3; 12, 6; XVIII, 8, 2; XXVII, 1, 4; 8, 10; XXXI, 9, 3.

(45) E.g. XIV, 7, 15-17; 10, 3 ff.; XVI, 12, 14; XVII, 1, 2; 9, 3; XVIII, 2, 7; XIX, 4, 3 ff.; XX, 4, 21; XXII, 4, 6; 12, 6; XXIV, 8, 2; XXV, 4, 12; 6, 11; XXVII, 10, 10; XXIX, 4, 6; 6, 13.

(46) XVIII, 2, 6. Cp. Vegetius (ed. Lang), 1, 20, p. 22; *SHA, Probus*, 20; Victor, *Caes.*, 37, 4. But contrast Ammianus, XXVIII, 2, 2-4, where soldiers of Valentinian I attempt to dam a river.

(47) See p. 86-7.

(48) XVI, 5, 11; XXIV, 3, 4.

fective: but one case of direct action was dangerous and important enough in the opinion of Ammianus to merit considerable space and some sympathy. The *protector* Antoninus was an experienced and intelligent man⁽⁴⁹⁾, formerly a rich merchant and an ex-treasurer of the office of the duke of Mesopotamia. Swindled out of a considerable sum of money by powerful men and finding only injustice in his attempts to gain redress, he admitted the fabricated debt and planned his revenge on the whole system which had allowed him to be cheated. He set out to obtain full information upon military forces and their movements throughout the Empire and then defected to the Persians. Received as a valuable friend and installed as an adviser, he urged the Persians to use his knowledge in the conquest of the whole of Asia Minor. Following his advice Sapor invaded Roman territory with some (though by no means complete) success.

Ammianus has made the lesson clear — present conditions lead to disaffection and consequent danger to the state. He makes it clearer. In the middle of a battle between the Romans and the invading Persians he inserts a most unlikely scene, in which Antoninus, recognized and berated as a traitor by Ursicinus, leaps from his horse, pays homage to the general and explains his conduct: "Forgive me, most noble count, for I have had recourse to this action, which I realize is criminal, not voluntarily but out of necessity. I was driven to desperation by those who, as you know, lied that I owed them money and whose greed even your high rank, defending me in my troubles, could not thwart" (XVIII, 8, 6)⁽⁵⁰⁾.

The same point is illustrated in the accounts of the revolts of Silvanus and Procopius. Silvanus, compromised by plots laid against him by a certain Dynamius and his powerful backers (XV, 5, 3), revolted out of desperation in an attempt to save his own life, "knowing the pliant mind and unpredictable temper of the Emperor and fearing that he would be destroyed without trial or hearing" (5, 15. Cp. 5, 32-3 and 35).

(49) The story of Antoninus is told in XVIII, 5, 1-3 and 6-8; 7, 10-11; 8, 5-6. With Ammianus' qualified sympathy contrast the sharp condemnation of Antoninus in LEBANUS, *Or.* 12, 74. Ammianus' narrative contains some apparently unhistorical, romantic material (ROSEN, p. 20; VOIGT, p. 110-11) and it overstates the importance of the man in respect of the military situation (ROSEN, p. 21 ff.).

(50) Compare the attack upon the corruption and injustice of the Roman Empire spoken by a Greek living amongst the Huns in PRISCUS, *fr.* 8 (FHG, IV, p. 85-8). PRISCUS also, in *Bell. Ford.* I, 3, 14-36, uses the story of Boniface's betrayal of Africa to the Vandals to illustrate the dangers of corruption and consequent disaffection within the state.

Procopius, tricked by the agents of Jovian, was driven to revolt (XXVI, 6, 4 ff.) in which he was supported by the people of Constantinople out of their anger at the depredations of the father-in-law of Valens (6, 7-9 and 17).

To Ammianus the problem is a moral one, the cause a decline in the standard of personal behaviour. He seems to have regarded this decline as of recent date. In XXII, 4, 8 he censures the greed and luxury of Constantius' troops and describes with approval how a soldier of Maximianus (286-305 A. D.) found a jewel-box full of pearls and threw away the pearls since he was satisfied with the beauty of the leather box⁽⁵¹⁾. So the character of the military under one of the two last great pagan rulers was unimpaired: and the implication may well be that the decline set in only under the succeeding Christian Emperors, perhaps specifically Constantine I⁽⁵²⁾.

Since the cause of the decline is moral, the cure must be also. Moral regeneration is called for which, as far as the Emperors are concerned, means to Ammianus the assimilation towards the ideal of the ruler against which he judges their actions. Not only does the ideal underlie the criticisms of the Emperors, but it is also introduced into some of their speeches, thus being continually cast before the reader and providing on occasions almost a form of self-condemnation by these Emperors when they fall from these standards during their careers. Constantius to Julian on his elevation to Caesar advises him in war to take his position in the thick of battle, to lead by example, to give good advice, to rebuke the slothful, to bear witness to the strong and to the weak (XV, 8, 14). Valentinian I in a speech on Gratian upon the latter's elevation to Augustus praises his training in the liberal arts and promises that he will be just, sympathetic to good men, a brave and hardy soldier and a loyal servant of the state (XXVII, 6, 9). These words express the

(51) In XXXI, 5, 14 Ammianus praises old-time temperance. This follows immediately after a note upon the sacrifices of M. Aurelius against the barbarians. But the latest Roman victory mentioned is that of Aurelian over the Goths, and Ammianus' reference to old-time temperance probably includes that success also.

(52) LEBANUS, *Op.* 47, 28 (quoted by PACI, Michigan, 1935, p. 4) makes the decline even more recent, placing it between his own and the previous generation. As far as the historical analysis is concerned we might compare Zosimus who both blames Constantine I for initiating the decline and attacks not only the abandonment of the old cults by this Emperor and his Christian successors, but also accuses Constantine and Theodosius I of a low standard of morality.

ideal which these same Emperors are judged, in part at least, to have failed to fulfill⁽⁵³⁾.

Ammianus' ideal of the good official is not as thoroughly worked out or as clearly defined as that of the good ruler. It finds its most comprehensive expression in the sketch of Eutherius (XVI, 7, 4 ff.), a man sufficiently well read, intelligent, loyal, discreet, kind and temperate. But Eutherius was an eunuch and, in Ammianus' eyes, of the lower classes. The ideal of the great official might differ in some details. Many of these are characterized, but only in a word or two: Anatolius, who corrected abuses and cut the tax (XIX, 11, 3); Lauricius, who set evils aright by threats rather than by punishment (XIX, 13, 2); Praetextatus, an honest and just man who enacted salutary measures during his urban prefecture at Rome (XXVII, 9, 8); Eupraxius, firm and just (6, 14); Olybrius, who was just and humane and who punished calumny and cut the taxes (XXVIII, 4, 1). As in the case of the Emperors, the just and merciful aspects of the official's character are all important to Ammianus⁽⁵⁴⁾. And it is up to the Emperor to select such men. Complaints that he did not do so are common⁽⁵⁵⁾.

Ammianus not only proposes that the actions of the Emperor should be guided by the possession of kingly virtues, but he also accepts the idea of an external limitation upon his power. Hellenistic thought had a profound impact upon Rome in many areas, and it is hardly surprising that the Romans under the Empire should have concerned themselves with the Hellenistic theory of kingship. Minor variants are many, but basically the theory proposes that the king, chosen by God and ruling by divine right, is superior to the ordinary man; and in extreme and not uncommon cases the living ruler is deified, his regime itself transformed into a theocracy. By virtue of this superiority and through the exercise of his reason he has access to a perfect and immutable natural law. Therefore it is right that he should be the only lawgiver in the state and able to alter at will the legislation of mere mortals, for he himself is living, breathing law (*νόμος ἐμψυχος*). This definition of the ruler in

(53) Also XIV, 10, 5; XVI, 12, 9-12; XVII, 13, 32; XX, 5, 7; 8, 11; XXI, 5, 7-8; XXIV, 3, 5-7; XXV, 3, 17-18. See also p. 102-4.

(54) Also Helpidius (XXI, 6, 9), Leontius (XV, 7, 1), Symmachus (CCXVII, 3, 3), Orestius (XVI, 8, 12), Hesperius and Flavianus (CCXVIII, 6, 28).

(55) XXI, 12, 24; XXVII, 3, 2; XXX, 5, 10; 8, 13. Cf. SYMMACHUS, *Rel.*, 17 and contrast the pro-establishment ANTONINUS who says (*exposit. evang. in Luc.*, 4, 29) that the Emperor is not responsible for a bad governor.

respect of the law (which is not the only aspect of the theory, but the important one for this study) might be of benefit insofar as it could provide the basis for mitigation of a law whose enforcement would result in injustice. But clearly it also offers a ready justification for an irresponsible absolutism⁽⁵⁶⁾.

This Hellenistic theory was known at Rome at the latest by the time of Cicero⁽⁵⁷⁾. Insofar as it appeared to offer a basis for the mitigation of harsh laws without seeming arbitrarily to violate them, it could have been attractive during the Principate⁽⁵⁸⁾. And in the first two centuries A. D. there are occasional references to the Emperor's superiority to the law, though they appear mostly in official or semi-official documents⁽⁵⁹⁾ and might be related to the general development of absolutism rather than to any concern for equity. The reign of Septimius Severus brought to Rome a military despotism which was strongly influenced by eastern thought and practices. The Emperor was now defined as *legibus solutus*⁽⁶⁰⁾, a position taken by his successors also, even when they voluntarily submitted to the laws⁽⁶¹⁾.

Eusebius of Caesarea, writing at a time when many aspects of the general Hellenistic theory of kingship were becoming commonplace and recognizable in court ceremonial and official communications⁽⁶²⁾, adopted in his propaganda for Constantine I the Hellenistic view of the king's role and position and set it in a Christian context, drawing the parallel between God in the cosmos and the king in the state⁽⁶³⁾. Subsequently

(56) Cf. WINSZLUSKI, p. 134. On the origin of the absolute law theory see GOODENOUGH, *JCS*, 1928, p. 55-102 (Pythagorean); HAMMOND, *HSCP*, 1938, p. 124 (Stoic); DROGONIS, *J. Washington*, 1966, p. 245 ff. (Persian or Egyptian influence).

(57) Cicero, however, has a somewhat different interpretation. To him the magistrate, ruled by the law, rules the people. Therefore (*Leg.*, 3, 1) he is speaking law (*legem loquentem*) and the law is a silent magistrate (*mutum magistratum*). Thus in his view the ruler is identified with the law because he carries it out exactly (cf. VALDENBERG, *Byzantion*, 1924, p. 572-3; DELATTE, p. 245-9).

(58) See BAYNES, *JRS*, 1944, p. 139.

(59) E.g. SENECA, *de Clem.*, I, 1, 2; DIO CHRYSOSTOM, *Or.*, 3, 10. It is implied by PLEISTO, *Pon.*, 65, 1: *quod ego nunc primum audio ... non est princeps super leges. sed leges super principem* (see also 24, 4; 64, and cf. HAMMOND, *art. cit.*, p. 124, n. 5).

(60) ULPIAN, *Dig.*, I, 4, pr., 1: *quod principi placuit, legis habet vigorem*, and *Dig.*, I, 3, 11: *princeps legibus solutus est*. Cf. FRANCISCI, *BIDR.*, 1925, p. 324 ff. points out that these phrases are exactly right in the context of the absolutist and anti-senatorial policies of S. Severus. On the other hand, SCHULTZ, *EHR*, 1945, p. 154-5, 158-60 argues that they cannot have been written by Ulpian, but must have been adapted by Justinian's compilers of the *Digest*.

(61) See DI FRANCISCI, *art. cit.*, p. 332 ff.

(62) DROGONIS, *II*, Washington, 1966, chs. 10 and 11 *passim*, who in general overstates the popularity of the absolute law theory at this period.

(63) BAYNES, *Alpho*, 1933-4, p. 13-18; LIECHT, p. 45 ff.

Themistius in his orations to the Emperors (except Julian) also declared that the ruler was animate law, though not proposing it in Christian terms. In a speech before the Emperor Theodosius I he says, "The virtue of a judge is one thing, that of a king is another. The former should obey the laws, the latter should emend them and point out those which are harsh and cruel, since he is living law and not that which is in the codes, static and unchangeable. For thus, as it seems, God sent monarchy down from heaven to earth, so that it might provide for mankind a refuge from the law which is immutable to that which is living and breathing" (*Or.* XIX, 228A) ⁽⁶⁴⁾. However, he is careful, both here and often elsewhere, to emphasize the merciful aspect of such a kingship ⁽⁶⁵⁾, and he tries to counter the dangers inherent in irresponsibility by appealing to morality and for the use of counsellors (i. e. philosophers) by the king ⁽⁶⁶⁾.

Despite the tendency of the central authority in the fourth century A. D. to adopt the concept of the Emperor as animate law, with all which it implied, the theory was far from universally accepted. Indeed one of the Emperors, Julian, in his two orations on kingship to Constantius II, in his *Letter to Themistius* and in the general style of his regime, attempted a complete reversion to the traditional Roman idea that the powers of the rulers of the state (magistrates or Emperors) were constitutionally defined ⁽⁶⁷⁾. His reason was short lived; but long after it had been erased the Christians Ambrose, Synesius and Isidore, amongst others, still held that the king was below the laws ⁽⁶⁸⁾. For the Church, after its initial

(64) Also THEMISTIUS, *Or.* I, 15B; V, 64B; VIII, 118D; IX, 127A-B; XIII, 177B; XV, 190B-C; XVI, 212D; and very often. On Themistius' concept of animate law see DODD, p. 129 ff.

(65) THEMISTIUS, *Or.* XV, 187A-B; XIX, 228A; VII, 92D; and in some of the passages cited in n. 64.

(66) THEMISTIUS, *Or.* VIII, 108C-109A; XIII, 171D-173C (cp. MACMULLEN, Cambridge Mass., 1956, p. 54-6).

(67) DVORNIK, II, Washington, 1966, p. 659 ff. and "The Emperor Julian's 'Reactionary' Ideas on Kingship," p. 71-81; and DE FRANCISCI, *art. cit.*, p. 336-9.

(68) For Synesius see LACONBRADIE, p. 98. AMBROSE, *Ep.*, 21, 9: *quod cum praescriptum aliter, praescriptum est tibi* (and see DE FRANCISCI, *art. cit.*, p. 341-2). ISIDORE, *Sem.* 3, 53: *hunc est principem legibus obtemperare sult*. The argument of DVORNIK, II, Washington, 1966, p. 672 ff., 699 ff., that both Ambrose and Synesius accepted the animate law theory, is not convincing. In the passages which he quotes from Ambrose the bishop is merely admitting a *de facto* superiority to the law in order to affirm an obedience to God's law. For Synesius he quotes one passage from *Ep.*, 73 to Troilus, in which Synesius says that if the prefect Anthemius does not like the ancient laws... *ἀλλὰ τὸ θεῶν νόμος ἀνεκράτει τὸν πρὸς αὐτὸν, τὴν δὲ ἄνθρωπος τῶν ἀνθρώπων ἐν βασιλείᾳ ἐκπαρτίσκει*. The usual translation of *ἐκπαρτίσκει* is something like "still alive" (cp. A. FITZGERALD, *The Letters of Synesius of Cyrene*, Oxford, 1926, p. 165). DVORNIK, translating to suit his argument, renders "still alive to its lawgiving function." This version (which even then does not indicate that Synesius held the king to be *νόμος ἀνθρώπων*, as D. would have it) reads too much into the Greek.

euphoria during the reign of Constantine I, when primacy was conceded to the Emperor, was inclined to stress its primacy over him ⁽⁶⁹⁾.

Support for or opposition to the doctrine that the Emperor is above the laws appears to have depended to a considerable extent upon the prevailing political ideas, the social climate or the position or personal convictions of the individual who was expressing his opinion. As in the early Empire, most of the formulations of the animate law theory appear in official or semi-official documents. And some of the writers who in semi-official works support the theory express the opposite opinion at a different period or in different circumstances. Thus Themistius, who during most of his career seems to have subscribed to the animate law theory, reversed his position during the reign of Julian and advocated constitutionalism ⁽⁷⁰⁾. Again Libanius, whose personal position was that the Emperor is below the law ⁽⁷¹⁾, says in his panegyric on Constantius and Constans, "But what is greater than to be the masters of the laws, yet to place yourselves below them?" (*Or.* 59, 162).

These cautious words ⁽⁷²⁾, while they admit what could hardly be denied — that the Emperors are *de facto* above the law — also attempt to recommend the opinion of the speaker, that they should submit to them. Such expressions (as well as those in the official documents) can hardly be taken as evidence that the absolute power of the Emperor was consensual ⁽⁷³⁾.

In the fourth century A. D., beyond the official documents, Eusebius and Themistius (whose relevant works were of a semi-official nature)

(69) COCHRANE, p. 183 ff.

(70) DVORNIK, II, Washington, 1966, p. 659 ff.

(71) LIBANIUS, *Or.* 25, 37; 50, 18-19. DVORNIK, *op. cit.* II, p. 669-70 concedes that this is Libanius' true position. There is similar ambiguity in the works of Dio Chrysostom. In *Or.* 3, 11, which was delivered before Trajan, he sets the Emperor above the law. But in *Or.* 56, 8-16 he makes the king accountable to the elders.

(72) DVORNIK, *loc. cit.* and "The Emperor Julian's 'Reactionary' Ideas on Kingship," p. 72-80 calls them time-serving, but what could Libanius do in a panegyric on the Emperors?

(73) The notion that the Emperor enjoyed much consensual power (cp. C. J. FARRER, *May and his Government*, N.Y., 1963, p. 196) depends upon the view that the concept of the ruler as God's representative on earth went beyond formal acknowledgment and would induce obedience. This was hardly the case with a large segment of the upper classes in the fourth century A.D. With the lower classes the evidence is more doubtful. But the revolts and brigandage reported, the reluctance to pay the heavy taxes and other forms of opposition argue that consensual power was very much on the wane in the later Empire. Perhaps the presence of the Emperor did have some local effect (as is suggested by the appointment of Caesars like Julian and Gallus as prestigious representatives of the central authority), but even this is arguable in view of the frequent demonstrations and unrest in the cities (especially Constantinople and Antioch) even when he was present.

speak for the animate law theory, as do some churchmen, who concede the Emperor's superiority to human law in order to sweeten his obedience to God's law⁽⁷⁴⁾. Otherwise most educated pagans of the period⁽⁷⁵⁾, and some Christians, inclined towards constitutionalism in defining the position of the Emperor, although they did concede his *de facto* irresponsibility. Even as late as the reign of Justinian I official documents, which expressed the principle of superiority, still conceded that the Emperor was morally bound to obey the law⁽⁷⁶⁾.

Ammianus' opinion is one which must have been common during the fourth century A. D., a somewhat confused preference for the constitutional limitation of Imperial power⁽⁷⁷⁾. It is taken for granted that a legitimately installed Emperor is necessary for the state; and the potentially unlimited power of the position is also recognized⁽⁷⁸⁾. But the Emperor is often accused of breaking the law⁽⁷⁹⁾; and in one passage Ammianus says, *sed exultare maestis casibus effrenate non decet, ne uideantur licentia regi subiecti, non potestate* (XIX, 12, 18), where *licentia* is identified as the unrestrained power of the absolute monarch (the βασιλεία of the Byzantines, or *rex*, which Ammianus never uses of the Roman Emperor)⁽⁸⁰⁾ and *potestas* as constitutionally limited power⁽⁸¹⁾.

(74) SCHULTZ, *EHR*, 1945, p. 158, n. 2 holds that the statement of SERVILIUS, *ad Aen.* 11, 206: *imperatores et alii quos Vestae, quia legibus non tenentur*, is wrong. Further examples in DVORNIC, II, Washington, 1966, chs. 10 and 11. Some (e.g. FIRMICUS MATERNUS, GREGORY NAZIANZEN, PS-AUGUSTINE, *quaest. veteris et novi testamenti*) are more convincing than others. The passage from ISON. (*Homil. in ps.*, 32, 9 = PG, 29, col. 354) said to propose the animate law theory does not. BASIL says, ἀποκρίνω δὲ τῶν βασιλέων εἶναι τὴν ἐξουσίαν ἐμμενῆσαν, ἢ τῇ ἐν τοῖς ἀρχαῖς ἀνωθεν ἀποδοτῇ. But he does not support either definition, for he holds both to be irrelevant: ἀσθενὴ γὰρ ἐστὶ καὶ ἀδυναμεῖα πάντα ἀπὸ τῆς ἐξουσίας πρὸς τὴν ἀληθινὴν δύναμιν παραβέλλεσθαι. And in this he includes kingly power.

(75) For the fifth century see PRISCU, *fr.* 8 (FHG, IV, p. 87-8), quoting himself: καὶ οὕτως οἱ τοῖς νόμοις κατὰ πάντα, ὥστε αὐτοῖς καὶ βασιλεία ἐπιτελεῖται.

(76) SCHULTZ, *art. cit.*, p. 161-2. On the concessions of the regime of Valentinian III to constitutionalism see OOST, *CPA*, 1968, p. 120-21.

(77) Cf. DAGRON, p. 127 ff.

(78) E.g. XXI, 16, 6: *summorum licentia potestatem*, of Constantius. Also XVIII, 3, 7; XXII, 10, 4; XXIX, 1, 19; 2, 10; XXX, 8, 8.

(79) XIV, 7, 21; 9, 5; XXVI, 10, 11; XXVIII, 1, 11, 15 and 24; XXIX, 2, 3 and 12. See also p. 114-5. The use of *hastilia* might on occasion hide other accusations of illegality, e.g. XXV, 4, 21: *potestatem inuicem quondam amicitiae uel peregrinitatis, uel ab his consuetudinibus aut origine longe discreuit*. But in Ammianus *hastilia* can and often does refer to equity rather than to legality.

(80) Imperial titles, *Princeps*: XVI, 9, 3; 11, 2; XVII, 12, 9; 13, 5 and 8; XVIII, 2, 16; etc. *Imperator*: XVI, 12, 15-16 and 68; XVII, 12, 9, 12 and 19; 13, 6 and 9; XVIII, 4, 2; etc. *Augustus*: XVII, 2, 3; 13, 10 and 28; etc. *Caesar*: XXV, 7, 6; XXXI, 10, 18; etc. They seem to be used interchangeably (see esp. XVII, 13, 5-10).

(81) NAZARIUS (*Proc. Lat.*, IV), 8, 2 uses the same contrast of a tyrant who cannot support his prosperity.

Elsewhere the historian says of Constantius, "And, as some right thinking persons have opined, it would have been a powerful proof of his virtue had this same Constantius abdicated without bloodshed rather than defended his position with such cruelty" (XXI, 16, 12). Julian, too, is made to reject the notion of irresponsibility when he says, "And finally I promise all of you that, when we have settled this matter to our advantage, I shall lay aside all Imperial prerogative (which holds that whatever the Emperor has said or thought is just, because of the power inherent in his sovereignty) and, if anyone demand it of me, I shall give account of my actions, so that you can judge their wisdom or otherwise" (XXIII, 5, 22).

In Ammianus' *History* the state is never identified with the Emperor⁽⁸²⁾, as it often is in Hellenistic theory⁽⁸³⁾. He is the servant of the state and quite separate from it⁽⁸⁴⁾. The state itself is *res Romana*, *orbis Romanus*, *imperium Romanum* or, most commonly, the traditional *res publica*⁽⁸⁵⁾, in contrast with the foreign nations, which are termed *natio*, *gens* or *regnum*⁽⁸⁶⁾.

Ammianus is not wholly consistent in his treatment of the position of the Emperor with regard to the laws when, without comment, he allows Julian to say, "Let the laws condemn my clemency, but it is right that an Emperor of most merciful disposition should rise above the laws" (XVI, 5, 12). The inconsistency arises because Ammianus, here not concerned with constitutional niceties, is considering only the mitigation of the harsh law by the clement Emperor and ignores the full implications of the words in the context of the animate law theory. Moreover, whatever his own convictions, he was writing at a time when the Emperor had *de facto* unlimited power, and from a practical point of view he

(82) See VALENTI, *BAGB*, 1957, p. 88-90. Contrast D. C. EARL, *The Moral and Political Tradition of Rome*, London, 1967, p. 110, who, however, offers no evidence for his view.

(83) GOODENOUGH, *JCS*, 1928, esp. p. 91.

(84) XV, 8, 5; XVI, 3, 2; 10, 3; 12, 40; XIX, 3, 2; XXI, 16, 15 (cp. TASSI, *CS*, 1967, p. 178 ff.).

(85) *Res Romana*, XVII, 14, 1; 13, 26; XIX, 1, 4; 11, 7; XXXI, 13, 11; etc. *Orbis Romanus*, XVII, 5, 13. *Imperium Romanum*, XVII, 5, 2; XXVII, 6, 12. *Res publica*, XV, 1, 5; XVI, 3, 2; XIX, 3, 2; 12, 19; and very often.

(86) Germans and Sarmatians, *natio*: XVI, 12, 26; XVII, 12, 16. *gens*: XVI, 12, 6; XVIII, 2, 14. *populus*: XVI, 12, 23; XVII, 12, 21; 13, 24. *pagus*: XV, 4, 1. *regnum*: XVII, 12, 9, 18 and 21. Most often these peoples are referred to generically as *barbari*.

Persians, *regnum*: XVIII, 4, 1; XXIII, 6, 2 and 7. *gens*: XXIII, 6, 7. *natio*: XXIII, 6, 81. Armenians, *natio*: XXX, 1, 4. Isaurians, *natio*: XIV, 4, 7. Gauls, *gens*: XV, 11, 3.

had to accommodate his treatment of the history of the period to the realities. Thus the great stress (which would have been unnecessary in an age when there were effective constitutional checks) laid upon the ideal of the ruler, especially its clement aspect, and his duty to protect and profit his subjects. Naturally, many of the virtues which Ammianus ascribes to his ideal king, and some of the jargon which he uses, can be traced to the Hellenistic theory of kingship. Some aspects of this, such as the role of the king as saviour and benefactor, Ammianus accepted. But when he expresses himself directly upon the relationship between the Emperor and the law he is firmly constitutionalist.

Since the power of the Emperor is *de facto* absolute, it is of the greatest importance that he always seek to exercise his clemency. In order to ensure this, a further virtue is required of the good Imperial minister, *libertas*, by which in this context Ammianus means the courageous use of freedom of speech to oppose the Emperor when he is planning injustice. Ursulus, the count of the largesses, when he discovered a plot against a man on trial before him, brushed aside the opposition of the courtiers who would have denied him access to the Emperor, confronted Constantius with the facts *libero pectore* (XVI, 8, 7) and rescued the truth from those who would have perverted it. Julian's chamberlain, Eutherius, did not hesitate to rebuke his master, who readily accepted censure from his friends as a necessary corrective for his own inconsistency⁽⁸⁷⁾. The quaestor Eupraxius, by his *libertas* in boldly contradicting the angry Valentinian I, killed a cruel and unjust decree⁽⁸⁸⁾. All these actions, and others like them, Ammianus praises. He is clearly of the opinion that a function of the Imperial ministers is to act as a check upon their master, again a position at variance with the Imperial view which regarded the official as the eyes and ears of the central authority⁽⁸⁹⁾.

This comparatively specialized meaning of *libertas* is intimately connected with the more general concept which is one of the most important themes in Ammianus' *History* — that of the freedom of the individual

(87) XVI, 7, 6; XXII, 7, 2; 10, 3; XXV, 4, 16. GREGORY NAZIANZEN, *Op.*, 4, 91 confirms the freedom of speech of Julian's prefect. Perhaps AMMIANUS, XVI, 5, 9 on Julian: *in rei civis magnanimitate correxit et libertate*, also refers to freedom of speech (*libertas* = "by permitting freedom of speech"). Yonge and Rolfe both translate "liberality", though I can find no other example of *libertas* used by Ammianus with this sense. Seyfarth is better, translating *Freizügigkeit*.

(88) XXVII, 6, 14; 7, 6; XXVIII, 1, 25. Other examples at XIV, 9, 6; XVI, 10, 13 (cp. XXIX, 1, 8).

(89) DODD, p. 139 ff.

from arbitrary tyranny, injustice and fear. This notion of *libertas*, which is concerned with protection from authority, supplants in importance the older Roman legalistic concept of freedom. The latter, which is occasionally mentioned by Ammianus⁽⁹⁰⁾, defines *libertas* as civil life within the law in respect both of rights and of obligations, and thus seeks to combine liberty and authority⁽⁹¹⁾. But authority had won out even by the time of Augustus, and henceforth *libertas* resided not in the law, but in the use of power by the Emperor and the people's behaviour towards him. The position of Tacitus on the matter is representative — *libertas* is, on the one hand, security and freedom from injustice, on the other, the freedom to say and think what you wish⁽⁹²⁾. But the latter is the yardstick and guarantor of the former. Thus adulation of the Emperor is determinedly rejected⁽⁹³⁾ and freedom of speech is praised, as a means and not merely as an end in itself⁽⁹⁴⁾.

Ammianus' own advocacy of freedom of speech is evident not only in his approbation of the characters in the *History* who exercised it, but also in his disapproval of the Emperors when they punished censure⁽⁹⁵⁾ and in his whole implicit rejection of the panegyric approach to history. The second aspect of *libertas*, freedom from fear and injustice, underlies all his criticism of the corruption, cruelty and other evils of the system and gives depth to his description of the idyllic life of the Chinese (*Seres*), peaceful and gentle, simple and abstemious, isolated and untroubled beneath their clear skies and beautiful trees (XXIII, 6, 67-68) — reflection perhaps of some of his own utopian dreams.

"You command us to be free; and so we shall be," says the younger Pliny (*Pan.*, 66, 4) to the Emperor Trajan, illustrating a melancholy truth which Ammianus' Julian recognizes⁽⁹⁶⁾, that under an autocrat, however enlightened, freedom must depend upon his toleration and non-

(90) XIV, 6, 5: *leges, fundamenta libertatis et retinacula seculorum*; XVII, 12, 18-20; 13, 23.

(91) On the Roman legalistic concept of liberty see WIRSZBURG, p. 7-9. On the combination of liberty and authority see COCHRANE, p. 104 ff. On the development of the idea of *libertas* as freedom from arbitrary tyranny see HAMMOND, *HSCP*, 1963, p. 53-113.

(92) WIRSZBURG, p. 160-67.

(93) MOMIGLIANO, *JRS*, 1951, p. 149 ff.

(94) For the later Empire cp. SYMMACHUS, *de Regno* (PG, 66), col. 1053A-1056B, who details the value of freedom of speech. Also THUCYDIDES, *Op.*, I, 11A; AMBROSII, *Ep.*, 40, 2-3; CLAUDIUS, *Col. Séd.*, III, 113-119.

(95) E.g. XV, 3, 5-6 and 7-11; XX, 2, 4-5; 11, 5; XXVIII, 6, 20 and 22 (cp. DODD, p. 61 ff.).

(96) XXII, 10, 4: *gaudebam plane praeque me ferream, si ab his laudaret, quoniam et vituperare posse aduersum, siquid factum sit verum aut dictum*.

interference. Holding to the principle of toleration (and in common with other embattled pagans of the period) (97) Ammianus shows a marked lack of religious intolerance or even interest, praising Valentinian I who forced his opinions upon no one (XXX, 9, 5). To Christianity as such he is not hostile, reserving his scorn for the folly, intolerance and savagery of its followers and turning his censure upon the bishops only when by their greed, ostentation and other vices they betray their calling or when they meddle outside their own affairs (98).

By the same criterion Ammianus is free from the jingoism which still infected some of the writers of the late Empire, especially the panegyrist (99). He shows no desire for his Emperors to conquer the world and bring the joys of Roman civilization (now including Christianity) (100) to the barbarians. The concept expressed by Themistius (101) and other Imperial propagandists, of the Roman Empire as a world Empire, is not advanced and might seem to be implicitly rejected by the censure of Constantius' claim that he was *orbis totius dominus* (XV, 1, 3) (102). Ammianus' main wish for the army is that it vigorously protect the borders and leave the populace of the Empire in peace (103).

Freedom is a leading theme of Ammianus' *History*, freedom of the individual. And it is the individual who is at the centre of the work. Not the new Christian individual, a unique human being sharply differentiated from all others around him (104) (a view impossible for Ammianus with his traditional tendency to think in types) (105), nor the self-

(97) E.g. THEMISTIUS, *Or.*, XII and SYMMACHUS, *Ref.*, 3 *passim* and esp. 8 and 10.

(98) On Ammianus' treatment of Christianity and Christians see ch. 7.

(99) E.g. SYMMACHUS, *Or.*, 2, 12-13, 24-5 and 31; CLAUDIAN, *Cos. Silv.*, III, 130-37; *III Cos. Hon.*, 201-11; *IV Cos. Hon.*, 41-4; EUSEBIUS, *Land. Const.*, 4, 5-6; *Pan. Lat.*, X, 7. See also DOWNNEY, *Historia*, 1955, p. 207-8.

(100) Cf. AMARIUS, *de fide*, II, 14, 136-43 (*PL*, 16, col. 611 ff.), where the external campaigns of the Emperor are represented almost as a holy war.

(101) DACHON, p. 87 ff. The idea is also expressed in some of the passages cited in n. 99.

(102) Occasionally expressions are found in Ammianus such as the description of Valentinian I by the elder Theodosius as *orbis terrarum dominus* (XXIX, 5, 46). But they are formal expressions used by characters in the *History* and not the opinions of the historian.

(103) DEMANDY, p. 22 ff. In keeping with this freedom from jingoism, Ammianus almost wholly ignores the role attributed to the goddess Victoria in Imperial necessities (see GAGNE, *RH*, 1953, p. 1-43 and WEINSTOCK, *NTS*, 1957, p. 211-47). The idea only occurs in formal acclamations, such as that of Julian at XXI, 5, 9, and in titles, such as that of Constantius at XVII, 5, 19. It is especially common in panegyric (e.g. SYMMACHUS, *Orat.*, 1 and 2), a good reason for Ammianus to make little of it.

(104) STARR, NY, 1965, p. 281-83.

(105) Cf. COCHRANE, p. 98 ff.

sufficient man of the Stoics and Cynics (106). But the infinitely depressing product of an oppressive, all-powerful autocracy, the man in isolation, shorn of the comfort of group ties, helpless and insignificant (107).

Ammianus builds his thought around individuals. The Emperors are obvious examples, the great civil and military officials are others. The best illustration of this kind of thought in action is the description of the encounter between Leontius, the urban prefect of Rome, and the mob leader Peter Valvomeres (XV, 7, 1-5). A mob gathers, angry and dangerous, animals rather than human beings (108). The prefect with his *officium* confronts them confidently. In the face of the danger many of the *officiales* desert their chief. But the prefect remains unperturbed and, recognizing amongst the mob a man of huge size and with red hair, asks if he is Peter Valvomeres. When told that he is, Leontius has Peter seized (how we are not told, for many of the *officiales* had fled) and hung up for flogging as the ringleader, at which the mob scatters. The confrontation between the two groups, the prefect and his *officium* on the one hand and the mob on the other, has crystallized into a confrontation between two isolated individuals.

The world described in Ammianus' *History* is a strange one and at times hardly human. Many of those who people it are savage and murderous. Even the good are troubled and anxious and utterly isolated. This sense of isolation is especially strong in the descriptions of the terror experienced during the trials for treason, magic and other crimes. The loneliness and helplessness come out clearly when, in the account of the trials held at Antioch during the reign of Valens, where Ammianus was at the time, the historian tells how all crept about in fear as if in Cimmerian darkness (XXIX, 2, 4); or when he describes how a man was forced to watch a train of executioners followed by a line of slaves, emaciated and filthy, their chains clanking, to be tortured to the verge of death in order to condemn him (XXVIII, 1, 55); the fear to mention a

(106) FRONTO, ch. 8. The idea of autarky is expressed by Julian in his dying speech, which is strongly Stoic in tone: *manus autem id mihi delatum optime solvi, ne difficultatibus incombere arduis, nec me proclam unquam aut prosteram, expertus quod dolores omnes ut insulsi ignibus, ne periculis cedant... steti fundatus, turbines calcare fortitudinem assuefactus* (XXXV, 3, 16-18).

(107) The gradual fragmentation of the group in the ancient world and the admission of the process in the isolation of the individual in the later Roman Empire is discussed by STARR, *op. cit.*, p. 265-77.

(108) See the analysis of this passage by AMARIUS, p. 43 ff., to whom the debt here will be obvious.

dream which might be dangerous (XV, 3, 6) or even to speak in an empty room lest the walls overhear (XIV, 1, 7) ⁽¹⁰⁹⁾.

But perhaps the most striking example of this state of isolation is provided by Ammianus himself in the parts of the *History* where he describes his own activities in the East during the reign of Constantius (XVIII, 6-XIX, 8). As he passes through various adventures he is totally alone — no friendship, no real relationship at all, no feelings. Once we are introduced to a *collega*, Verinianus (XV, 5, 22). There is no further comment; and Verinianus appears only once again, during a fight with the Persians, wounded in the thigh by an arrow (XVIII, 8, 11). At his colleague's request Ammianus was trying to extract the arrow when he found himself surrounded by the enemy, whereupon he fled. There is not a word upon his colleague's fate.

(109) For further illustration of this phenomenon in Ammianus, see p. 116-7.

CHAPTER IX

Exempla in the "History"

It would appear that Ammianus regards the ideal of the virtuous ruler, supported by equally virtuous, efficient and outspoken officials, as a cure for the ills of the Roman state. It would also appear that he regards education as the means of achieving the necessary degree of virtue ⁽¹⁾. The teachability of virtue and the importance of education are recurring themes in the fourth century A.D. Its basis was literary study ⁽²⁾, and such study is said by Julian (himself an exemplary product of the system) to have shaped his own moral outlook ⁽³⁾. "Wholly devoid of originality, it sought to teach men how to 'act' rather than to 'produce' or 'construct'" ⁽⁴⁾; and various philosophers, in competition with various rhetors, advertised the importance of their discipline 'for life'. The state itself was a ready employer of educated men ⁽⁵⁾, and most people of any status agreed on the importance of education ⁽⁶⁾. Thus Julian says to Constantius, "Of course, you automatically received a royal education which made your body strong, vigorous, healthy and beautiful, and

(1) Cp. the similar position of Aurelius Victor both on the importance of character and on the role of education (DEN BOER, *Mnemotekne*, 1968, p. 258).

(2) DOWNEY, *TAPA*, 1955, p. 101 ff.

(3) JULIAN, *Misopogon*, 351A-351A. Cp. AMMIANUS, XVI, 5, 7 on Julian's study of domestic and foreign history, and NORMAN, p. xxiv-xxv. In general on the importance to Julian of education, especially its formative aspect, see DOWNEY, *CPB*, 1957-8, p. 97-103. Also see KALLI, *PAPWS*, 1964, p. 29-38.

(4) COCHRANE, p. 151.

(5) DEL, p. 399 ff.

(6) E.g. LIBANIUS, *Or.*, 18, 157-60; THEMISTIUS, *Or.*, XI, 143C-146C; ZOSIMUS, IV, 54, 2 remarks that Arbogastes decided to make Eugenius Emperor, thinking *ὅτι δὴ συνδίδας ἐκπαίδευσιν καὶ τὴν ἀλλοτρίαν τοῦ βίου ἀναστροφήν* πρὸς ἀγαθὴν βασιλείαν ἀποδοῦναι τὸν *ἄνθρωπον*.

On the interest of the *SHA* in education see SEALE, Oxford, 1968, p. 126. On Aurelius Victor see SEARR, *AHR*, 1955-6, p. 581-3. On the social status derived from education see HOFMEIER, *CQ* 1961, p. 239-48.

which suitably endowed your soul with bravery and justice, temperance and wisdom" (*Or.*, I, 10C). Themistius even declares that if a man is well educated his life is divine, but like that of a savage beast if he is not (⁷), a good indication not only of the value set upon education by the upper and middle classes, but also of the contempt which they felt for the uneducated masses.

In the late Roman Empire intellectual vigour had long been in decline. Consolidation and interpretation had replaced enquiry, and now the major function of education was the transmission of culture, worn in many cases like a mark of class and a badge of superiority (⁸). The historical epitomes, which illustrate the need felt to present material in the simplest possible form, are frequently taken as examples of the worst aspects of this decline. Yet even they show a continuing interest in the past, and such scholarship, even on this level, was indispensable for the continuance of a theory of excellence based upon education.

Ammianus values education and often censures the lack of it. The Emperor Valens is condemned: "his mind was that of a peasant, educated neither in the art of war nor in liberal studies" (XXXI, 14, 5). The urban prefect Orfitus is described as "less well grounded in the glories of the liberal arts than was proper for a noble" (XIV, 6, 1) (⁹). On the ignorance of the Roman nobles he is scathing: "Some, hating learning as if it were poison, devote intense study to Juvenal and Marius Maximus, but in their profound idleness handle (for reasons beyond my judgement) no books other than these. Yet in view of the greatness and renown of their families they should read many works on various subjects and learn that Socrates, when he was cast into prison and condemned to death, asked a man who was skilfully playing a song of the lyric poet Stesichorus to teach him to do that while there was still time. When the musician asked him what was the use, since he was to die the next day, he replied, 'So that I might learn something more before I die'" (XXVIII, 4, 14-15) (¹⁰).

Conversely, if a man was well educated, that, too, is noted: Symmachus, "to be ranked amongst the foremost examples of learning and moderation" (XXVII, 3, 3); Eutherius, "as well grounded in letters as was sufficient for his position" (XVI, 7, 5); Maximus, "a man with a great reputation for learning" (XXIX, 1, 42). Even the Emperor Constantius II, who failed at rhetoric and poetry, is praised for the attempt as *doctrinarum diligens affectator* (XXI, 16, 4), a characteristic which is counted as a virtue (¹¹).

Such comments might be taken as proof that Ammianus does regard education as a mark of social rank and as evidence of the class snobbery of which Alföldi complains (¹²). This may well be partly correct: Ammianus was certainly a snob. But the attitude revealed by his approval of the saying of Socrates quoted above and the general tendency to link education with virtuous conduct suggest something more than such superficiality. In a number of passages, in which he is describing a deed of which he is critical, Ammianus says that the doer did not know of a good action or a wise maxim (*sententia*) associated with a similar historical situation, and he adds it as an *exemplum* (¹³). The thought underlying this is well expressed by another passage: "O noble system of philosophy ... How much would you have corrected in those dark days, if through you Valens could have learned that (as philosophers define it) sovereignty is nothing other than care for the safety of others" (XXIX, 2, 18). One scholar has remarked of Ammianus' *History* that "It is quite surprising how many Imperial and other crimes are sins of ignorance" (¹⁴). Ammianus himself describes with approval how the Persians appointed as governors men of legal experience and scorned the Roman custom "which at times appoints men of eloquence and of great experience in public law as advisers to ignorant governors" (XXIII, 6, 82) (¹⁵).

Julian, whose learning is mentioned a number of times (¹⁶), is the supreme example in Ammianus of the practical benefits of education for action. "Like Erechtheus educated in seclusion by Minerva, he was cast

(7) THEMISTIUS, *Or.*, 34, p. 445 (ed. Dindorf), quoted by DOWNEY, *TAPA*, 1955, p. 294-5. See also JULIAN, in GILLES, 229D-E and EUNAPIUS, *fr.*, 18, 1; and cp. DIO CASSIUS, XXXVIII, 18, 1 (on Cicero); DOWNEY, *Historia*, 1955, p. 202; GOODENOUGH, *YCS*, 1928, p. 94.

(8) CURTIUS, p. 176. On the ideal of talent and culture in the later Empire see DILL, p. 158-9. On the snobbish flaunting of a sometimes worthless education see ALFÖLDI, p. 101-2, 121 ff.

(9) Cp. XXI, 16, 8; XXIX, 1, 11; XXX, 4, 2; 8, 10; XXXI, 14, 8. Julian is characterized as *mediocriter eruditus* at XXV, 10, 15.

(10) Cp. XIV, 6, 18-19.

(11) Cp. XXVII, 6, 9; XXIX, 1, 8; XXX, 9, 4.

(12) See the references in n. 8.

(13) For references see the *exempla* and *sententiae* of Appendices F, I and G marked with the symbol 2.

(14) T. R. GLAVIEL, *Life and Letters in the Fourth Century*, Cambridge, 1901, p. 32.

(15) Cp. LIBANIUS, *Or.*, 18, 158, on Julian's appointment of educated men as governors etc.

(16) XV, 8, 10; XVI, 5, 6-7; XXV, 2, 3; XXIX, 1, 42.

forth into the dust of war not from a soldier's tent but from the peaceful shade of the Academy" (XVI, 1, 5); yet his success was outstanding.

Not all men of education are such paragons as Julian. Musonianus, though famed for his fluency in Latin and Greek, was easily corrupted⁽¹⁷⁾; and some lawyers are stigmatized as men of very one-sided learning (XXX, 4, 17). Education, though it is an aid to and perhaps a prerequisite for virtue, does not, in Ammianus' eyes, automatically confer it⁽¹⁸⁾.

For the Romans one of the important educational tools was the example (*exemplum*), a concise exposition of a memorable deed or saying or both, frequently (though not always) illustrating a vice or a virtue⁽¹⁹⁾. Republican practice surrounded jurists, orators, generals and provincial governors with youths who learned by watching the experienced men and imitating the practical examples which they provided⁽²⁰⁾. By development of this theory of learning by imitation the *exempla*, themselves offering a form of vicarious experience (though, it was admitted, inferior to practical experience)⁽²¹⁾, were much used by the Romans for education and in general as guides for action⁽²²⁾.

The Roman, with his strong sense of history, not only had a deep respect for the actions and opinions of his ancestors, but was also conscious that posterity would judge him as he judged antiquity. To him behaviour was a mark of character⁽²³⁾, and so the action enshrined in an *exemplum* was proof of that character⁽²⁴⁾. Therefore the Roman was conscious that he was providing material for judgement upon himself, and he was concerned not only to immortalize his name but also to ensure that the reputation which he handed down was a good one⁽²⁵⁾.

During the Empire the concept of improvement by personal example attached itself to the Emperor. Herodian says of Marcus Aurelius, "He was the only Emperor who proved that he was a philosopher not by words or knowledge of doctrine, but by his august character and temperate life. And his age produced a large number of wise men. For it is a rule that the subject patterns his life upon the ways of his monarch"⁽²⁶⁾. The idea was taken up by the panegyrists as a means of flattery and as an argument for virtuous conduct. Claudian's words are typical:

*componitur orbis
regis ad exemplum, nec sic inflectere sensus
humanos edicta valent quam uita regentis:
mobile mutatur semper cum principe iudex.*

(IV. Cos. Hon., 299-302) (27).

As a moral force the example depended greatly upon the *auctoritas* of the famous men of history⁽²⁸⁾, and so the range of Roman *exempla* was generally limited to the Republican period, which was always the focus of interest and study, and to a few Emperors and Imperial citizens⁽²⁹⁾. This is reflected by Ammianus, who uses about thirty examples from the Empire against about fifty from the Republic⁽³⁰⁾.

Rhetoric made great use of *exempla*, and at school lists of them were memorized for future reference⁽³¹⁾. Since *exempla* were often illustrative of virtue, by the time of Cicero they were formed into collections and separated into the various qualities⁽³²⁾, as in the collection of Valerius Maximus which, so the author says, was created as a work of ready reference⁽³³⁾. Valerius' handbook also divides the *exempla* into foreign

(17) XV, 13, 1; XVI, 9, 2.
(18) Cp. EUSSEIN, p. 36 ff.

(19) The sources offer various definitions. For examples see ALLEWELL, p. 24 ff.
(20) KORNHARDT, p. 28-30; MARRON, p. 315-6. Cp. CICERO, *de Amicitia*, I, 1 on his own experience: *ego autem a patre ille eram deductus ad Scaenolum sumpta uirili toga, ut quoad possem et liceret, a senis latere nunquam discederem. Itaque multa ab eo prudenter disputata, multa etiam breuiter et commode dicta memoriae mandatum, florique iudebam eius prudentia doctor.*

(21) So SENECA, *Ep.*, 6, 5.
(22) On the educative function of the *exemplum* see HORACE, *Sat.*, I, 4, 105 ff.; QUINTILIAN, III, 8, 66; KORNHARDT, p. 26-34.

(23) Cp. Sallust's description of Catiline (*Cat.*, 15, 5).
(24) KORNHARDT, p. 10 ff.

(25) Cp. SENECA in TAC., *Ann.*, XV, 62, 1, at the time of his death speaking of himself: *quod unum iam et tamen pulcherrimum habeo, imaginem uitae suae reliquere.*

(26) HERODIAN, I, 2, 4 (cp. III, 6, 10). Also CICERO, *Rep.*, 2, 42; JULIAN, *Letter to a Priest*, 289A; SENECA, *de Clem.*, II, 2, 1.

(27) Also CLAUDIAN, *Cos. Sol.*, I, 168-9; *Pan. Lat.*, I, 45, 4; 46; 63, 1; etc.; X, 9, 2; 14, 2; EUSEBIUS, *Land. Const.*, 3 (PG, 20, col. 1329A); VALERIUS, II, 126, 4.

(28) On the importance of *antiquitas* in *exempla* see KORNHARDT, p. 20-22; CICERO, *Orator*, 120; QUINTILIAN, X, 1, 34; PAVS., *Ep.*, VIII, 14, 4. On the *auctoritas* of *antiquitas* see CICERO, *Inv. Rhet.*, I, 49; ARISTOT., *Sp.*, I, p. 281. On the fourth century's attachment to *antiquitas* cp. *Pan. Lat.*, V, 4, 1; CLAUDIAN, *IV Cos. Hon.*, 396-418; MACRIMUS, *Sat.*, III, 14, 2. In *Relatio* 3 Symmachus appeals to the importance of precedent (4) and to the general success of antiquity (2; 3; 8-9; etc.).

(29) LITCHFIELD, *HSCP*, 1914, p. 16-24.
(30) For lists see Appendix F. The proportion of individual names, a number of which often appear in one *exemplum* as there defined, is closer to 2:5 in favour of the Republic.

(31) MARRON, p. 383.
(32) CICERO, *Orator* 120 notes a collection made by Atticus. SEXTIMIUS, *Aug.*, 39, 2 says that Augustus excerpted *exempla*. On the division of *exempla* under headings see ALLEWELL, p. 94 ff.
(33) VAL. MAX., *proem*: *ut documentis sumere ualentibus longae inquisitionis labor abiret.* See also MARRON, p. 383.

and domestic⁽³⁴⁾, a distinction which is perhaps reflected by Ammianus when he occasionally uses both Greek and Roman examples together for illustration⁽³⁵⁾.

Exempla were used not only in declamation and forensic oratory, but also in panegyric. The latter sought to magnify and to prove the virtues of its subject by comparing him with examples from antiquity (*synkrisis*) and even by asserting that his achievements excelled those of the ancients (*hyperochē*)⁽³⁶⁾. Thus in Claudian Stilicho, who swims the river Addua to face Alaric, is greater than Horatius, since the latter swam the Tiber away to the safety of Rome, whereas Stilicho went to face the foe⁽³⁷⁾.

The use of *exempla* is not uncommon elsewhere also. Greek and Latin poetry of the fourth century A.D. utilized many examples⁽³⁸⁾. They are quoted by authors of military manuals for practical⁽³⁹⁾ and by philosophers (such as Seneca the Younger) for moral instruction. For the same didactic purpose philosophy also makes great use of maxims (*sententiae*), often in the form of quotations from authoritative sources⁽⁴⁰⁾.

History, along with biography, was the major source of *exempla*⁽⁴¹⁾. Many historians regarded their function as the preservation not only of praiseworthy actions both as an aid and a lesson to posterity and as a reward for the doer, but of evil deeds, too, as a warning and as a punishment⁽⁴²⁾. Livy in his preface (10) seems almost to conceive of his work as a catalogue of such examples: "The prime profit and utility of the study of historical events is that you may observe examples of every type of behaviour set down in a glorious record, from which you can select

what you and your country might imitate, and those of disgraceful inception and outcome which you can avoid"⁽⁴³⁾.

Most of the surviving histories make little use of *exempla* from other sources, either for ornament, proof or clarification. Tacitus uses one or two (including a comparison of the dead Germanicus with Alexander the Great, though the sentiment is ascribed to others); Herodian has a few, and Agathias⁽⁴⁴⁾. But the only surviving historian who makes large-scale use of *exempla* is Ammianus. He includes over 110, which utilize famous figures and actions of the past for comparison with persons and incidents under discussion and which occur in a ratio of about seven from Roman history to every three from Greek, with very few from elsewhere. Such considerable use of antiquity argues great interest in and admiration of it; and this is confirmed by Ammianus' judgements. His highest praise is comparison with the ancients or with an outstanding figure of antiquity⁽⁴⁵⁾.

Perhaps Ammianus drew his use of *exempla* from philosophy⁽⁴⁶⁾ and oratory (including panegyric). On the other hand, perhaps he was not as unique in this respect as he now appears. Nostalgia for and interest in the great past was strong in cultivated pagan circles of the fourth century A. D. One translator of Claudian has remarked that "he mistook memory for inspiration"⁽⁴⁷⁾. Much of the historical output has been lost, and with it perhaps writers who used *exempla*. Lucian (*Hist. Conv.*, 14), for instance, complains of the encomiastic use of examples by the historians of his day; and the number of *exempla* found in the fragments of the fourth century historian Eunapius suggest that his work,

(34) See KÖRNGHARDT, p. 20-21. CICERO, *de Or.*, 3, 137 notes different uses for the different *exempla* — the Roman ones illustrate *virtus*, the Greek *doctrina*. This distinction is apparent in neither Valerius nor Ammianus.

(35) See the *exempla* in Appendix F marked GR. For Ammianus' knowledge and use of Valerius Maximus, see ch. 1, n. 18.

(36) HERMODENES, (Sp., III), p. 13, 3; MENANDER, (Sp., III), p. 377, 5.

(37) CLAUDIAN, *St. Cus. Hon.*, 483 ff.

(38) A. D. E. CAMERON, Oxford, 1970, p. 350-8.

(39) On Vegetius' use of *exempla* see DE JONGE, *Ammianus and Vegetius*, p. 102-3. The Byzantine military manuals are especially rich in *exempla*, e. g. ANON., *Sylloge Tacticonum*, ed. A. Dain, Paris, 1938; ANON., *Strategemata*, ed. J.-A. de Foucault, Paris, 1949.

(40) On the educational use of *sententiae* see QUINTILIAN, I, 9, 3.

(41) Cf. QUINTILIAN, X, 1, 34.

(42) E.g. POLYBIUS, I, 1, 2; 35, 9; VIII, 23, 11; etc.; DIOD. SIC., I, 2, 2; TAC., *Hist.*, I, 3, 1; *Ann.*, III, 65, 1; SALLUST, *Jug.*, 4, 5-6; EPICURUS, fr., 42 (PGH, IIA, p. 54-5); EUNAPIUS, fr., 46. Cf. CICERO, *de Or.*, II, 9, 36; *de Fin.*, V, 16, 51.

(43) Cf. CLAUDIAN, *St. Cus. Hon.*, 396-418, where the purpose of reading history is described as the collection of models for imitation. EUNAPIUS, fr., 479 tells how Clearchus, the proton *strategos*, strengthened his mind by reading history.

(44) HERODIAN, I, 3, 2-4; III, 7, 8; 13, 3; IV, 5, 6; AGATHIAS, II, 10; IV, 29, 4; V, 19, 1. TACITUS, *Ann.*, II, 73, 2 (Germanicus compared with Alexander); *Hist.*, III, 51, 66. In *Hist.*, III, 51 Tacitus says that he will introduce *exempla recte* or *obliqua* mult when the situation demands. But he usually prefers to suggest parallels by choice of language (SYME, Oxford, 1958, I, p. 2011. Other *exempla* in MATTHEW, fr., 8; ZOSIMUS, III, 3, 3; THEOPHYLACT, I, 14, 3-4.

(45) E.g. XVI, 1, 4; XX, 12, 8 (see OUTHOUSE, p. 41 ff.; VIGOR, p. 122; REAGAN, p. 229-30).

(46) Ammianus is very interested in philosophers, e.g. XVII, 7, 11; XVIII, 5, 7; XIX, 4, 2; XXI, 1, 7; XXIII, 4, 32; XXV, 4, 2; XXX, 4, 3. LAMPROUS, *Ep.*, 237 writes of a certain Ammianus, *ὁὗ ποτε τὸν ἐξῆς τὸν ἀντιπρόσωπον ὡς ἂν τὸν ἐξῆς τὸν ἀντιπρόσωπον ἡγεμονίαν*. BURNARD, p. 9. ESSLER, p. 4-5 and SYME, Oxford, 1968, p. 45 incline to accept the identification with the historian. But Ammianus is not a very uncommon name, and *ἀντιπρόσωπος* could refer not to the military but to the Imperial service. Therefore this Ammianus might be an agent in *rebus* (so REAGAN, Hildesheim, 1966, p. 58).

(47) M. PLATNER, *Claudian*, I, London and Cambridge Mass., 1956 (L. C. L.), p. xviii.

when complete, contained a great number, perhaps proportionally more than that of Ammianus⁽⁴⁸⁾.

Various functions have been ascribed to Ammianus' *exempla*. It has been held that they were *flosculi*, added during the polishing of the work⁽⁴⁹⁾; and that they serve partly as ornaments is hardly deniable. That they also serve to display the writer's wide learning, of which he was proud, is clear, especially when he pads out his examples with extra detail⁽⁵⁰⁾.

In some cases one can see little beyond these two functions in Ammianus' use of antiquity⁽⁵¹⁾. But the majority of the *exempla* serve other purposes also. Quite naturally, in view of Ammianus' interest in the past, in comparisons they stress the continuity which the historian sees with antiquity, especially the Roman Republic and the Principate⁽⁵²⁾; and at times, by associating actions and characteristics of persons in his *History* with famous examples from the past, he adds lustre to the former⁽⁵³⁾. Thus, when Julian refuses to touch or even to look at one of the captured Persian women, he is said to be "imitating Alexander and Africanus who avoided these things lest, having everywhere risen above toil, they be overcome by lust" (XXIV, 4, 27). Occasionally the present act is superior to the ancient example: Julian divided his nights between rest, affairs of state and reading, like Alexander *sed multo hic fortius* (XVI, 5, 4), since the latter needed artificial means to end his sleep, whereas Julian could wake at will. Conversely, actions of which Ammianus does not approve are characterized either by comparison with a stock 'monster', as Constantius II who hated brave men *ut quondam Domitianus* (XV, 5, 35), or by contrast with a good example, as Valentinian I, always greedy for wealth and wholly unlike Themistocles who, when he saw rich ornaments lying on the battlefield after a victory over the Persians, told an attendant to pick them up, "for you are not Themistocles" (XXX, 8, 8). Very rarely the current evil is said to surpass that of the old bad example, as the father-in-law of Valens, Petronius, is more hated

than Cleander and more oppressive than Plautianus, both praetorian prefects, the former of Commodus, the latter of Septimius Severus (XXVI, 6, 8).

The last three of these examples illustrate a second function, which is the clarification of the present by appeal to the well-known past⁽⁵⁴⁾, a process quite valid for ancient thought, which tended to categorize people as types and which had only a vague idea of progress involving qualitative change. In a different context Ammianus reveals his justification for this use of *exempla* when he declares that he will use only a few of the wicked deeds of Festinus of Tridentum to illustrate his harsh regime in Asia: "for the principle (*ratio*) behind good or evil actions is the same everywhere, even though the importance of the deed might differ" (XXIX, 2, 24).

Exempla are also used for proof, to make the doubtful plausible by analogy. Thus the defenders of the greed for gold of Valentinian I cite the example of Aurelian, who plundered the rich in order to replenish the treasury (XXX, 8, 8); and Ammianus himself cites old Roman disasters to show that in earlier times the state had suffered catastrophes as bad as that at Adrianople (XXXI, 5, 11 ff), or earlier rash, yet successful, usurpations to show that Procopius' attempt was not unique (XXVI, 6, 19-20)⁽⁵⁵⁾.

As might be expected, Ammianus' use of his *exempla* is strongly moralizing⁽⁵⁶⁾. He has over 70 which illustrate some aspect of character (i. e. demonstrating a virtue, vice or skill) as opposed to just over 30 used non-morally (e. g. in purely historical comparisons)⁽⁵⁷⁾. Of these 70 or more instances of *exempla* which illustrate character, over 60 deal with five of the virtues (or their opposites) of the ideal king which Ammianus defines in XXV, 4, 2-15⁽⁵⁸⁾, thus showing clearly how strongly the ideal has influenced the writer. His use of the word *exemplum* shows a similar moral orientation: out of the 33 instances of the word which I

(48) EUNAPIUS, *fragm.*, 14, 2, 5 and 7; 22, 3; 24; 31; 35; 39; 42; 54; 56; 66; 82.

(49) KLEIN, p. 9, n. 1.

(50) E.g. XVI, 7, 9-10; 8, 10; XXVIII, 4, 9. Another possibility is that in some cases the extra detail was required by fourth century ignorance (see STRAUB, Stuttgart, 1964, p. 159 on THEMISTOCLES, *Or.*, VIII, 109D-110A).

(51) E.g. XIV, 2, 13; 6, 8, 17 and 25; XVI, 5, 1; XIX, 8, 11; XXII, 5, 4-5.

(52) Cp. D. C. EARL, *The Moral and Political Tradition of Rome*, London, 1967, p. 103 ff.

(53) VOGT, p. 824.

(54) NAUDE, Leiden, 1956, p. 75 ff. For examples see XXVIII, 4, 21 and 34.

(55) See also XXIV, 4, 5. This function of the *exemplum* appears in Silver Latin (see AUGUSTI, p. 92 ff.).

(56) Cp. VOGT, p. 820; NAUDE, *op. cit.*, p. 78 ff.

(57) See Appendixes F, 1 and G.

(58) I have found 18 examples of clemency, justice etc. and their opposites, 10 of *temperantia* and its opposite, 15 of *prudentia* and its opposites, 18 of *fortitudo* and *ars militaris*. The majority of the virtues are civil — contrast LUCIUS, *JRSOP*, 1914, p. 12, who notes that war and devotion to country are commonest in those examples which he discusses.

have counted, 25 refer either to an example of a moral characteristic (or skill), or to a person setting or following such an example.

Sententiae are also used with a moral purpose. Sometimes the commonplace is delivered by Ammianus himself without any acknowledgement, such as "at the turn of fortune's wheel a happy man can before evening be reduced to the depths of wretchedness" (XXVI, 8, 1) (59). More often it is given in the form of a quotation from an old and famous author, Latin or Greek, but especially Cicero, who is quoted for this purpose thirteen times on, amongst other subjects, fortune, clemency, ostentation, justice and the correct use of power (60).

The *exempla* have various, often overlapping, functions; they are also strongly morally oriented. The latter characteristic, when placed beside other preoccupations displayed in the *History*, suggests a general principle behind their inclusion. Ammianus, who favours a moral reformation in the state in conformity with his ideal of the king and the good official, is using the *exempla* to set before his audience the traditional mirror of vices to avoid and virtues to cultivate. Therefore the *exempla*, with a didactic function, have a role to play in the broader historical purpose of the writer.

The notion of including passages of educational value from earlier writers is by no means unlikely. The didactic tradition was strong in ancient historiography, and Ammianus, himself educated, an admirer of the cultured man and an advocate of education as a means to virtue, must have been aware of the value of the *exemplum* in this respect. That is not to ascribe an educative function to all the individual *exempla* in Ammianus' *History*; all can be explained otherwise, and many must. But the expressions which are used to introduce some of the examples show the nature of the historian's attitude towards them. At certain points in his narrative he remarks that people did not know of a certain *exemplum* or *sententia*, or should have known it (61); in other places he says that someone imitated or followed an *exemplum* (62). In such cases the implication is clear: the knowledge of the example influences, or would have influenced, the action taken. Of course, such expressions can be

(59) Cp. XVII, 11, 2; XIX, 12, 18. Ammianus' use of *sententiae* is analysed by STELLA, p. 32-46.

(60) For the list of such quotes see Appendix G.

(61) See the *exempla* and quotations in Appendices F, I and G marked with the symbol 2.

(62) See the *exempla* and quotations in Appendices F, I and G marked with the symbol 1. Cp. XVII, 12, 12; XVIII, 10, 4; XX, 8, 17; XXI, 1, 2; 10, 2; XXIV, 5, 11; XXVIII, 2, 14, where similar expressions are used, but not introducing *exempla* or quotations.

dismissed as mere rhetoric of a very artificial and self-conscious kind. But they would probably not have seemed so to a Roman of the fourth century A. D., who had been educated in the classical tradition, which did use *exempla* as one of its methods of inculcating standards of behaviour (63).

Exempla illustrating, and as aids to, virtue are not only used in the *History* but, in conformity with the Roman tradition, are also supplied by it. The great example is, of course, Julian (64), and Ammianus is careful to point out his merits and the actions which illustrate them, to furnish him with quotable anecdotes (65) and, by comparing him with Alexander, Trajan and Marcus Aurelius (66), to set him firmly in the line of great rulers who are to be imitated. There are other *exempla* also, some good such as Eutherius, Eupraxius and Ursicinus, some evil like Eusebius, Romanus and Maximinus. In a number of passages Ammianus specifically labels a person or his action as an example of virtue or vice. Thus Eupraxius is said to have "left behind many *exempla* of his excellent self-confidence which are worthy of imitation by men of wisdom" (XXVII, 6, 14); Symmachus, "a man to be named amongst the outstanding examples of learning and moderation" (3, 3); Festinus, who "left behind many excellent examples of clemency and respect for persons" (XXIX, 2, 22). Such expressions clearly suggest that Ammianus was conscious of the force of such examples and their utility as guides for virtuous action. To him virtue is a potent historical force and, convinced of the power of the *exempla* to generate this force, he has set out both to utilize them in his own judgements and (in the moral-didactic tradition of ancient historiography) to provide them in his *History*. Thus the *exempla* play an important role in the writer's expression of his thought.

(63) In XXIV, 4, 24 Julian awards siege crowns to some soldiers. This was probably an anachronism at the time, committed by the Emperor himself (so THACKER, *A. & A.*, 1962, p. 25, n. 14 against SERRA, *RE*, I, 1, col. 1851, who thinks that it was committed by Ammianus).

(64) Out of 32 instances which I have noted of the use of an *exemplum* in *exemplis* to illustrate a good characteristic, 18 concern Julian, four Julian's troops, four the elder Theodosius and six others (none of whom is an Emperor).

(65) E.g. XVI, 5, 11 and 12; XXII, 5, 4; 9, 11; 10, 4 and 5; XXV, 4, 15.

(66) Alexander, XVI, 5, 4; XXI, 8, 3; XXIV, 4, 27; XXV, 4, 15.

M. Aurelius, XVI, 1, 4; XXII, 5, 4-5; XXV, 4, 13.

Trajan, XVI, 1, 4; XXIII, 5, 17; XXIV, 3, 9; 4, 1-2.

CHAPTER X

Causation in the "History":
Virtue, Fortune and Fate

Ammianus' analysis of the events which he describes indicates that the troubles of the Roman state arise from the men in charge, their moral character; and to improve the situation the historian suggests a moral reformation through knowledge. Man is therefore central to the historical thought; he controls his destiny. Free will is assumed, and a problem of causation is raised. For it appears that besides free will, fate (*fatum*) and a malignant or fickle fortune (*fortuna*) play a considerable role in the *History*.

Ammianus was a pagan and apparently a monotheist⁽¹⁾. But his religious system (if one can speak of such) seems to have been rather confused⁽²⁾. His philosophy, as far as it is discernible, was both confused and eclectic⁽³⁾, showing strong traces of Stoicism and Neoplatonism, where the two can be separated⁽⁴⁾. At times Ammianus' language, which is often vague, rhetorical and poetical, makes it impossible to be certain exactly what he is saying, or if he really means what he appears to say. Moreover, his desire to display his learning sometimes causes him to utilize passages from authors whom he has read, passages which he seems not fully to have understood or the implications of which in his *History* he has not fully considered.

In expressing himself upon the subject of fate and fortune, Ammianus has three important words, *fatum*, *fors* and *fortuna*, whose uses in the *History* can profitably be summarized:

(1) WITTE, p. 48 ff.; SOLARI, *RAL*, 1949, p. 505-8.

(2) DEMANDT, p. 100-1; ENSLIN, p. 76; DELL, p. 120.

(3) DEMANDT, *loc. cit.*

(4) For Stoicism see VON SCALA, *Dacographische und stoische Reste bei Ammianus Marcellinus*, p. 119-150. For Neoplatonism see ENSLIN, p. 59 ff., 66 ff.; JANNACCONE, p. 74 ff.

Fatum: 1, in a circumlocution for ruin or death, as *ordo fatalis* (XIX, 11, 15) or *fatali sorte* (XXVII, 5, 10) (*). 2, rarely, of an unexplained event, as *fato quodam arcente* (XIX, 12, 9)/a usage which might be regarded as hardly separate from the next. 3, very commonly, of destiny which, when used of the past looked at from the present, could simply be interpreted as a mechanical chain of events, as *fatorum ordine contexto uersante* (XVI, 1, 1) (*).

Fors: mostly in stereotyped phrases such as *si iussisset fors* (XVI, 12, 45) (*). In every case, whether referring to the past or the future, it can simply mean "luck" or "chance" in a neutral sense, since, when it means "good luck", the idea of "good" is conveyed by another word. Basically it stresses the unknown and unforeseeable aspect of a situation.

Fortuna: 1, condition, status, wealth etc., as *promiscuae fortunae multitudo* (XIV, 3, 3) (*). 2, a personalized fortune similar to and sometimes confused with the *genius* attached to an individual, as in XXX, 5, 18 where Valentinian I is said to have seen the spectre of his absent wife in mourning, *quam aestimari dabatur fortunam eius esse cum tetro habitu iam discessuram* (*). 3, *fortuna* = *πῆχνη*, often harmful, always unpredictable, as *variante fortuna* (XXI, 16, 14) (*).

The first meanings of *fatum* and *fortuna* can be ignored, since they are irrelevant to the present discussion. *Fortuna*, 2 can also be set aside, since, except where it is apparently identical with *genius* (which itself only appears as a prodigy) (*), it seems merely to be a vivid and personified way of summing up the current situation or, at the beginning of a passage (where it often stands), an equally vivid way of taking up a new topic or referring back to an old one (*).

(5) Also XVII, 9, 4; 11, 5; XXIII, 6, 2; XXV, 10, 16; etc. and cp. SEYFARTH, *Klio*, 1963, p. 299 ff.

(6) Also XIV, 11, 19; XV, 3, 3; XXI, 1, 8; 15, 2; XXII, 16, 17; XXIII, 5, 5; XXVI, 3, 1; etc.

(7) Cp. XVI, 11, 9; XIX, 3, 1. Also XVI, 9, 3; XVIII, 4, 6; XXI, 9, 2; XXVI, 6, 11; XXVII, 5, 4; 8, 2; etc.

(8) Also XV, 5, 23; XVI, 12, 59 and 64; XVIII, 8, 6; XIX, 12, 17; etc. Cp. NAUDE, *AClass*, 1964, p. 79-80.

(9) Also XIV, 10, 16; 11, 8; XVII, 12, 4; XVIII, 4, 1; 5, 4; 12, 4; etc. Cp. NAUDE, *art. cit.*, p. 79 ff. and Leiden, 1956, p. 93-5; ENSLIN, p. 62 ff.; WITTE, p. 37 ff.

(10) Also XIV, 1, 1; XV, 5, 1; XIX, 8, 1; XXIII, 5, 8; XXV, 5, 8; XXVI, 8, 13; etc. Cp. NAUDE, *art. cit.*, p. 83 ff. and Leiden, 1956, p. 95 ff.

(11) E.g. XX, 5, 10; XXI, 14, 2; XXV, 2, 3; XXX, 5, 18.

(12) E.g. XVIII, 4, 1; *diu ignis Nirmum hanc Aiternis quaeuante impetu, Orientis fortuna periculis terribilibus tabas refluat*. Cp. XVI, 1, 1; XIX, 6, 1; XXI, 14, 1; XXII, 9, 1; XXXI, 1, 1; etc.

Two basic ideas remain, predetermined fate (*fatum*, 2 and 3) and unpredictable fortune (*fortis* and *fortuna*, 3), both of which are dressed up in various literary guises, but neither of which can be dismissed out of hand. How then do these combine with the notion of free will which seems to underlie Ammianus' historical analysis? I shall take fortune first, since it more easily fits within a scheme of causation in which man's own abilities and qualities play an important role.

When brought to Italy, the Hellenistic *Fortuna-Tyche* (13) was confronted by a native Roman tradition based upon *uirtus*: that *uirtus* wins *gloria* for the Roman through *bonae artes*, that success depends upon man, his bodily, mental and moral excellence (14). The Hellenistic and Roman doctrines in combination developed the notion of an antithesis between *uirtus* and *fortuna*, the former representing the qualities and skills of the human being, the latter the objective world, often not fully understood (15). This antithesis was expressed as a struggle, ebbing and flowing, between fickle fortune and Roman virtue, in which the good man usually owed his success to his virtue (16).

The growth of the power of the Roman Empire raised the question if all this success could be due solely to virtue (17) and stimulated a theory of an extraordinary alliance between the erstwhile enemies, virtue and fortune. The idea occurs in Ammianus: *tempore quo primis auspiciis in mundanum fulgorem surgeret uictura dum erunt homines Roma, ut augetur sublimibus incrementis, foedere pactis aeternae uirtus conuenit atque fortuna, plerumque dissidentes, quarum si altera defuisset, ad perfectam non uenerat summitatem* (XIV, 6, 3). This bears some resemblance to passages of Plutarch and Florus (18) and reads like an encomiastic *topos*: though Ensslin considers that it is something more (19). Whether or not this view is accepted, it is clear that Ammianus regards this particular alliance as something in the past (*uenerat*) and exceptional, working only for the consummation of the Roman Empire. On the other hand, a combination of virtue and fortune (mentioned in a few

other passages) (20) is suggested by the historian's treatment of *felicitas*, which is defined by a quotation from Cicero: *neque enim quicquam aliud est felicitas nisi honestarum rerum prosperitas. Vel ut alio modo definiam: felicitas est fortuna adiutrix consiliorum bonorum, quibus qui non utitur, felix esse nullo pacto potest* (XXI, 16, 13). That is to say, *felicitas* is a concrete manifestation of *fortuna*, but dependent upon virtue, without which it cannot exist (21). It is of some significance that Ammianus does not use the word *felix* of any Emperor other than Julian (22).

Ammianus recognizes that fortune can be kind. But essentially she is unpredictable and often malicious (23). The more normal state of affairs is not a combination of virtue and fortune, but dissidence between them (cp. in the passage quoted above, *plerumque dissidentes*). The passages in which Ammianus assumes a struggle and celebrates the successes of virtue in it are far commoner and more convincing. *Vetus illa Romana uirtus* (XV, 4, 3) conquers wild lands and hostile tribes (24); Constantius describes *quid nostra ualeat uirtus* (XVII, 13, 28); the historian himself, when he tells how the same Emperor reversed the fortunes of the Sarmatians, speculates, *ut uerum illud aestimaretur, quod opinantur quidam, fatum uinci principis potestate vel fieri* (XVII, 12, 17). Again, he speaks of the *uirtus felicitasque* of Julian (25), by which he means "virtue and success". This might be dismissed as a meaningless cliché,

(20) As XV, 8, 2: *prospiciens eius uirtus, fortunaque tam uictis sideribus*, spoken by flatterers to Constantius; XVI, 12, 18, spoken by a soldier; XXVIII, 2, 4: *effectum quem uirtus peregerat et fortuna*, which simply describes what happened, since the general Iovinus had luckily caught the enemy off guard and slaughtered them.

(21) Cp. XXV, 4, 14: *felicitas ita omniuit, ut ipsa quodammodo uersutibus fortunae aliquamdiu bonae gubernatrix inuicta*, and XXVI, 10, 12: *infelices esse eos qui omnia sibi licere existimant*. See also XVI, 12, 18; XVII, 1, 14; XXIV, 4, 13; XXVII, 7, 4. Occasionally the word seems to convey the idea of "happy" or "fortunate", as in XIV, 1, 1; XVII, 13, 28; XX, 4, 15 (cp. Ensslin, p. 70). The word is common in the Latin Picaresque, usually as a synonym for *fortuna* (e.g. *Pan. Lat.*, VI, 3, 3; 8, 2 and 6; 15, 4; VII, 14, 3; VIII, 17, 3; IX, 18, 1; 19, 1).

(22) It is used four times of Constantius, twice by flatterers (XV, 1, 2; XVI, 12, 68) and twice by himself (XIV, 10, 15; XV, 5, 35). His *fortuna* is good only in civil wars (XIV, 10, 16; 11, 8; XXI, 1, 2. Cp. XVI, 10, 1 (cf.) and, since they are bad, it does not lead to *felicitas*).

(23) See the passages cited in n. 10. A few passages (e.g. XXV, 4, 14) seem to suggest the idea of a morally oriented fortune which aids virtue. But they are very rhetorical and (despite Naudé, Leiden, 1956, p. 96-9) I do not think that the concept is of importance in Ammianus.

(24) Cp. XIV, 6, 10: *opposita cunctis superasse uirtute*.

(25) XVI, 1, 2. Cp. XVI, 12, 13: *fortuna rectoris expertis uirtutibus freta*, also of Julian (where *fortunatus* probably = *felix*, as in the acclamation by the troops at XXI, 5, 9. On this see Ensslin, p. 70).

(13) On the connexion between *tyche* and *fortuna* see NAUDÉ, *art. cit.*, p. 71 ff.

(14) Cp. D. C. EARL, *The Political Thought of Sallust*, Cambridge, 1961, p. 7-12 on this view in Sallust's prefaces.

(15) COCHRANE, p. 100.

(16) Cp. PLUTARCH, *επι της Πρωτοβουλίας τύχης*, 316 E; FLORUS, *proem.*, 2; II, 19; IV, 2, 1 and 30. The latter envisages periodic onslaughts by fortune.

(17) See SANFORD, *AJP.*, 1937, p. 451-2.

(18) FLORUS, *proem.*, 2; PLUTARCH, *loc. cit.*

(19) ENSSLIN, p. 73-4.

did Ammianus not elsewhere make Julian say, *deo meque (quantum humana ratio patitur) caute ductante* (XXIV, 3, 6), and himself say of Nannienus, *igitur pensante fortunarum variabiles casus, ideoque cunctandum esse censente* (XXXI, 10, 7). Both seem to ascribe at least some effectiveness to human action⁽²⁶⁾.

Therefore Ammianus' treatment of the relationship between virtue and fortune is, on the whole, consistent with the assumption which underlies his historical analysis, that free will and human action are of great importance in the historical process⁽²⁷⁾. Fortune can bring prosperity, but such prosperity is likely to be only temporary and at times the harbinger of disaster. Virtue, on the other hand, can bring not only success, often in the face of fortune, but also good repute, which in turn can bring immortality.

How does the historian's apparent determinism fit into his view of events? It would be quite reasonable to argue that Ammianus, like many of his contemporaries, simply accepted the two contradictory ideas without attempting to reconcile them⁽²⁸⁾. On the other hand, the central role given to human action is only partly in conflict with a form of limited determinism common in the ancient world and suggested in various parts of the *History*.

It has been noted how Ammianus in his narrative on the reign of Gallus works out a fairly complex scheme to demonstrate the *hubris* of the Caesar and his consequent *nemesis*⁽²⁹⁾. The accounts of the revolt of Procopius⁽³⁰⁾ and of the careers of the Emperors Constantius and Valens (and perhaps Valentinian I also) show a similar influence of the

(26) Cp. XXVII, 6, 15, where the virtues of the young Emperor Gratian are said to have been prevented from developing *per fata proximaque*.

(27) E.g. CICERO, *de Fato*, 5, 9-11 and ps. PLUTARCH, *cap. 10*, both emphasise the power of intelligence, will and effort over circumstance. For the later Empire see SYNESIUS, *de Regno* (PG, 66), col. 1060B-D; SHA, *Contra*, 9, 1-3; EUNAPIUS, *fr.*, 18, 1; NORMAN, p. XXVIII-XXX.

(28) Cp. NAUDE, Leiden, 1956, ch. 6 and *AClass.*, 1964, p. 85 ff.; ENSLIN, p. 69 ff. (followed by JANNACCONE, p. 85). Naudé sees a dualism in Ammianus' thought: on the one hand, determinism, on the other, a Roman concept of history as a struggle between virtue and unpredictable fortune. Enslin makes Ammianus a determinist who, however, accepted free will (which would place him amongst the majority of the so-called determinists of the fourth century A.D., who accepted, by ignoring it, the basic inconsistency between a belief in a mechanical fate and any attempt to take safeguards for the future or any concern whatsoever with morality. On this general question, see CUMONT, *NY*, 1960, p. 84 ff.; W.C. GREENE, *Mora: Fate, Good and Evil in Greek Thought*, Cambridge Mass., 1944, p. 351). SEYFARTH, *Klio*, 1965, discussing Ammianus' use of the word *fatum*, attacks Enslin's position and suggests that in the *History* *fatum* is merely a conventional rhetorical expression and of no value as evidence for a belief in determinism. As is clear from my discussion, I believe that Seyfarth is wrong.

(29) See p. 22-24.

(30) See p. 60-61.

idea of just retribution⁽³¹⁾; and a trace of the notion appears in the description of Julian's Persian campaign and death⁽³²⁾. In the speeches and letters in the *History* parenthetical phrases are frequently found such as *placatae sint aures invidiae* (XVII, 5, 13); *ne sit arrogans quod affirmo* (XVII, 5, 5); *parvus invidiae metu dicitur* (XXVII, 6, 8). Conventional expressions these may be (just as the elaborate *hubris-nemesis* scheme is itself quite artificial), but beneath all the trappings of the style there is a persistent idea, permeating the *History*, of punishment for wrong. And there is no reason to consider that this was not genuinely held by Ammianus⁽³³⁾.

The idea found a place in Hellenistic historiography within the theory of suitability (*ἐπιείκεια*)⁽³⁴⁾. During the late Roman and early Byzantine period it was very widespread, appearing in works of various kinds, for instance of Claudian, Aurelius Victor, Zosimus and Agathias⁽³⁵⁾; in tracts on kingship⁽³⁶⁾; and commonly in products of Christian polemic, such as Lactantius' *de mortibus persecutorum* and the *de gubernatione Dei* of Salvian⁽³⁷⁾. The ecclesiastical historian Sozomen, and later John Zonaras, interpreted the death of Valens at Adrianople as a punishment for the wrongs which he had inflicted upon the Orthodox Christians⁽³⁸⁾.

(31) See p. 50-54.

(32) See p. 101-2.

(33) FRANK, *CB*, 1966, p. 46-7 argues that twice Ammianus figuratively expresses the idea of retribution for evil, comparing 1, the reported death of the Emperor Valens in a burning house (XXXI, 13, 14-17) with an earlier statement of Ammianus that his cruelty spread everywhere in *modum ardentissimae facis* (XXIX, 1, 10, to which might be added the burning of the philosopher Simplicius at XXIX, 1, 38-9); and 2, Ammianus' statement that Gallus was killed in *modum nostri casus domus laetitia* (XIV, 11, 23) with the cry of one of the Caesar's victims when he was about to be tortured, that Gallus' action was a *laprocium* (XIV, 9, 5). However, if this were Ammianus' purpose in the former case, he would surely have committed himself to the version that Valens died in a blazing house, and not merely recorded it as an alternative account.

DEMANDE, p. 25-6 notes that to Ammianus a function of the Roman state is the defeat of the arrogant (*superbi*) barbarians and the replacement of their *hubris* by justice. The idea is found in VIRGIL (*Aen.*, 6, 852-3), and DEMANDE (*loc. cit.*) notes similar sentiments in Claudian and the Latin Panegyricists.

(34) SCHLEIER, p. 34-7.

(35) CLAUDIAN, *Con. Sot.*, 3, 161-6; *in Eutrop.*, 1, 415; ZOSIMUS, V, 10, 3; 38, 2-5. For Aurelius Victor see DEW BOER, *Monomachia*, 1968, p. 287-8. For Agathias see CONSTANTIN, *Helikon*, 1962, p. 96 ff.

(36) DELATIE, p. 243.

(37) Cp. EUSEBIUS, *vit. Const.*, 1, 59; *HE* (appendix to 38, 8).

(38) SOZOMEN, 6, 40; ZONARAS, 13, 16 (cp. ORIGEN, 7, 33). The comparison of Ammianus with the Christian writers is upon no more than a superficial level. The quality of the notions of retribution for punishment differs. To the Christian writers it is part of a coherent philosophy of history. Ammianus, despite his various preconceptions, is still the pragmatic classical historian who is concerned to point out traces of the idea in his material, not to superimpose it upon the whole *History*.

Moreover, during the later Empire at least, there was a tendency to make punishment symbolically fit the crime, a procedure which was designed to suggest that in some way the punishment was a direct result of the particular crime. Thus Constantine I commanded that parents who encouraged the seduction of their daughter should have their throats stopped with molten lead (*C. Th.*, IX, 24, 1) and that the hands of corrupt officials should be cut off (*C. Th.*, I, 16, 17). In Ammianus Valentinian I orders that tongues suspected of lying and insolence be removed⁽³⁹⁾.

The *hubris-nemesis* concept of retributive punishment for wrong is a form of limited determinism, since the human being is regarded as a free agent who, by his willing performance of evil deeds, has set in motion a mechanical chain of cause and effect which leads to his death or to some other punishment. The events themselves are predetermined only after an initial act of will. Thus the power of human action is recognized.

Portents which appear in the *History* intrude into this scheme of things. It was conventional to include them in such a work, and the majority, which precede the deaths or acclamations of Emperors, seem to be used for this reason and to heighten dramatic effect⁽⁴⁰⁾. However, in the fourth century A. D. most people believed in the power of prophetic signs. Ammianus himself, in a digression on the reliability of portents (XXI, 1, 7-14), states his belief in omens: *amat enim benignitas numinis, seu quod merentur homines seu quod tangitur eorum affectione, his quoque artibus proderet quae impendent* (9). The signs which confront Julian during his Persian expedition seem to have more than just a literary significance. They warn that disaster will come if the invasion is not abandoned. Julian ignores them and dies⁽⁴¹⁾. The doctrine here, that if portents are heeded fate can be avoided⁽⁴²⁾, serves to project the human element into a purely mechanical scheme of causation and again creates a position quite consistent with Ammianus' recognition of the importance of human action.

(39) XXVIII, 6, 20 (cp. XXX, 5, 19).

(40) E.g. XX, 11, 26-30; XXI, 14, 1, 15, 2 (death of Constantius); XXI, 16, 20-31; XXV, 10, 16-17 (elevation of Jovian); XXV, 10, 1-3 and 11 (death of Jovian); XXX, 5, 16-17 (death of Valentinian I).

(41) For references see ch. 5, n. 156. These bad omens were not the creation of Ammianus. They seem to have been well-known and discussed (cp. Zosimus, III, 12, 1: *οὐδὲ τὸν Ἰουλιανὸν αὐτοῦ ἡγοῦντο. τὸ δὲ ὄντος, εὐθὺς ἀποφθίοντος*).

(42) Cp. CRAMER, Philadelphia, 1954, p. 217 on a similar doctrine as a weakened form of astrological fatalism.

Therefore there are two basic notions underlying Ammianus' treatment of historical causation and presented by him as real historical forces, firstly, that of the power of man to affect events, which gives to virtue some control over fortune (= the objective world); and secondly, that of regular punishment for evil, which presupposes at least a limited determinism. The two concepts are by no means in harmony in all aspects; but Ammianus can use them side by side without apparently feeling any awkwardness. Thus, on the one hand, he treats the disaster at Adrianople as a purely mechanical result of and punishment for the earlier wrongdoings of the Emperor Valens⁽⁴³⁾; yet, on the other, not only does he ascribe the opening of hostilities and the disaster itself to the more immediate crimes and mistakes of the individuals who were in charge of settling the Goths and later of conducting the war against them⁽⁴⁴⁾, but he also undertakes a detailed and perceptive investigation into the tribal movements which formed the background of the action (XXXI, 2-3), an undertaking which a historian who had a purely deterministic view of events is unlikely to have conceived⁽⁴⁵⁾.

A similar situation obtains in the epilogue to the death of the Caesar Gallus⁽⁴⁶⁾. Ammianus first discusses Adrastia, *quam uocabulo duplici etiam nemesis appellamus* (XIV, 11, 25). She clearly embodies the idea of retributive justice⁽⁴⁷⁾ as she judges events and causes changes in fortune, now humbling the proud now exalting the weak (11, 26). But when, after a short *elogium* on the dead Caesar, Ammianus returns to the subject, he gives examples of the work of capricious fortune (11, 29-34), the power against which virtue must struggle. The conflict of these two apparently contradictory notions well reflects the basic dichotomy of the historian's thought.

In considering the foregoing argument and scheme of causation suggested, it should be remembered that Ammianus was a writer greatly influenced by rhetoric and also seeking literary expression for his ideas. Moreover, he made use of various and sometimes conflicting sources⁽⁴⁸⁾.

(43) See p. 52-4.

(44) XXXI, 4, 9-11; 5, 4-8; 12, 1-7 and 16 (cp. XXVII, 5, 8).

(45) Eusebius, too, included a digression on the Huns in the first edition of his history, which, in my opinion, was written independently of Ammianus (see Appendix A). But this contained merely conventional digressional material, drawn from Herodotus and other old writers (see p. 43) and cannot therefore be considered a serious analysis and valuable like that of Ammianus.

(46) On this passage see EUSEBIUS, p. 67 ff.; WIRTH, p. 39 ff.; NAUKE, *AClass.*, 1964, p. 85-6.

(47) On *nemesis* as justice (*dike*) see JANNACCONE, p. 84 ff.

(48) Cp. the remarks of BLOEMHOF on NAUKE, Leiden, 1956, in *JRS*, 1956, p. 209-10.

and at times he failed to think out fully the implications of what he wrote. He was not a philosophic but a pragmatic historian, who therefore did not seek to fit all his material into a carefully worked out system. Yet it is dangerous to try to guess at the details of his religious and other convictions without the guidance of such a system. Many of his fellow pagans had been, and were, confused over the question of free will, determinism or fickle fortune. Tacitus states his indecision on the matter⁽⁴⁹⁾, and in Claudian (*in Ruf.*, I, 1 ff.) the expression of such hesitation has become almost a convention.

It is tempting to reject such an elaborate system as described above and to interpret *fatum* merely as an expression of pessimism (since it almost always occurs in the context of a disaster or failure) and *fortuna* as the uncertainty of the objective world and the unknowable future (in effect admitting into causation the element of pure chance with no connotations of divinity). But to stress overwhelmingly the power of human activity in the *History* would give an excessively one-sided view of Ammianus' causation, since it is inconceivable that, at the period at which he was writing, he did not have some belief in divine power in the world. Thus I have suggested that in the *History* there are two different concepts, partly contradictory but also partly complementary. One stresses human activity, the other divine justice; one offers some reward for virtue, the other punishment for evil⁽⁵⁰⁾.

(49) TACITUS, *Ann.*, IV, 20, 5; VI, 22, 1 (cp. R.T. SCOTT, *Religion and Philosophy in the Histories of Tacitus*, Rome, 1968, p. 118 ff.). In general on this indecision during the Principate see M.L. CLARKE, *The Roman Mind*, London, 1956, p. 115.

(50) A similar pair of ideas occurs in Christian writers of the period: 1, the crime-punishment scheme already noted (see p. 173); 2, what ISIDORE, *passim* calls the piety-success correlative.

APPENDIX A

AMMIANUS, JEROME AND ZOSIMUS ON THE HUNS

Some of the writings of Jerome contain passages (mostly on the Huns) which show similarities with Ammianus XXVI, 4, 5 and especially XXXI, 2, the digression on the Huns. The relevant works of Jerome are *adu. Iovinianum* (393 A. D.); *Ep.*, LX, *ad. Hierodionem* (396); *Ep.*, LXXVII, *ad Oceanum* (399 or 400); and the commentary in *Isidore*, VII, 20-22 (408). (For the dating see the table in F. Cavallera, *Saint Jérôme, sa vie et son œuvre*, II, Louvain/Paris, 1955, p. 153-65). Using these similarities as evidence Maenchen-Helfen (*AJP.*, 1955, p. 384-99) has concluded that book XXXI, the last book of Ammianus' *History*, was completed in winter 392-3 A. D., since Jerome used it in the *adu. Iov.* which he wrote in 393⁽¹⁾.

Jerome	Ammianus
a. <i>adu. Iov.</i> , II, 7: <i>Sarmatae, Quadi et Vandales ... ipse adolescentulus in Gallia Atticottos, gentem Britannicam humanis uesci carnibus ... Scotorum natio uxores proprias non habet ...</i>	XXVI, 4, 5: <i>Gallias Raetiasque simul Alamanni populabantur; Sarmatae Pannonias et Quadi; Picti Saxonesque et Scotti et Attacotti Britannos oerumnis uexare continu</i>
b. <i>adu. Iov.</i> , II, 7: <i>Nomades et Troglodytae et Scythae et Hunnorum noua feritas semicrudis uescuntur carnibus</i>	XXXI, 2, 3: <i>et semicruda caluatis pecoris carne uescantur, quam inter femora sua equorumque terga subsertam, fotu calefactant breui</i>
c. <i>Ep.</i> , LX, 17: <i>qui ingredi non ualent, qui si terram tetigerint, se mortuos arbitrantur</i>	XXXI, 2, 6: <i>calcei formulis nullis apertiti uetant incedere gressibus liberis</i>
d. <i>Ep.</i> , LX, 17: <i>statimque cernamus sagittas pilis, tioras galeis, caballos equis cedere</i>	XXXI, 2, 6: <i>galeris incuruis capito tegunt ... equis ... duris quidem sed deformibus</i>

(1) SYME, *op. cit.*, p. 17-22 attacks Maenchen-Helfen's theory. I do so again because Syme does not discuss the linguistic parallels and he is only concerned to refute the suggestion of imitation in the *adu. Iov.* and concedes it in the other writings (where the parallels are generally weaker).

e. *Ep.*, LXXVII, 8: *eruptisse Hunnorum examina, quae pernicious equis huc illuc uolitantia ... insperati ubique aderant*

f. *Ep.*, LXXVII, 8: *ob nimiam auri cupidinem ad hanc urbem [i.e. Jerusalem] concurrere*

g. *In Isiam*, VII, 20: *ut nihil in illa forte, nihil pulchrum resideat, sed effeminatis hominibus ... comparentur*

h. *In Isiam*, VII, 21-2: *per feras gentes, et quondam nobis incognitas*

i. *In Isiam*, VII, 21-2: *femineas incisasque facies perferentes*

XXXI, 2, 8: *utque ad perniciem sunt leues et repentini, ita subito de industria dispersi incessant*

XXXI, 2, 11: *auri cupidine immensa flagrant*

XXXI, 2, 2: *senescunt imberbes absque ulla uenustate, spadonibus similes*

XXXI, 2, 1: *Hunorum gens, monumentis ueteribus leuiter nota ... omnem modum feritatis excedit*

XXXI, 2, 2: *infantum ferro sulcantur altius genae ... senescunt imberbes ... spadonibus similes*

Of these alleged parallels d, e, g, h and i are hardly convincing, offering only similarity of commonplace material and occasional coincidence of common words. Passage a is even more unconvincing. Maenchen-Helfen, pointing to the appearance of the Sarmatae and Quadi in both Jerome and Ammianus, argues that Jerome was prompted to insert the Attacotti (who are mentioned only rarely elsewhere) ⁽²⁾ by their appearance in Ammianus, and that, following the historian's list, he introduced the Scoti. But the lists of names are by no means completely parallel. Moreover, Jerome describes the cannibalistic habits of the Attacotti (in a passage which I have not quoted) not mentioned by Ammianus. Jerome himself travelled *ad Rheni semibarbaras ripas* (*Ep.*, III, 5) and may well have gathered this information himself (or made it up). And even if Jerome did follow Ammianus on these British peoples, it is much more likely (as Syme, *op. cit.*, p. 21 points out) that he used the now lost digression on Britain which appeared much earlier in the *History*, in the account of the reign of Constans (see XXVII, 8, 4).

(2) They appear a number of times as auxiliaries in the *Notitia Dignitatum* (*Or.*, IX, 29, *Occ.*, V, 48, 50, 70, 197, 200; VII, 24, 74, 78). Note especially the *numeri* called *Attacotti* (*lunares Gallorum* in *Occ.*, VII, 78).

At first glance parallel c looks more promising. But again there is no verbal likeness, nor full correspondence of context. Jerome does not mention the *calcei formidulis nullis aptati* and he says that the Huns think that they are as good as dead if they touch the ground, which is somewhat different from Ammianus' remark that they cannot walk freely. Maenchen-Helfen (*art. cit.*, p. 395) argues that, since the information that the Huns could not walk is preserved in no other source (except Zosimus), it is likely that Jerome derived it from Ammianus. On the other hand, the inability of mounted nomads to fight on foot was well known (e.g. Tac., *Hist.*, I, 79, on the Roxolani); and such a conclusion about the Huns could have been easily drawn from their reputation for spending most of their life on horseback (cp. Claudian, *In Ruf.*, I, 329-330; Ammianus, XXXI, 2, 6; Sid. Apol., *Pan. Anthem.*, 263-6).

In passage f Jerome says that the Huns attacked Jerusalem *ob nimiam auri cupidinem*, which offers a verbal parallel with Ammianus' description of them as *auri cupidine immensa flagrant*. This might indicate borrowing, but the shared words are both common and do describe a fact well attested about the Huns ⁽³⁾.

The most compelling parallel is b, where the flesh-eating habits of the Huns are described by the phrase *semicrudis uescuntur carnibus*, which seems to have been suggested by Ammianus' *semicruda ... carne uescantur*. The information itself might have been widespread, if wrong (cp. Syme, *op. cit.*, p. 20); but the verbal likeness indicates at least the possibility of borrowing from Ammianus. On the other hand, the phrase *carne uescit* is common enough (e.g. Jerome, *adu. Iou.*, II, 7 — quoted as passage a — Cic., *Tusc.*, V, 32, 90; Varro, *RR.*, II, 9, 10; Sallust, *BJ.*, 89, 7). The description of *caro* as *semicruda* is rarer, but does appear in Frontinus, *Strat.*, II, 5, 13, where Hannibal is said to have caught some Roman troops *semicruda graues carne*, and in Florus, *Epit.*, I, 34, 12, where the Spaniards are said to eat a death feast of *caro semicruda*.

Maenchen-Helfen has not proved that Jerome used Ammianus, merely that he could have used him. Indeed he is wrong to claim (*art. cit.*, p. 393) that nothing which refers to the Huns in the two letters of Jerome and the *In Isiam* goes beyond Ammianus. The statement in *Ep.*, LXXVII, 8 that they originated *inter glaciem Tanais et Massagetarum im-*

(3) On the later extortion of gold from the Empire by the Huns see Patey, *ib.*, 5 and J. B. Bury, *The Later Roman Empire*, I, London, 1923, p. 235, n. 2, with the caution of E. A. Thompson, *A History of Attila and the Huns*, Oxford, 1948, p. 192.3.

manes populos (i. e. from the West of the Massagetae) is not from Ammianus, who makes them come from the East of the Alans, who are to him the Massagetae (XXXI, 2, 12).

As for Jerome's use of Ammianus in the *adu. Jou.* (from which the most compelling parallel comes), chronology makes it unlikely. Ammianus ended book XXV of his *History* with the death of Jovian. In book XXVI, 1, 1 he indicates that he had decided to stop writing for safety's sake. He does not explain why now he begins again, but since books XXVI to XXXI cover the reigns of the early Pannonian Emperors, it would seem likely that the end of the Pannonian dynasty encouraged him to continue his work, since now he could speak freely again (see p. 94). Since the last Pannonian, Valentinian II, died in May 392 A. D., if this interpretation of his words is correct, Ammianus cannot have begun to publish his last books before that date. Possibly book XXVI came out in winter 392-3, but even had much of the material been already prepared, it is highly unlikely that book XXXI could have appeared during the same winter in time to reach Jerome in the East and to be used by him in writing the *adu. Jou.* in 393.

Jerome is not the only writer to show similarities in this material with Ammianus. When Zosimus digresses on the Huns (IV, 20) he, too, shows likenesses to both Ammianus and Jerome.

Ammianus XXXI	Zosimus IV	Jerome
2, 1: <i>monumentis ueteribus leuiter nota</i>	20, 3: <i>πρότερον μὲν οὐκ ἐγνωσμένον</i>	<i>In Is.</i> , VII, 21-2: <i>et quondam nobis incognitas</i>
2, 6: <i>calcei formulis nullis aptati, uelant incedere gressibus liberis. Qua causa ad pedestres parum accommodati sunt pugnas</i>	20, 4: <i>μάχην μὲν σταθίαν οὐτε θυνάμενοι τὸ παράπαν, οὐτε εἰδότες ἐπαγαγεῖν... οἱ μὴτε εἰς γῆν πῆξαι τοὺς πόδας αἰοι τε ὄντες ἰσχυρῶς</i>	<i>Ep.</i> , LX, 17: <i>qui ingredi non ualent, qui si terram tetigerint se mortuos arbitrantur</i>
2, 8-9: <i>subito de industria dispersi incessunt... procul missilibus telis... confligunt</i>	20, 4: <i>περιέλασεν δὲ καὶ ἐκδρομαῖς καὶ εὐκαιροῖς ἀναχωρήσεσιν, ἐκ τῶν ἵππων κατατοξεύοντες</i>	<i>Ep.</i> , LXXVII, 8: <i>Humorum examina, quae pernicibus equis huc illuc uolitantia... insperati ubique aderant</i>

Zosimus' excursus on the Huns, like that of Ammianus, precedes his narrative of the events which culminated in the battle of Adrianople. Since in this part of his history Zosimus seems to be following Eunapius and since in general he appears to keep the order of events which he finds in the latter, Eunapius, too, must have included such a digression at roughly the same place in his narrative⁽⁴⁾. Maenchen-Helfen (*art. cit.*, p. 392), on the basis of the similarities between Zosimus and Ammianus, concludes that Eunapius used Ammianus as a source for his digression. However, a reading of Eunapius, *fr.*, 41 makes it necessary to qualify this conclusion. In this fragment Eunapius says: *τὰ μὲν οὖν πρῶτα τῆς συγγραφῆς, ὁδονῶς οὐδὲν σαφὲς λέγειν ἔχοντος ὅθεν τε ὄντες οἱ Θύναι ὅπῃ τε κείμενοι τὴν Εὐρώπην πᾶσαν ἐπέδραμον καὶ τὸ Σκυθικὸν περὶ γένος, ἐκ τῶν παλαιῶν συντιθέμεναι κατὰ τοὺς εἰκότας λογισμοὺς εἰρηται· τὰ δὲ ἐκ τῶν ἀπαγγελλομένων δοξάζοντι πρὸς τὸ ἀκριβές, ὥς ἂν μὴ τοῦ πιθανοῦ τὴν γραφὴν ἀπαρτίσαιμεν, μηδὲ παραφέρει πρὸς τὴν ἀλλήθειαν ὁ λόγος.*

This fragment is amongst those preserved in the *Excerpta de Sententiis* of Constantine Porphyrogenitus, which used the second edition of Eunapius' history. The *Excerpta* preserve the chronological order of the fragments, and thus, since the present passage comes amongst material from the reign of Valens, it is safe to assume that it, too, was placed there⁽⁵⁾. Since the Huns only came to the knowledge of the Romans during the reign of Valens, there could have been no earlier place in Eunapius' history where such material might have been inserted. Therefore, as Chalmers (*CQ*, 1953, p. 165-70) has argued, *τὰ πρῶτα* cannot refer to an earlier part of the history, but must mean the first edition of it.

The result of this is that, if we accept Eunapius' words in *fr.*, 41, he had no recently written source to which to refer and therefore did not use Ammianus in his first edition. Conversely, Ammianus is not likely to have used Eunapius since only the first edition, which offered merely *τὰ*

(4) I say 'roughly' because from the position of *fr.*, 45 (see the following note) it is clear that Eunapius' account of the events up to Adrianople was not an uninterrupted whole as in Ammianus. Zosimus, IV, 20, 3: *καὶ τότε γὰρ εἰς τὴν ἰσχυρίαν*, also indicates, in my opinion, that he has added some material not from Eunapius. In general I am a little doubtful whether Zosimus always provides quite so accurate a reflection of what Eunapius wrote as is usually held.

(5) *Fr.*, 38 mentions Theodorus who was executed by Valens; *fr.*, 43 Maximus who was Valens' praetorian prefect; *fr.*, 46 Valens; *fr.*, 47 Sebastianus who joined Valens before Adrianople.

παλαία, would have been available to him. On the other hand, Eunapius in his second edition (which was the one used by Zosimus) could have used Ammianus. Thus Zosimus might preserve material which came from Ammianus.

The second and third passages of Zosimus are closer to Ammianus, whereas the first offers an exact Greek equivalent of Jerome's words. All three writers express in a slightly different way the Huns' difficulties on foot. Ammianus says that they cannot walk freely, Jerome that they cannot walk and Zosimus that they cannot stand firmly. Of course, such minor variants do not prove that Eunapius did not use Ammianus⁽⁶⁾; and fairly obviously the material common to the two historians (and to Jerome) is at some stage related. But as with Jerome, so with Eunapius it would be better to reject Ammianus as a direct source and to posit as the common origin of their information either general knowledge and rumour circulating about the Huns, or (which I prefer) another written source⁽⁷⁾.

(6) But it should be remembered that Zosimus rarely preserves exactly the language of Eunapius. Thus when Zosimus' language is close to that of Ammianus, it is no guarantee that Eunapius' was.

(7) Either Ammianus or his source might have been concerned to draw parallels between the Huns and the Scythians of Justin or Pompeius Trogus. AMMIANUS, XXXI, 2, 5 says that the Huns dressed in *pellibus siluestrium murum*; JUSTIN, *Epit.*, II, 2 says that the Scythians used *pellibus murinis*. With Ammianus on the Huns' *auri capido* (2, 11) compare Justin (*loc. cit.*) on the Scythians' *diuturnum capido*.

APPENDIX B

ANIMAL IMAGES

Cp. H. Michael, *Beiträge zur Charakteristik des Ammianus Marcellinus*, p. 238-9, who gives 35 animal images (without references), one or two of which I seem to have missed, since for one or two words he lists more examples than I (e. g. *pecus*, 3; *ales*, 2). In the following list I have not included the names of weapons etc.

- bestia*: XIV, 2, 2, Isaurians; XVI, 5, 17, barbari; XIX, 5, 3, Gallic troops; 6, 4, Gallic troops; XXII, 5, 4, Christians; XXVI, 6, 10, Procopius; XXVII, 6, 1, Rusticus Julianus; XXVIII, 3, 4, Valentinus; XXX, 5, 10, Valentinian I; XXXI, 2, 2, Huns; 8, 9, Goths; 15, 2, Goths.
- fera* (*ferinus*): XV, 3, 3, informers; 5, 23; XVI, 7, 4; XXVI, 6, 4, Procopius; XXVIII, 1, 10, Maximinus; 1, 12, Leo; 1, 38, Maximinus; 6, 4, Austeriani; XXIX, 1, 27, Valens; XXXI, 2, 18, Huns; 7, 9, Goths; 9, 1, Goths.
- serpens*: XIV, 7, 13, Gallus; XV, 2, Arbitio; 7, 4, Roman mob; XIX, 13, 1, Isaurians; XXVIII, 1, 7, Maximinus; 1, 33, Maximinus; 1, 41, Maximinus; XXX, 1, 16, Daniel and Barzimeres.
- leo*: XIV, 9, 9, Gallus; XIX, 3, 3, Ursicinus; XXIX, 4, 7, Valentinian I.
- coluber*: XIV, 5, 6, Paul; XVIII, 4, 4, Eusebius.
- canis*: XV, 3, 5, Mercurius; XXX, 4, 8, lawyers.
- belua*: XIV, 5, 3, prisoners; XXXI, 8, 8, captives of the Goths.
- pecus*: XXIX, 1, 40, victims of the executioner; 5, 53, Isallenses.
- milvus*: XIV, 4, 1, Saraceas.
- aves*: XXIV, 2, 8, Roman auxiliaries.
- taurus*: XXVIII, 4, 10, Roman nobles.
- pavo*: XXVIII, 4, 34, Roman commons.
- ulper*: XXII, 11, 3, George.
- piscis*: XXVII, 11, 3, Petronius Probus.
- alex*: XXVIII, 6, 13, Austeriani.
- animal*: XXXI, 2, 11, Huns.
- venaticio praeda*: XXX, 1, 15, Pap.

Totals: *bestia* and *fera*, 12 times each; *serpens*, 8; *leo*, 3; *coluber*, *canis*, *belua*, *pecus*, 2; others once each. Total number of images = 52.

Distribution through books is 6, 5, 2, 0, 1, 4, 0, 0, 2, 0, 1, 0, 2, 2, 11, 4, 4, 8.

Thus book XIV offers six images (the third highest total) and book XV has five. Thereafter, the maximum for any book up to XXVII is two, with the exception of the four in XIX (wholly devoted to Constantius II). Book XXVIII offers eleven (the most) and the last three books have four, four and eight. Put another way, books XIV and XV have a total of eleven; books XVI to XXV have ten; and XXVI to XXXI have thirty-one, which give averages for the three groups of 5.5, 1 and 5.2 per book.

APPENDIX C

AN AMNESTY LAW OF CONSTANTIUS II

Cod. Th., IX, 38, 2, dated Sept. 6, 354 A. D. and addressed to the urban prefect of Rome, Cerealis, proclaims: *omnia penitus amputentur quae tyrannicum tempus poterat habere tristissima. Universos ergo praecipimus esse securos, exceptis quinque criminibus quae capite ulndicantur.*

Mommsen rightly dates this law to 353 A. D. since the addressee was prefect of Rome from Sept. 26, 352 to Dec. 7, 353 (Clinton, *Fasti Romani*). Pharr (*The Theodosian Code*, Princeton, 1952, p. 253, note 5) expresses doubt whether the tyrant referred to was Gallus or Magnentius. It must be the latter (as is usually assumed — e. g. by Seeck, *Untergang*, IV, p. 439, note to p. 117, l. 29) since it would hardly have been addressed to the prefect of Rome had it concerned Gallus.

Mooney (p. 60) and Seeck ("Constantius", 4, in *RE*, IV, 1, col. 1071) take the amnesty to apply to the followers of Magnentius. Certainly in 351 after the battle of Mursa Constantius proclaimed an amnesty for all the supporters of Magnentius except those implicated in the murder of Constans (Julian, *Or.*, I, 38B; II, 58B-C), an offer designed to weaken the usurper's support and one which a number seem to have accepted (Julian, *Or.*, I, 38C; 48B; II, 97B). The law under discussion does not, of course, refer to this amnesty, since the date and place of issue (Lyons) indicate that it was promulgated after Magnentius' suicide in 353. Julian, *Or.*, II, 95D-96A says that Constantius was merciful after his victory, whereas Ammianus claims that there were reprisals in Gaul and Britain (XIV, 5). These can be reconciled by assuming that the amnesty only applied to Italy, which Magnentius abandoned in 352.

On the other hand, the language of the law would seem to indicate an amnesty for those who were accused of non-capital crimes under the regime of Magnentius. Thus the first sentence professes to remove the sufferings of the times, a sentiment relevant to the pardoning of victims

rather than supporters. If the second sentence refers to Magnentius' supporters it would mean little, since all would still be liable to a charge of treason. There are two other alternative explanations. It could refer to many of those in Italy and Gaul who were attacked by the usurper Julian, *Or.*, I, 33D; 34B; 40A-B), especially at Rome after the failure of the revolt of Nepotian (Eutropius, 10, 11; John of Antioch, *fr.*, 174. Cp. Themistius, *Or.*, III, 43C). More likely, it is merely one of the usual celebratory amnesty laws which were published to mark a happy event (cp. *Cod. Th.*, IX, 38, 1, 3-4, 6-8, and especially 12). In this case the recipients of the amnesty would be those indicted under the usual judicial processes which continued during the regime of Magnentius.

APPENDIX D

COUNT ATÉ

According to Ammianus the general who operated with Terentius in Armenia was the master of the infantry, Arintheus, formerly an officer of Constantius II and Julian, who appears elsewhere in the *History* (XV, 4, 10; XXIV, 1, 2; XXV, 5, 2; 7, 7; XXVI, 5, 2; 8, 4; etc.). In Faustus the name of this officer appears in the French translation as Até, in Moses as Addée. However, the name in Moses is transcribed not as Addée (which is clearly the French form of Addaeus) but as Atté by Grousset, Paris, 1947, p. 145, n. 4 and by J. B. Emine (the translator of Faustus) in n. 2 to Faustus, 5, 1 (= FHG, V, 2, p. 278).

Baynes, *EHR*, 1910, p. 638-9 (followed by Dodgeon, Bristol, 1967, p. 210) considers that the name Até (Atté, Addée) refers not to Arintheus, but to Addaeus, later the count of the domestics of Theodosius I, about whom little is known (details in Seeck, Hildesheim, 1966, p. 48). It is quite possible that Moses (and perhaps Faustus), when he wrote what is translated as Atté (Addée), meant Addaeus, since he had made the reign of Pap contemporary with Theodosius I, even to the extent of incorporating into his narrative details from the reign of the latter which are impossible for Valens. Thus in 3, 39 he says that Pap decided to revolt from the Roman Empire because at the time the Emperor was distracted by the troubles at Thessalonika, which took place around 390 A. D.

But whomever Moses thought that he was writing about, the activity which he and Faustus describe was clearly carried out by Arintheus, because if not: 1, the very full account of Faustus makes no mention of Arintheus, who led the army which he mentions, on the occasion which he mentions and for whom the writer substitutes a person who would at the time have been an obscure junior officer; 2, Moses, 3, 37 describes the sending of Atté (Addée) with an army to help Pap and Terentius, and his account exactly parallels the sending of Arintheus in Ammianus XXVII, 12, 13; 3, Moses calls Atté (Addée) "Great Count", a title which

better suits the master of the infantry, Arintheus, than Addaeus, at the time of no importance.

Of course, against point 3 it could be argued that Addaeus was with Terentius as a junior officer in 370 and that Moses refers to him anachronistically as "Great Count" because of his rank during the reign of Theodosius I.

A small difficulty is raised by Faustus' treatment of Terentius as of greater importance than Atë, whereas Arintheus was the senior officer. But this would be natural in an Armenian source, since Arintheus was only in the country for a short while during the emergency (370-371 A. D. He would have left by 372 when he held the consulship, perhaps as a reward for his success in Armenia — see ch. 4, n. 44 and Clinton, *Fasti Romani*, I, p. 478), whereas Terentius, as *dux Armeniae*, was Rome's regular representative. The importance of Terentius in the eyes of the Armenians is well illustrated by their regular substitution of his name for that of Trajanus, who took over his duties in 373-4 A. D. To the Romans, of course, Arintheus, as the senior officer, would have been more important; and Themistius, *Or.* XI, 149B makes Arintheus the defender of the vital land of Armenia and Terentius of Hiberia, important but not as important as Armenia.

APPENDIX E

VICTIMS OF THE TRIALS FOR TREASON ETC.
NAMED BY AMMIANUS

	Constantius			Valentinian I			Valens			
	S	N	C	S	N	C	S	N	C	
R	4	71	(-)		1			1		c o n d e m n e d
P	1	3			1			1		
M					7	4		3	2(a)	
T		2			2	1		14 (+)		
A					10					
O	(+)	1			1 (+)					
R	3	21								c o n d e m n e d
P	1	1+2?			1			1		
M					7	4		2 (+)	2	
T						1		11		
A					8+2?					
O										
R					1					a c c u s e d
P	1 (+)									
M	1				5			1		
T		2						1		
A										
O			2							

Key:

? = status of person uncertain

S = soldiers

C = civilians of the lower classes

R = open rebellion in support of an usurper

M = magic

A = adultery

-? = fate uncertain

N = civilians of the upper and middle class

P = plotting against the Emperor

T = treasonable consultation

O = other apparently treasonable offences

Notes:

(a) The fate of the domesticus of Silvanus is not recorded (XV, 6, 1-3).

- (b) Two others turned informer and were spared (XXIX, 1, 6; 2, 1-2 and 6 ff.).
 (c) Another dropped dead (XXIX, 1, 26). The fate of another is not recorded (XXIX, 1, 36). Two of those condemned to banishment were later acquitted (XXIX, 2, 11).
 (d) One soldier killed himself (XV, 3, 10).
 (e) The offence is not specified (XXVIII, 1, 16). Another killed himself (XXVIII, 1, 47).
 (f) One of those ordered executed was spared (XXIX, 1, 44). Two others were accused, their fate not recorded (XXIX, 1, 5).
 (g) In a second case the trial was stopped (XVI, 6).

APPENDIX F

EXEMPLA

All the material used to illustrate a characteristic or to make a point etc. is treated as one *exemplum*, even though it might contain a number of entirely separate events and characters. The *exempla* have been collected from the narrative part of the work and from the polemical digressions (i.e. XIV, 6; XXVIII, 4; XXX, 4), but not from the learned digressions. Material from Persia and Macedon has been referred to Greek history.

The labelling of the *exempla* is necessarily subjective and in some cases open to dispute. Appendix F, 1 lists those which I consider to illustrate a moral characteristic, while Appendix F, 2 lists those which are non-moral (e.g. used in simple historical comparisons etc.).

The key to the appendices is as follows (referring to the *exemplum* and not to the material which Ammianus compares with it):

R	= Roman	G	= Greek
GR	= Greek and Roman	O	= from the history of other peoples
S	= used in a speech	N	= used by a person other than Ammianus

(those not marked S or N are used by Ammianus himself).

- a = the *exemplum* illustrates a good characteristic.
 b = the *exemplum* illustrates a bad characteristic.
 1 = the *exemplum* is introduced by a word or phrase which indicates that the person under discussion in the *History* imitated it, followed it, knew it etc.
 2 = the *exemplum* is introduced by a word or phrase which indicates that the person under discussion in the *History* did not know of it.
 3 = the *exemplum* is surpassed (i.e. the character under discussion in the *History* is worse than a bad *exemplum* or better than a good one).
 4 = direct comparison (* indicates that the comparison is ironical).
 5 = the *exemplum* surpasses.

F, 1:

XIV, 1, 8	Gallus' wife — Maximin's wife	R.g. 3
1, 9	Gallus — Gallienus	R.b. 4
6, 8	Roman nobles — Cato	R.g. 3
6, 10-11	Roman nobles — Valerius Publicola, Regulus, Scipio	R.g. 2, 3
9, 6	Eusebius — Zeno	G.g. 1, 4
11, 10	Gallus and Constantius — Galerius and Diocletian	N.R.g.
11, 22	Gallus — Alexander	G.g. 2, 3
11, 28	Gallus — Domitian	R.b. 4

XV.	2, 5 plotted murder of Ursicinus — murder of Corbulo	R.b. 4	6, 14 soldiers supporting Procopius — soldiers supporting Didius Julianus	R.b. 4
	3, 3 Constantius' informers — Vertes' creatures	R.b. 5	8, 15 Procopius — Pescennius Niger	R.b. 4
	4, 11 Roman generals and soldiers — the Decii	R.g. 4	XXVII, 3, 7 Lampadius — Trajan	R.b. 4
	5, 35 Constantius — Domitian	R.b. 4	9, 10 Praetextatus — Cicero on Brutus	R.g. 5
XVI.	5, 37 Constantius — Croesus, Dionysius	G.b. 4	10, 16 Natuspardo — Sicinius, Sergius	R.g. 4
	1, 4 Julian — Titus, Trajan, Antoninus, M. Aurelius	R.g. 4	XXVIII, 3, 9 Theodosius — Furius Camillus, Papinus Cursor	R.g. 4
	5, 4 Julian — Alexander	G.g. 5	4, 5 corruption at Rome — plague at Athens	G.b. 5
	5, 8 Julian — Cyrus, Simonides, Hippias of Elis	G.g. 5	4, 9 Roman nobles — Parthians, Egyptians, Carians, Palmyrenes	O.b. 4
	7, 9-10 Eutheries — Menophilus	R.g. 5	4, 15 Roman nobles — Socrates	G.g. 2, 3
	8, 10 Constantius — Dionysius	G.b. 4	4, 18 Roman nobles — Alexander, Caesar	GR.g. 4*
	10, 3 Constantius — Julius Caesar, Claudius II, Galerius	R.g. 2, 3	4, 21 gamblers — Quintili	R.g. 4*
	12, 41 Julian — Sulla	R.g. 1, 4	4, 21 skilled dicer — Cato	R.g. 4*
XVII.	11, 3-4 envy attacks Julian — envy attacks Cimon, Scipio Aemilianus, Pompey	GR.b. 4	4, 27 Roman nobles — Micon, Laches	G.b. 4
XVIII.	3, 7-9 Barbatio — Aristotle to Callisthenes	G.g. 2, 3	4, 27 Roman nobles — Heracles, Cresphontus, Temenus	G.b. 4
XXI.	8, 3 Julian — Alexander	G.g. 4	XXIX, 1, 39 Simonides — Peregrinus Proteus	G.g. 1, 4
	9, 2 Julian — Cyrus	G.g. 1, 4	2, 19 Valens — Arcopagites	G.g. 3
	16, 8 Constantius — Domitian, Caligula, Commodus	R.b. 5	5, 4 Theodosius — Corbulo, Lusius Quietus	R.g. 4
	16, 11 Constantius — M. Aurelius	R.g. 3	5, 22-3 Theodosius — Curio	R.g. 1, 4
XXII.	4, 5 ostentatious houses — Quinctius	R.g. 3	5, 32 Theodosius — Fabius Cunctator	R.g. 4
	4, 6 Roman soldiers — Spartan soldier	G.g. 3	5, 33 Theodosius — Pompey	R.g. 4
	4, 8 Roman soldiers — soldier of Maximianus	R.g. 3	XXX, 1, 22 Trajanus — Fabius Luscinius	R.g. 3
	9, 9 Julian — Lycurgus, Cassius	GR.g. 5	4, 15 uneducated lawyers — Thersites	G.b. 4
XXIII.	5, 19 Julian — Curtii, Mucii, Decii	S.R.g. 4	8, 4-5 Valentinian — Artaxerxes, Papirius Cursor	GR.g. 2, 3
XXIV.	1, 3 Julian — Pyrrhus	G.g. 4	8, 8-9 Valentinian — Themistocles, the Roman people at the time of Marius and Cinna	GR.g. 3
	2, 16-17 Julian — Scipio Aemilianus	R.g. 1, 4	8, 10 Valentinian — Hadrian	R.b. 4
	3, 5 Julian — Fabricii	S.R.g. 4	8, 12 Valentinian — Antoninus Pius	R.g. 4*
	3, 9 Trajan	R.g. 4	9, 1 Valentinian (had he tempered his vices) — Trajan, M. Aurelius	R.g. 4
	4, 5 Julian — Torquatus, Valerius Corvinus	R.g. 4	XXXI, 10, 18-19 Gratian — Commodus	R.b. 4
	4, 24 Roman soldiers — soldier of Luscinius	R.g. 4		
	4, 27 Julian — Alexander, Scipio Africanus	GR.g. 1, 4		
	6, 7 Roman soldiers — Sertorius	R.g. 4		
	6, 14 Roman soldiers — Hector, Achilles, Sophanes, Aminias, Callimachus, Cynaegirus	G.g. 4		
XXV.	2, 3 Julian — Julius Caesar	R.g. 1, 4		
	3, 8 Julian — Epaminondas	G.g. 4		
	3, 13 victorious Roman army — Marcellus, Sicinius Dentatus, Sergius	R.g. 4		
	4, 2 Julian — Sophocles	G.g. 1, 4		
	4, 15 Julian — Alexander	G.g. 1, 4		
	4, 17 Julian — Hadrian	R.b. 4		
	4, 17 Julian — M. Aurelius	R.b. 4		
XXVI.	3, 5 Roman senator — Duillius	R.b. 4		
	6, 8 Petronius — Cleander, Plautianus	R.b. 5		

Totals:

exempla listed = 77

R = 48, G = 22, GR = 6, O = 1.

F. 2:

XIV, 1, 7 Amphiarus, Marcins
6, 21 Lotophagi

GR.
G.

	11, 30-33 Agathocles, Dionysius, Andriacus the son of Perseus, Marcius, Venturius, Claudius, Regulus, Pompey, Eunus, Viriathus, Spartacus	GR.
XVI.	10, 5 Cineas	G.
XVII.	1, 14 Roman wars with the Germans and Carthage	R.
XVIII.	5, 3 Zopyrus	O.
	5, 6 Maharbal and Hannibal	R.
XXIII.	5, 11 Maximianus	N.R.
	5, 16-17 Lucullus, Pompey, Ventidius, Trajan, L. Verus, S. Severus, Gordian III	S.R.
	5, 20 Carthage, Numantia, Fidenae, Veii, the Falsci	S.R.
XXIV.	6, 2-2 Trajan, S. Severus	R.
XXV.	9, 11 Caudine Forks, Numidia, Numantia	R.
	10, 13 Scipio Aemilianus	R.
XXVI.	6, 20 revolts of Andriacus, Maximin Thrax, Elagabalus, Gordianus	R.
	9, 3 Macedonians	G.
	9, 9 Perperna	R.
XXVII.	6, 16 M. Aurelius	R.
	8, 4 Ulysses	G.
XXVIII.	1, 3-4 Phrynicus	G.
	1, 39 Numa Pompilius, Cato	R.
	1, 54 Ajax	G.
	4, 11 Castor and Pollux	R.
	4, 23 M. Marcellus	R.
	4, 32 inhabitants of the Tauric Chersonese	G.
	4, 34 Democritus	G.
	5, 14 Egyptians	O.
XXIX.	1, 17 Commodus and Quintianus, S. Severus and Saturninus	R.
	2, 14 the Sirens	G.
XXX.	8, 8 Aurelian	N.R.
XXXI.	4, 7 Persians	G.
	5, 11-17 Teutones and Cimbri; M. Aurelius and the Germans and Sarmatians; Decius, Claudius II, Aurelian and the Goths	R.
	13, 13 Decius	R.
	13, 17 Cn. Cornelius Scipio Calvus	R.
	13, 19 Cannae	R.

Totals:

exempla listed = 34

R = 20, C = 10, GR = 2, O = 2.

APPENDIX G

SENTENTIAE IN THE FORM OF QUOTATIONS

(For the notes and relevant symbols see Appendix F).

XIV.	6, 7	SIMONIDES (probably a false ascription — see DE JONGE, <i>Historische Kommentar</i> , ad loc.).	
	6, 8	HESIOD, <i>Erga</i> , 289 ff.	
XV.	5, 23	CICERO, <i>frag. de Republica</i> (Michael, Bratislava, 1874, p. 7).	
XVI.	5, 10	Proverb (perhaps ascribed by Ammianus to Plato, but copied from CICERO, <i>ad Att.</i> , V, 15, 3)	1.
	5, 1	DEMOCRITUS	1.
	5, 2	CATO, <i>frag.</i> , 78.	
XIX.	12, 18	CICERO, <i>frag. incert.</i> (ROLFE, <i>ad loc.</i> suggests from the <i>oratio Metellina</i>).	
XXI.	16, 13	CICERO, <i>frag. Ep. ad C. Nepotem</i> .	
	16, 14	HERACLITUS OF EPHEBUS.	
XXII.	7, 3-4	CICERO, <i>pro Archia</i> , 2, 26	2.
XXV.	4, 3	BACCHYLIDES, <i>Hymn. frag.</i> , 59 (J. M. EDMONDS, <i>Lava Graeca</i> , LCL, III)	1.
XXVI.	1, 2	CICERO, <i>frag. Ep. ad C. Nepotem</i>	2.
	10, 12	CICERO, <i>frag. incert.</i>	
XXVII.	9, 10	CICERO, <i>Orator</i> , 10, 34.	
	11, 4	CICERO, <i>Phil.</i> , II, 12, 29.	
XXVIII.	1, 40	CICERO, <i>ad Q. frat.</i> , 1, 13, 39.	
	4, 26	CICERO, <i>de Amicitia</i> , 21, 79.	
XXIX.	1, 21	THEOGNIS, <i>Elegies</i> , 1, 173-8 (J.M. EDMONDS, <i>Elegy and Iambus</i> , I, LCL).	
	1, 22	ADON. TRAXIM.	
	2, 18	CAESAR	2.
	5, 24	CICERO, <i>Ep. ad Brut.</i> , 1, 2, 5	1.
XXX.	1, 23	DEMOSTHENES, <i>Androt.</i> , 7.	
	4, 7	CICERO, <i>frag. incert.</i>	
	4, 10	CICERO, <i>de Rep.</i> , V, 9, 11.	
	8, 6	ISOCRATES, <i>Panath.</i> , 185.	
	8, 7	CICERO, <i>frag. Or. pro Oppido</i> .	

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